

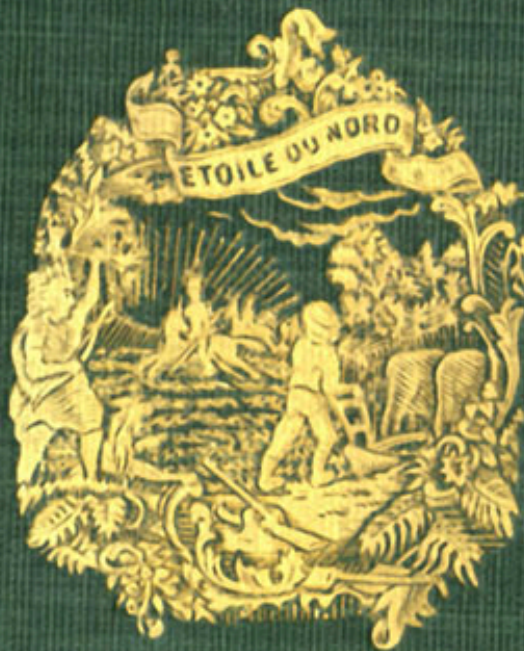
THE
HISTORY
OF
MINNESOTA
AND
TALES
OF THE
FRONTIER

JUDGE
FLANDRAU



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THE HISTORY OF MINNESOTA AND TALES OF THE FRONTIER



Chas E Flandrau

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The History of Minnesota
AND

Tales of the Frontier.

BY

JUDGE CHARLES E. FLANDRAU

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Dedication.

To the Old Settlers of Minnesota, who so wisely laid the foundation of our state upon the broad and enduring basis of freedom and toleration, and who have so gallantly defended and maintained it, this history is most gratefully and affectionately dedicated by the author.

Charles E. Flandrau.

AUTHOR'S INTRODUCTION.

The original design of this history was, that it should accompany and form part of a book called the "Encyclopedia of Biography of Minnesota." It was so published, and as that work was very large and expensive, it was confined almost exclusively to its subscribers, and did not reach the general public. Many requests were made to the author to present it to the public in a more popular and readable form, and he decided to publish it in a book of the usual library size, and dispose of it at a price which would place it within the reach of everyone desirous of reading it. As the history is written in the most compendious form consistent with a full presentation and discussion of all the facts concerning the creation and growth of the state, it was estimated that it would not occupy sufficient space in print to make a volume of the usual and proper size. The author therefore decided to accompany it with a series of "Frontier Stories," written by himself at different times during his long residence in the Northwest, which embrace historical events, personal adventures, and amusing incidents. He believes these stories will lend interest and pleasure to the volume.

THE AUTHOR.

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HISTORY OF MINNESOTA.

BY JUDGE CHARLES E. FLANDRAU.

It has been a little over fifty years since the organization of the Territory of Minnesota, which at its birth was a very small and unimportant creation, but which in its half century of growth has expanded into one of the most brilliant and promising stars upon the union of our flag; so that its history must cover every subject, moral, physical and social, that enters into the composition of a first-class progressive Western state, which presents a pretty extensive field; but there is also to be considered a period anterior to civilization, which may be called the aboriginal and legendary era, which abounds with interesting matter, and to the general reader is much more attractive than the prosy subjects of agriculture, finance and commerce.

Having lived in the state through nearly the whole period of Minnesota's political existence, and having taken part in most of the leading events in her history, both savage and civilized, I propose to treat the various subjects that compose her history in a narrative and colloquial manner that may not rise to the dignity of history, but which, I think, while giving facts, will not detract from the interest or pleasure of the reader. If I should in the course of my narrative so far forget myself as to indulge in a joke, or relate an illustrative anecdote, the reader must put up with it.

Nature has been lavishly generous with Minnesota,—more so, perhaps, than with any state in the Union. Its surface is beautifully diversified between rolling prairies and immense forests of valuable timber. Rivers and lakes abound, and the soil is marvelous in its productive fertility. Its climate, taken the year round, surpasses in all attractive features that of any part of

the North American continent. There are more enjoyable days in the three hundred and sixty-five that compose the year than in any other country I have ever visited or resided in, and that embraces a good part of the world's surface. The salubrity of Minnesota is phenomenal. There are absolutely no diseases indigenous to the state. The universally accepted truth of this fact is found in a saying, which used to be general among the old settlers, "that there is no excuse for anyone dying in Minnesota, and that only two men ever did die there, one of whom was hanged for killing the other."

The resources of Minnesota principally consist of the products of the farm, the mine, the dairy, the quarry and the forest, and its industries of a vast variety of manufactures of all kinds and characters, both great and small, the leading ones being flour and lumber; to which, of course, must be added the enormous carrying trade which grows out of, and is necessary to the successful conduct of such resources and industries,—all of which subjects will be treated of in their appropriate places.

With these prefatory suggestions I will proceed to the history, beginning with the

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LEGENDARY AND ABORIGINAL ERA.

Until a very few years ago it has been generally accepted as a fact that Louis Hennepin, a Franciscan priest of the Recollect Order, was the first white man who entered the present boundaries of Minnesota; but a recent discovery has developed the fact that there has reposed in the archives of the Bodleian Library and British Museum for more than two hundred years manuscript accounts of voyages made as far back as 1652 by two Frenchmen, named respectively Radison and Groselliers, proving that they traveled among the North American Indians from the last named date to the year 1684, during which time they visited what is now Minnesota. It is also a well authenticated fact that Du Luth anticipated Hennepin at least one year, and visited Mille Lacs in 1679, and there, on the southwest side of the lake, found a large Sioux town, called Kathio, from which point he wrote to Frontenac, on the second day of July, 1679, that he had caused his majesty's arms to be planted in Kathio, where no Frenchman had ever been. Hennepin did not arrive until 1680. But as the exploits of these earlier travelers left no trace that can in any important way influence the history of our state beyond challenging the claim of priority so long enjoyed by Hennepin, I will simply mention the fact of their advent without comment, referring the curious reader for the proof of these matters to the library of the Minnesota Historical Society, where the details can be found.

Hennepin was with La Salle at Fort Creve-Coeur, near Lake Peoria, in what is now Illinois, in 1680. La Salle was the superior of the exploring party of which young Hennepin was a member, and in February, 1680, he selected Hennepin and two traders for the arduous and dangerous undertaking of exploring the unknown regions of the Upper Mississippi. Hennepin was very ambitious to become a great explorer, and was filled with the idea that by following the water courses he would find a passage to the sea and Japan.

On the 29th of February, 1680, he, with two voyageurs, in a canoe, set out on his voyage of discovery. When he reached the junction of the Illinois river with the Mississippi in March, he was detained by floating ice until

near the middle of that month. He then commenced to ascend the Mississippi, which was the first time it was ever attempted by a civilized man. On the 11th of April they were met by a large war party of Dakotas, which filled thirty-three canoes, who opened fire on them with arrows; but hostilities were soon stopped, and Hennepin and his party were taken prisoners, and made to return with their captors to their villages.

Hennepin, in his narrative, tells a long story of the difficulties he encountered in saying his prayers, as the Indians thought he was working some magic on them, and they followed him into the woods, and never let him out of their sight. Judging from many things that appear in his narrative, which have created great doubt about his veracity, it probably would not have been very much of a hardship if he had failed altogether in the performance of this pious duty. Many of the Indians, who had lost friends and relatives in their fights with the Miamis, were in favor of killing the white men, but better counsels prevailed, and they were spared. The hope of opening up a trade intercourse with the French largely entered into the decision.

While traveling up the river one of the white men shot a wild turkey with his gun, which produced a great sensation among the Indians, and was the first time a Dakota ever heard the discharge of firearms. They called the gun *Maza wakan*, or spirit iron.

The party camped at Lake Pepin, and on the nineteenth day of their captivity they arrived in the vicinity of where St. Paul now stands. From this point they proceeded by land to Mille Lacs, where they were taken by the Indians to their several villages, and were kindly treated. These Indians were part of the band of Dakotas, called *M'day-wa-kon-ton-wans*, or the Lake Villagers. I spell the Indian names as they are now known, and not as they are given in Hennepin's narrative, although it is quite remarkable how well he preserved them with sound as his only guide.

While at this village the Indians gave Hennepin some steam baths, which he says were very effective in removing all traces of soreness and fatigue, and in a short time made him feel as well and strong as he ever was. I have often witnessed this medical process among the Dakotas. They make a small lodge of poles covered with a buffalo skin, or something similar, and

place in it several large boulders heated to a high degree. The patient then enters naked, and pours water over the stones, producing a dense steam, which envelopes him and nearly boils him. He stands it as long as he can, and then undergoes a thorough rubbing. The effect is to remove stiffness and soreness produced by long journeys on foot, or other serious labor.

Hennepin tells in a very agreeable way many things that occurred during his captivity: how astonished the Indians were at all the articles he had. A mariner's compass created much wonder, and an iron pot with feet like lions' paws they would not touch with the naked hand; but their astonishment knew no bounds when he told them that the whites only allowed a man one wife, and that his religious office did not permit him to have any.

I might say here that the Dakotas are polygamous, as savage people generally are, and that my experience proves to me that missionaries who go among these people make a great mistake in attacking this institution until after they have ingratiated themselves with them, and then, by attempting any reform beyond teaching monogamy in the future. Nothing will assure the enmity of a savage more than to ask him to discard any of his wives, and especially the mother of his children. While I would be the last man on earth to advocate polygamy, I can truthfully say that one of the happiest and most harmonious families I ever knew was that of the celebrated Little Crow (who, during all my official residence among the Dakotas, was my principal advisor and ambassador, and who led the massacre in 1862), who had four wives; but there was a point in his favor, as they were all sisters.

Hennepin passed the time he spent in Minnesota in baptizing Indian babies and picking up all the information he could find. His principal exploit was the naming of the Falls of St. Anthony, which he called after his patron saint, Saint Anthony of Padua.

That Hennepin was thoroughly convinced that there was a northern passage to the sea which could be reached by ships, is proven by the following extract from his work:

"For example, we may be transported into the Pacific sea by rivers, which are large and capable of carrying great vessels, and from thence it is very easy to go to China and Japan without crossing the equinoctial line, and in all probability Japan is on the same continent as America."

Our early visitor evidently had very confused ideas on matters of geography.

The first account of his adventures was published by him in 1683, and was quite trustworthy, and it is much to be regretted that he was afterwards induced to publish another edition in Utrecht, in 1689, which was filled with falsehoods and exaggerations, which brought upon him the censure of the king of France. He died in obscurity, unregretted. The county of Hennepin is named for him.

Other Frenchmen visited Minnesota shortly after Hennepin for the purpose of trade with the Indians and the extension of the territory of New France. In 1689 Nicholas Perot was established at Lake Pepin, with quite a large body of men, engaged in trade with the Indians. On the 8th of May, 1689, Perot issued a proclamation from his post on Lake Pepin, in which he formally took possession in the name of the king of all the countries inhabited by the Dakotas, "and of which they are proprietors."

This post was the first French establishment in Minnesota. It was called Fort Bon Secours, afterwards Fort Le Sueur, but on later maps Fort Perot.

In 1695 Le Sueur built the second post in Minnesota, between the head of Lake Pepin and the mouth of the St. Croix. In July of that year he took a party of Ojibways and one Dakota to Montreal, for the purpose of impressing upon them the importance and strength of France. Here large bodies of troops were maneuvered in their presence, and many speeches made by both the French and the Indians. Friendly and commercial relations were established.

Le Sueur, some time after, returned to Minnesota and explored St. Peter's river (now the Minnesota) as far as the mouth of the Blue Earth. Here he built a log fort, and called it L'Hullier, and made some excavations in search of copper ore. He sent several tons of a green substance which he found,

and supposed to be copper, to France, but it was undoubtedly a colored clay that is found in that region, and is sometimes used as a rough paint. He is supposed to be the first man who supplied the Indians with guns. Le Sueur kept a journal in which he gave the best description of the Dakotas written in those early times, and was a very reliable man. Minnesota has a county and a city named for him.

Many other Frenchmen visited Minnesota in early days, among whom was Du Luth; but as they were simply traders, explorers and priests, among the Indians, it is hardly necessary in a work of this character to trace their exploits in detail. While they blazed the trail for others, they did not, to any great extent, influence the future of the country, except by supplying a convenient nomenclature with which to designate localities, which has largely been drawn upon. Many of them, however, were good and devoted men, and earnest in their endeavors to spread the gospel among the Indians. How well they succeeded, I will discuss when I speak of these savage men more particularly.

The next arrival of sufficient importance to particularize was Jonathan Carver. He was born in Connecticut in 1732. His father was a justice of the peace, which in those days was a more important position than it is now regarded. They tried to make a doctor of him, and he studied medicine just long enough to discover that the profession was uncongenial, and abandoned it. At the age of eighteen he purchased an ensign's commission in a Connecticut regiment, raised during the French war. He came very near losing his life at the massacre of Fort William Henry, but escaped, and after the declaration of peace between France and England, in 1763, he conceived the project of making an exploration of the Northwest.

It should be remembered that the French sovereignty over the Northwest ceased in 1763, when, by a treaty made in Versailles, between the French and the English, all the lands embraced in what is now Minnesota were ceded by the French to England, so Carver came as an Englishman into English territory.

Carver left Boston in the month of June, 1766, and proceeded to Mackinaw, then the most distant British post, where he arrived in the month of August. He then took the usual route to Green Bay. He proceeded by the way of the

Fox and Wisconsin rivers to the Mississippi. He found a considerable town on the Mississippi, near the mouth of the Wisconsin, called by the French "La Prairie les Chiens," which is now Prairie du Chien, or the Dog Prairie, named after an Indian chief who went by the dignified name of "The Dog." He speaks of this town as one where a great central fur trade was carried on by the Indians. From this point he commenced his voyage up the Mississippi in a canoe, and when he reached Lake Pepin he claims to have discovered a system of earthworks, which he describes as of the most scientific military construction, and inferred that they had been at some time the intrenchments of a people well versed in the arts of war. It takes very little to excite an enthusiastic imagination into the belief that it has found what it has been looking for.

He found a cave in what is now known as Dayton's Bluff in St. Paul, and describes it as immense in extent, and covered with Indian hieroglyphics, and speaks of a burying place at a little distance from the cavern,—Indian Mound park evidently,—and made a short voyage up the Minnesota river, which he says the Indians called "Wadapaw Mennesotor." This probably is as near as he could catch the name by sound; it should be, Wak-pa Minnesota.

After his voyage to the falls and up the Minnesota, he returned to his cave, where he says there were assembled a great council of Indians, to which he was admitted, and witnessed the burial ceremonies, which he describes as follows:

"After the breath is departed, the body is dressed in the same attire it usually wore, his face is painted, and he is seated in an erect posture on a mat or skin, placed in the middle of the hut, with his weapons by his side. His relatives, seated around, each harangues the deceased; and if he has been a great warrior, recounts his heroic actions nearly to the following purport, which in the Indian language is extremely poetical and pleasing:

""You still sit among us, brother; your person retains its usual resemblance, and continues similar to ours, without any visible deficiency except it has lost the power of action. But whither is that breath flown which a few hours ago sent up smoke to the Great Spirit? Why are those lips silent that lately

delivered to us expressions and pleasing language? Why are those feet motionless that a short time ago were fleeter than the deer on yonder mountains? Why useless hang those arms that could climb the tallest tree or draw the toughest bow? Alas! Every part of that frame which we lately beheld with admiration and wonder is now become as inanimate as it was three hundred years ago! We will not, however, bemoan thee as if thou wast forever lost to us, or that thy name would be buried in oblivion. Thy soul yet lives in the great country of spirits with those of thy nation that have gone before thee, and though we are left behind to perpetuate thy fame, we shall one day join thee.

"Actuated by the respect we bore thee whilst living, we now come to tender thee the last act of kindness in our power; that thy body might not lie neglected on the plain and become a prey to the beasts of the field and the birds of the air, we will take care to lay it with those of thy ancestors who have gone before thee, hoping at the same time that thy spirit will feed with their spirits, and be ready to receive ours when we shall also arrive at the great country of souls."

I have heard many speeches made by the descendants of these same Indians, and have many times addressed them on all manner of subjects, but I never heard anything quite so elegant as the oration put into their mouths by Carver. I have always discovered that a good interpreter makes a good speech. On one occasion, when a delegation of Pillager Chippewas was in Washington to settle some matters with the government, they wanted a certain concession which the Indian commissioner would not allow, and they appealed to the president, who was then Franklin Pierce. Old Flatmouth, the chief, presented the case. Paul Beaulieu interpreted it so feelingly that the president surrendered without a contest. After informing him as to the disputed point, he added:

"Father, you are great and powerful. You live in a beautiful home where the bleak winds never penetrate. Your hunger is always appeased with the choicest foods. Your heart is kept warm by all these blessings, and would bleed at the sight of distress among your red children. Father, we are poor and weak. We live far away in the cheerless north, in bark lodges. We are

often cold and hungry. Father, what we ask is to you as nothing, while to us it is comfort and happiness. Give it to us, and when you stand upon your grand portico some bright winter night, and see the northern lights dancing in the heavens, it will be the thanks of your red children ascending to the Great Spirit for your goodness to them."

Carver seems to have been a sagacious observer and a man of great foresight. In speaking of the advantages of the country, he says that the future population will be "able to convey their produce to the seaports with great facility, the current of the river from its source to its entrance into the Gulf of Mexico being extremely favorable for doing this in small craft. This might also in time be facilitated by canals, or short cuts, and a communication opened with New York by way of the Lakes."

He was also impressed with the idea that a route could be discovered by way of the Minnesota river, which "would open a passage for conveying intelligence to China and the English settlements in the East Indies."

The nearest to a realization of this theory that I have known was the sending of the stern-wheeled steamer "Freighter" on a voyage up the Minnesota to Winnipeg some time in the early fifties. She took freight and passengers for that destination, but never reached the Red River of the North.

After the death of Carver his heirs claimed that, while at the great cave on the 1st of May, 1767, the Indians made him a large grant of land, which would cover St. Paul and a large part of Wisconsin, and several attempts were made to have it ratified by both the British and American governments, but without success. Carver does not mention this grant in his book, nor has the original deed ever been found. A copy, however, was produced, and as it was the first real estate transaction ever had in Minnesota, I will set it out in full.

"To Jonathan Carver, a Chief under the Most Mighty and Potent George the Third, King of the English and other nations, the fame of whose warriors has reached our ears, and has been fully told us by our *good brother Jonathan* aforesaid, whom we all rejoice to have come among us and bring us good news from his country:

"WE, Chiefs of the Nadowessies, who have hereunto set our seals, do, by these presents, for ourselves and heirs forever, in return for the aid and good services done by the said Jonathan to ourselves and allies, give, grant and convey to him, the said Jonathan, and to his heirs and assigns forever, the whole of a certain Territory or tract of land, bounded as follows, viz.: From the Falls of St. Anthony, running on east bank of the Mississippi, nearly southeast as far as Lake Pepin, where the Chippewa joins the Mississippi, and from thence eastward five days' travel accounting twenty English miles per day, and from thence again to the Falls of St. Anthony on a direct straight line. We do for ourselves, heirs and assigns, forever give unto said Jonathan, his heirs and assigns, with all the trees, rocks and rivers therein, reserving the sole liberty of hunting and fishing on land not planted or improved by the said Jonathan, his heirs and assigns, to which we have affixed our respective seals.

"At the Great Cave, May 1st, 1767.

(Signed) "HAWNOPAWJATIN,

"OTOHTONGOONLISHEAW."

This alleged instrument bears upon its face many marks of suspicion, and was very properly rejected by General Leavenworth, who, in 1821, made a report of his investigations in regard to it to the commissioner of the general land office.

The war between the Chippewas and the Dakotas continued to rage with varied success, as it has since time immemorial. It was a bitter, cruel war, waged against the race and blood, and each successive slaughter only increased the hatred and heaped fuel upon the fire. As an Indian never forgives the killing of a relative, and as the particular murderer, as a general thing, was not known on either side, each death was charged up to the tribe. These wars, although constant, had very little influence on the standing or progress of the country, except so far as they may have proved detrimental or beneficial to the fur trade prosecuted by the whites. The first event after the appearance of Jonathan Carver that can be considered as materially affecting the history of Minnesota was the location and erection of Fort Snelling, of which event I will give a brief account.

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FORT SNELLING.

In 1805 the government decided to procure a site on which to build a fort somewhere on the waters of the upper Mississippi, and sent Lieut. Zebulon Montgomery Pike of the army to explore the country, expel British traders who might be violating the laws of the United States, and to make treaties with the Indians.

On the 21st of September, 1805, he encamped on what is now known as Pike Island, at the junction of the Mississippi and Minnesota, then St. Peter's river. Two days later he obtained, by treaty with the Dakota nation, a tract of land for a military reservation, with the following boundaries, extending from "below the confluence of the Mississippi and St. Peter's, up the Mississippi, to include the Falls of St. Anthony, extending nine miles on each side of the river." The United States paid two thousand dollars for this land.

The reserve thus purchased was not used for military purposes until Feb. 10, 1819, at which time the government gave the following reasons for erecting a fort at this point: "To cause the power of the United States government to be fully acknowledged by the Indians and settlers of the Northwest, to prevent Lord Selkirk, the Hudson Bay Company and others from establishing trading posts on United States territory, to better the conditions of the Indians, and to develop the resources of the country." Part of the Fifth United States Infantry, commanded by Colonel Henry Leavenworth, was dispatched to select a site and erect a post. They arrived at the St. Peter's river in September, 1819, and camped on or near the spot where now stands Mendota. During the winter of 1819-20 the troops were terribly afflicted with scurvy. General Sibley, in an address before the Minnesota Historical Society, in speaking of it, says: "So sudden was the attack that soldiers apparently in good health when they retired at night were found dead in the morning. One man who was relieved from his tour of sentinel duty, and had stretched himself upon a bench; when he was called four hours later to resume his duties, he was found lifeless."

In May, 1820, the command left their cantonment, crossed the St. Peter's and went into summer camp at a spring near the old Baker trading house, and about two miles above the present site of Fort Snelling. This was called "Camp Coldwater."

During the summer the men were busy in procuring logs and other material necessary for the work. The first site selected was where the present military cemetery stands, and the post was called "Fort St. Anthony;" but in August, 1820, Colonel Joshua Snelling of the Fifth United States Infantry arrived, and, on taking command, changed the site to where Fort Snelling now stands. Work steadily progressed until Sept. 10, 1820, when the corner stone of Fort St. Anthony was laid with all due ceremony. The first measured distance that was given between this new post and the next one down the river, Fort Crawford, where Prairie du Chien now stands, was 204 miles. The work was steadily pushed forward. The buildings were made of logs, and were first occupied in October, 1822.

The first steamboat to arrive at the post was the "Virginia," in 1823.

The first saw-mill in Minnesota was constructed by the troops in 1822, and the first lumber sawed on Rum river was for use in building the post. The mill site is now included within the corporate limits of Minneapolis.

The post continued to be called Fort St. Anthony until 1824, when, upon the recommendation of General Scott, who inspected the fort, it was named Fort Snelling, in honor of its founder.

In 1830 stone buildings were erected for a four-company post; also, a stone hospital and a stone wall, nine feet high, surrounding the whole post; but these improvements were not actually completed until after the Mexican War.

The Indian title to the military reservation does not seem to have been effectually acquired, notwithstanding the treaty of Lieutenant Pike, made with the Indians in 1805, until the treaty with the Dakotas, in 1837, by which the Indian claim to all the lands east of the Mississippi, including the reservation, ceased.

In 1836, before the Indian title was finally acquired, quite a number of settlers located on the reservation on the left bank of the Mississippi.

On Oct. 21, 1839, the president issued an order for their removal, and on the sixth day of May, 1840, some of the settlers were forcibly removed.

In 1837 Mr. Alexander Faribault presented a claim for Pike Island, which was based upon a treaty made by him with the Dakotas in 1820. Whether his claim was allowed the records do not disclose, and it is unimportant.

On May 25, 1853, a military reservation for the fort was set off, by the president, of seven thousand acres, which in the following November was reduced to six thousand.

In 1857 the secretary of war, pursuant to the authority vested in him by act of congress, of March 3, 1857, sold the Fort Snelling reservation, excepting two small tracts, to Mr. Franklin Steele, who had long been sutler of the post, for the sum of ninety thousand dollars, which was to be paid in three installments. The first one of thirty thousand dollars was paid by Steele on July 25, 1857, and he took possession, the troops being withdrawn.

The fort was sold at private sale, and the price paid was, in my opinion, vastly more than it was worth; but Mr. Steele had great hopes for the future of that locality as a site for a town, and was willing to risk the payment. The sale was made by private contract by Secretary Floyd, who adopted this manner because other reservations had been sold at public auction, after full publication of notice to the world, and had brought only a few cents per acre. The whole transaction was in perfect good faith, but it was attacked in congress, and an investigation ordered, which resulted in suspending its consummation, and Mr. Steele did not pay the balance due. In 1860 the Civil War broke out, and the fort was taken possession of by the government for use in fitting out Minnesota troops, and was held until the war ended. In 1868 Mr. Steele presented a claim against the government for rent of the fort and other matters relating to it, which amounted to more than the price he agreed to pay for it.

An act of congress was passed on May 7, 1870, authorizing the secretary of war to settle the whole matter on principles of equity, keeping such reservation as was necessary for the fort. In pursuance of this act, a military board was appointed, and the whole controversy was arranged to the satisfaction of Mr. Steele and the government. The reservation was reduced to a little more than fifteen hundred acres. A grant of ten acres was made to

the little Catholic church at Mendota, for a cemetery, and other small tracts were reserved about the Falls of Minnehaha and elsewhere, and all the balance was conveyed to Mr. Steele, he releasing the government from all claims and demands. The action of the secretary of war in carrying out this settlement was approved by the president in 1871.

The fort was one of the best structures of the kind ever erected in the West. It was capable of accommodating five or six companies of infantry, was surrounded by a high stone wall, and protected at the only exposed approaches by stone bastions guarded by cannon and musketry. Its supply of water was obtained from a well in the parade ground, near the sutler's store, which was sunk below the surface of the river. It was perfectly impregnable to any savage enemy, and in consequence was never called upon to stand a siege.

Perched upon a prominent bluff at the confluence of the Mississippi and Minnesota rivers, it has witnessed the changes that have gone on around it for three-quarters of a century, and seen the most extraordinary transformations that have occurred in any similar period in the history of our country. When its corner stone was laid it formed the extreme frontier of the Northwest, with nothing but wild animals and wilder men within hundreds of miles in any direction. The frontier has receded to the westward until it has lost itself in the corresponding one being pushed from the Pacific to the east. The Indians have lost their splendid freedom as lords of a continent, and are prisoners, cribbed upon narrow reservations. The magnificent herds of buffalo that ranged from the British possessions to Texas have disappeared from the face of the earth, and nothing remains but the white man bearing his burden, which is constantly being made more irksome. To those who have played both parts in the moving drama, there is much food for thought.

I devote so much space to Fort Snelling because it has always sustained the position of a pivotal center to Minnesota. In the infancy of society, it radiated the refinement and elegance that leavened the country around. In hospitality its officers were never surpassed, and when danger threatened, its protecting arm assured safety. For many long years it was the first to welcome the incomer to the country, and will ever be remembered by the old settlers as a friend.

After the headquarters of the Department of Dakota was established at St. Paul, and when General Sherman was in command of the army, he thought that the offices should be at the fort, and removed them there. This caused the erection of the new administration building and the beautiful line of officers' quarters about a mile above the old walled structure, and led to its practical abandonment; but the change was soon found to be inconvenient in a business way, and the department headquarters were restored to the city, where they still remain.

Since the fort was built nearly every officer in the old army, and many of those who have followed them, has been stationed at Snelling, and it was beloved by them all.

The situation of the fort, now that the railroads have become the reliance of all transportation, both for speed and safety, is a most advantageous one from a military point of view. It is at the center of a railroad system that reaches all parts of the continent, and troops and munitions of war can be deposited at any point with the utmost dispatch. It is believed that it will not only be retained but enlarged.

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THE SELKIRK SETTLEMENT.

Lord Selkirk, the checking of whose operations was among the reasons given for the erection of Fort Snelling, was a Scotch earl who was very wealthy and enthusiastic on the subject of founding colonies in the Northwestern British possessions. He was a kind hearted but visionary man, and had no practical knowledge whatever on the subject of colonization in uncivilized countries. About the beginning of the nineteenth century he wrote several pamphlets, urging the importance of colonizing British emigrants on British soil to prevent them settling in the United States. In 1811 he obtained a grant of land from the Hudson Bay Company in the region of Lake Winnipeg, the Red River of the North and the Assinaboine, in what is now Manitoba.

Previous to this time the inhabitants of this region, besides the Indians, were Canadians, who had intermingled with the savages, learning all their vices and none of their good traits. They were called "Gens Libre," free people, and were very proud of the title. Mr. Neill, in his history of Minnesota, in describing them, says they were fond of

"Vast and sudden deeds of violence,
Adventures wild and wonders of the moment."

The offspring of their intercourse with the Indian women were numerous, and called "Bois Brules." They were a fine race of hunters, horsemen and boatmen, and possessed all the accomplishments of the voyageur. They spoke the language of both father and mother.

In 1812 a small advance party of colonists arrived at the Red River of the North, in about latitude fifty degrees north. They were, however, frightened away by a party of men of the Northwest Fur Company, dressed as Indians, and induced to take refuge at Pembina, in what is now Minnesota, where they spent the winter, suffering the greatest hardships. Many died, but the survivors returned in the spring to the colony, and made an effort to raise a

crop; but it was a failure, and they again passed the winter at Pembina. This was the winter of 1813-14. They again returned to the colony, in a very distressed and dilapidated condition, in the spring.

By September, 1815, the colony, which then numbered about two hundred, was getting along quite prosperously, and its future seemed auspicious. It was called "Kildonan," after a parish in Scotland in which the colonists were born.

The employees of the Northwest Fur Company were, however, very restive under anything that looked like improvement, and regarded it as a ruse of their rival, the Hudson Bay Company, to break up the lucrative business they were enjoying in the Indian trade. They resorted to all kinds of measures to get rid of the colonists, even to attempting to incite the Indians against them, and on one occasion, by a trick, disarmed them of their brass field pieces and other small artillery. Many of the disaffected Selkirkers deserted to the quarters of the Northwest Company. These annoyances were carried to the extent of an attack on the house of the governor, where four of the inmates were wounded, one of whom died. They finally agreed to leave, and were escorted to Lake Winnipeg, where they embarked in boats. Their improvements were all destroyed by the Northwest people.

They were again induced to return to their colony lands by the Hudson Bay people, and did so in 1816, when they were reinforced by new colonists. Part of them wintered at Pembina in 1816, but returned to the Kildonan settlement in the spring.

Lord Selkirk, hearing of the distressed condition of his colonists, sailed for New York, where he arrived in the fall of 1815, and learned they had been compelled to leave the settlement. He proceeded to Montreal, where he found some of the settlers in the greatest poverty; but learning that some of them still remained in the colony, he sent an express to announce his arrival, and say that he would be with them in the spring. The news was sent by a colonist named Laquimonier, but he was waylaid, near Fond du Lac, and brutally beaten and robbed of his dispatches. Subsequent investigation proved that this was the work of the Northwest Company.

Selkirk tried to obtain military aid from the British authorities, but failed. He then engaged four officers and over one hundred privates who had

served in the late War with the United States to accompany him to the Red river. He was to pay them, give them lands, and send them home if they wished to return.

When he reached Sault Ste. Marie he heard that his colony had again been destroyed.

War was raging between the Hudson Bay people and the Northwest Company, in which Governor Semple, chief governor of the factories and territories of the Hudson Bay Company was killed. Selkirk proceeded to Fort William, on Lake Superior, and finally reached his settlement on the Red river.

The colonists were compelled to pass the winter of 1817 in hunting in Minnesota, and had a hard time of it, but in the spring they once more found their way home, and planted crops, but they were destroyed by grasshoppers, which remained during the next year and ate up every growing thing, rendering it necessary that the colonists should again resort to the buffalo for subsistence.

During the winter of 1819-20 a deputation of these Scotchmen came all the way to Prairie du Chien on snowshoes for seed wheat, a distance of a thousand miles, and on the fifteenth day of April, 1820, left for the colony in three Mackinaw boats, carrying three hundred bushels of wheat, one hundred bushels of oats, and thirty bushels of peas. Being stopped by ice in Lake Pepin, they planted a May pole and celebrated May day on the ice. They reached home by way of the Minnesota river, with a short portage to Lake Traverse, the boats being moved on rollers, and thence down the Red River to Pembina, where they arrived in safety on the third day of June. This trip cost Lord Selkirk about six thousand dollars.

Nothing daunted by the terrible sufferings of his colonists, and the immense expense attendant upon his enterprise, in 1820 he engaged Capt. R. May, who was a citizen of Berne, in Switzerland, but in the British service, to visit Switzerland and get recruits for his colony. The captain made the most exaggerated representations of the advantages to be gained by emigrating to the colony, and induced many Swiss to leave their happy and peaceful homes to try their fortunes in the distant, dangerous and inhospitable regions of Lake Winnipeg. They knew nothing of the hardships in store for

them, and were the least adapted to encounter them of any people in the world, as they were mechanics, whose business had been the delicate work of making watches and clocks. They arrived in 1821, and from year to year, after undergoing hardships that might have appalled the hardiest pioneer, their spirits drooped, they pined for home, and left for the south. At one time a party of two hundred and forty-three of them departed for the United States, and found homes at different points on the banks of the Mississippi.

Before the eastern wave of immigration had ascended above Prairie du Chien, many Swiss had opened farms at and near St. Paul, and became the first actual settlers of the country. Mr. Stevens, in an address on the early history of Hennepin county, says that they were driven from their homes in 1836 and 1837 by the military at Fort Snelling, and is very severe on the autocratic conduct of the officers of the fort, saying that the commanding officers were lords of the North, and the subordinates were princes. I have no doubt they did not underrate their authority, but I think Mr. Stevens must refer to the removals that were made of settlers on the military reservation of which I have before spoken.

The subject of the Selkirk colony cannot fail to interest the reader, as it was the first attempt to introduce into the great Northwest settlers for the purposes of peaceful agriculture, everybody else who had preceded them having been connected with the half-savage business of the Indian trade; and the reason I have dwelt so long upon the subject is, because these people, on their second emigration, furnished Minnesota with her first settlers, and curiously enough, they came from the north.

Abraham Perry was one of these Swiss refugees from the Selkirk settlement. With his wife and two children, he first settled at Fort Snelling, then at St. Paul, and finally at Lake Johanna. His son Charles, who came with him, has, while I am writing, on the twenty-ninth day of July, 1899, just celebrated his golden wedding at the old homestead, at Lake Johanna, where they have ever since lived. They were married by the Right Reverend A. Ravoux, who is still living in St. Paul. Charles Perry is the only survivor of that ill-fated band of Selkirkers.

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GEORGE CATLIN.

In 1835 George Catlin, an artist of merit, visited Minnesota, and made many sketches and portraits of Indians. His published statements after his departure about his adventures elicited much adverse criticism from the old settlers.

FEATHERSTONEHAUGH.

Featherstonehaugh, an Englishman, about the same time, under the direction of the United States government, made a slight geological survey of the Minnesota valley, and on his return to England he wrote a book which reflected unjustly upon the gentlemen he met in Minnesota; but not much was thought of it, because until recently such has been the English custom.

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SCHOOLCRAFT AND THE SOURCE OF THE MISSISSIPPI.

In 1832 the United States sent an embassy, composed of thirty men, under Henry R. Schoolcraft, then Indian Agent at Sault Ste. Marie, to visit the Indians of the Northwest, and, when advisable, to make treaties with them. They had a guard of soldiers, a physician, an interpreter, and the Rev. William T. Boutwell, a missionary at Leech Lake. They were supplied with a large outfit of provisions, tobacco and trinkets, which were conveyed in a bateau. They travelled in several large bark canoes. They went to Fond du Lac, thence up the St. Louis river, portaged round the falls, thence to the nearest point to Sandy lake, thence up the Mississippi to Leech lake. While there, they learned from the Indians that Cass lake, which for some time had been reputed to be the source of the Mississippi, was not the real source, and they determined to solve the problem of where the real source was to be found, and what it was.

I may say here that, in 1819, Gen. Lewis Cass, then governor of the Territory of Michigan, had led an exploring party to the upper waters of the Mississippi, somewhat similar to the one I am now speaking of, Mr. Henry R. Schoolcraft being one of them. When they reached what is now Cass lake, in the Mississippi river, they decided that it was the source of the great river, and it was named Cass lake, in honor of the governor, and was believed to be such source until the arrival of Schoolcraft's party in 1832.

After a search, an inlet was found into Cass lake, flowing from the west, and they pursued it until the lake now called "Itasca" was reached. Five of the party, Lieutenant Allen, Schoolcraft, Dr. Houghton, Interpreter Johnson and Mr. Boutwell, explored the lake thoroughly, and finding no inlet, decided it must be the true source of the river. Mr. Schoolcraft, being desirous of giving the lake a name that would indicate its position as the true head of the river, and at the same time be euphonious in sound, endeavored to produce one, but being unable to satisfy himself, turned it over to Mr. Boutwell, who, being a good Latin scholar, wrote down two Latin words, "veritas," truth, and "caput," head, and suggested that a word

might be coined out of the combination that would answer the purpose. He then cut off the last two syllables of veritas, making "Itas," and the first syllable of caput, making "ca," and, putting them together, he gave the word "Itasca," which, in my judgment, is a sufficiently skillful and beautiful literary feat to immortalize the inventor. Mr. Boutwell died within a few years at Stillwater, in Minnesota.

Presumptuous attempts have been made to deprive Schoolcraft of the honor of having discovered the true source of the river, but their transparent absurdity has prevented their having obtained any credence, and to put a quietus on such unscrupulous pretenses, Mr. J. V. Brower, a scientific surveyor, under the auspices of the Minnesota Historical Society, has recently made exhaustive researches, surveys and maps of the region, and established beyond doubt or cavil the entire authenticity of Schoolcraft's discovery. Gen. James H. Baker, once surveyor general of the State of Minnesota, and a distinguished member of the same society, under its appointment, prepared an elaborate paper on the subject, in which is collected and presented all the facts, history and knowledge that exists relating to the discovery, and conclusively destroys all efforts to deprive Schoolcraft of his laurels.

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ELEVATIONS IN MINNESOTA.

While on the subject of the source of the Mississippi river, I may as well speak of the elevations of the state above the level of the sea. It can be truthfully said that Minnesota occupies the summit of the North American continent. In its most northern third rises the Mississippi, which, in its general course, flows due south to the Gulf of Mexico. In about its center division, from north to south, rises the Red River of the North, and takes a general northerly direction until it empties into Lake Winnipeg, while the St. Louis and other rivers take their rise in the same region and flow eastwardly into Lake Superior, which is the real source of the St. Lawrence, which empties into the Atlantic.

The elevation at the source of the Mississippi is 1,600 feet, and at the point where it leaves the southern boundary of the state, 620 feet. The elevation at the source of the Red River of the North is the same as that of the Mississippi, 1,600 feet, and where it leaves the state at its northern boundary 767 feet. The average elevation of the state is given at 1,275 feet, its highest elevation, in the Mesaba range, 2,200 feet, and its lowest, at Duluth, 602 feet.

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NICOLLET.

In 1836 a French savant, M. Jean N. Nicollet, visited Minnesota for the purpose of exploration. He was an astronomer of note, and had received a decoration of the Legion of Honor, and had also been attached as professor to the Royal College of "Louis Le Grande." He arrived in Minnesota on July 26, 1836, bearing letters of introduction, and visited Fort Snelling, whence he left with a French trader, named Franchet, to explore the sources of the Mississippi. He entered the Crow Wing river, and by the way of Gull river and Gull lake he entered Leech lake. The Indians were disappointed when they found he had no presents for them and spent most of his time looking at the heavens through a tube, and they became unruly and troublesome. The Rev. Mr. Boutwell, whose mission house was on the lake, learning of the difficulty, came to the rescue, and a very warm friendship sprang up between the men. No educated man who has not experienced the desolation of having been shut up among savages and rough, unlettered voyageurs for a long time can appreciate the pleasure of meeting a cultured and refined gentleman so unexpectedly as Mr. Boutwell encountered Nicollet, and especially when he was able to render him valuable aid.

From Leech lake Nicollet went to Lake Itasca with guides and packers. He pitched his tent on Schoolcraft island in the lake, where he occupied himself for some time in making astronomical observations. He continued his explorations beyond those of Schoolcraft and Lieutenant Allen, and followed up the rivulets that entered the lake, thoroughly exploring its basin or watershed.

He returned to Fort Snelling in October, and remained there for some time, studying Dakota. He became the guest of Mr. Henry H. Sibley at his home in Mendota for the winter. General Sibley, in speaking of him, says:

"A portion of the winter following was spent by him at my house, and it is hardly necessary to state that I found in him a most instructive companion. His devotion to his studies was intense and unremitting, and I frequently

expostulated with him upon his imprudence in thus overtasking the strength of his delicate frame, but without effect."

Nicollet went to Washington after his tour of 1836-37, and was honored with a commission from the United States government to make further explorations, and John C. Fremont was detailed as his assistant.

Under his new appointment, Nicollet and his assistant went up the Missouri in a steamboat to Fort Pierre; thence he traveled through the interior of Minnesota, visiting the Red Pipestone quarry, Devil's lake, and other important localities. On this tour he made a map of the country, which was the first reliable and accurate one made, which, together with his astronomical observations, were invaluable to the country. His name has been perpetuated by giving it to one of Minnesota's principal counties.

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MISSIONS.

The missionary period is one full of interest in the history of the State of Minnesota. The devoted people who sacrifice all the pleasures and luxuries of life to spread the gospel of Christianity among the Indians are deserving of all praise, no matter whether success or failure attends their efforts. The Dakotas and Chippewas were not neglected in this respect. The Catholics were among them at a very early day, and strove to convert them to Christianity. These worthy men were generally French priests and daring explorers, but for some reason, whether it was want of permanent support or an individual desire to rove, I am unable to say, they did not succeed in founding any missions of a lasting character among the Dakotas before the advent of white settlement. The devout Romanist, Shea, in his interesting history of Catholic missions, speaking of the Dakotas, remarks that "Father Menard had projected a Sioux mission, Marquette, Allouez, Druillettes, all entertained hopes of realizing it, and had some intercourse with that nation, but none of them ever succeeded in establishing a mission." Their work, however, was only postponed, for at a later date they gained and maintained a lasting foothold.

The Protestants, however, in and after 1820, made permanent and successful ventures in this direction. After the formation of the American Fur Company, Mackinaw became the chief point of that organization. In June, 1820, the Rev. Mr. Morse, father of the inventor of the telegraph, came to Mackinaw, and preached the first sermon that was delivered in the Northwest. He made a report of his visit to the Presbyterian Missionary Society in New York, which sent out parties to explore the field. The Rev. W. M. Terry, with his wife, commenced a school at Mackinaw in 1823, and had great success. There were sometimes as many as two hundred pupils at the school, representing many tribes of Indians. There are descendants of the children who were educated at this school now in Minnesota, who are citizens of high standing, who are indebted to this institution for their education and position.

In the year 1830 a Mr. Warren, who was then living at La Pointe, visited Mackinaw to obtain a missionary for his place, and not being able to secure an ordained minister, he took back with him Mr. Frederick Ayre, a teacher, who, being pleased with the place and prospect, returned to Mackinaw, and in 1831, with the Rev. Sherman Hall and wife, started for La Pointe, where they arrived on August 30th, and established themselves as missionaries, with a school.

The next year Mr. Ayre went to Sandy lake, and opened another school for the children of voyageurs and Indians. In 1832 Mr. Boutwell, after his tour with Schoolcraft, took charge of the school at La Pointe, and in 1833 he removed to Leech lake, and there established the first mission in Minnesota west of the Mississippi.

From his Leech lake mission he writes a letter in which he gives such a realistic account of his school and mission that one can see everything that is taking place, as if a panorama was passing before his eyes. He takes a cheerful view of his prospects, and gives a comprehensive statement of the resources of the country in their natural state. If space allowed, I would like to copy the whole letter; but as he speaks of the wild rice in referring to the food supply, I will say a word about it, as I deem it one of Minnesota's most important natural resources.

In 1857 I visited the source of the Mississippi with the then Indian agent for the Chippewas, and traveled hundreds of miles in the upper river. We passed through endless fields of wild rice, and witnessed its harvest by the Chippewas, which is a most interesting and picturesque scene. They tie it in sheaves with a straw before it is ripe enough to gather to prevent the wind from shaking out the grains, and when it has matured, they thresh it with sticks into their canoes. We estimated that there were about 1,000 families of the Chippewas, and that they gathered about twenty-five bushels for each family, and we saw that in so doing they did not make any impression whatever on the crop, leaving thousands of acres of the rice to the geese and ducks. Our calculations then were that more rice grew in Minnesota each year, without any cultivation, than was produced in South Carolina as one of the principal products of that state, and I may add that it is much more palatable and nutritious as a food than the white rice of the Orient or the

South. There is no doubt that at some future time it will be utilized to the great advantage of the state.

Mr. Boutwell's Leech lake mission was in all things a success.

In 1834 the Rev. Samuel W. Pond and his brother, Gideon H. Pond, full of missionary enthusiasm, arrived at Fort Snelling, in the month of May. They consulted with the Indian agent, Major Taliaferro, about the best place to establish a mission, and decided upon Lake Calhoun, where dwelt small bands of Dakotas, and with their own hands erected a house and located.

About the same time came the Rev. T. H. Williamson, M. D., under appointment from the American Board of Commissioners of Foreign Missions, to visit the Dakotas, to ascertain what could be done to introduce Christian instruction among them. He was reinforced by Rev. J. D. Stevens, missionary, Alexander Huggins, farmer, and their wives, and Miss Sarah Poage and Miss Lucy Stevens, teachers. They arrived at Fort Snelling in May, 1835, and were hospitably received by the officers of the garrison, the Indian agent, and Mr. Sibley, then a young man who had recently taken charge of the trading post at Mendota.

From this point Rev. Mr. Stevens and family proceeded to Lake Harriet, in Hennepin county, and built a suitable house, and Dr. Williamson and wife, Mr. Huggins and wife, and Miss Poage, went to Lac qui Parle, where they were welcomed by Mr. Renville, a trader at that point, after whom the county of Renville is named.

The Rev. J. D. Stevens acted as chaplain of Fort Snelling, in the absence of a regularly appointed officer in that position.

In 1837 the mission was strengthened by the arrival of the Rev. Stephen R. Riggs, a graduate of Jefferson College, Pennsylvania, and his wife. After remaining a short time at Lake Harriet, Mr. and Mrs. Riggs went to Lac qui Parle.

In 1837 missionaries sent out by the Evangelical Society of Lausanne, Switzerland, arrived, and located at Red Wing and Wapashaw's villages, on the Mississippi, and about the same time a Methodist mission was commenced at Kaposia, but they were of brief duration and soon abandoned.

In 1836 a mission was established at Pokegama, among the Chippewas, which was quite successful, and afterwards, in 1842 or 1843, missions were opened at Red Lake, Shakopee, and other places in Minnesota. During the summer of 1843 Mr. Riggs commenced a mission station at Traverse des Sioux, which attained considerable proportions, and remained until overtaken by white settlement, about 1854.

Mr. Riggs and Dr. Williamson also established a Mission at the Yellow Medicine Agency of the Sioux, in the year 1852, which was about the best equipped of any of them. It consisted of a good house for the missionaries, a large boarding and school house for Indian pupils, a neat little church, with a steeple and a bell, and all the other buildings necessary to a complete mission outfit.

These good men adopted a new scheme of education and civilization, which promised to be very successful. They organized a government among the Indians, which they called the Hazelwood Republic. To become a member of this civic body, it was necessary that the applicant should cut off his long hair, and put on white men's clothes, and it was also expected that he should become a member of the church. The republic had a written constitution, a president and other officers. It was in 1856 when I first became acquainted with this institution, and I afterwards used its members to great advantage, in the rescue of captive women and the punishment of one of the leaders of the Spirit Lake massacre, which occurred in the northwestern portion of Iowa, in the year 1857, the particulars of which I will relate hereafter. The name of the president was Paul Ma-za-cu-ta-ma-ni, or "The man who shoots metal as he walks," and one of its prominent members was John Otherday, called in Sioux, An-pay-tu-tok-a-cha, both of whom were the best friends the whites had in the hour of their great danger in the outbreak of 1862. It was these two men who informed the missionaries and other whites at the Yellow Medicine Agency of the impending massacre, and assisted sixty-two of them to escape before the fatal blow was struck.

What I have said proves that much good attended the work of the missionaries in the way of civilizing some of the Indians, but it has always been open to question in my mind if any Sioux Indian ever fully comprehended the basic doctrines of Christianity. I will give an example which had great weight in forming my judgment. There were among the

pillars of the mission church at the Yellow Medicine Agency (or as it was called in Sioux, Pajutazee) an Indian named Ana-wang-mani, to which the missionaries had prefixed the name of Simon. He was an exceptionally good man, and prominent in all church matters. He prayed and exhorted, and was looked upon by all interested as a fulfillment of the success of both the church and the republic. Imagine the consternation of the worthy missionaries when one day he announced that a man who had killed his cousin some eight years ago had returned from the Missouri, and was then in a neighboring camp, and that it was his duty to kill him to avenge his cousin. The missionaries argued with him, quoted the Bible to him, prayed with him,—in fact, exhausted every possible means to prevent him carrying out his purpose; but all to no effect. He would admit all they said, assured them that he believed everything they contended for, but he would always end with the assertion that, "He killed my cousin, and I must kill him." This savage instinct was too deeply imbedded in his nature to be overcome by any teaching of the white man, and the result was that he got a double-barreled shotgun and carried out his purpose, the consequence of which was to nearly destroy the church and the republic. He was, however, true to the whites all through the outbreak of 1862.

When the Indians rebelled, the entire mission outfit at Pajutazee was destroyed, which practically put an end to missionary effort in Minnesota, but did not in the least lessen the ardor of the missionaries. I remember meeting Dr. Williamson soon after the Sioux were driven out of the state, and supposing, of course, that he had given up all hope of Christianizing them, I asked him where he would settle, and what he would do. He did not hesitate a moment, and said that he would hunt up the remnant of his people and attend to their spiritual wants.

Having given a general idea of the missionary efforts that were made in Minnesota, I will say a word about

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THE INDIANS.

The Dakotas (or as they were afterwards called, the Sioux) and the Chippewas were splendid races of aboriginal men. The Sioux that occupied Minnesota were about eight thousand strong,—men, women and children. They were divided into four principal bands, known as the M'day-wa-kontons, or Spirit Lake Villagers; the Wak-pay-ku-tays, or Leaf Shooters, from their living in the timber; the Si-si-tons, and Wak-pay-tons. There was also a considerable band, known as the Upper Si-si-tons, who occupied the extreme upper waters of the Minnesota river. The Chippewas numbered about 7,800, divided as follows: At Lake Superior, whose agency was at La Pointe, Wis., about 1,600; on the Upper Mississippi, on the east side, about 3,450; of Pillagers, 1,550; and at Red lake, 1,130. The Sioux and Chippewas had been deadly enemies as far back as anything was known of them, and kept up continual warfare. The Winnebagoes, numbering about 1,500, were removed from the neutral ground, in Iowa, to Long Prairie, in Minnesota, in 1848, and in 1854 were again removed to Blue Earth county, near the present site of Mankato. While Minnesota was a territory its western boundary extended to the Missouri river, and on that river, both east and west of it, were numerous wild and warlike bands of Sioux, numbering many thousands, although no accurate census of them had ever been taken. They were the Tetons, Yanktons, Cut-heads, Yanktonais, and others. These Missouri Indians frequently visited Minnesota.

The proper name of these Indians is Dakota, and they know themselves only by that name, but the Chippewas of Lake Superior, in speaking of them, always called them, "Nadowessieux," which in their language signifies "enemy." The traders had a habit, when speaking of any tribe in the presence of another, and especially of an enemy, to designate them by some name that would not be understood by the listeners, as they were very suspicious. When speaking of the Dakotas, they used the last syllable of Nadowessieux,—"Sioux," until the name attached itself to them, and they have always since been so called.

Charlevoix, who visited Minnesota in 1721, in his history of New France, says: "The name 'Sioux,' that we give these Indians, is entirely of our own making; or, rather, it is the last two syllables of the name of 'Nadowessiou,' as many nations call them."

The Sioux live in tepees, or circular conical tents, supported by poles, so arranged as to leave an opening in the top for ventilation and for the escape of smoke. These were, before the advent of the whites, covered with dressed buffalo skins, but more recently with a coarse cotton tent cloth, which is preferable on account of its being much lighter to transport from place to place, as they are almost constantly on the move, the tents being carried by the squaws. There is no more comfortable habitation than the Sioux tepee to be found among the dwellers in tents anywhere. A fire is made in the center for either warmth or cooking purposes. The camp kettle is suspended over it, making cooking easy and cleanly. In the winter, when the Indian family settles down to remain any considerable time, they select a river bottom where there is timber or chaparral, and set up the tepee; then they cut the long grass or bottom cane, and stand it up against the outside of the lodge to the thickness of about twenty inches, and you have a very warm and cozy habitation.

The wealth of the Sioux consists very largely in his horses, and his subsistence is the game of the forest and plains and the fish and wild rice of the lakes. Minnesota was an Indian paradise. It abounded in buffalo, elk, moose, deer, beaver, wolves, and, in fact, nearly all wild animals found in North America. It held upon its surface eight thousand beautiful lakes, alive with the finest of edible fish. It was dotted over with beautiful groves of the sugar maple, yielding quantities of delicious sugar, and wild rice swamps were abundant. An inhabitant of this region, with absolute liberty, and nothing to do but defend it against the encroachments of enemies, certainly had very little more to ask of his Creator. But he was not allowed to enjoy it in peace. A stronger race was on his trail, and there was nothing left for him but to surrender his country on the best terms he could make. Such has ever been the case from the beginning of recorded events, and judging from current operations, there has been no cessation of the movement. Why was not the world made big enough for homes for all kinds and colors of men, and all characters of civilization?

As the white man progressed towards the West, and came in contact with the Indians, it became necessary to define the territories of the different tribes to avoid collision between them and the newcomers as much as possible. To accomplish this end, Governor Clark of Missouri and Governor Cass of Michigan, on the nineteenth day of August, 1825, convened, at Prairie du Chien, a grand congress of Indians, representing the Dakotas, Chippewas (then called Ojibways), Sauks, Foxes, Menomonies, Iowas, Winnebagoes, Pottaiwatomies and Ottawas, and it was determined by treaties among them where the dividing lines between their countries should be. This partition gave the Chippewas a large part of what is now Wisconsin and Minnesota, and the Dakotas lands to the west of them; but it soon became apparent that these boundary lines between the Dakotas and the Chippewas would not be adhered to, and Governor Cass and Mr. T. L. McKenney were appointed commissioners to again convene the Chippewas, but this time at Fond du Lac, and there, on the fifth day of August, 1826, another treaty was entered into, which, with the exception of the Fort Snelling treaty, was the first one ever made on the soil of Minnesota. By this treaty the Chippewas, among other things, renounced all allegiance to or connection with Great Britain, and acknowledged the authority of the United States. These treaties were, however, rather of a preliminary character, being intended more for the purpose of arranging matters between the tribes than making concessions to the whites, although the whites were permitted to mine and carry away metals and ores from the Chippewa country by the treaty of Fond du Lac.

The first important treaty made with the Sioux, by which the white men began to obtain concessions of lands from them, was on Aug. 29, 1837. This treaty was made at Washington, through Joel R. Poinsette, and to give an idea of how little time and few words were spent in accomplishing important ends, I will quote the first article of this treaty:

"Article I.—The chiefs and braves representing the parties having an interest therein cede to the United States all their land east of the Mississippi river, and all their islands in said river."

The rest of the treaty is confined to the consideration to be paid, and matters of that nature.

This treaty extinguished all the Dakota title in lands east of the Mississippi river, in Minnesota, and opened the way for immigration on all that side of the Mississippi; and immigration was not long in accepting the invitation, for between the making of the treaty, in 1837, and the admission of the State of Wisconsin into the Union, in 1848, there had sprung into existence in that state, west of the St. Croix, the towns of Stillwater, St. Anthony, St. Paul, Marine, Arcola, and other lesser settlements, which were all left in Minnesota when Wisconsin adopted the St. Croix as its western boundary.

Most important, however, of all the treaties that opened up the lands of Minnesota to settlement were those of 1851, made at Traverse des Sioux and Mendota, by which the Sioux ceded to the United States all their lands in Minnesota and Iowa, except a small reservation for their habitation, situated on the upper waters of the Minnesota river.

The Territory of Minnesota was organized in 1849, and immediately presented to the world a very attractive field for immigration. The most desirable lands in the new territory were on the west side of the Mississippi, but the title to them was still in the Indians. The whites could not wait until this was extinguished, but at once began to settle on the land lying on the west bank of the Mississippi, north of the north line of Iowa, and in the new territory. These settlements extended up the Mississippi river as far as St. Cloud, in what is now Stearns county, and extended up the Minnesota river as far as the mouth of the Blue Earth river, in the neighborhood of Mankato. These settlers were all trespassers on the lands of the Indians, but a little thing like that never deterred a white American from pushing his fortunes towards the setting sun. It soon became apparent that the Indians must yield to the approaching tidal wave of settlement, and measures were taken to acquire their lands by the United States. In 1851, Luke Lea, then commissioner of Indian affairs, and Alexander Ramsey, then governor of the Territory of Minnesota and ex-officio superintendent of Indian affairs, were appointed commissioners to treat with the Indians at Traverse des Sioux, and, after much feasting and talking, a treaty was completed and signed, on the twenty-third day of July, 1851, between the United States and the Sisseton and Wahpeton bands of Sioux, whereby these bands ceded to

the United States a vast tract of land lying in Minnesota and Iowa, and reserved for their future occupation a strip of land on the upper Minnesota, ten miles wide on each side of the center line of the river. For this cession they were to be paid \$1,665,000, which was to be paid, a part in cash to liquidate debts, etc., and five per cent per annum on the balance for fifty years, the interest to be paid annually, partly in cash and partly in funds for agriculture, civilization, education, and in goods of various kinds; which payments, when completed, were to satisfy both principal and interest, the policy and expectation of the government being that at the end of fifty years the Indians would be civilized and self-sustaining.

Amendments were made to this treaty in the senate, and it was not fully completed and proclaimed until Feb. 24, 1853.

Almost instantly after the execution of this treaty, and on Aug. 5, 1851, another treaty was negotiated by the same commissioners with two other bands of Sioux in Minnesota, the M'day-wa-kon-tons and Wak-pay-koo-tays. By this treaty these bands ceded to the United States all their lands in the Territory of Minnesota or State of Iowa, for which they were to be paid \$1,410,000, very much in the same way that was provided in the last-named treaty with the Si-si-tons and Wak-pay-tons. This treaty, also, was amended by the senate, and not fully perfected until Feb. 24, 1853.

Both of these treaties contained the provision that "The laws of the United States, prohibiting the introduction and sale of spirituous liquors in the Indian country, shall be in full force and effect throughout the territory hereby ceded and lying in Minnesota until otherwise directed by congress or the president of the United States." I mention this feature of the treaty because it gave rise to much litigation as to whether the treaty making power had authority to legislate for settlers on the ceded lands of the United States. The power was sustained. These treaties practically obliterated the Indian title from the lands composing Minnesota, and its extinction brings us to the

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TERRITORIAL PERIOD.

It must be kept in mind that, during the period which we have been attempting to review, the people who inhabited what is now Minnesota were subject to a great many different governmental jurisdictions. This, however, did not in any way concern them, as they did not, as a general thing, know or care anything about such matters; but as it may be interesting to the retrospective explorer to be informed on the subject, I will briefly present it. Minnesota has two sources of parentage. The part of it lying west of the Mississippi was part of the Louisiana purchase, made by President Jefferson from Napoleon Bonaparte in 1803, and the part east of that river was part of the Northwest Territory, ceded by Virginia, in 1784, to the United States. I will give the successive changes of political jurisdiction, beginning on the west side of the river.

First, it was part of New Spain, and Spanish. It was then purchased from Spain by France, and became French. On June 30, 1803, it became American, by purchase from France, and was part of the Province of Louisiana, and so remained until March 26, 1804, when an act was passed by congress, creating the Territory of Orleans, which included all of the Louisiana purchase south of the thirty-third degree of north latitude. This act gave the Territory of Louisiana a government, and called all the country north of it the District of Louisiana, which was to be governed by the Territory of Indiana, which had been created in 1800 out of the Northwest Territory, and had its seat of government at Vincennes, on the Wabash.

On June 4, 1812, the District of Louisiana was erected into the Territory of Missouri, where we remained until June 28, 1834, when all the public lands of the United States lying west of the Mississippi, north of the State of Missouri, and south of the British line, were, by act of congress, attached to the Territory of Michigan, under whose jurisdiction we remained until April 10, 1836, when the Territory of Wisconsin was created. This law went into effect July 3, 1836, and Wisconsin took in our territory lying west of the Mississippi, and there it remained until June 12, 1838, when the Territory of Iowa was created, taking us in and holding us until the State of Iowa was

admitted into the Union, on March 3, 1845, which left us without any government west of the Mississippi.

The part of Minnesota lying east of the Mississippi was originally part of the Northwest Territory. On May 7, 1800, it became part of the Indiana Territory, and remained so until April 26, 1836, when it became part of the Wisconsin Territory; and so continued until May 29, 1848, when Wisconsin entered the Union as a state, with the St. Croix river for its western boundary. By this arrangement of the western boundary of Wisconsin all the territory west of the St. Croix and east of the Mississippi, like that west of the river, was left without any government at all.

One of the curious results of the many governmental changes which the western part of Minnesota underwent is illustrated in the residence of Gen. Henry H. Sibley, at Mendota. In 1834, at the age of twenty-two, Mr. Sibley commenced his residence at Mendota, as the agent of the American Fur Company's establishment. At this point Mr. Sibley built the first private residence that was erected in Minnesota. It was a large, comfortable dwelling, constructed of the blue limestone found in the vicinity, with commodious porticos on the river front. The house was built in 1835-36, and was then in the Territory of Michigan. Mr. Sibley lived in it successively in Michigan, Wisconsin, Iowa, and the Territory and State of Minnesota. He removed to St. Paul in the year 1862. Every distinguished visitor who came to Minnesota in the early days was entertained by Mr. Sibley in this hospitable old mansion, and, together with its genial, generous and refined proprietor, it contributed much towards planting the seeds of those aesthetic amenities of social life that have so generally flourished in the later days of Minnesota's history and given it its deserved prominence among the states of the West. The house still stands, and has been occupied at different times since its founder abandoned it as a Catholic institution of some kind and an artists' summer school. The word Mendota is Sioux, and means "The meeting of the waters."

It was the admission of Wisconsin into the Union in 1848 that brought about the organization of the Territory of Minnesota. The peculiar situation in which all the people residing west of the St. Croix found themselves set them to devising ways and means to obtain some kind of government to live under. It was a debatable question whether the remnant of Wisconsin which

was left over when the state was admitted carried with it the territorial government, or whether it was a "no man's land," and different views were entertained on the subject. The question was somewhat embarrassed by the fact that the territorial governor, Governor Dodge, had been elected to the senate of the United States from the new state, and the territorial secretary, Mr. John Catlin, who would have become governor ex-officio when a vacancy occurred in the office of governor, resided in Madison, and the delegate to congress, Mr. John H. Tweedy, had resigned; so, even if the territorial government had, in law, survived, there seemed to be no one to represent and administer it.

There was no lack of ability among the inhabitants of the abandoned remnant of Wisconsin. In St. Paul dwelt Henry M. Rice, Louis Roberts, J. W. Simpson, A. L. Larpenteur, David Lambert, Henry Jackson, Vetat Guerin, David Herbert, Oliver Rosseau, Andre Godfrey, Joseph Rondo, James R. Clewell, Edward Phalen, William G. Carter, and many others. In Stillwater and on the St. Croix were Morton S. Wilkinson, Henry L. Moss, John McKusick, Joseph R. Brown, etc. In Mendota resided Henry H. Sibley. In St. Anthony, William R. Marshall; at Fort Snelling, Franklin Steele. I could name many others, but the above is a representative list. It will be observed that many of them were French.

An initial meeting was held in St. Paul, in July of 1848, at Henry Jackson's trading house, to consider the matter, which was undoubtedly the first public meeting ever held in Minnesota. On the fifth day of August, in the same year, a similar meeting was held in Stillwater, and out of these meetings grew a call for a convention, to be held at Stillwater, on August 26th, which was held accordingly. There were present about sixty delegates.

At this meeting a letter from Hon. John Catlin, the secretary of Wisconsin Territory, was read, giving it as his opinion that the territorial government of Wisconsin still existed, and that if a delegate to congress was elected he would be admitted to a seat.

A memorial to congress was prepared, setting forth the peculiar situation in which the people of the remnant found themselves, and praying relief in the organization of a territorial government.

During the session of this convention there was a verbal agreement entered into between the members, to the effect that when the new territory was organized the capital should be at St. Paul, the penitentiary at Stillwater, the university at St. Anthony, and the delegate to congress should be taken from Mendota. I have had reason to assert publicly this fact on former occasions, and so far as it relates to the university and the penitentiary, my statement was questioned by Minnesota's greatest historian, Rev. Edward D. Neill, in a published article, signed "Iconoclast;" but I sustained my position by letters from surviving members of the convention, which I published, and to which no answer was ever made. The same statement can be found in Williams' "History of St. Paul," published in 1876, at page 182.

The result of this convention was the selection of Henry H. Sibley as its agent or delegate, to proceed to Washington and present the memorial and resolutions to the United States authorities. It was curiously enough stipulated that the delegate should pay his own expenses.

Shortly after this event the Hon. John H. Tweedy, who was the regularly elected delegate to congress from the Territory of Wisconsin, no doubt supposing his official career was terminated, resigned his position, and Mr. John Catlin, claiming to be the governor of the territory, came to Stillwater, and issued a proclamation on Oct. 9, 1848, ordering a special election to fill the vacancy caused by the resignation of Delegate Tweedy. The election was held on the thirtieth day of October. Mr. Henry H. Sibley and Mr. Henry M. Rice became candidates, neither caring very much about the result, and Mr. Sibley was elected. There was much doubt entertained as to the delegate being allowed to take his seat, but in November he proceeded to Washington, and was admitted, after considerable discussion.

On the 3d of March, 1849, the delegate succeeded in passing an act organizing the Territory of Minnesota, the boundaries of which embraced all the territory between the western boundary of Wisconsin and the Mississippi river, and also all that was left unappropriated on the admission of the State of Iowa, which carried our western boundary to the Missouri river, and included within our limits a large part of what is now North and South Dakota.

The passage of this act was the first step in the creation of Minnesota. No part of the country had ever before borne that name. The word is composed of two Sioux words, "Minne," which means water, and "Sota," which means the condition of the sky when fleecy white clouds are seen floating slowly and quietly over it. It has been translated, "sky tinted," giving to the word Minnesota the meaning of sky-tinted water. The name originated in the fact that, in the early days, the river now called Minnesota used to rise very rapidly in the spring, and there was constantly a caving in of the banks, which disturbed its otherwise pellucid waters, and gave them the appearance of the sky when covered with the light clouds I have mentioned. The similarity was heightened by the current keeping the disturbing element constantly in motion. There is a town just above St. Peter, called Kasota, which means "cloudy sky;" not stormy or threatening, but a sky dotted with fleecy white clouds. The best conception of this word can be found by pouring a few drops of milk into a glass of clear water, and observing the cloudy disturbance.

The principal river in the territory was then called the St. Peters river, but the name was changed to the Minnesota.

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EDUCATION.

An act organizing a territory simply creates a government for its inhabitants, limiting and regulating its powers, executive, legislative and judicial, and in our country they generally resemble each other in all essential features. But the organic act of Minnesota contained one provision never before found in any that preceded it. It had been customary to donate to the territory and future state, one section of land in each surveyed township for school purposes, and section 16 had been selected as the one, but in the Minnesota act, the donation was doubled, and sections 16 and 36 in each township were reserved for the schools, which amounted to one-eighteenth of all the lands in the territory; and when it is understood that the state as now constituted contains 84,287 square miles, or about 53,943,379 acres of land, it will be seen that the grant was princely in extent and incalculable in value. No other state in the Union has been endowed with such a magnificent educational foundation. I may except Texas, which came into the Union, not as a part of the United States' public domain, but as an independent republic, owning all its lands, amounting to 237,504 square miles, or 152,002,560 acres, a vast empire in itself. I remember hearing a distinguished senator, in the course of the debate on its admission into the Union, describe its immensity by saying, "A pigeon could not fly across it in a week."

It affords every citizen of Minnesota great pride to know that, under all phases and conditions of our territory and state, whether in prosperity or adversity, the school fund has always been held sacred, and neither extravagance, neglect nor speculation has ever assailed it, but it has been husbanded with jealous care from time to time since the first dollar was realized from it until the present, and has accumulated until the principal is estimated at \$20,000,000. The state auditor, in his last report of it, says:

"The extent of the school land grant should ultimately be about three million acres, and as the average price of this land heretofore sold is \$5.96 per acre, the amount of principal alone should yield the school fund not less

than \$17,000,000. To this must be added the amount received from sales of timber, and for lease and royalty of mineral lands, which will not be less than \$3,000,000 more. It is not probable that the average sale price of this land will be reduced in the future, but it may increase, especially in view of the improved method of sale inaugurated by the new land law."

The general method of administering the school fund is to invest the proceeds arising from the sale of the lands, and distribute the interest among the counties of the state according to the number of children attending school; the principal always to remain untouched and inviolate.

Generous grants of land have also been made for a state university, amounting to 92,558 acres; also, for an agricultural college to the extent of one hundred thousand acres, which two funds have been consolidated, and together they have accumulated to the sum of \$1,159,790.73, all of which is securely invested.

The state has also been endowed with five hundred thousand acres of land for internal improvements, and all its lands falling within the designation of swamp lands. An act of congress, of Feb. 26, 1857, also gave it ten sections of land for the purpose of completing public buildings at the seat of government, and all the salt springs, not to exceed twelve, in the state, with six sections of land to each spring, in all seventy-two sections. The twelve salt springs have all been discovered and located, and the lands selected. The salt spring lands have been transferred to the regents of the university, to be held in trust to pay the cost of a geological and natural history survey of the state. It is estimated that the salt spring lands will produce, on the same valuation as the school lands, the sum of \$300,000. Large sums will also be gained by the state from the sale of timber stumpage, and the products of its mineral lands. Some idea of the magnitude of the fund to be derived from the mineral lands of the state may be learned from the report of the state auditor for the year 1896, in which he says that during the years 1895-96 there was received from and under all mineral leases, contracts and royalties, \$170,128.83.

It will be seen from this statement that the educational interests of Minnesota are largely provided for without resort to direct taxation,

although up to the present time that means of revenue has to some extent been utilized to meet the expenses of the grand system prevailing throughout the state.

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THE FIRST TERRITORIAL GOVERNMENT

The organization of the territory was completed by the appointment of Alexander Ramsey of Pennsylvania as governor, Aaron Goodrich as chief justice, and David Cooper and Bradley B. Meeker as associate justices, C. K. Smith as secretary, Joshua L. Taylor as marshal, and Henry L. Moss as district attorney.

On the 27th of May, 1849, the governor and his family arrived in St. Paul; but there being no suitable accommodations for them, they became the guests of Hon. Henry H. Sibley, at Mendota, whose hospitality, as usual, was never failing, and for several weeks there resided the four men who have been perhaps more prominent in the development of the state than any others,—Henry H. Sibley, Alexander Ramsey, Henry M. Rice and Franklin Steele, all of whom have been honored by having important counties named after them and by being chosen to fill high places of honor and trust.

The governor soon returned to the capital, and on the 1st of June, 1849, issued a proclamation, declaring the territory duly organized. On the 11th of June he issued a second proclamation, dividing the territory into three judicial districts. The county of St. Croix, which was one of the discarded counties of Wisconsin, and embraced the present county of Ramsey, was made the first district. The second was composed of the county of La Pointe (another of the Wisconsin counties), and the region north and west of the Mississippi river, and north of the Minnesota, and of a line running due west from the head waters of the Minnesota to the Missouri. The country west of the Mississippi and south of the Minnesota formed the third district. The chief justice was assigned to the first, Meeker to the second and Cooper to the third, and courts were ordered held in each district as follows: At Stillwater, in the first district, on the second Monday, at the Falls of St. Anthony on the third Monday, and at Mendota on the fourth Monday, in August.

A census was taken of the inhabitants of the territory, in pursuance of the requirements of the organic act, with the following result. I give here the

details of the census, as it is interesting to know what inhabited places there were in the territory at this time, as well as the number of inhabitants:

	Total Inhabitants.
Stillwater	609
Lake St. Croix	211
Marine Mills	173
St. Paul	840
Little Canada and St. Anthony	571
Crow Wing and Long Prairie	350
Osakis Rapids	133
Falls of St. Croix	16
Snake River	82
La Pointe County	22
Crow Wing	174
Big Stone Lake and Lac qui Parle	68
Little Rock	35
Prairieville	22
Oak Grove	23
Black Dog Village	18
Crow Wing (east side)	70
Mendota	122
Red Wing Village	33
Wabasha and Root River	114
Fort Snelling	38
Soldiers, women and children in forts	317
Pembina	637
Missouri River	85

Total 4,764

On the seventh day of July the governor issued a proclamation, dividing the territory into seven council districts, and ordering an election for a delegate to congress, nine councillors, and eighteen representatives, to constitute the first territorial legislature, to be held on the first day of August. At this election Henry H. Sibley was again chosen delegate to congress.

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COURTS

The courts were held in pursuance of the governor's proclamation, the first one convening at Stillwater. But before I relate what there occurred, I will mention an attempt that was made by Judge Irwin, one of the territorial judges of Wisconsin, to hold a term in St. Croix county, in 1842. Joseph R. Brown, of whom I shall speak hereafter as one of the brightest of Minnesota's early settlers, came to Fort Snelling as a fifer boy in the regiment that founded and built the fort in 1819. He was discharged from the army about 1826, and had become clerk of the courts in St. Croix county. He had procured from the legislature of Wisconsin an order for a court in his county for some reason only known to himself, and in 1842 Judge Irwin came up to hold it. He arrived at Fort Snelling, and found himself in a country which indicated that disputes were more frequently settled with tomahawks than by the principles of the common law. The officers of the fort could give him no information, but in his wanderings he found Mr. Norman W. Kittson, who had a trading house near the Falls of Minnehaha. Kittson knew Clerk Brown, who was then living on the St. Croix, near where Stillwater now stands, and furnishing the judge a horse, directed him how to find his clerk. After a ride of more than twenty miles, Brown was discovered, but no preparations had been made for a court. The judge took the first boat down the river, a disgusted and angry man.

After the lapse of five years from this futile attempt the first court actually held within the bounds of Minnesota was presided over by Judge Dunn, then chief justice of the Territory of Wisconsin. The court convened at Stillwater in June, 1847, and is remembered not only as the first court ever held in Minnesota, but on account of the trial of an Indian chief, named "Wind," who was indicted for murder. Samuel J. Crawford of Mineral Point was appointed prosecuting attorney for the term, and Ben C. Eastman of Plattville defended the prisoner. "Wind" was acquitted. This was the first jury trial in Minnesota.

It should be stated that Henry H. Sibley was in fact the first judicial officer who ever exercised the functions of a court in Minnesota. While living at

St. Peters (Mendota), he was commissioned a justice of the peace in 1835 or 1836 by Governor Chambers of Iowa, with a jurisdiction extending from twenty miles south of Prairie du Chien to the British boundary on the north, to the White river on the west and the Mississippi on the east. His prisoners could only be committed to Prairie du Chien. Boundary lines were very dimly defined in those days, and minor magistrates were in no danger of being overruled by superior courts, and tradition asserts that the writs of Sibley's court often extended far over into Wisconsin and other jurisdictions. One case is recalled which will serve as an illustration. A man named Phalen was charged with having murdered a sergeant in the United States army in Wisconsin. He was arrested under a warrant from Justice Sibley's Iowa court, examined and committed to Prairie du Chien, and no questions asked. Lake Phalen, from which the city of St. Paul derives part of its water supply, is named after this prisoner. Whatever jurisdictional irregularities Justice Sibley may have indulged in, it is safe to say that no injustice ever resulted from any decision of his.

The first court-house that was erected within the present limits of Minnesota was at Stillwater, in the year 1847. A private subscription was taken up, and \$1,200 was contributed. This sum was supplemented by a sufficient amount to complete the structure, from the treasury of St. Croix county. It was perched on the top of one of the high bluffs in that town, and much private and judicial blasphemy has been expended by exhausted litigants and judges in climbing to its lofty pinnacle. I held a term in it ten years after its completion.

This court-house fell within the first judicial district of the Territory of Minnesota, under the division made by Governor Ramsey, and the first court under his proclamation was held within its walls, beginning the second Monday of August, 1849. It was presided over by Chief Justice Goodrich, assisted by Judge Cooper, the term lasting one week. There were thirty-five cases on the calendar. The grand jury returned thirty indictments, one for assault with intent to maim, one for perjury, four for selling liquor to Indians, and four for keeping gambling houses. Only one of these indictments was tried at this term, and the accused, Mr. William D. Phillips, being a prominent member of the bar, and there being a good deal of fun in it, I will give a brief history of the trial and the defendant.

Mr. Phillips was a native of Maryland, and came to St. Paul in 1848. He was the first district attorney of the county of Ramsey. He became quite prominent as a lawyer and politician, and tradition has handed down many interesting anecdotes concerning him. The indictment charged him with assault with intent to maim. In an altercation with a man, he had drawn a pistol on him, and his defense was that the pistol was not loaded. The witness for the prosecution swore that it was, and added that he could see the load. The prisoner, as the law then was, was not allowed to testify in his own behalf. He was convicted and fined \$25. He was very indignant at the result, and explained the assertion of the witness, that he could see the load, in this way. He said he had been electioneering for Mr. Henry M. Rice, and from the uncertainty of getting his meals in such an unsettled country, he carried crackers and cheese in the same pocket with his pistol, a crumb of which had gotten into the pistol, and the fellow was so scared when he looked at it, that he thought it was loaded to the muzzle.

Another anecdote which is related of him shows that he fully understood the fundamental principle which underlies success in the practice of law—that of always charging for services performed. Mr. Henry M. Rice had presented him with a lot in St. Paul, upon which to build an office, and when he presented his next bill to Mr. Rice there was in it a charge of four dollars for drawing the deed.

The territorial courts as originally constituted, being composed of only three judges, the trial terms were held by single judges, and the supreme court by all three sitting in bank, where they would review each others decisions on appeal.

When the state was admitted into the Union the judiciary was made to consist of a chief justice and two associate justices, who constituted the supreme court, with a jurisdiction exclusively appellate, and a district judge for each district. As the state has grown in population and business, the supreme court judges have been increased to five and the judicial districts to eighteen in number, two of which, the second and the fourth, have six judges each, the eleventh three, the first and seventh two each, and the remainder one each.

The practice adopted by the territorial legislature was generally similar to that of the New York code, with such differences as were necessary to conform it to a very new country. From a residence in the territory and state of forty-seven years, nearly all of which has been spent either in practice at the bar or as a judge on the bench, I take pride in saying that the judiciary of Minnesota, in all its branches, both territorial and state, has, during its fifty years of existence, equalled in ability, learning and integrity that of any state in the West, which is well attested by the seventy-seven well filled volumes of its reported decisions.

Nearly all of the old lawyers of Minnesota were admitted to practice at the first term held at Stillwater, among whom were Morton S. Wilkinson, Henry L. Moss, Edmund Rice, Lorenzo A. Babcock, Alexander Wilkin, Bushrod W. Lott, and many others. Of the whole list, Mr. Moss is the sole survivor.

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FIRST TERRITORIAL LEGISLATURE.

The first legislature convened at St. Paul on Monday, the 3d of September, 1849, in the Central House, which for the occasion served for both capitol and hotel. The quarters were limited, but the legislature was small. The council had nine members and the house of representatives eighteen. The usual officers were elected, and on Tuesday afternoon both houses assembled in the dining-room of the hotel. Prayer was offered by the Rev. E. D. Neill, and Governor Ramsey delivered his message, which was well received both at home and abroad.

It may be interesting to give the names of the men constituting this body, and the places of their nativity. The councillors were:

James S. Norris,		Maine.
Samuel Burkleo,		Delaware.
William H. Forbes,		Montreal.
James McBoal,		Pennsylvania.
David B. Loomis,		Connecticut.
John Rollins,		Maine.
David Olmsted,		Vermont.
William Sturgis,		Upper Canada.
Martin McLeod,		Montreal.

The members of the House were:

Joseph W. Furber,		New Hampshire.
James Wells,		New Jersey.
M. S. Wilkinson,		New York.

Sylvanus Trask,	New York.
Mahlon Black,	Ohio.
Benjamin W. Bronson,	Michigan.
Henry Jackson,	Virginia.
John J. Duvey,	New York.
Parsons K. Johnson,	Vermont.
Henry F. Stetzer,	Missouri.
William R. Marshall,	Missouri.
William Dugas,	Lower Canada.
Jeremiah Russell,	Lower Canada.
L. A. Babcock,	Vermont.
Thomas A. Holmes,	Pennsylvania.
Allen Morrison,	Pennsylvania.
Alexis Bailly,	Michigan.
Gideon H. Pond,	Connecticut.

David Olmsted was elected president of the council, with Joseph R. Brown as secretary. In the House, Joseph W. Furber was elected speaker, and W. D. Phillips clerk.

Many of these men became very prominent in the subsequent history of the state, and it is both curious and interesting to note the varied sources of their nativity, which shows that they were all of that peculiar and picturesque class known as the American pioneer.

The work of the first legislature was not extensive, yet it performed some acts of historical interest. It created eight counties, named as follows: Itasca, Wabashaw, Dakota, Wahnahtah, Mankato, Pembina, Washington, Ramsey and Benton. The spelling of some of these names has since been changed.

A very deep interest was manifested in the school system. A joint resolution was passed ordering a slab of red pipestone from the famous quarry to be

sent to the Washington monument association, which was done, and now represents Minnesota in that lofty monument at the national capital.

This was done at the suggestion of Henry H. Sibley, who furnished the stone. It will be remembered that I have referred to the visit of George Catlin, the artist, to Minnesota, in 1835, and that his report was unreliable. Among other things, he said that he was the first white man who had visited this quarry, and induced geologists to name the pipestone "Catlinite." Mr. Sibley, in his communication to the legislature presenting this slab, in answer to this pretension, says:

"In conclusion, I would beg leave to state, that a late geological work of high authority by Dr. Jackson, designates this formation as Catlinite, upon the erroneous supposition that Mr. George Catlin was the first white man who had ever visited that region; whereas it is notorious that many whites had been there and examined the quarry long before he came to the country. The designation, therefore, is clearly improper and unjust. The Sioux term for the stone is Eyan-Sha (red stone), by which, I conceive, it should be known and classified."

In my opinion, the greatest achievement of the first legislature was the incorporation of the Historical Society of Minnesota. It established beyond question that we had citizens, at that early day, of thought and culture. One would naturally suppose that the first legislative body of an extreme frontier territory would be engaged principally with saw logs, peltries, town sites, and other things material; but in this instance we find an expression of the highest intellectual prevision, the desire to record historical events for posterity, even before their happening. And what affords even greater satisfaction to the present citizens of Minnesota is, that from the time of the conception of this grand idea there have never been men wanting to appreciate its advantages, and carry it out, until now our state possesses its greatest intellectual and moral treasure in a library of historical knowledge of sixty-three thousand volumes, which is steadily increasing, a valuable museum of curiosities, and a gallery of historical paintings.

This legislature recommended a device for a great seal. It represented an Indian family with lodge and canoe, encamped; a single white man visiting them, and receiving from them the calumet of peace. The design did not meet with general approval, and nothing came of it. The next winter Governor Ramsey and the delegate to congress prepared a seal for the territory, the design of which was the Falls of St. Anthony in the distance, a farmer plowing land, his gun and powder horn leaning against a newly cut stump, a mounted Indian, surprised at the sight of the plow, lance in hand, fleeing toward the setting sun, with the Latin motto, "Quae sursum volo videre," ("I wish to see what is above"). A blunder was made by the engraver, in substituting the word "Quo" for "Quae," in the motto, which destroyed its meaning. Some time after, it was changed to the French motto, "L'Etoile du Nord" ("Star of the North"), and thus remains until the present time.

While speaking of seals, I will state that the seal of the supreme court was established when the first term of the court convened, in 1858. The design adopted was a female figure, representing the goddess of liberty, holding the evenly-balanced scales of justice in one hand and a sword in the other, with the somewhat hackneyed motto, "Fiat justitia ruat coelum" ("Let justice be done if the heavens fall"). I remember that, soon after it appeared, some one asked one of the judges what the new motto meant, and he jocularly answered, "Those who fy at justice will rue it when we seal 'em."

The seal was changed to the same device as that of the state, with the same motto and the words, "Seal of the Supreme Court, State of Minnesota."

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IMMIGRATION.

When the first legislature convened, the governor, on the second day of the session (Sept. 4, 1849), delivered his message. It was a well-timed document, and admirably expressed to attract attention to the new territory. After congratulating the members upon the enviable position they occupied as pioneers of a great prospective civilization, which would carry the American name and American institutions, by the force of superior intelligence, labor and energy, to untold results, he among other things said:

"I would advise you, therefore, that your legislation should be such as will guard equally the rights of labor and the rights of property, without running into ultraisms on either hand; as will recognize no social distinctions except those which merit and knowledge, religion and morals unavoidably create; as will suppress crime, encourage virtue, give free scope to enterprise and industry; as will promptly and without delay administer to and supply all the legitimate wants of the people—laws, in a word, in the proclamation of which will be kept steadily in view the truth that this territory is designed to be a great state, rivalling in population, wealth and energy her sisters of the Union, and that consequently all laws not merely local in their objects should be framed for the future as well as the present....

"Our territory, judging from the experience of the few months since public attention was called to its many advantages, will settle rapidly. Nature has done much for us. Our productive soil and salubrious climate will bring thousands of immigrants within our borders; it is of the utmost moment that the foundation of our legislation should be healthful and solid. A knowledge of this fact will encourage tens of thousands of others to settle in our midst, and it may not be long ere we may with truth be recognized throughout the political and the moral world as indeed the "Polar Star" of the republican galaxy....

"No portion of the earth's surface perhaps combines so many favorable features for the settler as this territory,—watered by the two greatest rivers of our continent, the Missouri sweeping its entire western border, the Mississippi and Lake Superior making its eastern frontier, and whilst the States of Wisconsin and Iowa limit us on the south, the possessions of the Hudson Bay Company present the only barrier to our domain on the extreme north; in all embracing an area of 166,000 square miles, a country sufficiently extensive to admit of the erection of four states of the largest class, each enjoying in abundance most of the elements of future greatness. Its soil is of the most productive character, yet our northern latitude saves us from malaria and death, which in other climes are so often attendant on a liberal soil. Our people, under the healthful and bracing influences of this northern climate, will never sink into littleness, but continue to possess the vigor and the energy to make the most of their natural advantages."

This message, while not in the least exaggerating the actual situation, was well calculated to attract immigration to this region. It was written in a year of great activity in that line. Gold had been discovered in California, and the thoughts of the pioneer were attracted in that direction, and it needed extraordinary inducements to divert the stream to any other point. It was extensively quoted in the eastern papers, and much commented upon, and succeeded beyond all expectations in awakening interest in the Northwest. It was particularly attractive in Maine, where the people were experienced in lumbering, and many of them flocked to the Valley of the St. Croix and the Falls of St. Anthony, and inaugurated the lumbering business, which has since grown to such immense proportions. The valleys of the St. Croix, the Rum, and the Upper Mississippi rivers, with their tributaries, soon resounded with the music of the woodman's axe. Saw mills were erected, and Minnesota was recognized among the great lumber producing regions.

Although immigration continued to be quite rapid during the years 1850-54, it was not until about the year 1855 that it acquired a volume that was particularly noticeable. The reader must remember that Minnesota was on the extreme border of America, and that it represented to the immigrant only those attractions incident to a new territory possessing the general advantages of good climate, good soil and good government as far as developed. There was no gold, no silver, nor other special inducements. The only way of reaching it was by land on wheels, or by the navigable rivers. There was not a railroad west of Chicago. To give an idea of the rush that came in 1855, I quote from the "History of St. Paul," by J. Fletcher Williams, for many years secretary of the Minnesota Historical Society, published in 1876. Speaking of the immigration of 1855, he says:

"Navigation opened on April 17th, the old favorite, 'War Eagle,' leading the van with 814 passengers. The papers chronicled the immigration that spring as unprecedented. Seven boats arrived in one day, each having brought to Minnesota two hundred to six hundred passengers. Most of these came through St. Paul and diverged hence to other parts of the territory. It was estimated by the packet company that they brought thirty thousand immigrants into Minnesota that season. Certainly 1855, 1856 and 1857 were the three great years of immigration in our territorial days. Nothing like it has ever been seen."

In the early fifties, the Mississippi up to, and even for a long distance above, the Falls of St. Anthony was navigable for steamboats. A fine boat, the "Ans. Northrup," once penetrated as far as the Falls of Pokegama, where she was dismantled and her machinery transported to the Red River of the North, and four or five boats regularly navigated the stream above the falls.

The Minnesota river, during all the period of our early history, and far into the sixties, was navigable for large steamers up to Mankato, and in one instance, a steamboat carrying a large cargo of Indian goods was taken by Culver and Farrington, Indian traders, as far as the Yellow Medicine river, and into that river, so that the goods were delivered at the agency, situated a few miles above its mouth. I mention this fact because a wonderful change has taken place in the watercourses and lakes of the state in the past twenty odd years, which I propose to account for on the only theory that seems to me to meet the conditions. Up to about twenty years ago, as soon as the ice went out of the Minnesota river in the spring, it would rise until it overran its banks and covered its bottoms for miles on each side of its channel, and would continue capable of carrying large steamers until late in August. Since that time it has rarely been out of its banks, and navigation of its waters has entirely ceased. The same phenomenon is observable in relation to many of our lakes. Hundreds of the smaller ones have entirely dried up, and most of the larger ones have become reduced in depth several feet. The rainfall has not been lessened, but, if anything, has increased. My explanation of the change is, that in the advance of civilization, the water sheds or basins of these rivers and lakes having been plowed up, the rainfall which formerly found its way quickly into the streams and lakes over the hard natural surface is now absorbed into the soft and receptive ground, and is returned by evaporation. This change is generally attributed to the destruction of forests, but in this case that cause has not progressed sufficiently to have produced the result, and our streams do not rise in mountains.

The trend of immigration toward Minnesota encouraged the organization of transportation companies, by boat and stage, for passengers and freight, and by 1856 it was one of the liveliest communities to be found anywhere, and, curious as it may seem, this era of prosperity was the cause of Minnesota's first great calamity.

The object of the immigrant is, always, the betterment of his condition. He leaves old communities, where competition in all branches of industry is great, in the hope of "getting in on the ground floor," as we used to say, when he arrived in a new country, and every American, and, in fact, everybody else, wants to get rich by head work instead of hand work, if he can. The bulk of the immigration that first came to Minnesota remained in the cities; there was no agriculture worthy of the name. I may say that we had nothing at all to sell, and everything we needed to buy. I can remember that as late as 1853, and even after, we imported hay in bales from Dubuque to feed the horses of St. Paul, when there were millions of tons of it growing in the Minnesota valley, within a few miles of the city.

In the progress of emigration to the West, the territories have always presented the greatest attractions. The settler expects to have a better choice of lands, and at original government prices. Society and politics are both in the formative condition, and very few emigrants omit the latter consideration from their hopes and expectations. In fact, political preferment is a leading motive with many of them.

Under the influence of this great rush of immigration it is very natural that the prevailing idea should be that lands would greatly increase in value in the near future, and everybody became a speculator. Towns and cities sprang into existence like mushrooms in a night. Scarcely anyone was to be seen without a town-site map in his hands, the advantages and beauties of which fictitious metropolis he was ready to present in the most eloquent terms. Everything useful was neglected, and speculation was rampant. There were no banks of issue, and all the money that was in the country was borrowed in the East. In order to make borrowing easy, the law placed no restrictions on the rate of interest, and the usual terms were three per cent per month, with the condition that if the principal was not paid at maturity, the interest should be increased to five per cent per month. Everybody was in debt on these ruinous terms; which, of course, could not last long before the inevitable explosion. The price of lands, and especially town lots, increased rapidly, and attained fabulous rates; in fact, some real property in St. Paul sold in 1856 for more money than it has ever since brought.

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THE PANIC OF 1857.

The bubble burst by the announcement of the failure of the Ohio Life Insurance and Trust Company, which reached St. Paul on Aug. 24, 1857. The failure of this financial institution precipitated a panic all over the country. It happened just on the recurrence of the twenty year period which has marked the pecuniary disasters of the country, beginning with 1837. Its effects on Minnesota were extremely disastrous. The eastern creditors demanded their money, and the Minnesota debtors paid as long as a dollar remained in the country, and all means of borrowing more being cut off, a most remarkable condition of things resulted. Cities like St. Paul and St. Anthony, having a population of several thousands each, were absolutely without money to carry on the necessary commercial functions. A temporary remedy was soon discovered, by every merchant and shopkeeper issuing tickets marked "Good for one dollar at my store," and every fractional part of a dollar, down to five cents. This device tided the people for a while, but scarcely any business establishment in the territory weathered the storm, and many people who had considered themselves beyond the chance of disaster were left without resources of any kind and hopelessly bankrupt. The distress was great and universal, but it was bravely met, and finally overcome.

Dreadful as this affliction was to almost everyone in the territory, it turned out to be a blessing in disguise. It compelled the people to abandon speculation, and seek honest labor in the cultivation of the soil and the development of the splendid resources that generous nature had bestowed upon the country. Farms were opened by the thousands, everybody went to work, and in ten or a dozen years, Minnesota had a surplus of forty millions of bushels of wheat with which to supply the hungry world.

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LAND TITLES.

All the lands of Minnesota were the property of the United States, and title to them could only be obtained through the regular methods of preëmption, town-site entry, public sales, or private entries. One event occurred on Aug. 14, 1848, which illustrates so clearly the way in which western men protect their rights that I will relate it. The recognized price of public lands was one dollar and a quarter per acre, and all pioneer settlers were willing to pay that sum, but when a public sale was made, any one could bid whatever he was willing to pay. Under the administration of President Polk, a public sale of lands was ordered to be made at the land office at St. Croix Falls, of lands lying partly in Minnesota and partly in Wisconsin. The lands advertised for sale included those embraced in St. Paul and St. Anthony. The settlers selected Henry H. Sibley as their trustee, to buy their lands for them, to be conveyed to them subsequently. It was a high offense under the United States laws to do any act that would tend to prevent persons bidding at the sales. Mr. Sibley appeared at the sale, and bid off every tract of land that was occupied by an actual settler at the price of \$1.25 per acre. The general, in a paper he read before the Historical Society, says of this affair:

"I was selected by the actual settlers to bid off portions of the land for them, and when the hour for business arrived, my seat was universally surrounded by a number of men with huge bludgeons. What was meant by the proceeding, I could, of course, only surmise, but I would not have envied the fate of the individual who would have ventured to bid against me."

It has always been assumed in the far West, and I think justly, that the pioneers who first settle the land and give it value should enjoy every advantage that flows from such priority, and the violation of laws that impede such opportunity is a very venial offense. So universal was the confidence reposed in Mr. Sibley, that many of the French settlers, the title to whose lands became vested in him, by his purchase at this sale, insisted

that it should remain in him, and he found it quite difficult in many cases to get them to accept deeds from him.

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THE FIRST NEWSPAPER.

Although the first message of the governor went a great way in introducing Minnesota to the world, she was particularly fortunate in the establishment of her first newspapers. The Stillwater convention of 1848, of which I have spoken, first suggested to Dr. A. Randall, who was an attache of Dr. Owen's geological corps, then engaged in a survey of this region by order of the government, the necessity of a newspaper for the new territory. He was possessed of the means and enterprise to accomplish the then rather difficult undertaking, and was promised ample support by leading men of the territory. He returned to his home in Cincinnati in the fall of 1848, intending to purchase the plant and start the paper that year, but the navigation of the rivers closed earlier than usual, and he was foiled in his attempt. He, however, set up his press in Cincinnati, and got out a number or two of his paper there. It was then called the "*Minnesota Register*," and appeared as of the date of April 27, 1849, and as printed in St. Paul. It was in fact printed in Cincinnati about two weeks earlier. It contained valuable articles from the pens of H. H. Sibley and Henry M. Rice. These articles, added to Mr. Randall's extensive knowledge of the country, made the first issue a great local success. It was the first Minnesota paper ever published, and bears date just one day ahead of the *Pioneer*, subsequently published by James M. Goodhue, which was actually printed in the territory. Dr. Randall did not carry out his intention, but was caught in the California vortex, and did not return to Minnesota.

James M. Goodhue of Lancaster, Wis., who was editing the *Wisconsin Herald*, when he heard of the organization of the new territory, immediately decided to start a paper in St. Paul, and as soon as navigation opened in the spring of 1849, he came up with his press and type. He met with many difficulties and obstructions, necessarily incident to a new place in a venture such as was his, but he succeeded in issuing the first number of his paper on the twenty-eighth day of April, 1849. His first inclination was to call his paper the "*Epistle of St. Paul*," but on sober reflection he was convinced that the name might shock the religious sensibilities of the community,

especially as he did not possess many of the attributes of our patron saint, and he decided to call his paper "*The Minnesota Pioneer*."

In his first issue he speaks of his establishment of that day, as follows:

"We print and issue this number of the *Pioneer* in a building through which out-of-doors is visible by more than five hundred apertures; and as for our type, it is not safe from being *pied* on the galleys by the wind." The rest can be imagined.

Mr. Goodhue was just the man to be the editor of the first paper of a frontier territory. He was energetic, enterprising, brilliant, bold and belligerent. He conducted the *Pioneer* with great success and advantage to the territory until the year 1851, when he published an article on Judge Cooper, censuring him for absenteeism, which is a very good specimen of the editorial style of that day. He called the judge "a sot," "a brute," "an ass," "a profligate vagabond," and closed his article in the following language:

"Feeling some resentment for the wrongs our territory has so long suffered by these men, pressing upon us like a dispensation of wrath,—a judgment—a curse—a plague, unequalled since Egypt went lousy,—we sat down to write this article with some bitterness, but our very gall is honey to what they deserve."

In those fighting days, such an article could not fail to produce a personal collision. A brother of Judge Cooper resented the attack, and in the encounter between them, Goodhue was badly stabbed and Cooper was shot. Neither wound proved fatal at the time, but it was always asserted by the friends of each combatant, and generally believed, that they both died from the effects of these wounds.

The original *Minnesota Pioneer* still lives in the *Pioneer Press* of to-day, which is published in St. Paul. It has been continued under several names and edited by different men, but has never been extinguished or lost its relation of lineal descendant from the original *Pioneer*.

Nothing tends to show the phenomenal growth of Minnesota more than the fact that this first newspaper, issued in 1849, has been followed by the publication of 579 papers, which is the number now issued in the state according to the last official list obtainable. They appear daily, weekly and monthly, in nearly all written languages, English, French, German, Swedish, Norwegian, Danish, Bohemian, and one in Icelandic, published in Lyon county.

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BANKS.

With the first great increase in immigration business was necessarily enlarged, and banking facilities became a necessity. Dr. Charles W. Borup, a Danish gentleman, who was engaged in the fur trade at Lake Superior as an agent for the American Fur Company, and Mr. Charles H. Oakes, a native of Vermont, came to St. Paul, and established a bank in 1853. They were brothers-in-law, having married sisters. They did a private banking business, under the name of Borup & Oakes, which adapted itself to the needs of the community, including real estate, and almost any other kind of venture that offered. The house of Borup & Oakes was the first banking establishment in Minnesota, and weathered all the financial storms that swept over the territory in its early history.

They were followed by Truman M. Smith, but he went down in the panic of 1857-58. Then came Bidwell's Exchange Bank, followed by C. H. Parker and A. Vance Brown. Mackubin & Edgerton opened a bank in 1854, which was the ancestor of the present Second National Bank, and always legitimate. I think Erastus S. Edgerton may justly be said to have been the most successful banker of all that were early engaged in the business. An enumeration of the banks and bankers which succeeded each other in these early times would be more appropriate in a narrative of the localities where they operated than in a general history of the state. It is sufficient to say that nearly all, if not all, of them succumbed to the financial disasters in 1857-58, and there was no banking worthy of the name until the passage of the banking law of July 26, 1858. But this act was a mere makeshift to meet a financial emergency, and it was not based upon sound financial principles. It allowed the organization of banks and the issue of circulating bank notes upon securities that were capable of being fraudulently overvalued by misrepresentation, and, as a matter of course, advantage was taken of the laxity of the provisions of the law, and securities which had no intrinsic value in fact were made available as the foundation of bank issues, with the inevitable result of disaster.

Another method of furnishing the community with a circulating medium was resorted to by a law of July 23, 1858. The state auditor was authorized to issue his warrants for any indebtedness which the state owed to any person in small sums, and the warrants were made to resemble bank notes, and bore twelve per cent interest. The credit of the state was not sufficiently well established in the public confidence to make these warrants, which were known as "state scrip," worth much over sixty-five or seventy cents on the dollar. They were taken by the money changers at that valuation, and when the state made its first loan of \$250,000, they were all redeemed in gold at par, with interest at twelve per cent.

In this uncertain way, the financial interests of the territory were cared for until the breaking out of the Civil War, and the establishment of the national and state systems which still exist.

Another evidence of the growth of the state may be found in the fact that at the present time the state has within its limits banks in good standing as follows: State banks, 172 in number, with a paid-in capital stock of \$6,736,800, and sixty-seven national banks, with a capital stock paid in of \$11,220,000. This statement does not include either the surplus or the undivided profits of these banks, nor the capital employed by private banking concerns which do not fall under the supervision of the state, which latter item can safely be estimated at \$2,000,000.

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THE FUR TRADE.

The first legitimate business of the territory was the fur trade, and the carrying business resulting therefrom. Prior to the year 1842 the Northwestern Fur Company occupied the territory which is now Minnesota. In 1842 it sold out to, and was merged into, the American Fur Company, which was owned by P. Choteau & Company. This company had trading stations at Prairie du Chien and Mendota, Henry H. Sibley being their chief factor at the latter. The goods imported into the Red river settlements and the furs exported therefrom all came and went through the difficult and circuitous route by way of Hudson Bay. This route was only navigable for about two months in the year, on account of the ice. The catch of furs and buffalo robes in that region was practically monopolized by the Hudson Bay Company. The American Fur Company soon became well established in the Northwest. In 1844 this company sent Mr. Norman W. Kittson from the Mendota outfit to establish a trading post at Pembina, just south of the British possessions, with the design of diverting some of the fur trade of that region in the direction of the navigable waters of the Mississippi. The company, through Mr. Kittson, invested some \$2,000 in furs at Pembina, and had them transported to Mendota in six Pembina carts, which returned loaded with merchandise of the character needed by the people of that distant region. This venture was the beginning of the fur trade with the Red river country, but did not prove a financial success. It entailed a loss of about \$600, and similar results attended the next two years' operations, but the trade increased, notwithstanding the desperate efforts of the Hudson Bay Company to obstruct it. This company had enjoyed a monopoly of the trade without any outside interference for so long that it looked upon this new enterprise as a direct attack on its vested rights. But Mr. Kittson had faith in being able in the near future to work up a paying trade, and he persevered. By the year 1850 the business had so far increased as to involve a consumption of goods to the extent of \$10,000, with a return of furs to the amount of \$15,000. Five years later the goods sent to Pembina amounted in value to \$24,000, and the return of furs to \$40,000. In 1851 the firm of Forbes & Kittson was organized, and also "The St. Paul Outfit," to carry on

the supply business. When St. Paul became of some importance in 1849 the terminus and supply depot was removed to that point, and the trade rapidly increased in magnitude, and made St. Paul one of the largest fur markets in America, second only to St. Louis, the trade of which city consisted mostly of buffalo robes, which was always regarded as a distinct branch of the business, in contrast with that of fine furs. In the early days the Indians and a few professional trappers were about all who caught fur animals, but as the country became more settled the squatters added to their incomes by such trapping as their environments afforded, which increased the market at St. Paul by the addition of all Minnesota, which then included both of the Dakotas, and northern Wisconsin.

The extent and value of this trade can better be understood by a statement of the increase of the number of carts engaged in it between 1844 and 1858. In the first year mentioned six carts performed all the required service, and in 1858 six hundred carts came from Pembina to St. Paul. After the year 1858 the number of carts engaged in the traffic fell off, as a steamer had been put in operation on the Red river, which reduced the land transportation to 216 miles, which had formerly been 448 miles, J. C. & H. C. Burbank having established a line of freight trains connecting with the steamer. In 1867, when the St. Paul & Pacific Railroad reached St. Cloud, the caravans of carts ceased their annual visits to St. Paul. St. Cloud then became the terminus of the traffic, until the increase of freight lines and the completion of the Northern Pacific Railroad to the Red river drove these most primitive of all transportation vehicles out of business. Another cause of the decrease in the fur trade was the imposition of a duty of twenty-five per cent on all dressed skins, which included buffalo robes, and from that time on robes that formerly came to St. Paul from the British possessions were diverted to Montreal.

The extent and value of this trade to Minnesota, which was then in its infancy, can easily be judged by a brief statement of its growth. In 1844 it amounted to \$1,400 and in 1863 to \$250,000. All the money paid out for these furs, and large sums besides, would be expended in St. Paul for merchandise, in the shape of groceries, liquors, dry goods, blankets, household utensils, guns and ammunition, and, in fact every article demanded by the needs of a primitive people. Even threshers and mowers

were included, which were taken apart and loaded on the return carts. This trade was the pioneer of the great commercial activity which now prevails.

I cannot permit this opportunity to pass without describing the Red river cart, and the picturesque people who used it, as their like will never be seen again. The inhabitants of the Pembina country were principally Chippewa half breeds, with an occasional white man, prominently Joseph Rolette, of whom I shall hereafter speak as the man who vetoed the capital removal bill, by running away with it, in 1857. Their principal business was hunting the buffalo, in connection with small farming, and defending themselves against the invasions of their hereditary enemies, the Sioux. They were a bold, free race, skilled in the arts of Indian war, fine horsemen, and good fighters.

The Red river cart was a home invention. It was made entirely of wood and rawhide. It moved upon two wheels, of about a diameter of five feet six inches, with shafts for one animal, horse or ox,—generally the latter. The wheels were without tires, and their tread about three and a half or four inches wide. They would carry a load of six to eight hundred pounds, which would be protected by canvas covers. They were especially adapted to the condition of the country, which was largely interspersed with swamps and sloughs, which were impassable for any other character of vehicle. Their lightness, the width of the surface presented by the tread of the wheel and the careful steps of the educated animal which drew them, enabled them to go where anything else would flounder. The trail which they left upon the prairie was deeply cut, and remained for many years after they were disused.

When a brigade of them was ready to leave from Pembina for St. Paul, it would be manned by one driver for four carts, the train being arranged in single file with the animals hitched to the cart before them, so that one driver could attend to that number of carts. Their speed was about fifteen miles a day, which made the voyage last about a month. When night overtook them they formed a circular corral with their carts, the shafts pointing inward, with the camp in the center, which made a strong fort in case of attack. The animals were allowed to graze on the outside, but were carefully watched to prevent a stampede. When they reached St. Paul they went into camp near some lake, and were a great source of interest to all the

newcomers. During their stay the town would be thronged with the men, who were dressed in vari-colored costumes, always including the sash of Pembina, a beautiful girdle, giving them a most picturesque appearance. The only truthful representation of these curious people that has been preserved is found in two full length portraits of Joe Rollette, one in the gallery of the Minnesota Historical Society and the other on the walls of the Minnesota Club, in St. Paul, both of which are the gift of a very dear friend of the original.

During the progress of this peculiar traffic many people not connected with the established fur companies, engaged in the Indian trade, prominently Culver and Farrington, Louis Roberts, and Nathan Myrick. I remember that Mr. John Farrington made an improvement in the construction of the Red river cart, by putting an iron box in the hub of the wheel, which prevented the loud squeaking noise they formerly made, and so facilitated their movements that they carried a thousand pounds as easily as they had before carried eight hundred.

The early fur trade in the Northwest, carried on by canoes and these carts, was very appropriately called by one of our first historians of Minnesota, "The heroic age of American commerce."

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PEMMICAN.

One of the principal sources of subsistence of these frontier people in their long journeys through uninhabited regions was pemmican. This food was especially adapted to extreme northern countries, where in the winter it was sometimes impossible to make fires to cook with, and the means of transportation was by dog-trains, as it was equally good for man and beast. It was invented among the Hudson Bay people, many years ago, and undoubtedly from necessity. It was made in this way: The meat of the buffalo, without the fat, was thoroughly boiled, and then picked into shreds or very small pieces. A sack was made of buffalo skin, with the hair on the outside, which would hold about ninety pounds of meat. A hole was then dug in the ground of sufficient size to hold the sack. It was filled with the meat thus prepared, which was packed and pounded until it was as hard as it could be made. A kettle of boiling hot buffalo fat, in a fluid state, was then poured into it, until it was thoroughly permeated, every interstice from center to circumference being filled, until it became a solid mass, perfectly impervious to the air, and as well preserved against decomposition as if it had been enclosed in an hermetically sealed glass jar. Here you had a most nutritious preparation of animal food, all ready for use for both man and dog. An analysis of this compound proved it to possess more nutriment to the pound weight than any other substance ever manufactured, and with a winter camp appetite, it was a very palatable dish. Its great superiority over any other kind of food was its not requiring preparation and its portability.

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TRANSPORTATION AND EXPRESS.

With the increase of trade and business naturally came the need of greater transportation facilities, and the men to furnish them were not wanting. John C. Burbank of St. Paul may be said to have been the pioneer in that line, although several minor lines of stages and ventures in the livery business preceded his efforts. Willoughby & Powers, Allen & Chase, M. O. Walker & Company of Chicago, and others, were early engaged in this work. In 1854 the Northwestern Express Company was organized by Burbank & Whitney, and in 1856 Captain Russell Blakeley succeeded Mr. Whitney, and the express business became well established in Minnesota. In 1858-59 Mr. Burbank got the mail contract down the river, and established an express line from St. Paul to Galena, in connection with the American Express Company, whose lines extended to Galena as its western terminus. Steamboats were used in summer and stages in winter. In the fall of 1859 the Minnesota Stage Company was formed by a consolidation of the Burbank interests with those of Allen & Chase, and the line extended up the Mississippi to St. Anthony and Crow Wing. Other lines and interests were purchased and united, and in the spring of 1860 Col. John L. Merriam became a member of the firm, and for more than seven years Messrs. Burbank, Blakeley & Merriam constituted the firm and carried on the express and stage business in Minnesota. This business increased rapidly, and in 1865 this firm worked over seven hundred horses, and employed two hundred men.

During this staging period the railroads from the East centered in Chicago, and gradually reached the Mississippi river from that point; first at Rock Island, next at Dunleith, opposite Dubuque, then at Prairie du Chien, next at Prairie La Crosse,—each advance carrying them nearer Minnesota. The Prairie du Chien extension was continued across the river at McGregor in Iowa, and thence up through Iowa and Southern Minnesota to Minneapolis and St. Paul. In 1872 the St. Paul & Chicago Railroad was finished from St. Paul down the west bank of the Mississippi to Winona and was purchased by the Milwaukee & St. Paul Company, and by that company was, in 1873, extended still further down the river to La Crescent, opposite to La Crosse,

which completed the connection with the eastern trains. This road was popularly known as the "River Road." Various other railroads were soon completed, covering the needs of the settled part of the state, and the principal stage lines either withdrew to the westward, or gave up their business.

The growth in the carrying line has since become immense throughout the state, and may be judged when I say that there are now five strong daily lines to Chicago, the Burlington, the Omaha, the Milwaukee, the Wisconsin Central and the Chicago Great Western, and three transcontinental lines departing daily for the Pacific Coast, the Northern Pacific, the Great Northern and the Sault Ste. Marie (connecting with the Canadian Pacific). Besides these prominent trains, there are innumerable lesser ones connecting with nearly every part of the state. More passenger trains arrive at, and depart from, the St. Paul Union Depot than at any other point in the state. They aggregate 104 in, and the same number out every day. Many—perhaps the most—of these trains go to Minneapolis. The freight trains passing these points are, of course, less regular in their movements than the scheduled passenger trains, but their number is great, and their cargoes of incalculable value.

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LUMBER.

A large portion of Minnesota is covered with exceptionally fine timber. The northern section, traversed by the Mississippi and its numerous branches, the St. Croix, the St. Louis, and other streams, was covered with a growth of white and Norway pine of great value, and a large area of its central western portion with hard timber. At a very early day in the history of our state these forests attracted the attention of lumbermen from different parts of the country, principally from Maine, who erected sawmills at the Falls of St. Anthony, Stillwater and other points, and began the cutting of logs to supply them. Nearly all the streams were navigable for logs, or were easily made so, and thus one of the great industries of the state had its beginning. Quite an amount of lumber was manufactured at Minneapolis in the fifties, but no official record of the amounts were kept until 1870. An estimate of the standing pine in the state was made by the United States government for the census of 1880, which was designed to include all the standing pine on the streams leading into the Mississippi, the Rainy Lake river, the St. Croix, and the head of Lake Superior; in fact, the whole state. The estimate was 10,000,000,000 feet. When this estimate was made, it was accepted by the best informed lumbermen as approximately correct. The mills at Minneapolis and above, in the St. Croix valley, and in what was called the Duluth district, were cutting about 500,000,000 feet a year. It was expected that there would be a gradual increase in the consumption of lumber made by Minnesota mills, and it was therefore estimated that in about fifteen years, all the white pine in the state would be cut into lumber and sold; but such has not proved to be the case, although the production has rapidly increased as was expected. But this difference between the estimate and the result is not of much consequence, as there is nothing more unreliable than an estimate of standing timber, and especially is such the case when covering a large area of country. Since 1880 the production of lumber in the state has increased from year to year, until it is at the present time fully 1,629,110,000 feet of pine logs every year. The cut made by the Minneapolis mills alone in 1898 was 469,701,000 feet, with a corresponding amount of laths and shingles. But this pace cannot be kept up

much longer, and apprehensions of the entire destruction of the forests of the state are becoming quite prevalent among the people. These fears are taking the shape of associations for the promotion of scientific forestry, and the establishment of large forest reserves near the headwaters of our streams, which are to serve also the purpose of national parks. In assigning a cause for the lowering of our streams, and the drying up of many of our lakes, in a former part of this work, I attribute it to the plowing up of their valleys and watersheds, and not to the destruction of the forests, because I do not think that the latter reason has sufficiently progressed to produce the result, although it is well known that the destruction of growing timber about the head waters of streams operates disastrously upon the volume of their waters and the regularity of its flow. Minnesota is the best watered state in the Union, and every precaution should be taken to maintain this advantage. From the extent of the interest displayed in the direction of forest reserves and their scientific administration, we have every reason to hope for speedy and final success. The state and interstate parks already established will be noticed hereafter.

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RELIGION.

The growth of the religious element of a new country is always one of its interesting features, and I will endeavor to give a short account of the progress made in this line in Minnesota from the mission period, which was directed more particularly to the Christianizing of the Indians. I will begin with the first structure ever erected in the state, designed for religious purposes. It was a very small beginning for the prodigious results that have followed it. I speak of the little log "Chapel of Saint Paul," built by the Rev. Lucian Galtier, in October, 1841, in what is now the city of St. Paul.

Father Galtier was a French priest of the Church of Rome. He was sent by the ecclesiastic authorities of Dubuque to the Upper Mississippi country, and arrived at Fort Snelling in April, 1840, and settled at St. Peters (now Mendota), where he soon tired of inaction, and sought a larger field among the settlers who had found homes further down the river, in the neighborhood of the present St. Paul. He decided that he could facilitate his labors by erecting a church at some point accessible to his parishioners. Here he found Joseph Rondo, Edward Phalen, Vetel Guerin, Pierre Bottineau, the Gervais Brothers, and a few others. The settlers encouraged the idea of building a church, and a question of much importance arose as to where it should be placed. I will let the good father tell his own story as to the selection of a site. In an account of this matter, which he prepared for Bishop Grace in 1864, he says:

"Three different points were offered, one called La Pointe Basse, or Pointe La Claire (now Pig's Eye); but I objected because that locality was the very extreme end of the new settlement, and in high water, was exposed to inundation. The idea of building a church which might at any day be swept down the river to St. Louis did not please me. Two miles and a half further up, on his elevated claim (now the southern point of Dayton's Bluff), Mr. Charles Mouseau offered me an acre of his ground, but the place did not suit my purpose. I was truly looking ahead, thinking of the future as well as the present. Steamboats could not stop there; the bank was too steep, the

place on the summit of the hill too restricted, and communication difficult with the other parts of the settlement up and down the river.

"After mature reflection, I resolved to put up the church at the nearest possible point to the cave, because it would be more convenient for me to cross the river there when coming from St. Peters, and because it would be also the nearest point to the head of navigation, outside of the reservation line. Mr. B. Gervais and Mr. Vetel Guerin, two good, quiet farmers, had the only spot which appeared likely to answer the purpose. They consented jointly to give me the ground necessary for a church site, a garden and a small graveyard. I accepted the extreme eastern part of Mr. Vetel's claim, and the extreme west of Mr. Gervais'. Accordingly, in the month of October, 1841, logs were prepared and a church erected, so poor that it well reminded one of the stable of Bethlehem. It was destined, however, to be the nucleus of a great city. On the first day of November, in the same year, I blessed the new *basilica*, and dedicated it to Saint Paul, the apostle of nations. I expressed a wish, at the same time, that the settlement would be known by the same name, and my desire was obtained. I had, previously to this time, fixed my residence at St. Peters, and as the name of *Paul* is generally connected with that of *Peter*, and the Gentiles being well represented at the new place in the persons of Indians, I called it St. Paul. The name "Saint Paul," applied to a town or city seemed appropriate. The monosyllable is short, sounds well, and is understood by all denominations of Christians. When Mr. Vetel was married, I published the banns as those of a resident of St. Paul. A Mr. Jackson put up a store, and a grocery was opened at the foot of Gervais' claim. This soon brought steamboats to land there. Thenceforth the place was known as 'Saint Paul Landing,' and later on as Saint Paul."

The chapel was a small log structure—one story high, one door, and no windows in front, with two windows on each side, and one in the rear end. It had on the front gable end a large wooden cross, which projected above the peak of the roof some six or eight feet. It occupied a conspicuous position, on the top of the high bluff overlooking the Mississippi, some six or eight hundred feet below the point where the Wabasha street bridge now spans the river, I think, between Minnesota and Cedar streets.

The region thus named was formerly known by the appellation of "Pig's Eye." The state owes Father Galtier a debt of gratitude for having changed it, as it seems impossible that the capital city could ever have attained its present majestic proportions, numerous and cultivated population, and many other advantages and attractions, under the handicap of such a name.

In the first New Year's address ever printed in Minnesota, on Jan. 1, 1850, supposed to be by Editor Goodhue, the following lines appeared:

"Pig's Eye, converted thou shall be, like Saul:
Arise, and be, henceforth, SAINT PAUL."

Father Galtier died Feb. 21, 1866.

The chapel of Saint Paul, after having been the first to greet all newcomers by way of the Mississippi for fifteen years, was taken down in 1856.

The next representative of the Catholic church to come to Minnesota was the Rev. Augustin Ravoux, who arrived in the fall of 1841. He went up the St. Peter's river to Traverse des Sioux, where he commenced the study of the Sioux language. Soon after he went to Little Rock, on the St. Peters, and thence to Lac qui Parle. After the removal of Father Galtier to Keokuk, in Iowa, he had under his charge, Mendota, St. Paul, Lake Pepin and St. Croix, until the second day of July, 1851, when the Right Reverend Bishop Cretin came to St. Paul, and assumed charge of church matters in Minnesota. Father Ravoux is still living in St. Paul at the advanced age of eighty-five years. His venerable and priestly form may often be seen upon the streets, in excellent health.

At the time of the coming of Father Galtier the country on the east side of the Mississippi, in what is now Minnesota, was under the direct jurisdiction of the Bishop of Milwaukee, and the part lying west of the river was in the diocese of Dubuque.

The growth of the church kept up with the rapid settlement of the country. In August, 1859, the Right Reverend Thomas L. Grace succeeded Bishop Cretin as bishop of St. Paul, and was himself succeeded by the Right

Reverend John Ireland, in July, 1884. So important had Minnesota become to the Catholic Church in America that, in May of 1888, the see of St. Paul was raised to metropolitan dignity and Archbishop Ireland was made its first Archbishop, which high office he now holds.

I will not attempt even a short biography of Archbishop Ireland. His fame is world-wide; he is a churchman, statesman, diplomat, orator, citizen and patriot,—in each of which capacities he excels. He has carried the fame of Minnesota to all parts of the world where the Church is known, and has demonstrated to the Pope in Rome, to the Catholics in France, and to the Protestants in America that there can be perfect consistency and harmony between Catholicism and republican government. A history of Minnesota without a fitting tribute to Archbishop John Ireland would be incomplete indeed.

The representatives of the Protestant faith have not been behind their Catholic brethren in providing religious facilities for their adherents. They followed immigration closely, and sometimes accompanied it. Scarcely would an aggregation of people congregate at any one point in sufficient numbers to gain the name of a village, or a settlement, before a minister would be called and a church erected. The church went hand in hand with the schoolhouse, and in many instances one building answered for both purposes. There came Lutherans from Germany and Scandinavia, Episcopalians, Methodists, Presbyterians, Congregationalists, Calvinists, Universalists, Unitarians, and every sect into which Protestantism is divided, from New England and other Eastern States. They all found room and encouragement, and dwelt in harmony. I can safely say, that few Western States have been peopled by such law-abiding, industrious, moral and religious inhabitants as were the first settlers of Minnesota. There was nothing to attract the ruffianly element,—no gold, silver, or other mines; the chief industry being peaceful agriculture. So free from all disturbing or dangerous elements did we consider our territory that I have on several occasions taken a wagon loaded with specie, amounting to nearly one hundred thousand dollars, from St. Paul to the Indian agencies at the Redwood and Yellow Medicine rivers, a distance of two hundred miles, through a very sparsely settled country, without any guard except myself and driver, with possibly an Indian picked up on the road, when I was entitled to a squad of dragoons for the asking.

In the early days the Episcopal Church in Minnesota was within the diocese of Wisconsin, and its functions administered by the venerable Bishop Kemper, who occasionally made us a visit, but in 1859 the church had expanded to such an extent that the state was organized into a separate diocese, and the Rev. Henry B. Whipple, then rector of a church in Chicago, was elected bishop of Minnesota, and still retains that high office. Bishop Whipple, by his energy, learning, goodness and universal popularity, has built up his church in this state to a standard surpassed by none in the respect in which it is held and the influence for good which it exerts. The official duties of the bishop have been so enlarged by the growth of his church as to necessitate the appointment of a bishop coadjutor to assist him in their performance, which latter office is filled by the Rev. Mahlon N. Gilbert, who is especially well qualified for the position.^[1]

It would be impossible in a brief history like this to go very deeply or particularly into the growth of the religious element of the state. A general presentation of the subject in two grand divisions, Catholic and Protestant, is enough. Suffice it to say, that every sect and subdivision of the latter has its representative in the state, with the one exception of Mormonism, if that can be classified as a Protestant church. There are enough of them to recall the answer of the French traveler in America, when asked of his opinion of the Americans. He said: "They are a most remarkable people; they have invented three hundred religions and only one sauce." No matter how their creeds may be criticised, their joint efforts, Catholic and Protestant, have filled the state with religious, charitable, benevolent and educational institutions to an extent rarely witnessed out of it, so that if a Minnesotan goes wrong, he can blame no one but himself.

FOOTNOTES:

^[1] Bishop Gilbert died within a few months.

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RAILROADS.

In the year 1857, on the third day of March, the congress of the United States made an extensive grant of lands to the territory to aid in the construction of railroads. It consisted of every alternate section of land, designated by odd numbers, for six sections in width, on each side of the roads specified, and their branches. The grant mapped out a complete system of roads for the territory, and provided that the land granted for each road should be applied exclusively to such road, and no other purpose whatever. The lines designated in the granting act were as follows:

From Stillwater, by the way of St. Paul and St. Anthony to a point between the foot of Big Stone lake and the mouth of the Sioux Wood river, with a branch via St. Cloud and Crow Wing to the navigable waters of the Red River of the North, at such point as the legislature of the territory may determine.

From St. Paul and from St. Anthony via Minneapolis to a convenient point of junction west of the Mississippi to the southern boundary of the territory, in the direction of the mouth of the Big Sioux river, with a branch via Faribault to the north line of the state of Iowa, west of range 16.

From Winona via St. Peter to a point on the Big Sioux river, south of the forty-fifth parallel of north latitude.

Also from La Crescent via Target lake up the valley of the Root river, to a point east of range 17.

The territory or future state was authorized to sell one hundred and twenty sections of this land whenever twenty continuous miles of any of the roads or branches was completed,—the land so sold to be contiguous to the completed road. The right of way or road bed of any of the subsidized roads was also granted through any of the government lands. The roads were all to be completed within ten years, and if any of them were not finished by that time the lands applicable to the unfinished portions were to revert to the government. The lands granted by this act amounted to about 4,500,000

acres. An act was subsequently passed on March 2, 1865, increasing the grant to ten sections to the mile. Various other grants were made at different times, but they do not bear upon the subject I am about to present.

This grant came at a time of great financial depression, and when the territory was about to change its dependent condition for that of a sovereign state in the Union. It was greeted as a means of relief that might lift the territory out of its financial troubles, and insure its immediate prosperity. The people did not take into consideration the fact that the lands embraced in the grant, although as good as any in the world, were remote from the habitation of man, lying in a country absolutely bankrupt, and possessing no present value whatever. Nor did they consider that the whole country was laboring under such financial depression that all public enterprises were paralyzed; but such was, unfortunately, the monetary and business condition.

On the twenty-third of February, 1857, an act had passed the congress of the United States authorizing the people of Minnesota to form a constitution preparatory to becoming a state in the Union. Gen. Willis A. Gorman, who was then governor of the territory, called a special session of the legislature to take into consideration measures to carry out the land grant and enabling acts. The extra session convened on April 27th. In the meantime Governor Gorman's term of office had expired, and Samuel Medary of Ohio had been appointed as his successor, and had assumed the duties of his office. He opened the extra session with an appropriate message. The extra session adjourned on the 23d of May, and in accordance with the provisions of the enabling act of congress, an election was held on the first Monday in June for delegates to a constitutional convention, which was to assemble at the capitol on the second Monday in July. The constitutional convention is an event in the history of Minnesota sufficiently important and unique to entitle it to special treatment, which will be given hereafter.

An act was passed at the extra session, on the 19th day of May, 1857, by which the grant of lands made to the territory was formally accepted, "upon the terms, conditions and restrictions" contained in the granting act.

On the twenty-second day of May, at the extra session, an act was passed to execute the trust created by the land grant act, by which a number of

railroad companies were incorporated to construct roads on the lines indicated by the act of congress, and to aid in the building of these roads, and the lands applicable to each were granted to it. The companies were to receive title to the lands as the construction progressed, as provided in the granting act. They also had conferred upon them powers to issue bonds, in the discretion of the directors, and to mortgage their roads and franchise to secure them.

These railroad companies were organized upon the hope that the aid extended to them by the grants of land would enable them to raise money sufficient to build their several roads. They had nothing of their own, and no security but the roads and lands upon which to negotiate loans. The times, and the novel idea of building railroads in unpeopled countries, were all against them, and, of course, nothing could be done.

The constitutional convention met and framed an instrument for the fundamental law of the new state which was very conservative, and, among other things, contained the following clause, which was enacted in section 5 of article IX.:

"For the purpose of defraying extraordinary expenses the state may contract debts, but such debts shall never in the aggregate exceed two hundred and fifty thousand dollars." And another clause found in section 10, which is as follows: "The credit of the state shall never be given or loaned in aid of any individual, association or corporation."

It was the intention of the framers of the constitution to prevent the legislature from ever using the credit or funds of the state in aid of any private enterprise, and these provisions effectually accomplished that end.

The people were deeply disappointed when they became convinced that the roads could not be built with the aid that congress had extended, and as this work was also looked upon as the only hope of financial relief, the case became a desperate one, which could only be remedied by the most extreme measures. The promoters of the railroads soon discovered one, in an amendment of the section of the constitution which prohibited the credit of the state being given or loaned to anyone, and at the first session of the first

legislature, which convened on Dec. 3, 1857, an act was passed proposing such amendment, to be submitted to the people for ratification. The importance of this amendment, and its effect and consequences upon the future of the state, demands that I give it nearly in full. It changed section 10 as it was originally passed, and made it read as follows:

"Section 10. The credit of that state shall never be given or loaned in aid of any individual association or corporation, except that, for the purpose of expediting the construction of the lines of railroads, in aid of which the congress of the United States has granted lands to the Territory of Minnesota, the governor shall cause to be issued and delivered to each of the companies in which said grants are vested by the legislative assembly of Minnesota the special bonds of the state, bearing an interest of seven per cent per annum, payable semi-annually in the city of New York, as a loan of public credit, to an amount not exceeding twelve hundred and fifty thousand dollars, or an aggregate amount to all of said companies not exceeding five millions of dollars, in manner following, to-wit:"

The amendment then prescribes that, whenever ten miles of railroad was graded so as to be ready for the superstructure, it should receive \$100,000 of the bonds, and when ten miles should be completed with the cars running, the company so completing should receive another \$100,000 of the bonds until each company had received its quota. The bonds were to be denominated "State Railroad Bonds," for the payment of which the faith and credit of the state was to be pledged. The railroad companies were to pay the principal and interest of the bonds, and to secure such payment they were to pledge the net profits of their respective roads, and to convey to the state the first two hundred and forty sections of land they received, and to deliver to the state treasurer an amount of their first mortgage bonds equal to the amount of bonds received by them from the state, and mortgage to the state their roads and franchises. This was all the security the companies could give, but the underlying difficulty was that it had no value whatever. There were no roads, no net or other profits. The lands had no value whatever except such as lay in the future, which was dependent on the construction of the roads and the settlement of the country. The bonds of the companies, of course, possessed only such value as the property they

represented, which was nothing, and the mortgages were of the same character. The whole scheme was based upon hopes, which the slightest application of sober reasoning would have pronounced impossible of fulfillment. But the country was hungry, and willing to seize upon anything that offered a semblance or shadow of relief.

The proposed amendment was to be submitted to the people for adoption or rejection, at an election to be held on the fifteenth day of April, 1858. In order to fully comprehend the condition of the public mind, it should be known that the constitution, with all the safeguards that I have mentioned, had only been in force since Oct. 13, 1857, a period of about six months, and had been carried by a vote of 30,055 for to 571 against its adoption.

The campaign preceding the election was a very active one. The railroad people flooded the state with speakers, documents, pictures, glee clubs singing songs of the delights of "Riding on the Rail," and every conceivable artifice was resorted to to carry the amendment. It was carried by a vote of 25,023 in favor of its passage, to 6,733 against.

To give an idea of the intense feeling that was exhibited in this election, it is only necessary to state that at the city of Winona there were 1,102 votes cast in favor of the amendment and only one vote against it. This negative vote, to his eternal honor be it said, was cast by Thomas Wilson, afterwards chief justice of the state, and now a citizen of St. Paul.

In the execution of the requirements of the amendment, the railroad companies claimed that they could issue first mortgage bonds on their properties to an indefinite amount and exchange them with the state for its bonds, bond for bond, but the governor, who was Hon. Henry H. Sibley, construed the amendment to mean that the first mortgage bonds of the companies which the state was to receive must be an exclusive first lien on the lands and franchises of the company. He therefore declined to issue the bonds of the state unless his views were adopted. The Minnesota & Pacific Railroad Company, one of the land grant corporations, applied to the supreme court of the state for a writ of mandamus, to compel the governor to issue the bonds. The case was heard, and two members of the court holding the views of the applicants, the writ was issued. I was a member of the court at that time, but entertaining opposite views from the majority, I

filed a dissenting opinion. Anyone sufficiently interested in the question can find the case reported in Volume II. of the Minnesota Reports, at page 13. This decision was only to be advisory, as the courts have no power to coerce the executive.

The railroad companies entered into contracts for grading their roads, and a sufficient amount of grading was done to entitle them to about \$2,300,000 of the bonds, which were issued accordingly, and went into the hands of the contractors to pay for the work done. It, however, soon became apparent that no completed railroad would ever result from this scheme, even if the whole five millions of bonds were issued. What should have been known before was made clear when any of these state bonds were put on the market. The credit of the state was worthless, and the bonds were valueless. The people became as anxious to shake off the incubus of debt they had imposed upon their infant state as they had been to rush into it.

Governor Sibley, in his message, delivered to the second legislature in December, 1859, said, in speaking of this issue of bonds:

"I regret to be obliged to state that the measure has proved a failure, and has by no means accomplished what was hoped for it, either in providing means for the issue of a safe currency, or of aiding the companies in the completion of the roads."

At the election, held on Nov. 6, 1860, the constitution was again amended, by expunging from it the amendment of 1858 authorizing the issue of the state railroad bonds, and prohibiting any further issue of them. An amendment was also made to section 2 of Article IX. of the constitution at the same time, by providing that no law levying a tax, or making any other provisions for the payment of interest or principal of the bonds already issued, should take effect or be in force until it had been submitted to the people, and adopted by a majority of the electors.

It was very proper to prohibit the issuance of any more of the bonds, but the provision requiring a vote of the people before those already out could be paid was practically repudiation, and the state labored under that damaging stigma for over twenty years. Attempts were made to obtain the sanction of the people for the payment of these bonds, but they were defeated, until it became unpleasant to admit that one was a resident of Minnesota.

Whenever the name of Minnesota was heard on the floor of congress as an applicant for favors, or even for justice, it was met by the charge of repudiation. This was an era in our history very much to be regretted, but the state grew steadily in material wealth.

On March 2, 1881, the legislature passed an act, the general purpose of which was to adjust, with the consent of the holders, the outstanding bonds, at the rate of fifty cents on the dollar, and contained the curious provision that the supreme court should decide whether it must first be submitted to the people in order to be valid or not, and if the supreme court should not so decide, then an equal number of the judges of the district court should act. The supreme court judges declined to act, and the governor called upon the district court judges to assume the duty. Before any action was taken by the latter, the attorney general applied to the supreme court for a writ of prohibition to prevent them from taking any action. The case was most elaborately discussed, and the opinion of the supreme court was delivered by Chief Justice Gilfillan, which is most exhaustive and convincing. The court holds that the act of 1881 is void, by conferring upon the judiciary legislative power, and that the amendment to the constitution providing that no bonds should be paid unless the law authorizing such payment was first submitted to and adopted by the people was void, as being repugnant to the clause in the constitution of the United States, that no state shall pass any law impairing the obligation of contracts. With these impediments to a just settlement of this question removed, the state was at liberty to make such arrangements with its bond creditors as was satisfactory. John S. Pillsbury was governor at that time. He had always been in favor of paying the bonds, and removing the stain from the honor of the state, and finding his hands free, it did not take him long to arrange the whole matter satisfactorily, and to the approval of all the parties. The debt was paid by the issue of new bonds, at the rate of fifty per cent of the principal and interest of the outstanding ones and the surrender of the latter. This adjustment ended a transaction that was conceived and executed in folly, and was only prevented from eventuating in crime by the persistent efforts of our most honorable and thoughtful citizens throughout the state. The transaction has often been called by those who advocated repudiation, "An old Territorial fraud," but there was nothing in it but a bad bargain, made under the extraordinary pressure of financial difficulties.

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THE FIRST RAILROAD ACTUALLY BUILT.

The state was restored to all the lands and franchises of the various companies by means of foreclosure, and on March 8, 1861, passed an act to facilitate the construction of the Minnesota & Pacific Railroad, by which act the old railroad was rehabilitated, and required to construct and put in operation its road from St. Paul to St. Anthony on or before the first day of January, 1862. The company was required to deposit with the governor \$10,000 as an earnest of good faith. Work was soon commenced, and the first ten miles constructed as required. This was the first railroad ever built and operated in Minnesota. The first locomotive engine was brought up the river on a barge, and landed at the St. Paul end of the track in the latter part of October, 1861. This pioneer locomotive was called the "William Crooks," after an engineer of that name who was very active and instrumental in the building of the road. This first ten miles of road cost more energy and brain work than all the rest of the vast system that has succeeded it. It was the initial step in what is now known as the Great Northern Railway, a road that spans the continent from St. Paul to the Pacific, and reflects upon its enterprising builders all the credit due to the pioneer.

It was not long before the Northern Pacific Railroad Company was incorporated by act of congress, passed on July 2, 1864. This road was to extend from the head of Lake Superior to Puget Sound, on a line north of the forty-fifth degree of north latitude, with a branch via the valley of the Columbia river to Portland, Ore. The company had a grant of land of twenty alternate sections through the states. It was commenced shortly after its incorporation, but met with financial disaster, and was sold under foreclosure of a mortgage, and underwent many trials and tribulations, until it was finally completed on the eighth day of September, in the year 1883, and has been in successful operation ever since. As the Northern Pacific has its eastern terminus and general offices in St. Paul, it is essentially a Minnesota road. The same may be said of the Great Northern, although both are transcontinental roads.

From the small beginning of railroad construction in 1862 have grown thirty-seven distinct railroad corporations, operating in the state of Minnesota 6,062.69 miles of main tracks, according to the official reports of 1898, with quite a substantial addition in course of construction. These various lines cover and render accessible nearly every city, town and village in the state.

The method of taxation of railroad property adopted by the state is a very wise and just one. It imposes a tax of three per cent upon the gross earnings of the roads, which, in 1896, yielded the comfortable sum of \$1,037,194.40, the gross earnings of all amounting to \$36,918,741.71. This plan of taxation gives the state a direct interest in the prosperity of the roads, as its taxes are increased when business is good and the roads are relieved from oppressive taxation in time of business depression.

The grading which was done and for which the bonds of the state were issued was, as a general thing, utilized in the final construction of the roads.

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THE SPIRIT LAKE MASSACRE.

In 1842 the country north of Iowa and west of the Mississippi as far north as the Little Rapids, on the Minnesota river, was occupied by the M'day-wa-kon-ton and Wak-pe-ku-ta bands of Sioux. The Wak-pe-ku-ta band was at war with the Sacs and Foxes, and was under the leadership of two principal chiefs, named Wam-di-sapa (the "Black Eagle") and Ta-sa-gi. Wam-di-sapa and his band were a lawless, predatory set, whose depredations prolonged the war with the Sacs and Foxes, and finally separated him and his band from the Wak-pe-ku-tas. They moved west towards the Missouri, and occupied the valley of the Vermillion river, and so thorough was the separation that the band was not regarded as part of the Wak-pe-ku-ta when the latter, together with the M'day-wa-kon-tons, made their treaty with the government at Mendota in 1851.

By 1857 all that remained of Wam-di-sapa's straggling band was about ten or fifteen lodges under the chieftainship of Ink-pa-du-ta, or the "Scarlet Point," or the "Red End." They had planted near Spirit lake, which lies partly in Dickinson county, Iowa, and partly in Jackson county, Minnesota, prior to 1857, and ranged the country from there to the Missouri, and were considered a bad lot of vagabonds.

Between 1855 and 1857 a small settlement had sprung up about forty miles south of Spirit lake, on the In-yan-yan-ke or Rock river.

In the spring of 1856 Hon. William Freeborn of Red Wing (after whom the county of Freeborn in this state is called) had projected a settlement at Spirit lake, which, by the next spring, contained six or seven houses, with as many families.

About the same time another settlement was started some ten or fifteen miles north of Spirit lake, on the head waters of the Des Moines, and a town laid out which was called Springfield. In the spring of 1857 there were two stores and several families at this place.

These settlements were on the extreme frontier, and very much isolated. There was nothing to the west of them until you reached the Rocky Mountains, and the nearest settlements on the north and northeast were on the Minnesota and Watonwan rivers, while to the south lay the small settlement on the Rock river, about forty miles distant. All these settlements, although on ceded lands, were actually in the heart of the Indian country, and absolutely unprotected and defenseless.

In 1857 I was United States Indian agent for the Sioux of the Mississippi, but had lived on the frontier long enough before to have acquired a general knowledge of Ink-pa-du-ta's reputation and his whereabouts. I was stationed on the Redwood and Yellow Medicine rivers, near where they empty into the Minnesota, and about eighty miles from Spirit lake.

Early in March, 1857, Ink-pa-du-ta's band was hunting in the neighborhood of the settlement on the Rock river, and one of them was bitten by a dog belonging to a white man. The Indian killed the dog. The owner of the dog assaulted the Indian, and beat him severely. The white men then went in a body to the camp of the Indians and disarmed them. The arms were either returned to them or they obtained others, I have never ascertained which. They were probably given back to them on condition that they should leave, as they at once came north to Spirit lake, where they must have arrived about the 6th or 7th of March. They proceeded at once to massacre the settlers, and killed all the men they found there, together with some women, and carried into captivity four women, three of whom were married and one single. Their names were Mrs. Noble, Mrs. Marble, Mrs. Thatcher and Miss Gardner. They came north to the Springfield settlement, where they killed all the people they found. The total number killed at both places was forty-two.

I was the first person to receive notice of this affair. On the 9th of March a Mr. Morris Markham, who had been absent from the Spirit lake settlement for some time, returned, and found all the people dead or missing. Seeing signs of Indians, he took it for granted that they had perpetrated the outrage. He at once went to Springfield, and reported what he had seen. Some of the people fled, but others remained, and lost their lives in consequence. It has always been my opinion that, being in the habit of trading with these Indians occasionally, they did not believe they stood in any danger; and,

what is equally probable, they may not have believed the report. Everyone who has lived in an Indian country knows how frequently startling rumors are in circulation, and how often they prove unfounded.

The people of Springfield sent the news to me by two young men, who came on foot through the deep snow. The story was corroborated in a way that convinced me that it was true. They arrived on the 18th of March, completely worn out and snow-blind. I at once made a requisition on Colonel Alexander, commanding at Fort Ridgely, for troops. There were at the fort five or six companies of the Tenth United States Infantry, and the colonel promptly ordered Capt. Barnard E. Bee of Company "A" to proceed with his company to the scene of the trouble. The country between the fort and Spirit lake was uninhabited, and the distance from eighty to one hundred miles. I furnished two experienced guides from among my Sioux half-breeds. They took a pony and a light traineau, put on their snowshoes, and were ready to go anywhere. Not so with the soldiers, however. They were equipped in about the same manner as they would have been in campaigning in Florida, their only transportation being heavy wheeled army wagons, drawn by six mules. It soon became apparent that the outfit could not move straight to the objective point, and it became necessary to follow a trail down the Minnesota to Mankato and up the Watonwan in the direction of the lake, which was reached after one of the most arduous marches ever made by troops, on which for many miles the soldiers had to march ahead of the mules to break a road for them. The Indians, as we expected, were gone. A short pursuit was made, but the guides pronounced the camp fires of the Indians several days old, and it was abandoned. The dead were buried, and after a short stay, the soldiers returned to the fort.

When this affair became known throughout the territory it caused great consternation and apprehension, most of the settlers supposing it was the work of the Sioux nation. Many of the most exposed abandoned their homes temporarily. Their fears, however, were allayed by an explanation which I published in the newspapers.

I at once began to devise plans for the rescue of the white women. I knew that any hostile demonstration would result in their murder. While thinking the matter out an event occurred that opened the way to a solution. A party of my Indians had been hunting on the Big Sioux river, and having learned

that Ink-pa-du-ta was encamped at Lake Chan-pta-ya-tan-ka, and that he had some white women prisoners, two young brothers visited the camp and succeeded in purchasing Mrs. Marble, and brought her into the Yellow Medicine agency, and delivered her to the missionaries, who turned her over to me. I received her on the 21st of March, and learned that two of the other captives were still alive. Of course, my first object was to rescue the survivors, and to encourage the Indians to make the attempt, I paid the brothers who had brought in Mrs. Marble \$500 each. I could raise only \$500 at the agency in money, and to make up the deficiency I resorted to a method, then novel, but which has since become quite general. I issued a bond, which, although done without authority, met with a better fate than many that followed it,—it was paid at maturity.

As it was the first bond ever issued in what is now Minnesota, the two Dakotas, Montana, and, I may add, the whole Northwest; it may be interesting to give it in full:

"I, STEPHEN R. RIGGS, Missionary among the Sioux Indians, and I, CHARLES E. FLANDRAU, United States Indian agent for the Sioux, being satisfied that Mak-piya-ka-ho-ton and Si-ha-ho-ta, two Sioux Indians, have performed a valuable service to the Territory of Minnesota and humanity, by rescuing from captivity Mrs. Margaret Ann Marble, and delivering her to the Sioux agent, and being further satisfied that the rescue of the two remaining white women who are now in captivity among Ink-pa-du-ta's band of Indians depends very much on the liberality shown towards the said Indians who have rescued Mrs. Marble, and having full confidence in the humanity and liberality of the Territory of Minnesota, through its government and citizens, have this day paid to said two above named Indians, the sum of five hundred dollars in money, and do hereby pledge to said two Indians that the further sum of five hundred dollars will be paid to them by the Territory of Minnesota or its citizens within three months from date hereof.

"Dated, May 22, 1857, at Pa-ju-ta-zi-zi, M. T.

"STEPHEN R. RIGGS,

"Missionary, A. B. C. F. M.

"CHAS. E. FLANDRAU,
"U. S. Indian Agent for Sioux."

I immediately called for volunteers to rescue the remaining two women, and soon had my choice. I selected Paul Ma-za-ku-ta-ma-ni, the president of the Hazelwood Republic, An-pe-tu-tok-cha, or John Otherday, and Chetan-ma-za, or the Iron Hawk. I gave them a large outfit of horses, wagons, calicos, trinkets of all kinds, and a general assortment of things that tempt the savage. They started on the twenty-third day of May, from the Yellow Medicine agency, on their important and dangerous mission. I did not expect them to return before the middle of June, and immediately commenced preparations to punish the marauders. I went to the fort, and together with Colonel Alexander, we laid a plan to attack Ink-pa-du-ta's camp, with the entire garrison, and utterly annihilate them, which we would undoubtedly have accomplished had not an unexpected event frustrated our plans. Of course, we could not move on the Indians until my expedition had returned with the captives, as that would have been certain death to them; but just about the time we were anxiously expecting them, a couple of steamboats arrived at the fort with peremptory orders for the whole garrison to embark for Utah to join Gen. Albert Sydney Johnson's expedition against the Mormons, and that was the last I saw of the Tenth for ten years.

My expedition found that Mrs. Thatcher and Mrs. Noble had been killed, but succeeded in bringing in Miss Gardner, who was forwarded to me at St. Paul, and by me formally delivered to Governor Medary on June 23, 1857. She was afterwards married, and is now a widow, Mrs. Abbie Gardner Sharpe, and resides in the house from which she was abducted by the savages, forty-three years ago. I paid the Indians who rescued her \$400 each for their services. The territory made an appropriation on the fifteenth day of May, 1857, of \$10,000 to rescue the captives, but as there were no telegraphs or other speedy means of communication, the work was all done before the news of the appropriation reached the border. My outlay, however, was all refunded from this appropriation. I afterwards succeeded, with a squad of soldiers and citizens, in killing one of Ink-pa-du-ta's sons, who had taken an active part in the massacre, and that ended the first serious Indian trouble that Minnesota was afflicted with.

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THE CONSTITUTIONAL CONVENTION.

By the end of the year 1856 the Territory of Minnesota had attained such growth and wealth that the question of becoming a state within the Union began to attract attention. It was urged by the government at Washington that we were amply capable of taking care of ourselves, and sufficiently wealthy to pay our expenses, and statehood was pressed upon us from that quarter. There was another potent influence at work at home. We had several prominent gentlemen who were convinced that their services were needed in the senate of the United States, and that their presence there would strengthen and adorn that body, and as no positive opposition was developed, the congress of the United States, on the 26th of February, 1857, passed an act, authorizing the territory to form a state government. It prescribed the same boundaries for the state as we now have, although there had been a large number of people who had advocated an east and west division of the territory, on a line a little north of the forty-fifth parallel of north latitude. It provided for a convention to frame the constitution of the new state, which was to be composed of two delegates for each member of the territorial legislature, to be elected in the representative districts on the first Monday in June, 1857. The convention was to be held at the capital of the territory, on the second Monday of July following. It submitted to the convention five propositions to be answered, which, if accepted, were to become obligatory on the United States and the State of Minnesota. They were in substance as follows:

1. Whether sections 16 and 36 in each township should be granted to the state for the use of schools.
2. Whether seventy-two sections of land should be set aside for the use and support of a state university.
3. Whether ten sections should be granted to the state in aid of public buildings.
4. Whether all salt springs in the state, not exceeding twelve, with six sections of land to each, should be granted to the state.

5. Whether five per centum of the net proceeds of the sales of all the public lands lying within the state, which should be sold after its admission, should be paid to the state for the purpose of roads, and internal improvements.

All the five propositions, if accepted, were to be on the condition, to be expressed in the constitution or an irrevocable ordinance, that the state should never interfere with the primary disposal of the soil within the state by the United States, or with any regulations congress should make for securing title to said lands in bona fide purchases thereof, and that no tax should be imposed on lands belonging to the United States, and that non-resident proprietors should never be taxed higher than residents.

These propositions were all accepted, ratified and confirmed by section 3 of Article II. of the constitution.

The election for delegates took place as provided for, and on the day set for the convention to meet, nearly all of them had assembled at the capital. Great anxiety was manifested by both the Democrats and the Republicans to capture the organization of the convention. Neither party had a majority of all the members present, but there were a number of contested seats on both sides, of which both contestant and contestee were present, and these duplicates being counted, were sufficient to give each party an apparent majority. It was obvious that a determined fight for the organization was imminent. The convention was to meet in the house of representatives, and to gain an advantage, the Republicans took possession of the hall the night before the opening day, so as to be the first on hand in the morning. The Democrats, on learning of this move, held a caucus to decide upon a plan of action. Precedents and authorities were looked up, and two fundamental points decided upon. It was discovered that the secretary of the territory was the proper party to call the convention to order, and as Mr. Charles L. Chase was the secretary, and also a Democratic delegate, he was chosen to make the call. It was further found that when no hour was designated for the meeting of a parliamentary body, that noon of the day appointed was the time. Being armed with these points, the Democrats decided to wait until noon, and then march into the hall in a body with Delegate Chase at their head, and as soon as he reached the chair he was to spring into it and call the convention to order. General Gorman was immediately to move an adjournment until the next day at 12 o'clock M., which motion was to be

put by the chair, the Democrats feeling sure that the Republicans being taken by surprise would vote no, while the Democrats would all vote aye, and thus commit more than a majority of the whole to the organization under Mr. Chase. On reaching the chair, Mr. Chase immediately sprang into it, and called the convention to order. General Gorman moved the adjournment, which was put by the chair. All the Democrats loudly voted in the affirmative and the Republicans in the negative. The motion was declared carried, and the Democrats solemnly marched out of the hall.

The above is the Democratic version of the event. The Republicans, however, claim that John W. North reached the chair first, and called the convention to order, and that as the Republicans had a majority of the members present, the organization made under his call was the only regular one. Nothing can be determined as to which is the true story from the records kept of the two bodies, because they are each made up to show strict regularity, and as it is utterly immaterial in any substantial point of view, I will not venture any opinion, although I was one of the actors in the drama,—or farce,—as the reader may see fit to regard it.

The Republicans remained in the hall, and formed a constitution to suit themselves, sitting until August 29th, just forty-seven days. The Democrats on the next day after their adjournment, at 12 o'clock M., went in a body to the door of the house of representatives, where they were met by Secretary and Delegate Chase, who said to them: "Gentlemen, the hall to which the delegates adjourned yesterday is now occupied by a meeting of citizens of the territory, who refuse to give possession to the constitutional convention."

General Gorman then said: "I move the convention adjourn to the council chamber." The motion was carried, and the delegates accordingly repaired to the council chamber, in the west wing of the capitol, where Mr. Chase called the convention to order. Each branch of the convention elected its officers. The Republicans chose St. A. D. Balcombe for their president, and the Democrats selected Hon. Henry H. Sibley. Both bodies worked diligently on a constitution, and each succeeded in making one so much like the other that, after sober reflection, it was decided that the state could be admitted under either, and if both were sent to congress that body would reject them for irregularity. So towards the end of the long session a

compromise was arrived at, by the formation of a joint committee from each convention, who were to evolve a constitution out of the two for submission to the people; the result of which, after many sessions, and some fisticuffs, was the instrument under which the state was finally admitted.

A very curious complication resulted from two provisions in the constitution. In section 5 of the schedule it was provided that "All territorial officers, civil and military, now holding their offices under the authority of the United States or of the Territory of Minnesota shall continue to hold and exercise their respective offices until they shall be superseded by the authority of the state," and section 6 provided that "The first session of the legislature of the State of Minnesota shall commence on the first Wednesday of December next," etc.

These provisions were made under the supposition that the state would be admitted as soon as the constitution would be laid before congress, which it was presumed would be long before the date fixed for the holding of the first state legislature; but such did not turn out to be the case. The election was held as provided for on the thirteenth day of October, 1857, for the adoption or rejection of the constitution, and for the election of all the state officers, members of congress and of the legislature. The constitution was adopted by a vote of 36,240 for, and 700 against, and the whole Democratic state ticket was also chosen; and to be sure not to lose full representation in congress, three members of the house of representatives were also chosen, who were all Democrats.

The constitution was duly presented to congress, and admission for the state demanded. Much to the disappointment of our people, all kinds and characters of objections were raised to our admission; one of which I remember was, that as the term of office of the state senators was fixed at two years, and as there was nothing said about the term of the members of the house they were elected for life, and consequently the government created was not republican. Alexander Stevens of Georgia seriously combatted this position, in a learned constitutional argument, in which he proved that a state had absolute control of the subject, and could fix the term of all its officers for life if it so preferred, and that congress had no right to interfere. Many other equally frivolous points were made against

our admission, which were debated until the eleventh day of May, 1858, when the federal doors were opened and Minnesota became a state. The act admitting the state cut down the congressional representation to two. The three gentlemen who had been elected to these positions were compelled to determine who would remain and who should surrender. History has not recorded how the decision was made, whether by cutting cards, tossing a coin, or in some other way, but the result was that George L. Becker was counted out, and W. W. Phelps and James M. Cavanaugh took the prizes.

It was always thought at home that the long delay in our admission was not from any disinclination to let us in, but because the house was quite evenly divided politically between the Democrats and the Republicans, and there being a contested seat from Ohio, between Mr. Valandingham and Mr. Lew Campbell, it was feared by the Republicans that, if Minnesota came in with three Democratic members, it might turn the scale in favor of Valandingham.

This delay created a very perplexing condition of things. The state legislature elected under the constitution met on the first Wednesday of December, before the constitution was recognized by congress, and while the territorial government was in full force. It passed a book full of laws, all of which were state laws, approved by a territorial governor. Perhaps in some countries it would have been difficult to harmonize such irregularities, but our courts were quite up to the emergency, and straightened them all out the first time the question was raised, and the laws so passed have served their purpose up to the present time.

The first governor of the state was Henry H. Sibley, a Democrat. He served his term of two years, and the state has never elected a Democrat to that office since, unless the choice of Hon. John Lind, in 1898, may be so classified.

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ATTEMPT TO REMOVE THE CAPITAL.

At the eighth session of the legislative assembly of the territory, which convened on Jan. 7, 1857, a bill was introduced, the purpose of which was the removal of the seat of government from St. Paul to St. Peter, a small village which had recently come into existence on the Minnesota river about one hundred miles above its mouth. There could be no reason for such action except interested speculation, as the capitol was already built in St. Paul, and it was much more accessible, and in every way more convenient than it would be at St. Peter; but the movement had sufficient personal and political force behind it to insure its success, and an act was passed making such removal. But it was destined to meet with unexpected obstacles before it became a law. When it passed the house it was sent to the council, where it only received one majority, eight voting for and seven against it. It was, on the 27th of February, sent to the enrolling committee for final enrollment. It happened that Councillor Joseph Rolette, from Pembina, was chairman of this committee, and a great friend of St. Paul. Mr. Rolette decided he would veto the bill in a way not known to parliamentary law, so he put it in his pocket and disappeared. On the 28th, not being in his seat, and the bill being missing, a councillor offered a resolution that a copy of it be obtained from Mr. Wales, the second in order on the committee. A call of the council was then ordered and Mr. Rolette not being in his seat, the sergeant-at-arms was sent out to bring him in, but not being able to find him, he so reported. A motion was then made to dispense with the call, but by the rules it required a two-third vote of fifteen members, and in the absence of Mr. Rolette only fourteen were present. It takes as many to make two-thirds of fourteen as it does to make two-thirds of fifteen, and the bill had only nine friends. During the pendency of a call no business could be transacted, and a serious dilemma confronted the capital removers; but, nothing daunted, Mr. Balcombe made a long argument to prove that nine was two-thirds of fourteen. Mr. Brisbin, who was president of the council and a graduate of Yale, pronounced the motion lost, saying to the mover, who was also a graduate of Yale, "Mr. Balcombe, we never figured that way at Yale." This situation produced a deadlock, and

no business could be transacted. The session terminated on the fifth day of March by its own limitation. The sergeant-at-arms made daily reports concerning the whereabouts of the absentee, sometimes locating him on a dog-train, rapidly moving towards Pembina, sometimes giving a rumor of his assassination, but never producing him. Matters remained in this condition until the end of the term, and the bill was lost.

It was disclosed afterwards that Rolette had carefully deposited the bill in the vault of Truman M. Smith's bank, and had passed the time in the upper story of the Fuller House, where his friends made him very comfortable. Some ineffectual efforts have been made since to remove the capital to Minneapolis and elsewhere, but the treaty, made by the pioneers in 1849, locating it at St. Paul, is still in force.

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CENSUS.

One of the provisions of the enabling act was that in the event of the constitutional convention deciding in favor of the immediate admission of the proposed state into the Union, a census should be taken with a view of ascertaining the number of representatives in congress to which the state would be entitled. This was accordingly done in September, 1857, and the population was found to be 150,037.

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GRASSHOPPERS.

The first visitation of grasshoppers came in 1857, and did considerable damage to the crops in Stearns and other counties. Relief was asked from St. Paul for the suffering poor, and notwithstanding the people of the capital city were in the depths of poverty, from the financial panic produced by over-speculation, they responded liberally. The grasshoppers of this year did not deposit their eggs, but disappeared after eating up everything that came within their reach. The state was not troubled with them again until the year 1873, when they came in large flights, and settled down in the western part of the state. They did much damage to the crops, and deposited their eggs in the soil, where they hatched out in the spring, and greatly increased their number. They made sad havoc with the crops of 1874, and occupied a larger part of the state than in the previous year. They again deposited their eggs, and appeared in the spring of 1875 in increased numbers. This was continued in 1876, when the situation became so alarming that Gov. John S. Pillsbury issued a proclamation, addressed to the states and territories which had suffered most from the insects, to meet him by delegates at Omaha, to concert measures for united protection. A convention was held, and Governor Pillsbury was made its president. The subject was thoroughly discussed, and a memorial to congress was prepared and adopted, asking for scientific investigation of the subject, and a suggestion of preventive measures.

Many appeals for relief came from the afflicted regions, and much aid was extended. Governor Pillsbury was a big-hearted, sympathetic man, and fearing the sufferers might not be well cared for, he travelled among them personally, incognito, and dispensed large sums from his private funds.

In 1877 the governor, in his message to the legislature, treated the subject exhaustively, and appropriations were made to relieve the settlers in the devastated regions. In the early spring of 1877, the religious bodies and people of the state asked the governor to issue a proclamation appointing a day of fasting and prayer, asking Divine protection, and exhorting the people to greater humility and a new consecration in the service of a

merciful Father. The governor, being of Puritan origin, and a faithful believer in Divine agencies in this world's affairs, issued an eloquent appeal to the people to observe a day named as one of fasting and prayer for deliverance from the grasshoppers. The suggestion was quite generally approved, but the proclamation naturally excited much criticism and some ridicule, but, curious as it may seem, the grasshoppers, even before the day appointed for prayer arrived, began to disappear, and in a short time not one remained to show they had ever been in the state. They left in a body; no one seemed to know exactly when they went, and no one knew anything about where they went, as they were never heard of again on any part of the continent. The only news we ever had from them came from ships crossing the Atlantic westward bound, which reported having passed through large areas of floating insects. They must have met a western gale when well up in air, and have been blown out into the sea and destroyed. The people of Minnesota did not expend much trouble or time to find out what had become of them.

The crop of 1877 was abundant, and particularly so in the region which had been most seriously blighted by the pests.

Before the final proclamation of Governor Pillsbury every source of ingenuity had been exhausted in devising plans for the destruction of the grasshoppers. Ditches were dug around the fields of grain, and ropes drawn over the grain to drive the hoppers into them, with the purpose of covering them with earth. Instruments called "hopperdozers" were invented, which had receptacles filled with hot tar, and were driven over the ground to catch them as flies are caught with tanglefoot paper, and many millions of them were destroyed in this way, but it was about as effectual as fighting a Northwestern blizzard with a lady's fan, and they were all abandoned as useless and powerless to cope with the scourge. Nothing proved effectual but the governor's proclamation, and all the old settlers called it "Pillsbury's Best," which was the name of the celebrated brand of flour made at the governor's mills.

Prof. N. H. Winchell, the state geologist, in his geological and natural history report, presents a map which, by red lines, shows the encroachments of the grasshoppers for the years 1873-76. To gain an idea of the extent of the country covered by them up to 1877, draw a line on a state map from

the Red River of the North about six miles north of Moorhead, in Clay county, in a southeasterly direction, through Becker, Wadena, Todd and Morrison counties, crossing the Mississippi river near the northern line of Benton county, continuing down the east side of the Mississippi, through Benton, Sherburne and Anoka counties, there recrossing the Mississippi, and proceeding south, on the west side of the river, to the south line of the state in Mower county. All the country lying south and west of this line was for several years devastated by the grasshoppers to the extent that no crops could be raised. It became for a time a question whether the people or the insects would conquer the state.

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MILITIA.

During the territorial times there were a few volunteer militia companies in St. Paul, conspicuously the "Pioneer Guard," an infantry company, which, from its excellent organization and discipline, became a source of supply of officers when regiments were being raised for the Civil War. To have been a member of that company was worth at least a captain's commission in the volunteer army, and many officers of much higher rank were chosen from its members.

There was also a company of cavalry at St. Paul, commanded by Capt. James Starkey, called the "St. Paul Light Cavalry"; also, the "Shields Guards," commanded by Capt. John O'Gorman. There may have been others, but I do not remember them. The services of the pioneer guards and the cavalry company were called into requisition on two occasions, once in 1857 and again in 1859. During the summer of 1857 the settlers near Cambridge and Sunrise complained that the Chippewas were very troublesome. Governor Medary ordered Captain Starkey to take part of his company and arrest the Indians who were committing depredations, and send the remainder of them to their reservation. The captain took twenty men, and, on Aug. 24, 1857, started for the scene of the trouble. On the 28th he overtook some six or seven Indians, and in their attempt to escape a collision occurred, in which a young man, a member of Starkey's company, named Frank Donnelly, was instantly killed. The troops succeeded in killing one of the Indians, wounding another, and capturing four more, when they returned to St. Paul, bringing with them the dead, wounded, and prisoners. The dead were buried, the wounded healed, and the prisoners discharged by Judge Nelson on a writ of habeas corpus.

The general sentiment of the community was that the expedition was unnecessary, and should never have been made. This affair was facetiously called the "Cornstalk War."

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THE WRIGHT COUNTRY WAR.

In the fall of 1858 a man named Wallace was killed in Wright county. Oscar F. Jackson was tried for the murder in the spring of 1859, and acquitted by a jury. Public sentiment was against him, and he was warned to leave the county. He did not heed the admonition, and on April 25th a mob assembled, and hung Jackson to the gable end of Wallace's cabin. Governor Sibley offered a reward for the conviction of any of the lynchers. Shortly afterwards one, Emery Moore, was arrested as being implicated in the affair. He was taken to Wright county for trial, and at once rescued by a mob. The governor sent three companies of the militia to Monticello to arrest the offenders and preserve order, the Pioneer Guards being among them. This force, aided by a few special officers of the law, arrested eleven of the lynchers and rescuers, and turned them over to the civil authorities, and on the 11th of August, 1859, having completed their mission, returned to St. Paul. As there was no war or bloodshed of any kind connected with this expedition, it was called the "Wright County War."

Gov. Sibley, having somewhat of a military tendency, appointed as his adjutant general, Alexander C. Jones, who was a graduate of the Virginia Military Academy, and captain of the Pioneer Guards. Under this administration a very complete militia bill was passed, on the twelfth day of August, 1858. Minnesota from that time on had a very efficient militia system, until the establishment of the national guard, which made some changes in its general character, supposed to be for the better.

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THE CIVIL WAR.

Nothing of any special importance occurred during the years 1859 and 1860 in Minnesota. The state continued to grow in population and wealth at an extraordinary pace, but in a quiet and unobtrusive way. The politics of the nation had been for some time much disturbed between the North and the South, on the question of slavery, and threats of secession from the Union made by the slave-holding states. The election of Abraham Lincoln to the presidency of the United States, in 1860, precipitated the impending revolution, and on the fourteenth day of April, 1861, Fort Sumter, in the harbor of Charleston, South Carolina, was fired upon by the revolutionists, which meant war between the two sections of the country. I will only relate such events in connection with the Civil War which followed as are especially connected with Minnesota.

When the news of the firing upon Fort Sumter reached Washington, Alexander Ramsey, then governor of Minnesota, was in that city. He immediately called on the president of the United States, and tendered the services of the people of Minnesota in defense of the republic, thus giving to the state the enviable position of being the first to come to the front. The offer of a regiment was accepted, and the governor sent a dispatch to Lieut. Gov. Ignatius Donnelly, who, on the 16th of April, issued a proclamation, giving notice that volunteers would be received at St. Paul for one regiment of infantry composed of ten companies, each of sixty-four privates, one captain, two lieutenants, four sergeants, four corporals and one bugler, and that the volunteer companies already organized, upon complying with these requirements as to the numbers and officers, would be entitled to be first received.

Immediately following this announcement, which, of course, meant war, great enthusiasm was manifested all over the state. Public meetings were held in all the cities; almost every man capable of doing soldier duty wanted to go, and those who were unable, for any reason, to go in person, subscribed funds for the support of the families of those who volunteered. The only difficulty the authorities met with was an excess of men over

those needed. There were a good many Southerners residing in the state, who were naturally controlled in their sentiments by their geographical affinities, but they behaved very well, and caused no trouble. They either entered the service of the South or held their peace. I can recall but one instance of a Northern man who had breathed the free air of Minnesota going over to the South, and the atrocity of his case was aggravated by the fact that he was an officer in the United States army. I speak of Major Pemberton, who at the breaking out of the war was stationed at Fort Ridgely in this state, in command of a battery of artillery. He was ordered to Washington to aid in the defense of the capital, but before reaching his destination resigned his commission, and tendered his sword to the enemy. I think he was a citizen of Pennsylvania. It was he who surrendered Vicksburg to the United States army on July 4, 1863.

The first company raised under the call of the state was made up of young men of St. Paul, and commanded by William H. Acker, who had been adjutant general of the state. He was wounded at the first battle of Bull Run, and killed at the battle of Shiloh, as captain of a company of the Sixteenth Regular Infantry. Other companies quickly followed in tendering their services.

On the last Monday in April a camp for the First Regiment was opened at Fort Snelling, and Capt. Anderson D. Nelson of the United States army mustered the regiment into the service. On the 27th of April John B. Sanborn, then adjutant general of the state, in behalf of the governor, issued the following order:

"The commander-in-chief expresses his gratification at the prompt response to the call of the president of the United States upon the militia of Minnesota, and his regret that, under the present requisition for only ten companies, it is not possible to accept the services of all the companies offered."

The order then enumerates the ten companies which had been accepted, and instructs them to report at Fort Snelling, and recommends that the companies not accepted maintain their organization and perfect their drill, and that patriotic citizens throughout the state continue to enroll themselves, and be ready for any emergency.

The governor, on May 3d, sent a telegram to the president, offering a second regiment.

The magnitude of the rebellion becoming rapidly manifest at Washington, the secretary of war, Mr. Cameron, on the 7th of May, sent the following telegram to Governor Ramsey:

"It is decidedly preferable that all the regiments from your state not already actually sent forward should be mustered into the service for three years, or during the war. If any persons belonging to the regiments already mustered for three months, but not yet actually sent forward, should be unwilling to serve for three years, or during the war, could not their places be filled by others willing to serve?"

A great deal of correspondence passed between Lieutenant Governor Donnelly at St. Paul and Governor Ramsey at Washington over the matter, which resulted in the First Minnesota Regiment being mustered into the service of the United States for three years, or during the war, on the eleventh day of May, 1861. Willis A. Gorman, second governor of the territory, was appointed colonel of the First. The colonel was a veteran of the Mexican War. The regiment when first mustered in was without uniform, except that some of the companies had red shirts and some blue, but there was no regularity whatever. This was of small consequence, as the material of the regiment was probably the best ever collected into one body. It included companies of lumbermen, accustomed to camp life, and inured to hardships; men of splendid physique, experts with the axe; men who could make a road through a forest or swamp, build a bridge over a stream, run a steamboat, repair a railroad, or perform any of the duties that are thrust upon an army on the march and in the field. There are no men in the world so well equipped naturally and without special preparation for the life of a soldier as the American of the West. He is perfectly familiar with the use of firearms. From his varied experience, he possesses more than an average intelligence. His courage goes without saying, and, to sum him up, he is the most all-around handy man on earth.

On May 25th the ladies of St. Paul presented the regiment with a handsome set of silk colors. The presentation was made at the state capitol by Mrs. Ramsey, the wife of the governor. The speech was made on behalf of the

ladies by Captain Stansbury of the United States army, and responded to by Colonel Gorman in a manner fitting the occasion.

On the 21st of June the regiment, having been ordered to Washington, embarked on the steamers, Northern Belle and War Eagle, at Fort Snelling, for their journey. Before leaving the fort the chaplain, Rev. Edward D. Neill, delivered a most impressive address, concluding as follows:

"Soldiers: If you would be obedient to God, you must honor him who has been ordained to lead you forth. Your colonel's will must be your will. If, like the Roman centurion, he says 'Go,' you must go. If he says 'Come,' come you must. God grant you all the Hebrew's enduring faith, and you will be sure to have the Hebrew's valor. Now, with the Hebrew's benediction, I close: 'The Lord bless you and keep you. The Lord make his face shine upon you, and be gracious to you. The Lord lift up his countenance upon you, and given you peace.' Amen."

The peace the good chaplain asked the Lord to give to the regiment was that peace which flows from duty well performed and a conscience free from self-censure. Judging from the excellent record made by that regiment, it enjoyed this kind of peace to the fullest extent, but it had as little of the other kind of peace as any regiment in the service.

The regiment reached Washington early in July, and went into camp near Alexandria, in Virginia. It took part in the first battle of the war, at Bull Run, and from there to the end of the war was engaged in many battles, always with credit to itself and honor to its state. It was conspicuously brave and useful at the great conflict at Gettysburg, and the service it there performed made its fame world-wide. In what I say of the first regiment, I must not be understood to lessen the fame of the other ten regiments and other organizations that Minnesota sent to the war, all of which, with the exception of the Third, made for themselves records of gallantry and soldierly conduct, which Minnesota will ever hold in the highest esteem. But the First, probably because it was the first, and certainly because of its superb career, will always be the pet and especial pride of the state.

The misfortunes of the Third regiment will be spoken of separately.

The first conception of the rebellion by the authorities in Washington was that it could be suppressed in a short time; but they had left out of the estimate the fact that they had to deal with Americans, who can always be counted on for a stubborn fight when they decide to have one. And as the magnitude of the war impressed itself upon the government, continuous calls for troops were made, to all of which Minnesota responded promptly, until she had in the field the following military organizations: Eleven full regiments of infantry; the first and second companies of sharpshooters; one regiment of mounted rangers, recruited for the Indian war; the Second Regiment of cavalry; Hatche's Independent Battalion of Cavalry for Indian war; Brackett's battalion of cavalry; one regiment of heavy artillery; and the First, Second and Third Batteries of Light Artillery.

There were embraced in these twenty-one military organizations, 22,970 officers and men, who were withdrawn from the forces of civil industry, and remained away for several years. Yet notwithstanding this abnormal drain on the industrial resources of so young a state, to which must be added the exhaustive effects of the Indian war which broke out within her borders in 1862, and lasted several years, Minnesota continued to grow in population and wealth throughout it all, and came out of these war afflictions strengthened and invigorated.

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THE THIRD REGIMENT.

Recruiting for the Third Regiment commenced early in the fall of 1861, and was completed by the 15th of November, on which day it consisted of 901 men all told, including officers. On the 17th of November, 1861, it embarked at Fort Snelling for its destination in the South, on the steamboats Northern Belle, City Belle, and Frank Steele. It landed at St. Paul and marched through the city, exciting the admiration of the people, it being an unusually fine aggregation of men. It embarked on the same day, and departed for the South, carrying with it the good wishes and hopes of every citizen of the state. It was then commanded by Lieutenant Colonel Smith, and afterwards by Col. Henry C. Lester, who was promoted to its command from a captaincy in the First, and joined his regiment at Shepardsville. Colonel Lester was a man of prepossessing appearance, handsome, well informed, modest and attractive. He soon brought his regiment up to a high standard of drill and discipline, and especially devoted himself to its appearance for cleanliness and deportment, so that his regiment became remarkable in these particulars. By the twelfth day of July, the Third became brigaded with the Ninth Michigan, the Eighth and Twenty-third Kentucky, forming the Twenty-third Brigade, under Col. W. W. Duffield of the Ninth Michigan, and was stationed at Murfreesboro, in Tennessee. For two months Colonel Duffield had been absent, and the brigade and other forces at Murfreesboro had been commanded by Colonel Lester. A day or two before the 13th Colonel Duffield had returned and resumed command of the brigade, and Lester was again in direct command of his regiment. In describing the situation at Murfreesboro on the thirteenth day of July, 1861, Gen. C. C. Andrews, the author of the "History of the Third Regiment," in the state war book, at page 152, says:

"The force of enlisted men fit for duty at Murfreesboro was fully one thousand. Forest reported that the whole number of enlisted men captured, taken to McMinnville and paroled was between 1,100 and 1,200. Our forces, however, were separated. There were five companies, 250 strong, of the Ninth Michigan in camp three-fourths of a mile east of the town, on the

Liberty turnpike (another company of the Ninth Michigan, forty-two strong, occupied the court-house as a provost guard). Near the camp of the Ninth Michigan were eighty men of the Seventh Pennsylvania Cavalry, under Major Seibert; also, eighty-one men of the Fourth Kentucky Cavalry, under Captain Chilson. More than a mile distant, on the other side of the town, on undulating, rocky and shaded ground, near Stone river, were nine companies of the Third Minnesota, five hundred strong. Near it, also, were two sections (four guns) of Hewitt's Kentucky Field Artillery, with sixty-four men for duty. Forty-five men of Company C, Third Regiment, under Lieutenant Grummons, had gone the afternoon of July 12th, as the guard on a supply train, to Shelbyville, and had not returned the thirteenth."

Murfreesboro was on the Nashville & Chattanooga railroad. It was a well built town, around a square, in the center of which was the court-house. There were in the town valuable military stores.

On July 13th, at daybreak, news arrived at Murfreesboro that the rebel general, Forest, was about to make an attack on the place, which news was verified by General Forest capturing the picket guard and dashing into the town soon after the news arrived, with a mounted force of 1,500 men. A part of this force charged upon the camp of the Seventh Pennsylvania, then reformed, and charged upon the Ninth Michigan Infantry, which made a gallant defense and repulsed the enemy's repeated charges, suffering a loss of eleven killed and eighty-nine wounded. The enemy suffered considerable loss, including a colonel killed, up to about noon, when the Ninth Michigan surrendered. General Crittenden was captured in his quarters, about eight o'clock. Almost simultaneous with the first attack, a part of Forest's force moved toward the Third Minnesota, which had sprung up at the first sound of the firing, formed into line, Colonel Lester in command, and with two guns of Hewitt's Battery on each flank, marched in the direction of Murfreesboro. It had not gone more than an eighth of a mile when about three hundred of the enemy appeared approaching on a gallop. They were moving in some disorder, and appeared to fall back when the Third Regiment came in sight. The latter was at once brought forward into line and the guns of Hewitt's Battery opened fire. The enemy retired out of sight, and the Third advanced to a commanding position in the edge of some timber. A continuous fire was kept up by the guns of Hewitt's Battery, with

considerable effect upon the enemy. Up to this time the only ground of discontent that had ever existed in this regiment was that it had never had an opportunity to fight. Probably no regiment was ever more eager to fight in battle than this one. Yet while it was there in line of battle from daylight until about noon, impatiently waiting for the approach of the enemy, or what was better, to be led against him, he was assailing an inferior force of our troops, and destroying valuable commissary and quartermaster's stores in town, which our troops were, of course, in honor bound to protect. The regiment was kept standing or lying motionless hour after hour, even while plainly seeing the smoke rising from the burning depot of the United States supplies. While this was going on, Colonel Lester sat upon his horse, and different officers went to him and entreated him to march the regiment into town. The only response he gave was, "We will see." The enemy made several ineffectual attempts to charge the line held by the Third, but were driven off with loss, which only increased the ardor of the men to get at them. The enemy attacked the camp of the Third, which was guarded by only a few convalescents, teamsters and cooks, and met with a stubborn resistance, but finally succeeded in taking it, and burning the tents and property of the officers, after which they hastily abandoned it. The firing at the camp was distinctly heard by the Third Regiment, and Captain Hoyt of Company B asked permission to take his company to protect the camp, but was refused. While the regiment was in this waiting position, having at least five hundred effective men, plenty of ammunition, and burning with anxiety to get at the enemy, a white flag appeared over the crest of a hill which proved to be a request for Colonel Lester to go into Murfreesboro for a consultation with Colonel Duffield. General Forest carefully displayed his men along the path by which Colonel Lester was to go in a manner so as to impress the colonel with the idea that he had a much larger force than really existed, and in his demand for surrender he stated that, if not acceded to, the whole command would be put to the sword, as he could not control his men. This was an old trick of Forest's, which he played successfully on other occasions. From what is known, he had not over one thousand men with which he could have engaged the Third that day.

When Colonel Lester returned to his regiment his mind was fully made up to surrender. A consultation was held with the officers of the regiment, and a vote taken on the question, which resulted in a majority being in favor of

fighting and against surrender, but the matter was reopened and reargued by the colonel, and after some of the officers who opposed surrender had left the council and gone to their companies, another vote was taken, which resulted in favor of the surrender. The officers who, on this final vote, were against surrender, were Lieutenant Colonel Griggs and Captains Andrews and Hoyt. Those who voted in favor of surrender were Captains Webster, Gurnee, Preston, Clay and Mills of the Third Regiment, and Captain Hewitt of the Kentucky Battery.

On December 1st an order was made, dismissing from the service the five captains of the Third who voted to surrender the regiment, which order was subsequently revoked as to Captain Webster.

The conduct of Colonel Lester on this occasion has been accounted for on various theories. Before this he had been immensely popular with his regiment, and also at home in Minnesota, and his prospects were most brilliant. It is hard to believe that he was actuated by cowardice, and harder to conceive him guilty of disloyalty to his country. An explanation of his actions which obtained circulation in Minnesota was, that he had fallen in love with a rebel woman, who exercised such influence and control over him as to completely hypnotize his will. I have always been a convert to that theory, knowing the man as well as I did, and have settled the question as the French would, by saying "*Cherchez la femme.*"

General Buell characterized the surrender in general orders as one of the most disgraceful examples in the history of war.

What a magnificent opportunity was presented to some officer of that regiment to immortalize himself by shooting the colonel through the head while he was ignominiously dallying with the question of surrender, and calling upon the men to follow him against the enemy. There can be very little doubt that such a movement would have resulted in victory, as the men were in splendid condition physically, thoroughly well armed, and dying to wipe out the disgrace their colonel had inflicted upon them. Of course, the man who should inaugurate such a movement must win, or die in the attempt, but in America death with honor is infinitely preferable to life with a suspicion of cowardice, as all who participated in this surrender were well aware.

The officers were all held as prisoners of war, and the men paroled on condition of not fighting against the Confederacy during the continuance of the war. The Indian war of 1862 broke out in Minnesota very shortly after the surrender, and the men of the Third were brought to the state for service against the Indians. They participated in the campaign of 1862 and following expeditions. For a full and detailed account of the surrender of the Third, consult the history of that regiment in the volume issued by the state, called "Minnesota in the Civil and Indian Wars."

It would please the historian to omit this subject entirely, did truth permit; but he finds ample solace in the fact that this is the only blot to be found in the long record of brilliant and glorious deeds that compose the military history of Minnesota.

A general summary will show that Minnesota did her whole duty in the Civil War, and that her extreme youth was in no way a drawback to her performance. She furnished to the war, in all her military organizations, a grand total of 22,970 men. Of this number, 607 were killed in battle and 1,647 died of disease, making a contribution of 2,254 lives to the cause of the Union on the part of Minnesota.

Our state was honored by the promotion from her various organizations of the following officers:

C. P. Adams, Brevet Brigadier General.
C. C. Andrews, Brigadier and Brevet Major General.
John T. Averill, Brevet Brigadier General.
James H. Baker, Brevet Brigadier General.
Theodore E. Barret, Brevet Brigadier General.
Judson W. Bishop, Brevet Brigadier General.
William Colville, Brevet Brigadier General.
Napoleon J. T. Dana, Major General.
Alonzo J. Edgerton, Brevet Brigadier General.
Willis A. Gorman, Brigadier General.
Lucius F. Hubbard, Brevet Brigadier General.
Samuel P. Jennison, Brevet Brigadier General.
William G. Le Duc, Brevet Brigadier General.

William R. Marshall, Brevet Brigadier General.
Robert B. McLaren, Brevet Brigadier General.
Stephen Miller, Brigadier General.
John B. Sanborn, Brigadier and Brevet Major General.
Henry H. Sibley, Brigadier and Brevet Major General.
Minor T. Thomas, Brevet Brigadier General.
John E. Tourtellotte, Brevet Brigadier General.
Horatio P. Van Cleve, Brevet Brigadier General.
George N. Morgan, Brevet Brigadier General.

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THE INDIAN WAR OF 1862 AND FOLLOWING YEARS.

In 1862 there were in the State of Minnesota four principal bands of Sioux Indians—the M'day-wa-kon-tons, Wak-pa-koo-tas, Si-si-tons and Wak-pay-tons. The first two bands were known as the Lower Sioux and the last two bands as the Upper Sioux. These designations arose from the fact that, in the sale of their lands to the United States by the treaties of 1851, the lands of the Lower Sioux were situate in the southern part of the state, and those of the upper bands in the more northern part, and when a reservation was set apart for their future occupation on the upper waters of the Minnesota river they were similarly located thereon. Their reservation consisted of a strip of land, ten miles wide, on each side of the Minnesota river, beginning at a point a few miles below Fort Ridgely and extending to the headwaters of the river. The reservation of the lower bands extended up to the Yellow Medicine river; that of the upper bands included all above the last named river. An agent was appointed to administer the affairs of these Indians, whose agencies were established at Redwood for the lower and at Yellow Medicine for the upper bands. At these agencies the annuities were paid to the Indians, and so continued from the making of the treaties to the year 1862. These bands were wild, very little progress having been made in their civilization, the very nature of the situation preventing very much advance in that line. The whole country to the north and west of their reservation was an open, wild region, extending to the Rocky Mountains, inhabited only by the buffalo, which animals ranged in vast herds from British Columbia to Texas. The buffalo was the chief subsistence of the Indians, who naturally frequented their ranges, and only came to the agencies when expecting their payments. When they did come, and the money and goods were not ready for them, which was frequently the case, they suffered great inconvenience, and were forced to incur debt with the white traders for their subsistence, all of which tended to create bad feelings between them and the whites. The Indian saw that he had yielded a splendid domain to the whites, and that they were rapidly occupying it. They could not help seeing that the whites were pushing them gradually—I may say rapidly—out of their

ancestral possessions and towards the West, which knowledge naturally created a hostile feeling towards them. The Sioux were a brave people, and the young fighting men were always making comparisons between themselves and the whites, and bantering each other as to whether they were or were not afraid of them. I made a study of these people for several years, having had them in charge as their agent, and I think understood their feelings and standing towards the whites as well as any one. Much has been said and written about the immediate cause of the outbreak of 1862, but I do not believe that anything can be assigned out of the general course of events that will account for the trouble. Delay, as usual, had occurred in the arrival of the money for the payment, which was due in July, 1862. The war was in full force with the South, and the Indians saw that Minnesota was sending thousands of men out of the state to fight the battles of the Union. Major Thomas Galbraith was their agent in the summer of 1862, and being desirous of contributing to the volunteer forces of the government, he raised a company of half-breeds on the reservation and started with them for Fort Snelling, the general rendezvous, to have them mustered into service. It was very natural that the Indians who were seeking for trouble should look upon this movement as a sign of weakness on the part of the government, and reason that, if the United States could not conquer its enemy without their assistance, it must be in serious difficulties. Various things of similar character contributed to create a feeling among the Indians that it was a good time to recover their country, redress all their grievances, and reestablish themselves as lords of the land. They had ambitious leaders. Little Crow was the principal instigator of war on the whites. He was a man of greater parts than any Indian in the tribe. I had used him on many trying occasions, as the captain of my bodyguard, and my ambassador to negotiate with other tribes, and always found him equal to any emergency; but on this occasion his ambition ran away with his judgment, and led him to fatal results. With all these influences at work, it took but a spark to fire the magazine, and that spark was struck on the seventeenth day of August, 1862.

A small party of Indians were at Acton, on August 17th, and got into a petty controversy about some eggs with a settler, which created a difference of opinion among them as to what they should do, some advocating one course and some another. The controversy led to one Indian saying that the other

was afraid of the white man, to resent which, and to prove his bravery, he killed the settler, and the whole family was massacred. When these Indians reached the agency, and related their bloody work, those who wanted trouble seized upon the opportunity, and insisted that the only way out of the difficulty was to kill all the whites, and on the morning of the 18th of August the bloody work began.

It is proper to say here that some of the Indians who were connected with the missionaries, conspicuously An-pay-tu-tok-a-cha, or John Otherday, and Paul Ma-za-ku-ta-ma-ni, the president of the Hazelwood Republic, of which I have spoken, having learned of the intention of the Indians, informed the missionaries on the night of the 17th, who, to the number of about sixty, fled eastward to Hutchinson, in McLeod county, and escaped. The next morning, being the 18th of August, the Indians commenced the massacre of the whites, and made clean work of all at the agencies. They then separated into small squads of from five to ten and spread over the country to the south, east and southeast, attacking the settlers in detail at their homes and continued this work during all of the 18th and part of the 19th of August, until they had murdered in cold blood quite one thousand people—men, women and children. The way the work was conducted, was as follows: The party of Indians would call at the house, and, being well known, would cause no alarm. They would await a good opportunity, and shoot the man of the family; then butcher the women and children, and, after carrying off everything that they thought valuable to them, they would burn the house and proceed to the next homestead and repeat the performance. Occasionally some one would escape, and spread the news of the massacre to the neighbors, and all who could would escape to some place of refuge.

The news of the outbreak reached Fort Ridgely (which was situated about thirteen miles down the Minnesota river) from the agencies about eight o'clock on the morning of the 18th, by means of the arrival of a team from the Lower Agency, bringing a badly wounded man; but no details could be obtained. The fort was in command of Capt. John Marsh, of Company "B," Fifth Minnesota Volunteer Infantry. He had eighty-five men in his company, from which he selected forty-five, leaving the balance, under Lieut. T. F. Gere, to defend the fort. This little squad, under command of Captain Marsh, with a full supply of ammunition, provisions, blankets, etc., accompanied by a six-mule team, left the fort at 9:00 a. m., on the 18th of

August, for the Lower Sioux Agency, which was on the west side of the Minnesota river, the fort being on the east, which necessitated the crossing of the river by a ferry near the agency. On the march up the command passed nine or ten dead bodies, all bearing evidence of having been murdered by the Indians, one of which was Dr. Humphrey, surgeon at the agency. On reaching the vicinity of the ferry no Indians were in sight, except one on the opposite side of the river, who tried to induce them to cross over. A dense chaparral bordered the river on the agency side, and tall grass covered the bottom on the side where the troops were. Suspicion of the presence of Indians was aroused by the disturbed condition of the water of the river, which was muddy and contained floating grass. Then a group of ponies was seen. At this point, and without any notice whatever, Indians in great numbers sprang up on all sides of the troops, and opened upon them a deadly fire. About half of the men were killed instantly. Finding themselves surrounded, it became with the survivors a question of *sauve qui peut*. Several desperate hand-to-hand encounters occurred, with varying results, when the remnant of the command made a point down the river, about two miles from the ferry, Captain Marsh being of the number. Here they attempted to cross, but the captain was drowned in the effort. Only from thirteen to fifteen of the command reached the fort alive. Among those killed was Peter Quinn, the United States interpreter, an Irishman, who had been in the Indian territory for many years. He had married into the Chippewa tribe. He was a man much esteemed by the army and all old settlers.

Much criticism has been indulged in as to whether Captain Marsh, when he became convinced of the general outbreak, should not have retreated to the fort. Of course, forty-five men could do nothing against five or six hundred warriors, who were known to be at or about the agency. The Duke of Wellington, when asked as to what was the best test of a general, said, "To know when to retreat, and to dare to do it." Captain Marsh cannot be justly judged by any such criterion. He was not an experienced general. He was a young, brave, and enthusiastic soldier. He knew little of Indians. The country knows that he thought he was doing his duty in advancing. I am confident, whether this judgment is intelligent or not, posterity will hold in warmer esteem the memory of Captain Marsh and his gallant little band than if he had adopted the more prudent course of retracing his steps. Gen.

George Custer was led into an ambush of almost the exact character, which was prepared for him by many of the same Indians who attacked Marsh, and he lost five companies of the Seventh United States Cavalry, one of the best fighting regiments in the service, not a man escaping.

Immediately previous to the outbreak Lieut. Timothy J. Sheehan, of Company "C," Fifth Minnesota, had been sent, with about fifty men of his company, to the Yellow Medicine Agency, on account of some disorder prevailing among the Indians; but having performed his duty, he had been ordered to Fort Ripley, and had on the 17th left Fort Ridgley, and on the 18th had reached a point near Glencoe, distant from Fort Ridgley about forty miles. As soon as Captain Marsh became aware of the outbreak, he sent the following dispatch to Lieutenant Sheehan, which reached him on the evening of the 18th:

"Lieutenant Sheehan:

"It is absolutely necessary that you should return with your command immediately to this post. The Indians are raising hell at the Lower Agency. Return as soon as possible."

Lieutenant Sheehan was then a young Irishman, of about the age of twenty-five years, with immense physical vigor, and corresponding enthusiasm. He immediately broke camp and returned to the fort, arriving there on the 19th of August, having made a forced march of forty-two miles in nine and one-half hours. He did not arrive a moment too soon. Being the ranking officer after the death of Captain Marsh, he took command of the post. The garrison then consisted of the remnant of Marsh's Company "B," fifty-one men, Sheehan's Company "C," fifty men, and the Renville Rangers, fifty men. This latter company was the one raised by Major Galbraith, the Sioux agent at the agencies, and was composed principally of half-breeds. It was commanded by Capt. James Gorman. On reaching St. Peter, on its way down to Snelling to be mustered into the service of the United States, it learned of the outbreak, and at once returned to Ridgley, having appropriated the arms of a militia company at St. Peter. There was also at Ridgley, Sergeant Jones of the regular artillery, who had been left there in charge of the military stores. He was quite an expert gunner, and there were several field-pieces at the fort. Besides this garrison, a large number of people from the surrounding country had sought safety at the fort, and there was also a party of gentlemen, who had brought up the annuity money to pay the Indians, who, learning of the troubles, had stopped with the money, amounting to some \$70,000 in specie. I will here leave the fort for the present, and turn to other points that became prominent in the approaching war.

On the night of the 18th of August, the day of the outbreak, the news reached St. Peter, and, as I have before stated, induced the Renville Rangers to retrace their steps. Great excitement prevailed, as no one could tell at what moment the Indians might dash into the town, and massacre the inhabitants.

The people at New Ulm, which was situated about sixteen miles below Fort Ridgely, on the Minnesota river, dispatched a courier to St. Peter as soon as they became aware of the trouble. He arrived at 4 o'clock a. m. on the 19th, and came immediately to my house, which was about one mile below the town, and informed me that the Indians were killing people all over the country. Having lived among the Indians for several years, and at one time had charge of them as their agent, I thoroughly understood the danger of the situation, and knowing that, whether the story was true or false, the frontier was no place at such a time for women and children, I told him to wake up the people at St. Peter, and that I would be there quickly. I immediately placed my family in a wagon, and told them to flee down the river, and taking all the guns, powder and lead I could find in my house, I arrived at St. Peter about 6 a. m. The men of the town were soon assembled at the court-house, and in a very short time a company was formed of 116 men, of which I was chosen as captain, William B. Dodd as first, and Wolf H. Meyer as second lieutenant. Before noon two men, Henry A. Swift, afterwards governor of the state, and William C. Hayden, were dispatched to the front in a buggy to scout, and locate the enemy if he was near, and about noon sixteen mounted men under L. M. Boardman, sheriff of the county, were started on a similar errand. Both these squads kept moving until they reached New Ulm, at about 5 p. m.

Great activity was displayed in equipping the main body of the company for service. All the guns of the place were seized, and put into the hands of the men. There not being any large game in this part of the country, rifles were scarce, but shot-guns were abundant. All the blacksmith shops and gun shops were set at work moulding bullets, and we soon had a gun in every man's hand, and he was supplied with a powder horn or a whiskey flask full of powder, a box of caps and a pocket-full of bullets. We impressed all the wagons we needed for transportation, and all the blankets and provisions that were necessary for subsistence and comfort. While these preparations were going on a large squad from Le Sueur, ten miles further down the river, under the command of Captain Tousley, sheriff of Le Sueur county, joined us. Early in the day a squad from Swan lake, under an old settler named Samuel Coffin, had gone to New Ulm to see what was the matter.

Our advance guard reached New Ulm just in time to participate in its defense against an attack of about one hundred Indians who had been

murdering the settlers on the west side of the river, between the town and Fort Ridgely. The inhabitants of New Ulm were almost exclusively German, there being only a few English-speaking citizens among them, and they were not familiar with the character of the Indians, but the instinct of self-preservation had impelled them to fortify the town with barricades to keep the enemy out. The town was built in the usual way of western towns, the principal settlement being along the main street, and the largest and best houses occupying a space of about three blocks. Some of these houses were of brick and stone, so with a strong barricade around them, the town was quite defensible. Several of the people were killed in this first attack, but the Indians, knowing of the coming reinforcements, withdrew, after firing five or six buildings.

The main body of my company, together with the squad from Le Sueur, reached the ferry about two miles below the settled part of New Ulm, about 8 p. m., having made thirty-two miles in seven hours, in a drenching rainstorm. The blazing houses in the distance gave a very threatening aspect to the situation, but we crossed the ferry successfully, and made the town without accident. The next day we were reinforced by a full company from Mankato under Capt. William Bierbauer. Several companies were formed from the citizens of the town. A full company from South Bend arrived on the 20th or 21st, and various other squads, greater or less in numbers, came in during the week, before Saturday, the 23d, swelling our forces to about three hundred men, but nearly all very poorly armed. We improved the barricades and sent out daily scouting parties who succeeded in bringing in many people who were in hiding in swamps, and who would have undoubtedly been lost without this succor. It soon became apparent that, to maintain any discipline or order in the town, some one man must be placed in command of the entire force. The officers of the various companies assembled to choose a commander-in-chief, and the selection fell to me. A provost guard was at once established, order inaugurated, and we awaited events.

I have been thus particular in my description of the movements at this point because it gives an idea of the defenseless condition in which the outbreak found the people of the country, and also because it shows the intense energy with which the settlers met the emergency, at its very inception, from which I will deduce the conclusion at the proper time that this prompt

initial action saved the state from a calamity, the magnitude of which is unrecorded in the history of Indian wars.

Having described the defensive condition of Fort Ridgely and New Ulm, the two extreme frontier posts, the former being on the Indian reservation and the latter only a few miles southeast of it, I will take up the subject at the capital of the state. The news reached Governor Ramsey, at St. Paul, on the 19th of August, the second day of the outbreak. He at once hastened to Mendota, at the mouth of the Minnesota river, and requested ex-Governor Sibley to accept the command of such forces as could be put in the field, to check the advance of and punish the Indians. Governor Sibley had a large experience with the Sioux, perhaps more than any man in the state, having traded and lived with them since 1834, and besides that, was a distinguished citizen of the state, having been its first governor. He accepted the position, with the rank of colonel in the state militia. The Sixth Regiment was being recruited at Fort Snelling for the Civil War, and, on the 20th of August, Colonel Sibley started up the valley of the Minnesota with four companies of that regiment, and arrived at St. Peter on Friday, the 22d. Capt. A. D. Nelson of the regular army had been appointed colonel of the Sixth, and William Crooks had been appointed lieutenant colonel of the Seventh. Colonel Crooks conveyed the orders of the governor to Colonel Nelson, overtaking him at Bloomington Ferry. On receipt of his orders, finding he was to report to Colonel Sibley, he made the point of military etiquette, that an officer of the regular army could not report to an officer of militia of the same rank, and turning over his command to Colonel Crooks, he returned to St. Paul and handed in his resignation. It was accepted, and Colonel Crooks was appointed colonel of the Sixth. Not knowing much about military etiquette, I will not venture an opinion on the action of Colonel Nelson in this instance, but it always seemed to me that, in the face of the enemy, and especially considering the high standing of Colonel Sibley, and the intimate friendship that existed between the two men, it would have been better to have waived this point, and unitedly fought the enemy, settling all such matters afterwards.

On Sunday, the 24th, Colonel Sibley's force at St. Peter, was augmented by the arrival of about two hundred mounted men, under the command of William J. Cullen, formerly superintendent of Indian affairs, called the Cullen Guard. On the same day six more companies of the Sixth arrived,

making up the full regiment, and also about one hundred more mounted men, and several squads of volunteer militia. The mounted men were placed under the command of Col. Samuel McPhail. By these acquisitions Colonel Sibley's command numbered about 1,400 men. Although the numerical strength was considerable, the command was practically useless. The ammunition did not fit the guns of the Sixth Regiment, and had to be all made over. The horses of the mounted men, were raw and undisciplined, and the men themselves were inexperienced and practically unarmed. It was the best the country afforded, but was probably about as poorly equipped an army as ever entered the field—and to face what I regard as the best warriors to be found on the North American continent; but fortunately the officers and men were all that could be desired. The leaders of this army were the best of men, and being seconded by intelligent and enthusiastic subordinates, they soon overcame their physical difficulties; but they knew nothing of the strength, position or previous movements of the enemy, no news having reached them from either Fort Ridgely or New Ulm. Any mistake made by this force, resulting in defeat, would have been fatal. No such mistake was made. Having now shown the principal forces in the field, we will turn to the movements of the enemy. The Indians felt that it would be necessary to carry Fort Ridgely and New Ulm, before they extended their depredations further down the valley of the Minnesota, and concentrated their forces for an attack on the fort. Ridgely was in no sense a fort. It was simply a collection of buildings, principally frame structures, facing in towards the parade ground. On one side was a long stone barrack and a stone commissary building, which was the only defensible part of it.

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THE ATTACK ON FORT RIDGELY.

On the 20th of August, at about 3 p. m., an attack was made upon the fort by a large body of Indians. The first intimation the garrison had of the assault was a volley poured through one of the openings between the buildings. Considerable confusion ensued, but order was soon restored. Sergeant Jones attempted to use his cannon, but to his utter dismay, he found them disabled. This was the work of some of the half-breeds belonging to the Renville Rangers, who had deserted to the enemy. They had been spiked by ramming old rags into them. The sergeant soon rectified this difficulty, and brought his pieces into action. The attack lasted three hours, when it ceased, with a loss to the garrison of three killed and eight wounded.

On Thursday, the 21st, two further attacks were made on the fort, one in the morning and one in the afternoon, but with a reduced force, less earnestness, and little damage. On Friday, the 22d, the savages seemed determined to carry the fort. About eight hundred or more, under the leadership of Little Crow, came down from the agency. Concentrating themselves in the ravines which lay on several sides of the fort, they made a feint, by sending about twenty warriors out on the prairie for the purpose of drawing out the garrison from the fort, and cutting them off. Such a movement, if successful, would have been fatal to the defenders; but fortunately there were men among them of much experience in Indian warfare, who saw through the scheme, and prevented the success of the maneuver. Then followed a shower of bullets on the fort from all directions. The attack was continued for nearly five hours. It was bitterly fought, and courageously and intelligently resisted. Sergeant Jones and other artillerists handled the guns with effective skill, exploding shells in the outlying buildings, and burning them over the heads of the Indians, while the enemy endeavored to burn the wooden buildings composing the fort, by shooting fire arrows on their roofs. One of the most exposed and dangerous duties to be performed was covering the wooden roofs with earth to prevent fire. One white man was killed and seven wounded in this engagement. Lieutenant Sheehan, who commanded the post through all these trying occurrences,

Lieutenant Gorman, of the Renville Rangers, Lieutenant Whipple, and Sergeants Jones and McGrew, all did their duty in a manner becoming veterans, and the men seconded their efforts handsomely. The Indians, after this effort, being convinced that they could not take the fort, and anticipating the coming of reinforcements, withdrew, and, concentrating all their available forces, descended upon New Ulm the next morning, August 23d, for a final struggle. In the official history (written for the state) of this battle at Fort Ridgely, I place the force of the Indians as 450, but have learned since from reliable sources that it was as above stated.

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BATTLE OF NEW ULM.

We left New Ulm, after the arrival of the various companies which I have named on the 21st of August, strengthening its barricades and awaiting events. I had placed a good glass on the top of one of the stone buildings within the barricades for the purpose of observation, and always kept a sentinel there to report any movement he should discover in any direction throughout the surrounding country. We had heard distinctly the cannonading at the fort for the past two days, but knew nothing of the result of the fight at that point. I was perfectly familiar, as were many of my command, with the country between New Ulm and the fort, on both sides of the river, knowing the house of every settler on the roads.

Saturday, the 23d of August, opened bright and beautiful, and early in the morning we saw column after column of smoke rise in the direction of the fort, each smoke being nearer than the last. We knew to a certainty that the Indians were approaching in force, burning every building and grain or hay stack they passed. The settlers had either all been killed, or had taken refuge at the fort or New Ulm, so we had no anxiety about them. About 9:30 a. m. the enemy appeared in great force, on both sides of the river. Those on the east side, when they reached the neighborhood of the ferry, burned some stacks as a signal of their arrival, which was responded to by a similar fire in the edge of the timber, about two miles and a half from the town on the west side. Between this timber and the town, was a beautiful open prairie, with considerable descent towards the town. Immediately on seeing the smoke from the ferry the enemy advanced rapidly, some six hundred strong, many mounted and the rest on foot. I had determined to meet them on the open prairie, and had formed my men by companies in a long line of battle, with intervals between them, on the first level plateau on the west side of the town, thus covering its whole west front. There were not over twenty or thirty rifles in the whole command, and a man with a shotgun, knowing his antagonist carries a rifle, has very little confidence in his fighting ability. Down came the Indians in the bright sunlight, galloping, running, yelling, and gesticulating in the most fiendish manner. If we had had good rifles they never would have got near enough to do much harm, but as it was we

could not check them before their fire began to tell on our line. They deployed to the right and left until they covered our entire front, and then charged. My men, appreciating the inferiority of their armament, after seeing several of their comrades fall, and having fired a few ineffectual volleys, fell back on the town, passing some buildings without taking possession of them, which mistake was instantly taken advantage of by the Indians, who at once occupied them, but they did not follow us into the town proper, no doubt thinking our retreat was a feint to draw them among the buildings, and thus gain an advantage. I think if they had boldly charged into the town and set it on fire, they would have won the fight; but, instead, they surrounded it on all sides, the main body taking possession of the lower end of the main street below the barricades, from which direction a strong wind was blowing towards the center of the town. From this point they began firing the houses on both sides of the street. We soon rallied the men, and kept the enemy well in the outskirts of the town, and the fighting became general on all sides. Just about this time, my first lieutenant, William B. Dodd, galloped down the main street, and as he passed a cross street the Indians put three or four bullets through him. He died during the afternoon, after having been removed several times from house to house as the enemy crowded in upon us.

On the second plateau, there was an old Don Quixote windmill, with an immense tower and sail-arms about seventy-five feet long, which occupied a commanding position, and had been taken possession of by a company of about thirty men, who called themselves the Le Sueur Tigers, most of whom had rifles. They barricaded themselves with sacks of flour and wheat, loopholed the building and kept the savages at a respectful distance from the west side of the town. A rifle ball will bury itself in a sack of flour or wheat, but will not penetrate it. During the battle the men dug out several of them, and brought them to me because they were the regulation Minie bullet, and there had been rumors that the Confederates from Missouri had stirred up the revolt and supplied the Indians with guns and ammunition. I confess I was astonished when I saw the bullets, as I knew the Indians had no such arms, but I soon decided that they were using against us the guns and ammunition they had taken from the dead soldiers of Captain Marsh's company. I do not believe the Confederates had any hand in the revolt of these Indians.

We held several other outposts, being brick buildings outside the barricades, which we loopholed, and found very effective in holding the Indians aloof. The battle raged generally all around the town, every man doing his best in his own way. It was a very interesting fight on account of the stake we were contending for. We had in the place about twelve or fifteen hundred women and children, the lives of all of whom, and of ourselves, depended upon victory perching on our banners; for in a fight like this, no quarter is ever asked or given. The desperation with which the conflict was conducted can be judged from the fact that I lost sixty men in the first hour and a half, ten killed and fifty wounded, out of less than 250, as my force had been depleted by the number of about seventy-five by Lieutenant Huey taking that number to guard the approach to the ferry. Crossing to the other side of the river he was cut off, and forced to retreat toward St. Peter. It was simply a mistake of judgment to put the river between himself and the main force, but in his retreat he met Capt. E. St. Julian Cox, with reinforcements for New Ulm, joined them, and returned the next day. He was a brave and willing officer. The company I mentioned as having arrived from South Bend, having heard that the Winnebagoes had joined in the outbreak, left us before the final attack on Saturday, the 23d of August, claiming that their presence at home was necessary to protect their families, and on the morning of the 23d, when the enemy was in sight, a wagon load of others left us and went down the river. I doubt if we could have mustered over two hundred guns at any time during the fight.

The enemy, seeing his advantage in firing the buildings in the lower part of the main street, and thus gradually nearing our barricades with the intention of burning us out, kept up his work as continuously as he could with the interruptions we made for him by occasionally driving him out; but his approach was constant, and about 2 o'clock a roaring conflagration was raging on both sides of the street, and the prospect looked discouraging. At this juncture Asa White, an old frontiersman, connected with the Winnebagoes, whom I had known for a long time, and whose judgment and experience I appreciated and valued, came to me and said: "Judge, if this goes on, the Indians will bag us in about two hours." I said: "It looks that way; what remedy have you to suggest." His answer was, "We must make for the cottonwood timber." Two miles and a half lay between us and the timber referred to, which, of course, rendered his suggestion utterly

impracticable with two thousand noncombatants to move, and I said: "White, they would slaughter us like sheep should we undertake such a movement. Our strongest hold is in this town, and if you will get together fifty volunteers, I will drive the Indians out of the lower town and the greatest danger will be passed." He saw at once the propriety of my proposition, and in a short time we had a squad ready, and sallied out, cheering and yelling in a manner that would have done credit to the wildest Comanches. We knew the Indians were congregated in force down the street, and expected to find them in a sunken road, about three blocks from where we started, but they had worked their way up much nearer to us, and were in a deep swale about a block and a half from our barricades. There was a large number of them, estimated at about seventy-five to one hundred, some on ponies and some on foot. When the conformation of the ground disclosed their whereabouts, we were within one hundred feet of them. They opened a rapid fire on us, which we returned, while keeping up our rushing advance. When we were within fifty feet of them, they turned and fled down the street. We followed them for at least half a mile, firing as well as we could. This took us beyond the burning houses, and finding a large collection of saw logs, I called a halt and we took cover among them, lying flat on the ground. The Indians stopped when we ceased to chase them, and took cover behind anything that afforded protection, and kept up an incessant fire upon us whenever a head or hand showed itself above the logs. We held them, however, in this position, and prevented their return toward the town by way of the street. I at once sent a party back with instructions to burn every building, fence, stack or other object that would afford cover between us and the barricades. This order was strictly carried out, and by six or seven o'clock there was not a structure standing outside of the barricades in that part of the town. We then abandoned our saw logs and returned to the town, and the day was won, the Indians not daring to charge us over an open country. I lost four men killed in this exploit, one of whom was especially to be regretted. I speak of Newell Houghton. In ordinary warfare, all men stand for the same value as a general thing; but in an Indian fight, a man of cool head, an exceptionally fine shot, and armed with a reliable rifle, is a loss doubly to be regretted. Houghton was famous as being the best shot and deer hunter in all the Northwest, and had with him his choice rifle. He had built a small steamboat with the proceeds of his gun, and we all held him in high respect as a fine type of frontiersman. We

had hardly got back to the town before a man brought me a rifle which he had found on the ground near a clump of brush, and handing it to me said, "Some Indian lost a good gun in that run." It happened that White was with me, and saw the gun. He recognized it in an instant, and said: "Newell Houghton is dead. He never let that gun out of his hands while he could hold it." We looked where the gun was picked up, and found Houghton dead in the brush. He had been scalped by some Indian who had seen him fall, and had sneaked back and scalped him.

That night we dug a system of rifle pits all along the barricades on the outside, and manned them with three or four men each, but the firing was desultory through the night, and nothing much was accomplished on either side.

The next morning (Sunday) opened bright and beautiful, but scarcely an Indian was to be seen. They had given up the contest, and were rapidly retreating northward up the river. We got an occasional shot at one, but without effect except to hasten the retreat. And so ended the second and decisive battle of New Ulm.

In this fight between ourselves and the enemy we burned one hundred and ninety buildings, many of them substantial and valuable structures. The whites lost some fourteen killed and fifty or sixty wounded. The loss of the enemy is uncertain, but after the fight we found ten dead Indians in burned houses, and in chaparral where they escaped the notice of their friends. As to their wounded we knew nothing, but judging from the length and character of the engagement, and the number of their dead found, their casualties must have equalled, if not exceeded ours.

About noon of Sunday, the 24th, Capt. E. St. Julien Cox arrived with a company from St. Peter, which had been sent by Colonel Sibley to reinforce us. Lieutenant Huey, who had been cut off at the ferry on the previous day, accompanied him with a portion of his command. They were welcome visitors.

There were in the town at the time of the attack on the 23d, as near as can be learned, from 1,200 to 1,500 noncombatants, consisting of women and children, refugees and unarmed citizens, all of whose lives depended upon

our success. It is difficult to conceive a much more exciting stake to play for, and the men seemed fully to appreciate it, and made no mistakes.

On the 25th we found that provisions and ammunition were becoming scarce, and pestilence being feared from stench and exposure, we decided to evacuate the town and try to reach Mankato. This destination was chosen to avoid the Minnesota river, the crossing of which we deemed impracticable. The only obstacle between us and Mankato was the Big Cottonwood river, which was fordable. We made up a train of 153 wagons, which had largely composed our barricades, loaded them with women and children, and about eighty wounded men, and started. A more heart-rending procession was never witnessed in America. Here was the population of one of the most flourishing towns in the state abandoning their homes and property, starting on a journey of thirty odd miles, through a hostile country, with a possibility of being massacred on the way, and no hope or prospect but the hospitality of strangers and ultimate beggary. The disposition of the guard was confided to Captain Cox. The march was successful; no Indians were encountered. We reached Crisp's farm, which was about half way between New Ulm and Mankato, about evening. I pushed the main column on, fearing danger from various sources, but camped at this point with about 150 men, intending to return to New Ulm, or hold this point as a defensive measure for the exposed settlements further down the river. On the morning of the 26th we broke camp, and I endeavored to make the command return to New Ulm or remain where they were—my object, of course, being to keep an armed force between the enemy and the settlements. The men had not heard a word from their families for more than a week, and declined to return or remain. I did not blame them. They had demonstrated their willingness to fight when necessary, but held the protection of their families as paramount to mere military possibilities. I would not do justice to history did I not record, that, when I called for volunteers to return, Captain Cox and his whole squad stepped to the front, ready to go where I commanded. Although I had not then heard of Captain Marsh's disaster, I declined to allow so small a command as that of Captain Cox to attempt the reoccupation of New Ulm. My staff stood by me in this effort, and a gentleman from Le Sueur county, Mr. Freeman Talbott, made an impressive speech to the men, to induce them to return. The train arrived safely at

Mankato on the 25th, and the balance of the command on the following day, whence the men generally sought their homes.

I immediately, on arriving at Mankato, went to St. Peter, to inform Colonel Sibley of the condition of things in the Indian country. I found him, on the night of August 26th, in camp about six miles out of St. Peter, and put him in possession of everything that had happened to the westward. His mounted men arrived at Fort Ridgely on the 27th of August, and were the first relief that reached that fort after its long siege. Sibley reached the fort on the 28th of August. Intrenchments were thrown up about the fort, cannon properly placed, and a strong guard maintained. All but ninety men of the Cullen Guard, under Captain Anderson, returned home as soon as they found the fort was safe. The garrison was soon increased by the arrival of forty-seven men under Captain Sterritt, and on the 1st of September, Lieut. Col. William R. Marshall of the Seventh Regiment arrived, with a portion of his command. This force could not make a forward movement on account of a lack of ammunition and provisions, which were long delayed.

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BATTLE OF BIRCH COULIE.

On the 31st of August a detail of Captain Grant's company of infantry, seventy men of the Cullen Guard, under Captain Anderson, and some citizens and other soldiers, in all about 150 men, under command of Major Joseph R. Brown, with seventeen teams and teamsters, were sent from Fort Ridgely to the Lower Agency, to feel the enemy, bury the dead, and perform any other service that might arise. They went as far as Little Crow's village, but not finding any signs of Indians, they returned; and on the 1st of September they reached Birch Coulie, and encamped at the head of it. Birch Coulie is a ravine extending from the upper plateau to the river bottom, nearly opposite the ferry where Captain Marsh's company was ambushed.

The Indians, after their defeat at Fort Ridgely and New Ulm, had concentrated at the Yellow Medicine river, and decided to make one more desperate effort to carry their point of driving the whites out of the country. Their plan of operation was, to come down the Minnesota valley in force, stealthily, passing Sibley's command at Ridgely, and attacking St. Peter and Mankato simultaneously. They congregated all their forces for this attempt, and started down the river. When they reached the foot of Birch Coulie they saw the last of Major Brown's command going up the coulie. They decided to wait and see where they encamped, and attack them early in the morning. The whites went to the upper end of the Coulie, and camped on the open prairie, about 250 feet from the brush in the coulie. On the other side of their camp there was a roll in the prairie, about four or five feet high, which they probably did not notice. This gave the enemy cover on both sides of the camp, and they did not fail to see it and take advantage of it. The moment daylight came sufficiently to disclose the camp, the Indians opened fire from both sides. The whites had ninety horses hitched to a picket rope and their wagons formed in a circular corral, with their camp in the center. The Indians soon killed all the horses but one, and the men used their carcasses as breastworks, behind which to fight. The battle raged from the morning of September 2d to September 3d, when they were relieved by Colonel Sibley's whole command, and the Indians fled to the west.

Major Joseph R. Brown was one of the most experienced Indian men in the country, and would never have made the mistake of locating his camp in a place that gave the enemy such an advantage. He did not arrive until the camp was selected, and should have removed it at once. I have always supposed that he was lulled into a sense of security by not having seen any signs of Indians in his march; but the result proved that, when in a hostile Indian country, no one is ever justified in omitting any precautions. The firing at Birch Coulie was heard at Fort Ridgely, and a relief was sent, under Colonel McPhail, which was checked by the Indians a few miles before it reached its destination. The colonel sent a courier to the fort for reinforcements, and it fell to Lieutenant Sheehan to carry the message. With his usual energy he succeeded in getting through, his horse dying under him on his arrival. Colonel Sibley at once started with his whole command, and when he reached the battle ground the Indians left the field.

This was one of the most disastrous battles of the war. Twenty-three were killed outright or mortally wounded, and forty-five were severely wounded, while many others received slight injuries. The tents were, by the shower of bullets, made to resemble lace work, so completely were they perforated. One hundred and four bullet holes were counted in one tent. Besides the continual shower of bullets that was kept up by the Indians, the men suffered terribly from thirst, as it was impossible to get water into the camp. This fight forms a very important feature in the Indian war, as, notwithstanding its horrors, it probably prevented awful massacres at St. Peter and Mankato, the former being absolutely defenseless, and the latter only protected by a small squad of about eighty men, which formed my headquarters guard at South Bend, about four miles distant.

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OCCURRENCES IN MEEKER COUNTY AND VICINITY.

While these events were passing, other portions of the state were being prepared for defense. In the region of Forest City in Meeker county, and also at Hutchinson and Glencoe, the excitement was intense. Capt. George C. Whitcomb obtained in St. Paul seventy-five stand of arms and some ammunition. He left a part of the arms at Hutchinson, and with the rest armed a company at Forest City, of fifty-three men, twenty-five of-whom were mounted. Capt. Richard Strout, of Company "B," Ninth Regiment, was ordered to Forest City, and went there with his company. Gen. John H. Stevens of Glencoe was commander of the state militia for the counties of McLeod, Carver, Sibley and Renville. As soon as he learned of the outbreak he erected a very substantial fortification of saw-logs at Glencoe, and that place was not disturbed by the savages. A company of volunteers was formed at Glencoe, under Capt. A. H. Rouse. Company "F" of the Ninth Regiment, under Lieut. O. P. Stearns, and Company "H" of the same regiment (Capt. W. R. Baxter), an independent company from Excelsior, and the Goodhue County Rangers (Capt. David L. Davis), all did duty at and about Glencoe during the continuance of the trouble. Captains Whitcomb and Strout, with their companies, made extensive reconnoissances into the surrounding counties, rescuing many refugees, and having several brisk and sharp encounters with the Indians, in which they lost several in killed and wounded. The presence of these troops in this region of country, and their active operations, prevented its depopulation, and saved the towns and much valuable property from destruction.

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PROTECTION OF THE SOUTHERN FRONTIER.

On the 29th of August I received a commission from the governor of the state, instructing and directing me to take command of the Blue Earth country, extending from New Ulm to the north line of Iowa, embracing the then western and southwestern frontier of the state. My powers were general—to raise troops, commission officers, subsist upon the country, and generally to do what in my judgment was best for the protection of this frontier. Under these powers I located my headquarters at South Bend, being the extreme southern point of the Minnesota river, thirty miles below New Ulm, four from Mankato, and about fifty from the Iowa line. Here I maintained a guard of about eighty men. We threw up some small intrenchments, but nothing worthy of mention. Enough citizens of New Ulm had returned home to form two companies at that point. Company "E," of the Ninth Regiment, under Capt. Jerome E. Dane, was stationed at Crisp's farm, about half way between New Ulm and South Bend. Col. John R. Jones of Chatfield collected about three hundred men, and reported to me at Garden City. They were organized into companies under Captains N. P. Colburn and Post, and many of them were stationed at Garden City, where they erected a serviceable fort of saw-logs. Others of this command were stationed at points along the Blue Earth river. Capt. Cornelius F. Buck of Winona raised a company of fifty-three men, all mounted, and started west. They reached Winnebago City, in the county of Faribault, on the 7th of September, where they reported to me, and were stationed at Chain Lakes, about twenty miles west of Winnebago City, and twenty of this company were afterwards sent to Madelia. A stockade was erected by this company at Martin Lake. In the latter part of August Capt. A. J. Edgerton of Company "B," Tenth Regiment, arrived at South Bend, and having made his report, was stationed at the Winnebago agency, to keep watch on those Indians and cover Mankato from that direction. About the same time Company "F," of the Eighth Regiment, under Capt. L. Aldrich, reported, and was stationed at New Ulm. E. St. Julien Cox, who had previously reinforced me at New Ulm, was commissioned a captain, and put in

command of a force which was stationed at Madelia, in Watonwan county, where they erected quite an artistic fortification of logs, with bastions. While there an attack was made upon some citizens who had ventured beyond the safe limits, and several whites were killed.

It will be seen by the above statement that almost immediately after the evacuation of New Ulm, on the 25th of August, the most exposed part of the southern frontier was occupied by quite a strong force. I did not expect that any serious incursions would be made along this line, but the state of alarm and panic that prevailed among the people rendered it necessary to establish this cordon of military posts to prevent an exodus of the inhabitants. No one who has not gone through the ordeal of an Indian insurrection can form any idea of the terrible apprehension that takes possession of a defenseless and noncombatant population under such circumstances. There is an element of mystery and uncertainty about the magnitude and movements of this enemy, and a certainty of his brutality, that inspires terror. The first notice of his approach is the crack of his rifle, and no one with experience of such struggles ever blames the timidity of citizens in exposed positions when assailed by these savages. I think, all things being considered, the people generally behaved very well. If a map of the state is consulted, taking New Ulm as the most northern point on the Minnesota river, it will be seen that the line of my posts covered the frontier from that point down the river to South Bend, and up the Blue Earth, southerly, to Winnebago City, and thence to the Iowa line. These stations were about sixteen miles apart, with two advanced posts, at Madelia and Chain Lakes, to the westward. A system of couriers was established, starting from each end of the cordon every morning, with dispatches from the commanding officer to headquarters, stopping at every station for an indorsement of what was going on, so I knew every day what had happened at every point on my line. By this means, the frontier population was pacified, and no general exodus took place.

In September Major General Pope was ordered to Minnesota to conduct the Indian war. He made his headquarters at St. Paul, and by his high rank took command of all operations, though not exerting any visible influence on them, the fact being that all imminent danger had been overcome by the state and its citizens before his arrival. In the latter part of September the citizen troops under my command were anxious to return to their homes,

and on presentation of the situation to General Pope, he ordered into the state a new regiment just mustered into the service in Wisconsin—the Twenty-fifth—commanded by Col. M. Montgomery, who was ordered to relieve me. He appeared at South Bend on the 1st of October, and after having fully informed him of what had transpired, and given him my views as to the future, I turned my command over to him in the following order: I give it, as it succinctly presents the situation of affairs at the time.

"HEADQUARTERS INDIAN EXPEDITION
SOUTHERN FRONTIER,
"SOUTH BEND, October 5, 1862.

To the Soldiers and Citizens who have been, and are now engaged in the defense of the Southern Frontier:

"On the eighteenth day of August last your frontier was invaded by the Indians. You promptly rallied for its defense. You checked the advance of the enemy and defeated him in two severe battles at New Ulm. You have held a line of frontier posts extending over a distance of one hundred miles. You have erected six substantial fortifications, and other defensive works of less magnitude. You have dispersed marauding bands of savages that have hung upon your lines. You have been uniformly brave, vigilant and obedient to orders. By your efforts, the war has been confined to the border; without them, it would have penetrated into the heart of the state.

"Major General Pope has assumed command of the Northwest, and will control future operations. He promises a vigorous prosecution of the war. Five companies of the Twenty-fifth Wisconsin Regiment and five hundred cavalry from Iowa are ordered into the region now held by you, and will supply the places of those whose terms of enlistment shortly expire. The department of the southern frontier, which I have had the honor to command, will, from the date of this order, be under the command of Colonel M. Montgomery of the Twenty-fifth Wisconsin, whom I take pleasure in introducing to the troops and citizens of that department as a soldier and a man to whom they may confide their interests and the safety of their country, with every assurance that they will be protected and defended.

"Pressing public duties of a civil nature demand my absence temporarily from the border. The intimate and agreeable relations we have sustained toward each other, our union in danger and adventure, cause me regret in leaving you, but will hasten my return.

"CHAS. E. FLANDRAU,
"Colonel Commanding Southern Frontier."

This practically terminated my connection with the war. All matters yet to be related took place in other parts of the state, under the command of Colonel Sibley and others.

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COLONEL SIBLEY MOVES UPON THE ENEMY,

We left Colonel Sibley, on the 4th of September, at Fort Ridgely, having just relieved the unfortunate command of Major Joseph R. Brown, after the fight at Birch Coulie. Knowing that the Indians had in their possession many white captives, and having their rescue alive uppermost in his mind, the colonel left on the battlefield at Birch Coulie the following communication, attached to a stake driven in the ground, feeling assured that it would fall into the hands of Little Crow, the leader of the Indians.

"If Little Crow has any proposition to make, let him send a half-breed to me, and he shall be protected in and out of camp.

"H. H. SIBLEY,
"Colonel Commanding Military Expedition."

The note was found, and answered by Little Crow in a manner rather irrelevant to the subject most desired by Colonel Sibley. It was dated at Yellow Medicine, September 7th, and delivered by two half-breeds.

Colonel Sibley returned the following answer by the bearers:

"Little Crow, you have murdered many of our people without any sufficient cause. Return me the prisoners under a flag of truce, and I will talk with you like a man."

No response was received to this letter until September 12th, when Little Crow sent another, saying that he had 155 prisoners, not including those held by the Si-si-tons and Wak-pay-tons, who were at Lac qui Parle, and were coming down. He also gave assurances that the prisoners were faring well. Colonel Sibley, on the 12th of September, sent a reply by Little Crow's

messengers, saying that no peace could be made without a surrender of the prisoners, but not promising peace on any terms, and charging the commission of nine murders since the receipt of Little Crow's last letter. The same messenger that brought this letter from Little Crow also delivered, quite a long one from Wabasha and Taopee, two lower chiefs who claimed to be friendly, and desired a meeting with Colonel Sibley, suggesting two places where it could be held. The Colonel replied that he would march in three days, and was powerful enough to crush all the Indians; that they might approach his column in open day with a flag of truce, and place themselves under his protection. On the receipt of this note a large council was held, at which nearly all the annuity Indians were present. Several speeches were made by the Upper and Lower Sioux, some in favor of continuance of the war and "dying in the last ditch," and some in favor of surrendering the prisoners. I quote from a speech made by Paul Ma-za-ku-ta-ma-ni, who will be remembered as one of the Indians who volunteered to rescue the white captives from Ink-pa-du-ta's band, in 1857, and who was always true to the whites. He said among other things:

"In fighting the whites, you are fighting the thunder and lightning. You say you can make a treaty with the British government. That is not possible. Have you not yet come to your senses? They are also white men, and neighbors and friends to the soldiers. They are ruled by a petticoat, and she has the tender heart of a squaw. What will she do for the men who have committed the murders you have?"

This correspondence was kept up for several days, quite a number of letters coming from the Indians to Colonel Sibley, but with no satisfactory results. On the 18th of September, Colonel Sibley determined to move upon the enemy, and on that day camp was broken at the fort, a boat constructed, and a crossing of the Minnesota river effected near the fort, to prevent the possibility of an ambushade. Colonel Sibley's force consisted of the Sixth Regiment under Colonel Crooks, about three hundred men of the Third under Major Welch, several companies of the Seventh under Col. William R. Marshall, a small number of mounted men under Colonel McPhail, and a battery under the command of Capt. Mark Hendricks. The expedition moved up the river without encountering any opposition until the morning

of the twenty-third of September. Indians had been in sight during all the march, carefully watching the movements of the troops, and several messages of defiance were found attached to fences and houses.

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THE BATTLE OF WOOD LAKE.

On the evening of the 22d the expedition camped at Lone Tree lake, about two miles from the Yellow Medicine river, and about three miles east from Wood lake. Early next morning several foraging teams belonging to the Third Regiment were fired upon. They returned the fire, and retreated toward the camp. At this juncture the Third Regiment without orders, sallied out, crossed a deep ravine and soon engaged the enemy. They were ordered back by the commander, and had not reached camp before Indians appeared on all sides in great numbers, many of them in the ravine between the Third Regiment and the camp. Thus began the battle of Wood Lake. Captain Hendricks opened with his cannon and the howitzer under the direct command of Colonel Sibley, and poured in shot and shell. It has since been learned that Little Crow had appointed ten of his best men to kill Colonel Sibley at all hazards, and that the shells directed by the colonel's own hand fell into this special squad and dispersed them. Captain Hendricks pushed his cannon to the head of the ravine, and raked it with great effect, and Colonel Marshall, with three companies of the Seventh and Captain Grant's company of the Sixth, charged down the ravine on a double quick, and routed the Indians. About eight hundred of the command were engaged in the conflict, and met about an equal number of Indians. Our loss was about nine killed and between forty and fifty wounded. Major Welch of the Third was shot in the leg, but not fatally. The Third and the Renville Rangers under Capt. James Gorman bore the brunt of the fight, which lasted about an hour and a half, and sustained the most of the losses. Colonel Sibley, in his official report of the encounter, gives great credit to his staff and all of his command. An-pay-tu-tok-a-cha, or John Otherday, was with the whites, and took a conspicuous part in the fray.

Thus ended the battle of Wood Lake. It was an important factor in the war, as it was about the first time the Indians engaged large forces of well organized troops in the open country, and their utter discomfiture put them on the run. It will be noticed that I have not in any of my narratives of battles, used the stereotyped expression, "Our losses were so many, but the losses of the enemy were much greater, but as they always carry off their

dead and wounded, it is impossible to give exact figures." The reason I have not made use of this common expression is, because I don't believe it. The philosophy of Indian warfare is, to kill your enemy and not get killed yourself, and they can take cover more skillfully than any other people. In all our Indian wars, from the Atlantic westward, with regulars or militia, I believe it would not be an exaggeration to say that the whites have lost ten to one in killed and wounded. But the battle of Wood Lake was quite an open fight, and so rapidly conducted and concluded that we have a very accurate account of the loss of the enemy. He had no time or opportunity to withdraw his dead. Fifteen dead were found upon the field, and one wounded prisoner was taken. No doubt many others were wounded who were able to escape. After this fight Colonel Sibley retired to the vicinity of an Indian camp, located nearly opposite the mouth of the Chippewa river, where it empties into the Minnesota, and there encamped. This point was afterwards called "Camp Release," from the fact that the white prisoners held by the enemy were here delivered to Colonel Sibley's command. We will leave Colonel Sibley and his troops at Camp Release, and narrate the important events that occurred on the Red River of the North, at and about

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FORT ABERCROMBIE.

The United States government, about the year 1858, erected a military post on the west side of the Red River of the North, at a place then known as Graham's Point, between what are now known as the cities of Breckenridge and Fargo. Like most of the frontier posts of that day, it was not constructed with reference to defense, but more as a depot for troops and military stores. It was then in the midst of the Indian country, and is now in Richland county, North Dakota. The troops that had garrisoned the fort had been sent south to aid in suppressing the Southern rebellion, and their places had been supplied by one company of the Fifth Regiment of Minnesota Volunteers, which was commanded by Capt. John Van der Horck. There was a place down the river, and north of the fort, about fifty miles, called Georgetown, at which there were some settlers, and a depot of stores for the company engaged in the navigation of the river. At the commencement of the outbreak Captain Van der Horck had detached about one-half of his company, and sent them to Georgetown, to protect the interests centered at that point.

About the 20th of August news reached Abercrombie from the Yellow Medicine agency that trouble was expected from the Indians. An expedition was on the way to Red lake to make a treaty with the Chippewa Indians, consisting of the government commissioners and party, accompanied by a train of thirty loaded wagons and a herd of two hundred cattle. On the 23d of August, news reached Fort Abercrombie that a large body of Indians were on the way to capture this party. A courier was at once dispatched to the train, and it sought refuge in the fort. Runners were also sent to all the settlements in the vicinity, and the warning spread of the approaching danger. Happily nearly all of the surrounding people reached the fort before the arrival of the enemy. The detachment stationed at Georgetown was also called in. A mail coach that left the fort on the 22d, fell into the hands of the Indians, who killed the driver and destroyed the mail.

The garrison had been strengthened by about fifty men capable of duty from the refugees, but they were unarmed. Captain Van der Horck

strengthened his post by all means in his power, and endeavored to obtain reinforcements. Captain Freeman, with about sixty men, started from St. Cloud, on the Mississippi, to relieve the garrison at Abercrombie, but on reaching Sauk Center the situation appeared so alarming that it was deemed imprudent to proceed with so small a force, and no addition could be made to it at Sauk Center. Attempts were made to reinforce the fort from other points. Two companies were sent from Fort Snelling, and got as far as Sauk Center, but the force was even then deemed inadequate to proceed to Abercrombie. Part of the Third Regiment was also dispatched from Snelling to its relief on September 6th. Another expedition, consisting of companies under command of Captains George Atkinson and Rollo Banks, with a small squad of about sixty men of the Third Regiment, under command of Sergeant Dearborn, together with a field piece under Lieutenant Robert J. McHenry, was formed, and placed under the command of Capt. Emil A. Burger. This command started on September 10th, and after a long and arduous march, reached the fort on the 23d of September, finding the weakened and anxious garrison still in possession. Captain Burger had been reinforced at Wyman's station, on the Alexandria road, on the 19th of September, by the companies under Captains Freeman and Barrett, who had united their men on the 14th, and started for the fort. The relief force amounted to quite four hundred men by the time it reached its destination.

While this long delayed force was on its way the little garrison at the fort had its hands full to maintain its position. On the 30th of August a large body of Indians made a bold raid on the post, and succeeded in stampeding and running off nearly two hundred head of cattle and one hundred head of horses and mules which were grazing on the prairie. Some fifty of the cattle afterwards escaped, and were restored to the post by a scouting party. This band of marauders did not, however, attack the fort. No one who has not experienced it can appreciate the mortification of seeing an enemy despoil you of your property when you are powerless to resist. An attack was made on the fort on the 3d of September, and some stacks burned and a few horses captured. Several men were killed on both sides, and Captain Van der Horck was wounded in the right arm from an accidental shot from one of his own men. On September 6th a second attack was made by a large force of Indians, which lasted nearly all day, in which we lost two men and had several wounded. No further attack was made until the 26th of

September, when Captain Freeman's company was fired on while watering their horses in the river. These Indians were routed and pursued by Captain Freeman's company, and a squad of the Third Regiment men, with a howitzer. Their camp was captured, which contained quite an amount of plunder. A light skirmish took place on the 29th of September, in which the enemy was routed, and this affair ended the siege of Fort Abercrombie.

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CAMP RELEASE.

Colonel Sibley's command made Camp Release on the 26th of September. This camp was in the near vicinity of a large Indian camp of about 150 lodges. These Indians were composed of Upper and Lower Sioux, and had generally been engaged in all the massacres that had taken place since the outbreak. They had with them some 250 prisoners, composed of women and children, whites and half-breeds. Only one white man was found in the camp, George Spencer, who had been desperately wounded at the Lower Agency, and saved from death by an Indian friend of his.

The desire of the troops to attack and punish these savages was intense, but Colonel Sibley kept steadily in mind that the rescue of the prisoners was his first duty, and he well knew that any demonstration of violence would immediately result in the destruction of the captives. He therefore wisely overruled all hostile inclinations. The result was a general surrender of the whole camp, together with all the prisoners. As soon as the safety of the captives was assured, inquiry was instituted as to the participation of these Indians in the massacres and outrages which had been so recently perpetrated. Many cases were soon developed of particular Indians, who had been guilty of the grossest atrocities, and the commander decided to form a military tribunal to try the offenders.

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TRIAL OF THE INDIANS.

The state has reason to congratulate itself on two things in this connection. First, that it had so wise and just a man as Colonel Sibley to select this important tribunal, and, second, that he had at his command such admirable material from which to make his selection. It must be remembered that this court entered upon its duties with the lives of hundreds of men at its absolute disposal. Whether they were Indians or any other kind of people, the fact must not be overlooked that they were human beings, and the responsibility of the tribunal was correspondingly great. Colonel Sibley at this date sent me a dispatch, declaring his intention in the matter of the result of the trials. It is as follows:

"CAMP RELEASE, NINE MILES BELOW LAC QUI PARLE,

Sept. 25, 1862.

"Colonel: [After speaking of a variety of matters concerning the disposition of troops who were in my command, the battle of Wood Lake (which he characterized as "A smart conflict we had with the Indians"), the rescue of the prisoners and other matters, he adds:]

"N. B.—I am encamped near a camp of 150 lodges of friendly Indians and half-breeds, but have had to purge it of suspected characters. I have apprehended sixteen supposed to have been connected with the late outrages, and have appointed a military commission of five officers to try them. If found guilty they will be forthwith executed, although it will perhaps be a stretch of my authority. If so, necessity must be my justification.

"Yours,
"H. H. SIBLEY."

On the 28th of September an order was issued convening this court martial. It was composed of William Crooks, colonel of the Sixth Regiment, president; William R. Marshall, lieutenant colonel of the Seventh Regiment; Captains Grant and Baily of the Sixth, and Lieutenant Olin of the Third. Others were subsequently added as necessity required. All these men were of mature years, prominent in their social and general standing as citizens, and as well equipped as any persons could be to engage in such work. What I regard as the most important feature in the composition of this most extraordinary court is the fact that the Hon. Isaac V. D. Heard, an experienced lawyer of St. Paul, who had been for many years the prosecuting attorney of Ramsey county, and who was thoroughly versed in criminal law, was on the staff of Colonel Sibley, and was by him appointed recorder of the court. Mr. Heard, in the performance of his duty, was above prejudice or passion, and could treat a case of this nature as if it was a mere misdemeanor. Lieutenant Olin was judge advocate of this court, but as the trials progressed the evidence was all put in and the records kept by Mr. Heard. Some changes were made in the personnel of the court from time to time as the officers were needed elsewhere, but none of the changes lessened the dignity or character of the tribunal. I make these comments because the trials took place at a period of intense excitement, and persons unacquainted with the facts may be led to believe that the court was "organized to convict," and was unfair in its decisions.

The court sat some time at Camp Release, then at the Lower Agency, and Mankato, where it investigated the question whether the Winnebagoes had participated in the outbreak; but none of that tribe were implicated, which proves that the court acted judicially, and not upon unreliable evidence, as the country was full of rumors and charges that the Winnebagoes were implicated. The court terminated its sittings at Fort Snelling, after a series of sessions lasting from Sept. 30 to Nov. 5, 1862, during which 425 prisoners were arraigned and tried. Of these 321 were found guilty of the offenses charged, of whom 303 were sentenced to death, and the rest to various terms of imprisonment according to the nature of their crimes. The condemned prisoners were removed to Mankato, where they were confined in a large guardhouse, constructed of logs for the purpose, and were guarded by a strong force of soldiers. On the way down, as the party having charge of the prisoners passed through New Ulm they found the inhabitants

disinterring the dead, who had been hastily buried in the streets where they fell during the fights at that place. The sight of the Indians so enraged the people that a general attack was made on the wagons in which they were chained together. The attacking force was principally composed of women, armed with clubs, stones, knives, hot water and similar weapons. Of course, the guard could not shoot or bayonet a woman, and they got the prisoners through the town with the loss of one killed and many battered and bruised.

While this court martial was in session the news of its proceedings reached the eastern cities, and a great outcry was raised, that Minnesota was contemplating a dreadful massacre of Indians. Many influential bodies of well-intentioned but ill-informed people beseeched President Lincoln to put a stop to the proposed executions. The president sent for the records of the trials, and turned them over to his legal and military advisors to decide which were the more flagrant cases. On the sixth day of December, 1862, the president made the following order:

"EXECUTIVE MANSION, WASHINGTON, D. C.,
"Dec. 6, 1862.

"Brigadier General Henry H. Sibley, St. Paul, Minn.:

"Ordered, that of the Indians and half-breeds sentenced to be hanged by the military commission, composed of Colonel Crooks, Lieutenant Colonel Marshall, Captain Grant, Captain Bailey and Lieutenant Olin, and lately sitting in Minnesota, you cause to be executed on Friday, the nineteenth day of December, instant, the following named, to-wit:

(Here follow the names of thirty-nine Indians, and their numbers on the record of conviction.)

"The other condemned prisoners you will hold, subject to further orders, taking care that they neither escape nor are subjected to any unlawful violence.

"ABRAHAM LINCOLN,
"President of the United States."

Colonel Sibley had been appointed, by President Lincoln, a brigadier general, on the 29th of September, 1862, on account of his success at the battle of Wood Lake, the announcement of his promotion being in a telegram, as follows:

"Washington, D. C., Sept. 29, 1862.

"Major General Pope, St. Paul, Minn.,

"Colonel Henry H. Sibley is made a brigadier general for his judicious fight at Yellow Medicine. He should be kept in command of that column, and every possible assistance sent to him.

"H. W. HALLECK,
"General in Chief."

His commission as brigadier general was not issued until March 26, 1864, but, of course, this telegram amounted to an appointment to the position, and if accepted, as it was, made him subject to the orders of the president; so, notwithstanding his dispatch to me, stating that the Indians, if convicted, would be forthwith executed, he could not very well carry out such an extreme duty without first submitting it to the federal authorities, of which he had become a part.

My view of the question has always been that, when the court martial was organized, Colonel Sibley had no idea that more than twenty or twenty-five of the Indians would be convicted, which is partly inferrable from his dispatch to me, in which he said he had "apprehended sixteen supposed to have been connected with the late outrages." But when the matter assumed the proportions it did, and he found on his hands some three hundred men to kill, he was glad to shift the responsibility to higher authority. Any humane man would have been of the same mind. I have my own views, also, of the reasons of the general government in eliminating from the list of the condemned all but thirty-nine. It was not because these thirty-nine were more guilty than the rest, but because we were engaged in a great civil war, and the eyes of the world were upon us. Had these three hundred men been executed, the charge would have undoubtedly been made by the South, that

the North was murdering prisoners of war, and the authorities at Washington, knowing full well that the other nations were not capable of making the proper discrimination, and perhaps not anxious to do so if they were, deemed it safer not to incur the odium which might follow from such an accusation.

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EXECUTION OF THE THIRTY-EIGHT CONDEMNED INDIANS.

The result of the matter was that the order of the president was obeyed, and on the 26th of December, 1862, thirty-eight of the condemned Indians were executed, by hanging, at Mankato, one having been pardoned by the president. Contemporaneous history, or, rather, general public knowledge, of what actually occurred, says that the pardoned Indian was hanged, and one of the others liberated by mistake. As an historian, I do not assert this to be true, but as a citizen, thoroughly well informed of current events at the time of this execution, I believe it to be a fact. The hanging of the thirty-eight was done on one gallows, constructed in a square form, capable of sustaining ten men on each side. They were placed upon a platform facing inwards, and dropped all at once by the cutting of a rope. The execution was successful in all its details, and reflects credit on the ingenuity and engineering skill of Captain Burt of Stillwater, who was intrusted with the construction of the deadly machine. The rest of the condemned Indians were, after some time, taken down to Davenport in Iowa, and held in confinement until the excitement had generally subsided, when they were sent west of the Missouri and set free. An Indian never forgets what he regards as an injury, and never forgives an enemy. It is my opinion that all the troubles that have taken place since the liberation of these Indians, with the tribes inhabiting the western plains and mountains, up to a recent date, have grown out of the evil counsels of these savages. The only proper course to have pursued with them, when it was decided not to hang them, was to have exiled them to some remote post,—say, the Dry Tortugas,—where communication with their people would have been impossible, set them to work on fortifications or other public works, and allowed them to pass out by life limitation.

The execution of these Indians practically terminated the campaign for the year 1862, no other event worthy of detailed record having occurred; but the Indian war was far from being over, and it was deemed prudent to keep within the state a sufficient force of troops to successfully resist all further

attacks, and to inaugurate an aggressive campaign in the coming year. The whole of the Sixth, Seventh and Tenth Regiments, the Mounted Rangers, some artillery organizations, scouts and other troops were wintered in the state at various points along the more exposed frontier, and in 1863 a formidable expedition, under command of General Sibley, was sent from Minnesota to crush the enemy, which was to be aided and cooperated with, by another expedition, under Gen. Alfred Sully, of equal proportions, which was to start from Sioux City, on the Missouri. After the attack at Birch Coulie and its relief, Little Crow, with a large part of his followers, branched off, and went to the vicinity of Acton, and there attacked the command under Capt. Richard Strout, where a severe battle was fought, in which several of Captain Strout's men were killed. On the 3d of July, 1863, Crow ventured down to the neighborhood of Hutchinson, with his young son, probably to get something which he had hidden, or to steal horses, and while he was picking berries, a farmer named Lamson, who was in search of his cows, saw him and shot him dead. His scalp now decorates the walls of the Minnesota Historical Society.

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THE CAMPAIGN OF 1863.

The remnant of Little Crow's followers were supposed to be rendezvoused at Devil's lake, in Dakota Territory, and reinforced by a large body of the Upper Sioux. An expedition against them was devised by General Pope, to be commanded by General Sibley. It was to assemble at a point near the mouth of the Redwood river, some twenty-five miles above Fort Ridgely. On the 7th of June, 1863, General Sibley arrived at the point of departure, which was named Camp Pope, in honor of the commanding general. The force composing the expedition was as follows: One company of pioneers, under Captain Chase; ten companies of the Sixth Regiment, under Colonel Crooks; eight companies of the Tenth Regiment, under Colonel Baker; nine companies of the Seventh, under Lieutenant Colonel Marshall; eight pieces of artillery, under Captain Jones; nine companies of Minnesota Mounted Rangers, under Colonel McPhail; seventy-five Indian scouts under Major Brown, George McLeod and Major Dooley; in all 3,052 infantry, 800 cavalry and 148 artillerymen. The command, from the nature of the country it had to traverse, was compelled to depend upon its own supply train, which was composed of 225 six-mule wagons. The staff was complete, consisting of Adjutant General Olin, Brigade Commissary Forbes, Assistant Commissary and Ordnance Officer Atchison, Commissary Clerk Spencer, Quartermaster Corning, Assistant Quartermaster Kimball, Aides-de-camp Lieutenants Pope, Beever, Hawthorne and A. St. Clair Flandrau, Chaplain, Rev. S. R. Riggs.

The column moved from Camp Pope on June 16, 1863. The weather was intensely hot, and the country over which the army had to march was wild and uninhabited. At first the Indians retreated in the direction of the British line, but it was discovered that their course had been changed to the direction of the Missouri river. They had probably heard that General Sully had been delayed by low water and hoped to be able to cross to the west bank of that stream before his arrival to intercept them, with the future hope that they would, no doubt, be reenforced by the Sioux inhabiting the country west of the Missouri. On the 4th of July the expedition reached the Big Bend of the Cheyenne river. On the 17th of July Colonel Sibley

received reliable information that the main body of the Indians was moving toward the Missouri, which was on the 20th of July confirmed by a visit at Camp Atchison of about three hundred Chippewa half-breeds, led by a Catholic priest named Father Andre. On becoming satisfied that the best fruits of the march could be attained by bending towards the Missouri, the general decided to relieve his command of as much impedimenta as was consistent with comfort and safety and would increase the rapidity of its movements. He therefore established a permanent post at Camp Atchison, about fifty miles southeasterly from Devil's lake, where he left all the sick and disabled men, and a large portion of his ponderous train, with a sufficient guard to defend them if attacked. He then immediately started for the Missouri, with 1,436 infantry, 520 cavalry, 100 pioneers and artillerymen, and twenty-five days' rations. On the 22nd he crossed the James river, forty-eight miles west of Camp Atchison, and on the 24th reached the vicinity of Big Mound, beyond the second ridge of the Missouri coteau. Here the scouts reported large bodies of Indians, with Red Plume and Standing Buffalo among them.

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BATTLE OF BIG MOUND.

The general, expecting an attack on the 24th, corralled his train, and threw up some earthworks to enable a smaller force to defend it. The Indians soon appeared. Dr. Weiser, surgeon of the First Rangers, supposing he saw some old friends among them, approached too close and was instantly killed. Lieutenant Freeman, who had wandered some distance from the camp, was also killed. The battle opened at three p. m., in the midst of a terrific thunderstorm, and after some sharp fighting, the Indians, numbering about fifteen hundred, fled in the direction of their camp, and were closely pursued. A general panic ensued, the Indian camp was abandoned, and the whole throng, men, women and children, fled before the advancing forces. Numerous charges were made upon them, amidst the roaring of the thunder and the flashing of the lightning. One private was killed by lightning, and Colonel McPhail's saber was knocked out of his grasp by the same force.

The Indians are reported to have lost in this fight, eighty killed and wounded. They also lost nearly all their camp equipment. They were pursued about fifteen miles, and had it not been for a mistake in the delivery of an order by Lieutenant Beever, they would undoubtedly have been overtaken and destroyed. The order was to bivouac where night caught the pursuing troops, but was misunderstood to return. This unfortunate error gave the Indians two days' start, and they put a wide gap between themselves and the troops. The battle of Big Mound, as this engagement was called, was a decided victory, and counted heavily in the scale of advantage, as it put the savages on the run and disabled them from prosecuting further hostilities.

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BATTLE OF DEAD BUFFALO LAKE.

On the 26th the command again moved in the direction of the fleeing Indians. Their abandoned camp was passed on that day early in the morning. About noon large bodies of the enemy were discovered, and a brisk fight ensued. Attacks and counter attacks were made, and a determined fight kept up until about three p. m., when a bold dash was made by the Indians to stampede the animals which were herded on the banks of a lake, but the attempt was promptly met and defeated. The Indians, foiled at all points, and having lost heavily in killed and wounded, retired from the field. At night earthworks were thrown up to prevent a surprise, but none was attempted, and this ended the battle of Dead Buffalo Lake.

The general was now convinced that the Indians were going toward the Missouri, with the intention of putting the river between them and his command, and, expecting General Sully's force to be there to intercept them, he determined to push them on as rapidly as possible, inflicting all the damage he could in their flight. The campaign was well conceived, and had Sully arrived in time, the result would undoubtedly have been the complete destruction or capture of the Indians. But low water delayed Sully to such an extent that he failed to arrive in time, and the enemy succeeded in crossing the river before General Sibley could overtake them.

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BATTLE OF STONY LAKE.

On the 28th of July Indians were again seen in large numbers. They endeavored to encircle the troops. They certainly presented a force of two thousand fighting men, and must have been reinforced by friends from the west side of the Missouri. They were undoubtedly fighting to keep the soldiers back until their families could cross the river. The troops were well handled. A tremendous effort was made to break our lines, but the enemy was repulsed at all points. The artillery was effective, and the Indians finally fled in a panic and rout towards the Missouri. They were hotly pursued, and, on the 29th, the troops crossed Apple creek, a small stream a few miles from the present site of Bismarck, the capital of North Dakota, and pushing on, struck the Missouri at a point about four miles above Burnt Boat Island. The Indians had succeeded in crossing the river with their families, but in a very demoralized condition as to supplies and camp equipage. They were plainly visible on the bluffs on the opposite side. It was here that Lieutenant Beever lost his life while carrying an order. He missed the trail and was ambushed and killed. He was a young Englishman who had volunteered to accompany the expedition, and whom General Sibley had placed upon his staff as an aide.

Large quantities of wagons and other material, abandoned by the Indians in their haste to cross the river, were destroyed. The bodies of Lieutenant Beever and a private of the Sixth Regiment, who was killed in the same way, were recovered and buried. It was clear that the Indians, on learning of the magnitude of the expedition, never contemplated overcoming it in battle, and made their movements with reference to delaying its progress, while they pushed their women and children toward and across the river, knowing there was no resting place for them on this side. They succeeded admirably, but their success was solely attributed to the failure of General Sully to arrive in time. General Sibley's part of the campaign was carried out to the letter, and every man in it, from the commander to the private, is entitled to the highest praise.

On August 1st the command broke camp for home. As was learned afterwards, General Sully was then distant down the river 160 miles. His delay was no fault of his, as it was occasioned by insurmountable obstacles. The march home was a weary but uneventful one. The campaign of 1863 may be summed up as follows: The troops marched nearly 1,200 miles. They fought three well-contested battles. They drove from eight to ten thousand Indians out of the state, and across the Missouri river. They lost only seven killed and three wounded, and inflicted upon the enemy so severe a loss that he never again returned to his old haunts. For his meritorious services General Sibley was appointed a major general by brevet on Nov. 29, 1865, which appointment was duly confirmed by the senate, and he was commissioned on April 7, 1866.

In July, 1863, a regiment of cavalry was authorized by the secretary of war to be raised by Major E. A. C. Hatch, for duty on the northern frontier. Several companies were recruited and marched to Pembina, on the extreme northern border, where they performed valuable services, and suffered incredible hardships. The regiment was called Hatch's Battalion.

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CAMPAIGN OF 1864.

The government very wisely decided not to allow the Indian question to rest upon the results of the campaign of 1863, which left the Indians in possession of the country west of the Missouri, rightly supposing that they might construe their escape from General Sibley the previous year into a victory. It therefore sent out another expedition in 1864, to pursue and attack them beyond the Missouri. The plan and outfit were very similar to those of 1863. General Sully was again to proceed up the Missouri with a large command, and meet a force sent out from Minnesota, which forces when combined were to march westward, and find and punish the savages if possible. The expedition, as a whole, was under the command of General Sully. It consisted of two brigades, the first composed of Iowa and Kansas infantry and cavalry, and Brackett's Battalion, to the number of several thousand, which was to start from Sioux City and proceed up the Missouri in steamboats. The second embraced the Eighth Regiment of Minnesota Volunteer Infantry, under Colonel Thomas, mounted on ponies; the Second Minnesota Cavalry, under Colonel MacLaren; the Third Minnesota Battery, under Captain Jones. The Second Brigade was commanded by Colonel Thomas. This brigade left Fort Snelling on June 1st, and marched westward. General Sibley and staff accompanied it as far as Fort Ridgely. On the 9th of June it passed Wood Lake, the scene of the fight in 1862. About this point it overtook a large train of emigrants on their way to Idaho, who had with them 160 wagon loads of supplies. This train was escorted to the Missouri river safely. The march was wearisome in the extreme, with intensely hot weather and very bad water, and was only enlivened by the appearance occasionally of a herd of buffalo, a band of antelope, or a straggling elk. The movements of the command were carefully watched by flying bands of Indians during its whole march. On July 1st the Missouri was reached at a point where now stands Fort Rice. General Sully and the First Brigade had arrived there the day before. The crossing was made by the boats that brought up the First Brigade. The column was immediately directed toward Cannon Ball river, where 1,800 lodges of Indians were reported to be camped. The Indians fled before the approaching troops. On

the last of July the Heart river was reached, where a camp was formed, and the tents and teams left behind. Thus relieved, the command pressed forward for an Indian camp eighty miles northward. On the 2d of August the Indians were found in large numbers on the Big Knife river, in the Bad lands. These were Unca-Papa Sioux, who had murdered a party of miners from Idaho the year before, and had given aid and comfort to the Minnesota refugee Indians. They were attacked, and a very spirited engagement ensued in which the enemy was badly beaten and suffered severe losses. The place where this battle was fought was called Ta-ka-ho-ku-tay, or "The bluff where the man shot the deer."

On the next day, August 3d, the command moved west through the Bad Lands, and just as it emerged from this terribly ragged country it was sharply attacked by a large body of Indians. The fight lasted through two days and nights, when the enemy retired in haste. They were very roughly handled in this engagement.

General Sully then crossed to the west side of the Yellowstone river, where the weary soldiers found two steamboats awaiting them, with ample supplies. In crossing this rapid river the command lost three men and about twenty horses. From this point they came home by the way of Forts Union, Berthold and Stevenson, reaching Fort Rice on the 9th of September.

On this trip General Sully located Forts Rice, Stevenson and Berthold.

On reaching Fort Rice, considerable anxiety was felt for Colonel Fisk, who, with a squad of fifty troops, had left the fort as an escort for a train of Idaho immigrants, and had been attacked 180 miles west of the fort, and had been compelled to intrench. He had sent for reinforcements, and General Sully sent him three hundred men, who extricated him from his perilous position.

The Minnesota brigade returned home by way of Fort Wadsworth, where they arrived on September 27th. Here Major Rose, with six companies of the Second Cavalry, was left to garrison the post, the balance of the command reaching Fort Snelling on the 12th of October.

In June, 1865, another expedition left Minnesota for the west, under Colonel Callahan of Wisconsin, which went as far as Devil's lake. The first, second and fourth sections of the Third Minnesota battery accompanied it.

Again, in 1866, an expedition started from Fort Abercrombie, which included the first section of the Third Battery, under Lieutenant Whipple. As no important results followed from these two latter expeditions, I only mention them as being parts of the Indian war.

The numbers of Indians engaged in this war, together with their superior fighting qualities, their armament, and the country occupied by them gives it rank among the most important of the Indian wars fought since the first settlement of the country on the Atlantic coast. But when viewed in the light of the number of settlers massacred, the amount of property destroyed, and the horrible atrocities committed by the savages, it far surpasses them all.

I have dwelt upon this war to such an extent because I regard it as the most important event in the history of our state, and desire to perpetuate the facts more especially connected with the gallant resistance offered by the settlers in its inception. Not an instance of timidity is recorded. The inhabitants engaged in the peaceful pursuits of agriculture, utterly unprepared for war, sprang to the front on the first indication of danger, and checked the advance of the savage enemy in his initial efforts. The importance of battles should never be measured by the number engaged, or the lists of killed and wounded, but by the consequences of their results. I think the repulse of the Indians at Fort Ridgely and New Ulm saved the State of Minnesota from a disaster the magnitude of which cannot be estimated. Their advance was checked at the very frontier, and they were compelled to retreat, thus affording time and opportunity for the whites to organize for systematic action. Had they not met with this early check, it is more than probable that the Chippewas on the Upper Mississippi and the Winnebagoes in the Lower Minnesota valley would have joined them, and the war have been carried into the heart of the state. Instances of a similar character have occurred in our early wars which illustrate my position. The battle of Oriskany, which was fought in the Revolutionary War in the valley of the Mohawk, between Rome and Utica, was not more of an encounter than Ridgely or New Ulm, yet it has been characterized as one of the decisive battles of the world, because it prevented a junction of the British forces under St. Ledger in the west and Burgoyne in the east, and made American independence possible. The State of New York recognized the value of Oriskany just one hundred years after the battle was fought, by the erection of a monument to commemorate it. The State of Minnesota has done better, by erecting

imposing monuments on both the battlefields of Ridgely and New Ulm, the inscriptions on which give a succinct history of the respective events.

The state also presented each of the defenders of Fort Ridgely with a handsome bronze medal, especially struck for the purpose, the presentation of which took place at the time of the dedication of the monument, on the twentieth day of August, 1896.

The medal has a picture of the fort on its obverse side, surrounded by the words, "Defender of Fort Ridgely, August 18-27, 1862." Just over the flag staff, in a scroll, is the legend, in Sioux, "Ti-yo-pa-na-ta-ka-pi," which means, "It shut the door against us," referring to the battle having obstructed the further advance of the Indians. This was said by one of the Indians in the attacking party in giving his view of the effect of the repulse, and adopted by the committee having charge of the preparation of the medal as being appropriate and true. On the reverse side are the words, "Presented by the State of Minnesota to——," encircled by a wreath of moccasin flowers, which is the flower of the state.

The state has also placed monuments at Birch Coulie, Camp Release and Acton. I regret to be compelled to say that a majority of the committee having charge of the building of the Birch Coulie monument so far failed in the performance of their duties as to the location of the monument and formulating its inscriptions that the legislature felt compelled to pass an act to correct their errors. The correction has not yet been made, but in the cause of true history it is to be hoped that it will be in the near future. The state also erected a handsome monument, in the cemetery of Fort Ridgely, to Captain Marsh and the twenty-three men of his company that were killed at the ferry, near the Lower Sioux Agency, on Aug. 18, 1862, and, by special act, passed long after at the request of old settlers, added the name of Peter Quinn, the interpreter, who was killed at the same time and place. The state also built a monument in the same cemetery in remembrance of the wife of Dr. Muller, the post surgeon at Ridgely during the siege, on account of the valuable services rendered by her in nursing the wounded soldiers.

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A LONG PERIOD OF PEACE AND PROSPERITY.

After the stirring events of the Civil and Indian wars Minnesota resumed its peaceful ways, and continued to grow and prosper for a long series of years, excepting the period from 1873 to 1876, when it was afflicted with the plague of grasshoppers. Possessed of the many advantages that nature has bestowed upon it, there was nothing else for it to do. The state, as far as it was then developed, was exclusively agricultural, and wheat was its staple production, although almost every character of grain and vegetable can be produced in exceptional abundance. Potatoes of the first quality were among its earliest exports, but that crop is not sufficiently valuable or portable to enter extensively into the catalogue of its productions, beyond the needs of domestic use.

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INTRODUCTION OF THE NEW PROCESS OF MILLING WHEAT.

The wheat raised in Minnesota was, and always has been, of the spring variety, and up to about the year 1874 was regarded in the markets of the world as an inferior article of grain, when compared with the winter wheat of states further south, and the flour made from it was also looked upon as much less valuable than its competitor, made from winter wheat. The state labored under this disability in realizing upon its chief product for many years, both in the wheat, and the flour made from it. Many mills were erected at the Falls of St. Anthony, with a very great output of flour, which, with the lumber manufactured at that point, composed the chief export of the state. The process of grinding wheat was the old style, of an upper and nether millstone, which left the flour of darker color, less nutritious, and less desirable than that from the winter wheat made in the same way. About the year 1871 it was discovered that a new process of manufacturing flour was in operation on the Danube and at Budapest. Mr. George H. Christian, a partner of Gov. C. C. Washburn in the milling business at Minneapolis, studied the invention, which consisted of crushing the wheat by means of rollers made of steel and porcelain, instead of grinding it, as of old, to which the French had added a new process of eliminating the bran specs from the crushed product, by means of a flat oscillating screen or bolt with an upward blast of air through it, upon which the crushed product was placed and cleansed of all bran impurities. In 1871 Gen. C. C. Washburn and Mr. Christian introduced this French invention into their mills in Minneapolis, and derived from it great advantage in the appearance and value of their flour. This was called a "middlings purifier." In 1874 they introduced the roller crushing process, and the result was, that the hard spring wheat returned a flour superior to the product of the winter wheat, and placed Minnesota upon more than an equality with the best flour-producing states in the Union. This process has been universally adopted throughout the United States in all milling localities, with great advantage to that industry.

It is a rather curious fact that, as all our milling knowledge was originally inherited from England, which country is very sluggish in the adoption of new methods, it was not until our improved flour reached that country that the English millers accepted the new method, and have since acted upon it. It is a case of the pupil instructing his preceptor.

I regard the introduction of these improvements in the manufacture of flour into this state as of prime importance to its growth and increase of wealth and strength. It is estimated by the best judges that the value of our spring wheat was increased at least twenty per cent by their adoption, and when we consider that the state produced, in 1898, 78,418,000 bushels of wheat, its magnitude can be better appreciated. It formerly required five bushels of wheat to make a barrel of flour; under the new process it only takes four bushels and seven pounds to make a barrel of the same weight—196 pounds.

The only record that is kept of flour in Minnesota is for the two points of Minneapolis and the head of the lakes; the latter including Duluth, and Superior, in Wisconsin. The output of Minneapolis for the crop year of 1898-99 was 15,164,881 barrels, and for Duluth-Superior for the same period 2,637,035 barrels. The estimate for the whole state is 25,000,000 barrels. These figures are taken from the *Northwestern Miller*, a reliable publication in Minneapolis.

The credit of having introduced the Hungarian and French processes into Minnesota is due primarily to the late Gov. C. C. Washburn of La Crosse, Wis., who was greatly aided by his partner at the time, Mr. George H. Christian of Minneapolis.

While I am convinced that the credit of first having introduced these valuable inventions into Minnesota belongs to Gov. C. C. Washburn and his partner Mr. George H. Christian, I am in justice bound to add that Gov. John S. Pillsbury and the late Mr. Charles A. Pillsbury, who were large and enterprising millers at Minneapolis, owning the Excelsior Mills, immediately after its introduction adopted the process, and put it into their mills, and by employing American skilled artisans and millers to set up and operate their machinery, succeeded in securing the first absolutely perfect automatic mill of the new kind in the country. General Washburn, having

imported Hungarian millers to start and operate his experimental mills, found himself somewhat handicapped by their inefficiency and sluggishness in adopting American ways and customs.

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THE DISCOVERY OF IRON.

From the earliest days of the territory the people had predicted the growth of cities at several points. At St. Paul, because it was the head of navigation of the Mississippi river; at St. Anthony, on account of its great water power; at Superior, as being the head of navigation of the Great Lakes system; and at Mankato, from its location at the great bend of the Minnesota river. It must be remembered that when these prophecies were made Minneapolis and Duluth had no existence, and Superior was the natural outlet of the St. Louis river into Lake Superior, and had its land titles not been so complicated when the railroad from St. Paul to the head of the lakes was projected, there is no doubt Superior would have been the terminus of the road; but it was found to be almost impossible to procure title to any land in Superior, on account of its having been sold by the proprietors in undivided interests to parties all over the country, and it was situated in Wisconsin, so the railroad people procured the charter of the company to make its northern terminus on the Minnesota side of the harbor, where Duluth now stands, and founded that town as the terminus of the road. Some years after Minnesota Point was cut by a canal at its base, or shore end, and the entrance to the harbor changed from its natural inlet, around the end of the point, to this canal. This improvement has proved to be of vast importance to the city of Duluth and to the shipping interests of the state, as the natural entrance was difficult and dangerous.

Duluth increased in importance from year to year by reason of the natural advantages of its situation, as the outlet of much of the exports of the state and the inlet of a large portion of its imports. As railroads progressed, it became connected with the wheat producing areas of the state, which resulted in the erection of elevators for the shipment of wheat and mills to grind it. As nearly all the coal consumed in the state came in by the gateway of Duluth, immense coal docks were constructed, with all the modern inventions for unloading it from ships and loading it on cars for distribution. Duluth soon attained metropolitan proportions. About the year 1870 Mr. George C. Stone became a resident of the city, and engaged in business.

In 1873 Jay Cooke, who had been an important factor in the construction of the Northern Pacific Railroad, failed, which was a serious blow to Duluth. Mr. Stone had given his attention largely to the investigation of the mineral resources of the Lake Superior region in Minnesota, and had become convinced of the presence of large beds of iron ore in its northeastern portion, now known as the Vermillion Range. When he first made known his discovery, the location of the ore was so remote from civilization that he found it difficult to interest any one in his enterprise. Few shared his faith, but undismayed by lack of support, he undertook, with steady persistence, the task of securing the capital necessary to develop what he was convinced was a great natural wealth-producing field. Comparatively alone, and with little encouragement at home, he visited the money centers of the country, and assiduously labored to induce men of capital to embark in the enterprise, but found it to be uphill work.

The first men whose support he secured were Charlemagne Tower of Pottsville, Pa., and Samuel A. Munson of Utica, N. Y., both men of education and great wealth. They became sufficiently interested to secure a proper test of the matter. Professor Chester of Hamilton College was sent out on two occasions. Mr. Munson died, and after the lapse of a few years Charlemagne Tower, then a resident of Philadelphia, undertook to furnish the necessary funds to make the development, which involved the expense of \$4,000,000 in building a railroad eighty miles in length, with docks and other operating facilities.

The railroad was opened in July, 1884, and there was shipped that season 62,124 tons of ore, and in 1885 the shipment reached 225,000 tons. In 1886 304,000 tons were shipped; in 1887, 394,000 tons; in 1888, 512,000. The output of the iron mines at and about the head of the lakes had, by 1898, grown to the enormous quantity of 5,871,801 tons. The grade of the ore is the highest in the market. This product is one of the most important in the state, and seems destined to expand indefinitely.

No better idea of the growth and importance of Duluth, and, in the same connection, the advance of the state, since the war, can be presented than by a statement of a few aggregates of different industries centered at the head of the lakes. The most recent record obtainable is for the year 1898. For example:

Lumber cut	544,318,000 feet.
Coal received	2,500,000 tons.
Number of vessels arrived and cleared	12,150
Wheat received, and flour as wheat	82,118,129 bushels.
Other grain	19,428,622 bushels.
Flour manufactured	2,460,025 barrels.
Capacity of elevators	24,650,000 bushels.
Capacity of flour mills per day	22,000 barrels.

Many other statistics could be given, but the above are sufficient to show the unexampled growth of the state in that vicinity.

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COMMERCE THROUGH THE ST. MARY'S FALLS CANAL.

Another very interesting and instructing element in considering the growth of Minnesota is the commerce passing through the St. Mary's Canal, which connects Lake Superior with Lakes Huron and Michigan, the greater part of which is supplied by Minnesota. No record of the number of sailing vessels or steamers passing through the canal was kept until the year 1864. During that year there were 1,045 sailing vessels, and 366 steamers. The last report for the year 1898 shows an increase of sailing vessels to 4,449 and of steamers to 12,461. The first record of the net tons of freight passing the canal was opened in 1881, which showed an aggregate of 1,567,741 net tons of all kinds of freight. In 1898 it had grown to the enormous sum of 21,234,664 tons. These figures, like distances in astronomical calculations, require a special mental effort to fully comprehend them. An incident occurred in September, 1899, in connection with this canal traffic, that assists in understanding its immense proportions. By an accident to a steamer, the channel of the river was blocked for a short time, until she could be removed, during which time a procession of waiting steamers was formed forty miles in length.

I have been unable to obtain any reliable figures with which to present a contrast between the commerce of this canal and that of the Suez, connecting the Mediterranean with the Red Sea, but it is generally estimated that the St. Mary's largely exceeds the Suez, although the commerce of the world with the Orient and Australia largely passes through the latter.

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AGRICULTURE.

In the early days of Minnesota its agricultural population was largely centered in the southeastern portion of the state. The soil was exceptionally fertile, and produced wheat in unusual abundance. The Western farmer of early days was a careless cultivator, thinking more of the immediate results than permanent preservation of his land. Even if he was of the conservative old New England stock, the generous soil of the West, the freedom from social restraint, and the lessened labors of the farm, led him into more happy-go-lucky methods than he had been accustomed to in the East. It was Mark Twain who once said that if you plant a New England deacon in Texas, you will find him in about a year with a game chicken under his arm, riding a mule on Sunday to a cock-fight. When farms were opened in the southeastern counties of Minnesota it was not an unusual thing to be rewarded with a crop of from thirty to forty bushels of wheat to the acre. The process of cultivation was simple, and required scarcely any capital, so it was natural that the first comers should confine their efforts to the one product of wheat. They did so, regardless of the fact that the best soil will become exhausted unless reenforced. They became accustomed to think that land could always be had for the taking, and in twenty or twenty-five years, the goose that laid the golden eggs died, and six or eight bushels was all they could extract from their lands. About 1877 or 1878 they practically abandoned the culture of wheat and tried corn and hogs. This was an improvement, but not a great success. Many of the farmers of the pioneering and roving class sold out, and went west for fresh lands.

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DAIRYING.

About this time the dairy business had become quite profitable in Iowa, and the Minnesota farmers turned their attention to that branch of industry. Their lands were excellent for pasturing purposes and hay raising. They began in a small way, with cows and butter-making, but from lack of experience and knowledge of the business their progress was slow; but it improved from year to year, and now, in the year 1899, it has become one of the most important, successful and profitable industries in the state, and the farmers of southern Minnesota constitute the most independent and well-to-do class of all our citizens. It was not very long ago when a mortgage was an essential feature of a Minnesota farm, but they have nearly all been paid off, and the farmer of southern Minnesota is found in the ranks of the stockholders and depositors of the banks, and if he has anything to do with mortgages, he is found on the winning side of that dangerous instrument. A brief statement of the facts connected with the dairy business will demonstrate its magnitude. There are in the state:

Creameries, about	700
Creamery patrons	55,000
Capital invested	\$3,000,000
Cows supplying milk	410,000
Pounds of milk received in 1898	1,400,000,000
Pounds of butter exported	63,000,000
Pounds of butter made, 1898	50,000,000
Gross receipts, 1898	\$10,400,000
Operating expenses, 1898	\$1,100,000
Paid to patrons	\$8,600,000

Since 1884 Minnesota butter has been exhibited, in competition with similar products from all the states in the Union and the butter-making countries of the world, at all the principal fairs and expositions that have been held in the United States, and has taken more prizes than any other state or country. Its cheese has kept pace with its butter. There are in the state, in active operation, ninety-four cheese factories. This industry is constantly on the increase, and Minnesota is certainly destined to surpass every other state in the Union in this department of agriculture.

While this new and valuable branch of industry was gradually superseding that of wheat in southern Minnesota, the latter was not being extinguished by any means, but simply changing its habitat. About the time that wheat culture became unprofitable in southern Minnesota, the valley of the Red River of the North began to attract attention, and it was at once discovered that it was the garden of the world for wheat culture. An intelligent and experienced farmer, Mr. Oliver Dalrymple, may be said to have been the pioneer of that enterprise. Lands in the valley were cheap, and he succeeded in gaining control of immense tracts, and unlimited capital for their development. He opened these lands up to wheat culture, and gave to the world a new feature in agriculture, which acquired the name of the "Bonanza Farm." Some of these farms embraced sixty and seventy thousand acres of land, and were divided by roads on the section lines. They were supplied with all the buildings necessary for the accommodation of the army of superintendents and employes that operated them; also, granaries and buildings for housing machinery, slaughter houses to provision the operatives, telephone systems to facilitate communication between distant points, and every other auxiliary to perfect an economic management. These great farms, of course, produced wheat at much lower rates than could the lesser ones, but did not materially interfere with wheat production by the smaller farmers, as the output of 1898 of nearly 79,000,000 bushels sufficiently proves. There seems to be no need of apprehension about the lands of the Red River Valley becoming exhausted, as they appear to be as enduring as those in the valley of the Nile.

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THE UNIVERSITY OF MINNESOTA AND ITS SCHOOL OF AGRICULTURE.

The University of Minnesota, for the establishment of which the United States donated to the state nearly 100,000 acres of land, and the agricultural college, which was similarly endowed, have been consolidated, and both have long been in successful operation. The university proper opened its doors for the admission of students about the year 1869, and has since attained such proportions as to entitle it to a place among the leading educational institutions of the United States, its roll of students for the last college year numbering over three thousand. Its curriculum embraces all studies generally taught in the colleges of this country, professional and otherwise. The state of efficiency and high standing of the University of Minnesota is largely attributable to the work of its president, Hon. Cyrus Northrop, a graduate of Yale, who had attained eminence in the educational world before being called to the university.

The school of agriculture is of the highest importance to the welfare of the state, the influence of which will soon remove its chief industry from dependence on the crude methods of the uneducated Western farmer, and place it upon a basis of scientific operation and management. Every branch of the art of farming is taught in this institution, from a knowledge of the chemical properties of the soil and its adaptation to the different vegetable growths, to the scientific breeding and economical feeding of stock. Much of the success in the dairy branch of farming is the direct result of knowledge gained at this school. It is well patronized by the young men of the state who intend to devote themselves to agriculture as a profession. Quite recently a new department has been added to the institution, for the instruction of women in all that pertains to the proper education of the mistress of the farm. It goes without saying that when Minnesota farming is brought under the management and control of men and women of scientific and practical education in that particular line there will be a revolution for the better.

The methods of instruction in this school are not merely theoretical. It possesses three experimental farms for the practical illustration and application of its teachings, the principal one of which is situated at St. Anthony Park, and the other two respectively at Crookston and Grand Rapids. Work is also done in an experimental way in Lyon county, but the state does not own the station.

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THE MINNESOTA STATE AGRICULTURAL SOCIETY.

This society dates its corporate existence from the year 1868, although for many years previous to that date, even back to the territorial days, a society had been in existence covering the main features of this organization. In 1867 the state recognized this society by appropriating \$1,000 for its encouragement. Its object was the promotion of agriculture, horticulture and the mechanic arts. The society held annual fairs in different localities in the state, with varying success, until 1885, when the county of Ramsey offered to convey to the State of Minnesota, forever, two hundred acres of land adjoining the city limits of St. Paul, for the purpose of holding annual exhibitions thereon, under the management of the society, of all matters pertaining to agriculture, human art, industry or skill. The state met this munificent donation with the same liberal spirit that characterized the offer, and appropriated \$100,000 for permanent improvements.

The board of managers proceeded immediately to erect the necessary buildings for the first exhibition, but found the appropriation inadequate by about \$32,000, which was readily supplied by public spirited citizens of St. Paul and Minneapolis. The state being again appealed to in 1887, made a further appropriation of \$50,000.

In 1887 the society was reorganized by act of the legislature, and its membership designated and made to consist of the following persons:

First—Three delegates from each of the county and district agricultural societies.

Second—Honorary life members, prominent by reason of eminent services in agriculture, or in the arts and sciences connected therewith, or of long and faithful services in the society, or of benefits conferred upon it.

Third—The presidents ex-officio of the Horticultural Society, the Amber Cane Society, the State Dairymen's Association, the Southern Minnesota

Fair Association, the State Poultry Association, the State Bee-Keepers' Association, and the president and secretary of the Farmer's Alliance.

Fourth—The president of any society having for its object the promotion of any branch of agriculture, stock raising or improving, or mechanics relating to agriculture.

By this selection of membership it will be seen that the society is composed of the leading agriculturists of the state. It holds annual meetings in St. Paul for the transaction of its business. The state appropriates \$4,000 annually to aid in the payment of premiums to exhibitors.

The society is in a prosperous condition, and holds annual fairs, in the month of September, on its grounds, which have been extensively improved. Each year there is a marked increase in the magnitude and variety of exhibits, and extended interest and attendance. Its financial statement for the year 1898 was: Receipts, \$62,523.70; expenditures, \$56,850.83. It has just closed its fair for the year 1899, which in extent and perfection of its exhibits and financial results surpassed any of its previous attempts.

There are in the state the following named societies, all more or less connected with agriculture, and all in flourishing condition: The State Horticultural Society, the State Forestry Association, the Dairymen's Association, the State Butter and Cheese Makers' Association, the State Farmers' Institute, the State Poultry Association, the State Bee-Keepers' Association, and perhaps others. These associations have done much in the promotion of the agricultural interests of the state, and by their intelligent guidance will, no doubt, soon make it the leading agricultural state in the Union.

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THE MINNESOTA SOLDIERS' HOME.

In the year 1887 it became apparent that the Civil War and the Minnesota Indian War had left a large number of soldiers of the state in dependent circumstances from old age, wounds and other disabling causes. The state, recognizing its obligation to these men, determined to provide a home for their comfort and maintenance. By an act of the legislature, passed March 2d of that year, provision was made for the purchase of a site and the erection of suitable buildings for that purpose. The act provided for bids for the purpose of a site, and also authorized the acceptance of donations for that purpose. Minneapolis responded handsomely, by offering fifty-one acres of its beautiful Minnehaha park as a donation. It was accepted, and is one of the most beautiful and picturesque locations that could have been found in the state, being near the Mississippi river and the Falls of Minnehaha. The beginning of the home was small, one old house being used for the first six months, and then, from year to year, handsome and commodious brick houses were erected, until the home became adequate to accommodate all those who were entitled to its hospitality. The conditions of admission are: Residence in Minnesota, service in the Mexican War, or in some Minnesota organization in the Civil or Indian Wars, honorable discharge, and indigent circumstances. As there are no accommodations for the wives and families of the old soldiers and sailors at the home, provision is made for relief being furnished to married soldiers at their own homes, so as to prevent the separation of families. There were in the home at the date of the last report (August 3, 1899) 362 beneficiaries. The home is conducted by a board of trustees, consisting of seven members, whose election is so arranged that they serve for six years. This beneficent establishment is to be commended as an evidence of the generosity and patriotism of the state.

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OTHER STATE INSTITUTIONS.

I have been somewhat explicit in mentioning the institutions of the state which are connected with its prominent and permanent industry—agriculture; but it must not be supposed that it has not provided for the many other interests that require regulation and control to constitute a perfectly organized state government. There are, besides those I have mentioned, four normal schools (located at Winona, Mankato, St. Cloud and Moorhead), all devoted to the education of teachers, state high and graded schools scattered all over the state, a state board of corrections and charities, and state hospitals for the insane (of which there are three), located as follows: One at St. Peter, one at Rochester, and one at Fergus Falls, and a fourth in contemplation. According to the latest report, these hospitals contained 3,302 patients, as follows: St. Peter, 1,045; Rochester, 1,196; and Fergus Falls, 1,061. For a small, new state, this showing would seem alarming, and indicate that a very large percentage of the population was insane, and that the rest were preparing to become so. The truth is that a case of insanity originating in Minnesota is quite as exceptional and rare as other diseases, and can usually be accounted for by some self-abuse of the patient. The population is drawn from such diverse sources, and the intermarriages are crossed upon so many different nationalities that hereditary insanity ought to be almost unknown. The climate and the general pursuits of the people all militate against the prevalence of the malady.

The explanation of the existence of the numerous cases is, as I am informed by the very highest authority on the subject, that in nearly all European countries it has become the habit of families afflicted with insanity to export their unfortunates to America as soon as any symptoms appear, and thus provide for them for the rest of their lives. I cannot say that the governments whence these people emigrate participate in the fraud, but it is not reasonable to suppose that they would interpose any serious objections even should they have knowledge of the fact. A comparison of the nationalities of the patients found in these hospitals with the American element, given by the census of the state, proves my statement, and an

inquiry of the medical authorities of these institutions will place the question beyond doubt.

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MINNESOTA INSTITUTES FOR DEFECTIVES.

There are also state schools for the deaf, dumb, blind, and the feeble-minded. These institutions are all located at Faribault, in Rice county, and each has a very handsome, commodious, and in every way suitable building, where these unfortunates are instructed in every branch of learning and industry of which they are capable. During the last two years there have been enrolled 275 deaf and dumb children in the school especially devoted to them, where they receive the best education that science and experience can provide. This school has already been instrumental in preparing hundreds of deaf and mute youth to be useful and intelligent citizens of the state, and year by year a few are graduated, well prepared to take their places beside the hearing and speaking youth who leave the public schools. About one-third of the time is devoted to manual training.

The school for the blind is entirely separate from that of the deaf and dumb, and is equipped with all the appliances of a modern special school of this character. It makes a specialty of musical instruction and industrial training, such as broom-making, hammock weaving, bead work and sewing. The course of study embraces a period of seven years, beginning with the kindergarten, and ending with the ordinary studies of English classes in the high schools. The school is free to all blind children in the state between the ages of eight and twenty-six, to whom board, care and tuition are furnished. The average number of pupils at this school for the past few years is between seventy and one hundred.

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There is also a

STATE SCHOOL FOR DEPENDENT AND NEGLECTED CHILDREN.

This school is located at Owatonna, in Steele county, and is one of the most valuable of all the many establishments which the state has provided for the encouragement of good citizenship. There are eleven buildings, which comprise all the agencies that tend to make abandoned children useful citizens and rescue them from a life of vagrancy and crime.

The object of this institution is to provide a temporary home and school for the dependent and neglected children of the state. No child in Minnesota need go without a home if the officers of the several counties do their duty. There is not a semblance of any degrading or criminal feature in the manner of obtaining admittance to this school. Under the law, it is the duty of every county commissioner, when he finds any child dependent, or in danger of becoming so, to take steps to send him to this school. The process of admission wisely guards against the separation of parent and child, but keeps in view the ultimate good of the latter. Once admitted it becomes the child of the state, all other authority over it being canceled. Every child old enough to work has some fitting task assigned to it, to the end of training it mentally, morally and physically for useful citizenship. They are sent from the school into families wanting them, but this does not deprive them of the watchful care of the state, which, through its agents, visits them in their adopted homes, and sees that they are well cared for.

On Jan. 1, 1899, there had been received into the school, from seventy-two counties, 1,824 children, of whom 1,131 were boys and 693 were girls. Of these 233 were then in the school, the others having been placed in good homes. It is known that eighty-three per cent of these children develop into young men and women of good character.

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THE MINNESOTA STATE TRAINING SCHOOL.

This institution was formerly "The Minnesota State Reform School," and was located in St. Paul. In 1895 the legislature changed its name to "The Minnesota State Training School for Boys and Girls," and its location has been changed to Red Wing, in the county of Goodhue. This institution has to do with criminals, and the statute provides, "That whenever an infant over the age of eight years and under the age of sixteen years shall have been duly convicted of any crime punishable with imprisonment, except the crime of murder, or shall be convicted of vagrancy or of incorrigibly vicious conduct," the sentence shall be to the guardianship of the board of managers of this school. Here they are given a good common school education and instructed in the trades of cabinet making, carpenter work, tailoring, shoemaking, blacksmithing, printing, farming, gardening, etc.

The inmates are furloughed under proper conditions, but the state watches over them through an agent, who provides homes for the homeless and employment for those who need help.

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MINNESOTA STATE REFORMATORY.

This institution was established in 1887, and is located at St. Cloud. It is designed as an intermediate correctional school between the training school and the state prison, the object being to provide a place for young men and boys from sixteen to thirty years of age, never before convicted of crime, where they may, under as favorable circumstances as possible, by discipline and education best adapted to that end, form such habits and character as will prevent their continuing in crime, fit them for self-support, and accomplish their reformation.

The law provides for an indeterminate sentence, allowing of parole when earned by continuous good conduct, and final release when reformation is strongly probable.

Honest labor is required every day of each inmate. Almost every occupation and employment is carried on in a practical way, and each inmate is learning to fill some honest place and to do useful work. The workings of this reformatory have been very satisfactory, and have undoubtedly rescued many young people from a life of crime.

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THE MINNESOTA STATE PRISON.

All prisons where criminals are sent to work out sentences for crimes committed are alike on general principles, and the Minnesota prison, situated at Stillwater, differs only in the fact that it combines in its administration all the modern discoveries of sociological research which tend to ameliorate the condition of the prisoner and fit him for the duties of good citizenship when discharged.

The plant is extensive and thorough. The labor of the prisoners is now devoted to three industries: the manufacture of binding twine, high school scientific apparatus on state account, and the manufacture of boots and shoes.

The discipline and management of the prison are the best. The most advanced principles of penology are in force. Sentences are reduced by good conduct, and everything is done to reform as well as punish the prisoner. A newspaper is published by the convicts, and a library of five thousand volumes is furnished for their mental improvement. Nothing known to modern social and penal science is omitted from the management.

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THE MINNESOTA HISTORICAL SOCIETY.

This society, as I have said before in speaking of the work of the first territorial legislature, was organized by that body in 1849, and has been of incalculable value to the state. The officers of the society are a president, two vice presidents, a treasurer and a secretary, and it is governed by an executive council of thirty-six members, which embraces the governor, lieutenant governor, secretary, auditor, treasurer of state and attorney general as ex-officio members. The state makes an annual appropriation in aid of the society. The executive council meets once a month for the transaction of its business, at which meetings, and at its annual meetings, interesting papers and essays are delivered on historical subjects, which are preserved, and with other matter are published in handsomely bound volumes when sufficient material is accumulated.

The society, in the manner prescribed in its by-laws, may establish the following separate departments:

Department of Annals and General History of Minnesota.

Department of Geology of Minnesota.

Department of Zoölogy of Minnesota.

Department of Botany of Minnesota.

Department of Meteorology of Minnesota.

Department of Northwestern Geography and Chartology.

Department of American History.

Department of Oriental History.

Department of European History.

Department of Genealogy and Heraldry.

Department of Ethnology and Anthropology.

It has corresponding members all over the world, and official connections with nearly all the historical and learned societies of Europe and America,

with which it interchanges publications. It has a membership of 142 life and 37 annual members. It may receive donations from any source.

Its property, real and personal, is exempt from taxation of any kind. It has accumulated a splendid library of about 63,000 volumes of all kinds of historical, genealogical, scientific and general knowledge, all of which are open and free to the public. It also has a gallery of pictures of historical scenes in Minnesota, and portraits of men and women who have been prominent in, or who have contributed to, the history or growth of the state, together with an extensive museum of Indian and other curiosities having some relation to Minnesota. One of its most valuable attractions is a newspaper department, in which are complete files of all newspapers which have been and are published in the state, except a very few unimportant ones. The number of our state papers, daily, weekly and monthly, received at the beginning of the year 1899 is 421. These papers are all bound in substantial volumes, for preservation for the use of future generations. On Sept. 1, 1899, the society had on the shelves of its fire-proof vault 4,250 of these volumes. Its rooms are in the capitol at St. Paul, and are entirely inadequate for its accommodation, but ample space has been allowed it in the new capitol now in the course of construction.

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STATE INSTITUTIONS MISCELLANEOUS IN THEIR CHARACTER.

Besides the general state boards and associations having special reference to the leading products of the state, and those of a reformatory and educational character, there are many others, regulating business of various kinds among the inhabitants, all of which are important in their special spheres, but to name them is all I can say about them in my limited space. Their number and the subjects which they regulate shows the care with which the state watches over the welfare of its citizens. I present the following catalogue of the state departments:

The Insurance Commission.
The Public Examiner.
The Dairy Food Commission.
The Bureau of Labor.
The Board of Railroad and Warehouse Commissioners.
The Board of Game and Fish Commissioners.
The State Law Library.
The State Department of Oil Inspection.
The State Horticultural Society.
The State Forestry Association.
The Minnesota Dairymen's Association.
The State Butter and Cheese Makers' Association.
The State Farmers' Institutes.
The Red River Valley Drainage Commission.
The State Drainage Commission.
The Commission of Statistics.
The State Board of Health and Vital Statistics.
The State Board of Medical Examiners.
The State Board of Pharmacy.
The State Board of Dental Examiners.
The State Board of Examiners in Law.
The Bureau of Public Printing.
The Minnesota Society for the Prevention of Cruelty.
The Geological and Natural History Survey.
The State Board of Equalization.
Surveyors of Logs and Lumber.
The Board of Pardons.
The State Board of Arbitration and Conciliation.
The State Board of Investment.
The State Board of Examiners of Barbers.
The State Board of Examiners of Practical Plumbing.
The Horseshoers' Board of Examiners.
The Inspection of Steam Boilers.

It is difficult to conceive of any other subject over which the state could assume jurisdiction, and the great number which are embraced already within its supervision would lead one who is not in touch with our state administration to believe that state paternalism dominated the business industries of the people; but nothing is further from the truth, and no state in the Union is freer from governmental interference in the ordinary channels of industry than Minnesota.

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STATE FINANCES.

Since the settlement of the debt created by the old railroad bonds that I have heretofore mentioned, the finances of the state have always been in excellent condition. When the receipts of an individual or a state exceed expenditures the situation is both satisfactory and safe. At the last report, up to July 31, 1898, the receipts of the state from all sources were \$5,429,240.32, and the expenditures were \$5,208,942.05, leaving a balance on the right side of the ledger of \$220,298.27. To the receipts must be added the balance in the treasury at the beginning of the year of \$2,054,314.26, which left in the treasury on July 31, 1898, the large sum of \$2,184,612.53.

The original indebtedness arising from the adjustment of the state railroad bonds was \$1,659,000; other bonds, \$300,000.00. This indebtedness has been reduced by payments to the sum of \$1,475,647.22, on July 31, 1898, the date of the last report. If this debt had matured, it could at once be paid by the funds on hand, leaving the state entirely free from all indebtedness.

The taxable property of the state by last assessment, in 1897, including real and personal property, was \$570,598,813.

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THE MONETARY AND BUSINESS FLURRY OF 1873 AND PANIC OF 1893.

It has been customary in the United States to expect a disturbance in monetary and business affairs about once in every twenty years, and the expectation has not been disappointed since the panic of 1837. I have described the effect of the panic of 1857 on the Territory and State of Minnesota, and the difficulties of recuperating from the shock. The next similar event was not due until 1877, but there is always some special disaster to precipitate such occurrences. In 1857 it was the failure of the Ohio Life Insurance and Trust Company, and in 1873 it was the failure of Jay Cooke & Co., of Philadelphia. This house had been very prominent in placing the bonds of the Northern Pacific Railroad Company, and in the construction of the road, and was relied upon by many classes of people to invest their money for them, and when their failure was announced, its effect in the East was disastrous, but here in Minnesota it only affected us in a secondary or indirect way, in stopping railroad building and creating general alarm in business circles. We had been diligently at work for sixteen years, endeavoring to recuperate from the disaster of 1857, and had to a great extent succeeded. Real estate had partially revived, but had not reached the boom feature, and the state was on a sound financial basis. Fortunately we had not recovered sufficiently to become investors in railroad securities to any great extent, and land speculation had not reached its usual twenty years' mark. We had, also, on hand a local affliction, in the presence of grasshoppers, so that, although it disturbed business generally, it did not succeed in producing bankruptcy, and we soon shook it off.

This periodical financial disturbance has been attributed to various causes. From the regularity of its appearance, it must be the result of some impelling force of a generally similar character. My opinion is, that the period of twenty years being the average time of man's active business life, the actors of the second period have not the benefit of the experience gained by those of the previous one, and they repeat the same errors that produced the former disasters; but be that as it may, when the period extending from

1873 to 1893 had passed, the same result had occurred, and with quite as much force as any of its predecessors. Land speculation had reached the point of absolute insanity. Everybody thought he could become rich if he only bought. Values, already ridiculously expanded, continued to increase with every sale. Anyone who had money enough to pay down a small amount as earnest and intelligence enough to sign a note and mortgage for the balance of the purchase price became purchasers to the limit of their credit. When a party whose credit was questioned needed an indorser, he found many requiring the same assistance who were ready to swap indorsements with him. Everyone became deeply in debt. The country was flooded with paper, which was secured on the impossibility of values continuing. The banks became loaded with alleged securities, and when the bubble was strained to the bursting point, and some one of supposed financial soundness was compelled to succumb to the pressure, the veil was lifted, which opened the eyes of the community and produced a rush for safety, which induced, and was necessarily followed, by a general collapse. In 1888 and 1889 banks suspended, money disappeared, and in 1893, in the expressive language of the West, everybody who was in debt, and all stockholders and depositors in defunct banks "went broke." Had the cities of St. Paul and Minneapolis been captured by an enemy and a ransom of ten million dollars been demanded from each, paid and carried away, the consequences upon business would not have been worse. It was much the same in all the large cities of the state, as land speculation was more active there than in the rural districts, and no matter what may happen, some value always remains to farm lands, while under such a collapse as that of 1893 the greater part of city property becomes utterly valueless for the present, and much of it forever.

There was, however, a great difference between the consequences of 1893 and the previous disasters of 1857 and 1873. Although the disturbance was great, we were better prepared to meet it. Population had increased immensely. The area of civilization and production had kept pace with immigration. Manufactures of many kinds had been introduced, and although we were seriously wounded, our hopes of recovery had solid grounds to rest upon, and we were not dismayed. The only remedy in such cases—industry and economy—was applied, through necessity if not from

choice, and recovery has been slowly progressing up to the present time (1900), when we may be classed as convalescent.

Will this experience serve to prevent a recurrence of the follies of the past? Most assuredly not. Those who have reaped wisdom will have surrendered the speculative arena to others before the financial cycle rolls around, and history will repeat itself, notwithstanding the state never had a better future outlook than at present. It does not follow that the panic due about 1913 will be caused by over speculation in real estate. It is more likely to be produced by the excessive and fraudulent capitalization of all sorts of corporations, called trusts, which will, of course, succumb to the first serious blow.

With the exception of the events I have narrated, including the financial troubles of 1873 and 1893, nothing of special importance to the state has happened, except a few occurrences of minor moment.

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MINOR HAPPENINGS.

Sept. 5, 1878, President Hayes made a short visit to the state, and delivered an address at the state agricultural fair.

On the 7th of September, 1876, an organized gang of bandits, which had been terrorizing the State of Missouri and surrounding states with impunity, entered this state, and attacked a bank in the town of Northfield, in Rice county, with the intent of looting it. The cashier, Mr. Haywood, resisted, and they shot him dead. The people of the town, hearing of the raid, turned out, and opened fire on the robbers, who fled, with the loss of one killed. In their flight they killed a Swede before they got out of the town. The people of the counties through which their flight led them, turned out, and before any of them passed the border of the state, two more of them were killed and three captured. Two escaped. The captured were three brothers named Younger, and those who escaped were supposed to be the notorious James Brothers of Missouri. The three Younger Brothers pleaded guilty to a charge of murder, and on account of a peculiarity in the law, that only allowed the death sentence to be imposed by a jury, they were all sentenced to imprisonment for life. One of them has since died, and the other two remain in prison.

The manner in which this raid was handled by our citizens was of immense value to the state, as it proved a warning to all such desperadoes that Minnesota was a bad field for their operations, and we have had no more trouble from that class of offenders.

In 1877 the constitution was amended by providing for biennial, instead of annual, sessions of the legislature.

On May 2, 1878, a very singular and disastrous event took place at Minneapolis. Three large flouring mills were blown up by a dust explosion, and eighteen men killed. It was inexplicable for a time, but it was afterwards discovered that such explosions had occurred before, and prompt measures were taken to prevent a repetition of the trouble.

On the 15th day of November, 1880, a portion of the large insane asylum at St. Peter was destroyed by fire, and eighteen of the inmates were burned, others dying of injuries received. The pecuniary loss amounted to \$150,000.

On the first day of March, 1881, the old capitol burned, while the legislature was in session. That body moved their sittings to the St. Paul market house, which had just been finished, where they remained until the present capitol building was erected upon the site of the one destroyed.

On the twenty-fifth day of January, 1884, the state prison at Stillwater was partially burned.

On the fourteenth day of September, 1886, St. Cloud and Sauk Rapids were struck by a cyclone. Scores of buildings were destroyed, and about seventy of the inhabitants killed.

In the year 1889 the Australian system of voting at elections was introduced in cities of ten thousand inhabitants and over, and in 1892 the system was made general throughout the state.

On the seventh day of April, 1893, the legislature passed an act for the building of a new state capitol in the city of St. Paul, and appointed commissioners to carry out the object. They selected an eligible and conspicuous site between University avenue, Cedar and Wabasha streets, near the head of Wabasha. They adopted for the materials which were to enter into it—granite for the lower and Georgia white marble for the upper stories. The whole cost was not to exceed \$2,000,000. The corner stone of the building was laid on the twenty-seventh day of July, 1898, with appropriate and very imposing ceremonies, in the presence of an immense throng of citizens from all parts of the state. Senator Davis delivered the oration, and ex-Gov. Alexander Ramsey laid the corner stone. The building has reached the base of the dome, and will be a very beautiful and serviceable structure.

On Sept. 1, 1894, there was a most extensive and disastrous fire in Pine county. Four hundred square miles of territory were burned over by a forest fire, the towns of Hinckley and Sandstone were totally destroyed, and four hundred people burned. The money loss was estimated at \$1,000,000. This disaster was exactly what was needed to awaken the people of the state to

the necessity of providing means for the prevention of forest and prairie fires and the preservation of our forests. Shortly after the Hinckley fire a state convention was held at the Commercial Club in St. Paul, to devise legislation to accomplish this desirable end, which resulted in the passage of an act, at the session of the legislature in 1895, entitled, "An act for the preservation of forests of this state, and for the prevention and suppression of forest and prairie fires." Under this act the state auditor was made the forest commissioner of the state, with authority to appoint a chief fire warden. The supervisors of towns, mayors of cities and presidents of village councils are made fire wardens of their respective local jurisdictions, and the machinery for the prevention of fires is put in motion that is of immense value to the state. The forest commissioner appointed Gen. C. C. Andrews chief fire warden, one of the best equipped men in the state for the position, and no serious trouble has since occurred in the way of fires.

On the ninth day of February, 1887, the Minnesota Historical Society passed a resolution, declaring that the pretenses made by Capt. Willard Glazier to having been the discoverer of the source of the Mississippi river were false, and very little has been heard from him since.

On the tenth day of October, 1887, President Cleveland visited the state, and made a short stay.

This enumeration of passing events looks a little like a catalogue of disasters (except the building of the new capitol and the visits of Presidents Hayes and Cleveland), but it must be remembered that Minnesota is such an empire in itself, that such happenings scarcely produce a ripple on the surface of its steady and continuous progress. It is because these events can be particularized and described that they assume proportions beyond their real importance, but when compared with the colossal advances made by the state during the period covering them, they dwindle into mere points of educational experience, to be guarded against in the future, while the many blessings showered upon the state, consisting of the health and wealth imparting sunshine, the refreshing and fructifying rains and dews of heaven, which, like the smiles of providence and the life-sustaining air that surrounds us, are too intangible and indefinable for more than thankful recognition. Our tribulations were really blessings in disguise. The bold invasion of the robbers proved our courage; the storms and fires proved our

generosity to the distressed, and taught us lessons in the wisdom of prevention. Minnesota has as much to be thankful for and as little to regret as any state in the West, and our troubles only prove that we have a very robust vitality, difficult to permanently impair.

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THE WAR WITH SPAIN.

For many years there has been a growing sentiment in the United States that Spain was governing Cuba and her other West Indian colonies in an oppressive and unjust manner, and the desire to interfere in behalf of the Cuban people received a good deal of encouragement, and its general expression succeeded in creating very strained relations between Spain and the United States. It is a well known fact that the Spanish people, from the north line of Mexico to Cape Horn, as well as the inhabitants of the Spanish Islands, hate the Americans most heartily. Why, I do not know; except that our social, governmental and religious habits, customs and beliefs are radically different from their own; but that such is the case no one doubts who knows these people. In 1897 some effort at conciliation was made, and Spain sent one of her warships to New York on a friendly visit; but she did not stay long, and got away as soon as she decently could. The United States sent the battleship Maine to Havana on the same friendly mission, where she was officially conveyed to her anchorage. She had been there but a short time when she was blown up, on Feb. 15, 1898, and 260 American seamen murdered. There was an official investigation to determine the cause of the explosion, but it found no solution of the disaster. Various theories were advanced of internal spontaneous explosion, but no one was misled. The general sentiment of Americans was that the Spanish in Cuba deliberately exploded a submarine torpedo under her, to accomplish the result that followed. Previous to this cowardly act there was much difference of opinion among the people of all sections of the country as to the propriety of declaring war against Spain, but public sentiment was at once unified in favor of war on the announcement of this outrage. On the 25th of April, 1898, congress passed an act declaring that war against Spain had existed since the 21st of the same month. A requisition was made on Minnesota for its quota of troops immediately after war was declared, and late in the afternoon of the twenty-eighth day of April the governor issued an order to the adjutant general to assemble the state troops at St. Paul. The adjutant general, on the 29th, issued the following order, by telegraph, to the different commands:

"The First, Second and Third Regiments of infantry are hereby ordered to report at St. Paul on Friday morning, April 29, 1898, not later than eleven o'clock, with one day's cooked rations in their haversacks."

The order was promptly obeyed, and all the field, staff and company officers, with their commands, reported before the time appointed, and on the afternoon of that day went into camp at the state fair grounds, which was named Camp Ramsey. Such promptness on the part of the state militia was remarkable, but it will be seen that they had been prepared for the order of the adjutant general before its final issue, who had anticipated the declaration of war.

On April 18th he had issued the following order:

"The commanding officers of the infantry companies and artillery batteries composing the national guard will immediately take steps to recruit their commands up to one hundred men each. All recruits above the maximum peace footing of seventy-six men will be carried upon the muster roll as provisional recruits, to be discharged in case their services are not needed for field service."

On the 25th of April the adjutant general issued the following order:

"In obedience to orders this day received from the honorable secretary of war, calling upon the State of Minnesota for three regiments of infantry as volunteers of the United States, to serve two years or less, and as the three national guard regiments have signified their desire of entering the service of the United States as volunteers, the First, Second, and Third Regiments of Infantry of the national guard of the State of Minnesota will immediately make preparations to report to these headquarters upon receipt of telegraphic orders, which will be issued later."

This commendable action on the part of our military authorities resulted in the Minnesota troops being the first to be mustered into the service of the

United States in the war with Spain, thus repeating the proud distinction gained by the state in 1861, when Minnesota was the first state to offer troops for the defense of the Union in the Civil War. It is a curious as well as interesting coincidence, that the First Minnesota Regiment for the Civil War was mustered in on April 29, 1861, and the first three regiments for the Spanish War were mobilized at St. Paul on April 29, 1898.

The mustering in of the three regiments was completed on the eighth day of May, 1898, and they were designated as the Twelfth, Thirteenth and Fourteenth Regiments of Infantry, Minnesota Volunteers. This classification was made because the state had furnished eleven full regiments of infantry for the Civil War, and it was decided to number them consecutively.

The Twelfth and Fourteenth left Camp Ramsey on the sixteenth day of May for Camp George H. Thomas in Georgia, and the Thirteenth departed for San Francisco on the same day. The Thirteenth was afterwards ordered to Manila. The others did not leave the country, and were subsequently mustered out. The Thirteenth did gallant service in the Philippines, in many battles, was mustered out in San Francisco, and, on Oct. 12, 1899, returned to our state. A warm welcome was given it in Minnesota, where it will always be regarded with the same pride and affection formerly bestowed upon the old First, of patriotic memory.

President McKinley and several of his cabinet arrived in St. Paul at the time of the arrival of the Thirteenth, and assisted in welcoming them to their homes.

There was a second call for troops, under which the Fifteenth Regiment was mustered in, but was not called upon for active duty of any kind. It is to be hoped that the war may be ended without the need of more volunteers from Minnesota, but should another call be made on our people no doubt can be entertained of their prompt response. Having given the part taken in the war against Spain and the Philippines by Minnesota, its further prosecution against the latter becomes purely a federal matter, unless we shall be called into it in the future.

When Spain sued for peace, soon after the destruction of her second fleet off Santiago de Cuba, a commission to negotiate a treaty of peace with her was appointed by the president, and Minnesota was honored by the

selection of its senior senator, Hon. Cushman K. Davis, chairman of the senate committee on foreign relations, as one of its members. The commission consisted of William R. Day, secretary of state of the United States, Cushman K. Davis of Minnesota, William P. Frye of Maine, George Gray of Delaware, and Whitelaw Reid of New York. It met at Paris, and concluded its labors the tenth day of December, 1898, when the treaty was signed by the commissioners of both contracting parties. It is hardly necessary to add that the influence exerted on the result by the distinguished and learned representative from Minnesota was controlling.

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THE INDIAN BATTLE OF LEECH LAKE.

Early in October, 1898, there was an Indian battle fought at Leech lake, in this state, the magnitude of the result of which gives it a place in the history of Minnesota, although it was strictly a matter of United States cognizance and jurisdiction. In Cass county there is a Chippewa Indian reservation, and like all other Indian reservations, there are to be found there turbulent people, both white and red. There is a large island out in Leech lake, called Bear island, which is inhabited by the Indians. On Oct. 1, 1897, one Indian shot another on this island. A prominent member of the tribe named Pug-on-a-ke-shig was present, and witnessed the shooting. An indictment was found in the United States district court against the Indian who did the shooting, but before any trial could be had the matter was settled among the Indians in their own way, and they thought that was the last of it. A subpoena was issued for Pug-on-a-ke-shig and a deputy marshal served it. He disregarded the subpoena. An attachment was then issued to arrest him and bring him into court. A deputy United States marshal tried to serve it, and was resisted by the Indian and his friends on three different occasions, and once when the Indian was arrested he was rescued from the custody of the marshal. Warrants were then issued for the arrest of twenty-one of the rescuers. This was in the latter part of August, 1898. Troops were asked for to aid the marshal in making his arrests, and a lieutenant and twenty men were sent from Fort Snelling for that purpose. This was simply a repetition of the many mistakes made by the military authorities in such matters. If troops were necessary for any purpose, twenty men were simply useless, and worse than none, and when the time came for the application of military force would, of course, have been annihilated. The United States marshal, with a squad of deputies, accompanied the troops. It soon became apparent that there would be trouble before the Indians could be brought to terms, and General Bacon, the officer in command of the Department of Dakota, with headquarters at St. Paul, ordered Major Wilkinson of Company "E," of the Third Regiment of United States Infantry, stationed at Fort Snelling, with his company of eighty men, to the scene of the troubles. General Bacon accompanied these troops as far as Walker, on the west bank

of Leech lake, more in the capacity of an observer of events and to gain proper knowledge of the situation than as part of the force. On the 5th of October, 1898, the whole force left Walker in boats for a place on the east bank of the lake, called Sugar Point, where there was a clearing of several acres and a log house, occupied by Pug-on-a-ke-shig. They were accompanied by R. T. O'Connor, the United States marshal of Minnesota, and several of his deputies, among whom was Col. Timothy J. Sheehan, who knew the Indians who were subject to arrest. This officer was the same man who, as Lieutenant Sheehan, had so successfully commanded the forces at Fort Ridgely, during the Indian War of 1862, since when he had fought his way through the Civil War with distinction. When the command landed, only a few squaws and Indians were visible. The deputy marshals landed, and with the interpreters went at once to the house, and while there discovered an Indian whom Colonel Sheehan recognized as one for whom a warrant was out, and immediately attempted to arrest and handcuff him. The Indian resisted vigorously, and it was only with the aid of three or four soldiers that they succeeded in arresting him. He was put on board of the boat. The whole force then skirmished through the timber in search of Indians, but found none, and about noon returned to the clearing and were ordered to stack arms preparatory to getting dinner. They had scouted the surrounding country and had seen no Indians or signs of Indians, and did not believe there were any in the vicinity, when in fact the Indians had carefully watched their every movement, and were close to their trail, waiting for the most advantageous moment to strike. It was the same tactics which the Indians had so often adopted with much success in their warfare with the whites. While stacking arms, a new recruit allowed his gun to fall to the ground, and it was discharged accidentally. The Indians who were silently awaiting their opportunity, supposing it was the signal of attack, opened fire on the troops, and a vicious battle began. The soldiers seized their arms, and returned the fire as best they could, directing it at the points whence came the shots from the invisible enemy, concealed in the dense thicket. The battle raged for several hours. General Bacon, with a gun in his hands, was everywhere, encouraging the men. Major Wilkinson, as cool as if he had been in a drawing room, cheered his men on, but was thrice wounded, the last hit proving fatal. Colonel Sheehan instinctively entered the fight, and took charge of the right wing of the line, charging the enemy with a few followers and keeping up a rapid fire. The colonel was hit three

times, two bullets passing through his clothes, grazing the skin, without serious injury, and one cutting a painful but not dangerous wound across his stomach. The result of the fight was six killed and nine wounded on the part of the troops. One of the Indian police was also killed, and seven citizens wounded, some seriously. No estimate has ever been satisfactorily obtained of the loss of the enemy. The most reliable account of the number of his forces engaged is from nineteen to thirty, and if I should venture an estimate of his losses, based upon my experience of his ability to select a vantage ground, and take care of himself, I would put it at practically nothing.

The killed and wounded were brought to Fort Snelling, the killed buried with military honors, and the wounded properly cared for. This event adds one more to the long list of fatal errors committed by our military forces in dealing with the Indians of the Northwest. They should never be attacked without a force sufficient to demonstrate the superiority of the whites in all cases and under all circumstances. Many a valuable life has been thus unnecessarily lost.

Major Wilkinson, who lost his life in this encounter, was a man who had earned an enviable record in the army, and was much beloved by his many friends and acquaintances in Minnesota.

The principal Indian engaged in this fight has been called, in every newspaper and other reports of it, Bug-a-ma-ge-shig; but I have succeeded in obtaining his real name from the highest authority. The name, Pug-on-a-ke-shig, is the Chippewa for "Hole-in-the-day."

Shortly after the return of the troops to Fort Snelling the settlers about Cass and Leech lakes became uneasy, and deluged the governor with telegrams for protection. The national guard or state troops had nearly all been mustered into the United States service for duty in the war with Spain, but the Fourteenth Regiment was in St. Paul, awaiting muster out, and the governor telegraphed to the war department at Washington to send enough of them to the front to quiet the fears of the settlers. This was declined, and the governor at once ordered out two batteries of artillery, all the state troops that were available, and sent them to the scene of the troubles, and then sent his celebrated telegram to the war department, which may be called the "Minnesota Declaration of Independence." It ran as follows:

"Oct. 8, 1898.

"H. C. Corbin, Adjutant General, Washington, D. C.:

"No one claims that reinforcements are needed at Walker. I have not been asked for assistance from that quarter. Although I do not think General Bacon has won the victory he claims, other people do not say so. The Indians claim to have won, and that is my opinion. The people all along the Fosston branch of railroad are very much alarmed, and asking for protection, which I have asked of the war department. The soldiers are here, and ready and willing to go, but as you have revoked your order of yesterday, you can do what you like with your soldiers. The State of Minnesota will try to get along without any assistance from the war department in the future.

"D. M. CLOUGH,
"Governor."

Rumor says that the telegram which was forwarded is very much modified from that originally dictated by the governor.

The United States government concluded to withdraw its refusal, and send troops to the front, and several companies of the Fourteenth were dispatched to the line of the Fosston branch railroad, and distributed along the line of that road.

In the meantime the commissioner of Indian affairs had arrived at Walker, and was negotiating with the Indians, and when it became known that matters were arranged to the satisfaction of the government and the Indians and no outbreak was expected the soldiers were all withdrawn, and the incident, so far as military operations were concerned, was closed. There were some surrenders of the Indians to the officers of the court, but nothing further of consequence occurred.

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POPULATION.

One of the most interesting features of a new country is the character and the nativity of its population. The old frontiersman who has watched the growth of new states, and fully comprehended the effect produced upon their civilization and character by the nativity of their immigrants, is the only person competent to judge of the influences exerted in this line. It is a well known fact that the immigration from Europe into America is generally governed by climatic influences. These people usually follow the line of latitude to which they have been accustomed. The Norseman from Russia, Sweden, Germany and Norway comes to the extreme Northwestern States, while the emigrants from southern Europe seek the more southern latitudes. Of course, these are very general comments, and only relate to emigration in its usual directions, as the people of all parts of Europe are found in all parts of America. It is generally believed that the emigrants from northern Europe are more desirable than those from further south, and a presentation of the status of our population in point of nativity will afford a basis from which to judge of their general attributes for good or bad. There is no nation on earth that has not sent us some representative. The following table, while it will prove that we have a most heterogeneous, polyglot population, will also prove that we possess vast powers of assimilation, as we are about as harmonious a people as can be found in all the Union. Our governor is a Swede, one of our United States senators is a Norwegian, and our other state officers are pretty generally distributed among the various nationalities. Of course, in the minor political subdivisions, such as counties, cities and towns, the office holding is generally governed by the same considerations.

I give the various countries from which our population is drawn, with the numbers from each country, and the number of native born and foreign born, which, aggregated, constitute our entire population. These figures are taken from the state census of 1895:

England	12,941
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Scotland	5,344
Germany	133,768
Norway	107,319
Denmark	16,143
Canada	49,231
Poland	8,464
Iceland	454
Ireland	26,106
Wales	1,246
France	1,492
Sweden	119,554
Russia	6,286
Bohemia	10,327
Finland	7,652
All other countries	11,205
Total native born	1,057,084
Total foreign born	517,535
Total population	1,674,619

The total native born of our population is very largely composed of the descendants of foreign emigrants. These figures afford a large field for thought and future consideration, when emigration problems are under legislative investigation.

The census from which these figures are taken being five years old, I think it is safe to add a sufficient number of increase to bring our population up to

two millions. The census of 1900 will demonstrate whether or not my estimate is correct.

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THE STATE FLAG.

Up to the year 1893 the State of Minnesota had no distinctive state flag. On April 4, 1893, an act was passed by the legislature entitled, "An act providing for the adoption of a state flag." This act appointed by name a commission of six ladies, to adopt a design for a state flag. Section 2 of the act provided that the design adopted should embody, as near as may be, the following facts:

"There shall be a white ground with reverse side of blue. The center of the white ground shall be occupied by a design substantially embodying the form of the seal employed as the state seal of Minnesota at the time of its admission into the Union.... The said design of the state seal shall be surrounded by appropriate representations of the moccasin flower, indigenous to Minnesota, surrounding said central design, and appropriately arranged on the said white ground shall be nineteen stars, emblematic of the fact that Minnesota was the nineteenth state to be admitted into the Union after its formation by the thirteen original states. There shall also appear at the bottom of the flag, in the white ground, so as to be plainly visible, the word 'Minnesota.'"

The commission prepared a very beautiful design for the flag, following closely the instructions given by the legislature, which was adopted, and is now the authorized flag of the state. The flag-staff is surmounted by a golden gopher rampant, in harmony with the popular name given to our state. May it ever represent the principles of liberty and justice, and never be lowered to an enemy! The original flag, artistically embroidered in silk, can be seen at the office of the governor at the state capitol.

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THE OFFICIAL FLOWER OF THE STATE, AND THE METHOD OF ITS SELECTION.

On the twentieth day of April, 1891, the legislature of the state passed an act entitled "An act to provide for the collection, arrangement and display of the products of the State of Minnesota at the World's Columbian Exposition of one thousand eight hundred and ninety-three, and to make an appropriation therefor." This act created a commission of six citizens of the state, to be appointed by the governor, and called "The Board of World's Fair Managers of Minnesota." The women of the state determined that there should be an opportunity for them to participate in the exposition on the part of Minnesota, and a convention of delegates from each county of the state was called, and held at the People's Church, in St. Paul, on Feb. 14, 1892. This convention elected one woman delegate and one alternate, from each of the seven congressional districts of the state. There were also two national lady managers from Minnesota, nominated by the two national representatives from Minnesota and appointed by the president of the United States, who were added to the seven delegates so chosen, and the whole was called "The Woman's Auxiliary to the State Commission." The women so chosen took charge of all the matters properly pertaining to the women's department of the fair.

At one of the meetings of the ladies, held in St. Paul, the question of the selection of an official flower for the state was presented, and the sentiment generally prevailed that it should at once be decided by the assemblage; but Mrs. L. P. Hunt, the delegate from Mankato, in the second congressional district, wisely suggested that the selection should be made by all the ladies of the state, and they should be given an opportunity to vote upon the proposition. This suggestion was approved, and the following plan was adopted: Mrs. Hunt was authorized to appoint a committee, of which she was to be chairman, to select a list of flowers to be voted on. Accordingly she appointed a subcommittee, who were to consult the state botanist, Mr. Conway MacMillan, who was to name a number of Minnesota flowers from which the ladies were to choose. He presented the following:

Lady Slipper (Moccasin Flower—*Cypripedium Spectabile*).
Silky Aster.
Indian Pink.
Cone Flower (Brown-eyed Susan).
Wild Rose.

The plan was to send out printed tickets, to all the women's organizations in the state, with these names on them, to be voted upon, which was done, with the result that the moccasin flower received an overwhelming majority, and has ever since been accepted as the official flower of the state. That the contest was a very spirited one can be judged from the fact that Mrs. Hunt sent out in her district at least ten thousand tickets, with indications of her choice of the moccasin flower. She also maintained lengthy newspaper controversies with parties in Manitoba, who claimed the prior right of that province to the moccasin flower, all of whom she vanquished.

The choice was a very wise and appropriate one. The flower itself is very beautiful, and peculiarly adapted to the purposes of artistic decoration. It has already been utilized in three instances of an official character, with success and approval. The Minnesota state building at the Columbian Exposition was beautifully decorated with it. It is prominently incorporated into the state flag, and adorns the medal conferred by the state upon the defenders of Fort Ridgely.

The botanical name of the flower is *Cypripedium*, taken from Greek words meaning the shoe of Venus. It is popularly called "Lady's Slipper," "Moccasin Flower" and "Indian Shoe."

About twenty-five species of *cypripedium* are known, belonging to the north temperate zone and reaching south into Mexico and northern India. Six species occur in the northern United States and Canada, east of the Rocky Mountains, all of these being found in Minnesota, and about a dozen species occur on this continent. They are perennial herbs, with irregular flowers, which grow singly or in small clusters, the colors of some of which are strikingly beautiful. The species adopted by the women of the State of Minnesota is the *Cypripedium Spectabile*, or the showy lady slipper.

The ladies naturally desired that their choice should be ratified by the state legislature, and one of their number prepared a report of their doings, in a petition to that body, asking its approval. Whoever drew the petition named the flower chosen by the ladies as "*Cypripedium Calceolous*," a species which does not grow in Minnesota, but is purely of European production. The petition was presented to the senate on the fourth day of February, 1893. The journal of the senate shows the following record, which is found on page 167:

"Mr. Dean asked the unanimous consent to present a petition from the Women's Auxiliary to the World's Fair, relative to the adoption of a state flower and emblem, which was read.

"Mr. Dean offered the following concurrent resolution, and moved its adoption:

"Be it resolved by the senate, the house of representatives concurring, that the wild Lady Slipper, or Moccasin Flower ('*Cypripedium Calceolous*'), be, and the same is hereby, designated and adopted as the state flower or emblem of the State of Minnesota,' which was adopted."

In the Legislative Manual of 1893 appears, on page 606, the following:

"THE STATE FLOWER.

"On April 4, 1893 [should be February], a petition from the Women's Auxiliary to the World's Fair was presented to the senate, relative to the adoption of a state flower. By resolution of the senate, concurred in by the house (?), the Wild Lady Slipper, or Moccasin Flower (*Cypripedium*) was designated as the state flower or floral emblem of the State of Minnesota."

The word "*Calceolous*" means a little shoe or slipper; but, as I said before, the species so designated in botany is not indigenous to Minnesota, and is purely a foreigner. As we have in the course of our growth assimilated so many foreigners successfully, we will have no trouble in swallowing this

small shoe, especially as the house did not concur in the resolution, and while the mistake will in no way militate against the progress or prosperity of Minnesota, it should be a warning to all committees and Western legislators to go slow when dealing with the dead languages.

We now have the whole body of cyprapediums to choose from, and may reject the calceolous.

If the house of representatives ever concurred in the senate resolution, it left no trace of its action, either in its journal or published laws, that I have been able to find.

Among the many valuable achievements of the Women's Auxiliary one deserves special mention. Mrs. H. F. Brown, one of the delegates at large, suggested a statue for the Woman's Building, to be the production of Minnesota's artistic conception and execution. The architect of the state building had disallowed this feature, and there was no public fund to meet the expense, which would be considerable. The ladies, however, decided to procure the statue, and rely on private subscription to defray the cost. Mrs. L. P. Hunt thought that sufficient funds might be raised from the school children of the state, through a penny subscription. Enough was raised, however, to secure a plaster cast of great beauty, representing Hiawatha carrying Minnehaha across a stream in his arms, illustrating the lines in Longfellow's poem:

"Over wide and rushing rivers
In his arms he bore the maiden."

This statue adorned the porch of the Minnesota building during the fair. It was designed and made by a very talented young Norwegian sculptor, then residing in Minneapolis—the late Jakob Fjelde. It is proposed to cast the statue in bronze and place it in Minnehaha park, Minneapolis, at some future day.

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ORIGIN OF THE NAME "GOPHER STATE."

Most of the states in the Union have a popular name. New York is called the "Empire State," Pennsylvania the "Keystone State," etc. As you come west they seem to have taken the names of animals. Michigan is called the "Wolverine State," Wisconsin the "Badger State," and it is not at all singular that Minnesota should have been christened the "Gopher State." These names never originate by any recognized authority. They arise from some event that suggests them, or from some important utterance that makes an impression on the public mind. In the very early days of the territory—say, as early as 1854 or 1855,—the question was discussed among the settlers as to what name should be adopted by Minnesota, and for a time it was called by some the "Beaver State." That name seemed to have the greatest number of advocates, but it was always met with the objection that the beaver, although quite numerous in some of our streams, was not sufficiently so to entitle him to characterize the territory by giving it his name. While this debate was in progress the advocates of the beaver spoke of the territory as the beaver territory, but it never reached a point of universal adoption. It was well known that the gopher abounded, and his name was introduced as a competitor with the beaver; but being a rather insignificant animal, and his nature being destructive, and in no way useful, he was objected to by many, as too useless and undignified to become an emblem of the coming great state,—for we all had, at that early day, full confidence that Minnesota was destined to be a great and prominent state. Nothing was ever settled on this subject until after the year 1857. As I have before stated, in that year an attempt was made to amend the constitution by allowing the state to issue bonds in the sum of \$5,000,000 to aid in the construction of the railroads which the United States had subsidized with land grants, and the campaign which involved this amendment was most bitterly fought. The opponents of the measure published a cartoon to bring the subject into ridicule, which was very generally circulated throughout the state, but failed to check the enthusiasm in favor of the proposition. This cartoon represented ten men in a line, with heads bowed down with the weight of a bag of gold hung about their necks, marked "\$10,000." They were supposed to represent the

members of the legislature who had been bribed to pass the act, and were called "Primary Directors." On their backs was a railroad track, upon which was a train of cars drawn by nine gophers, the three gophers in the lead proclaiming, "We have no cash, but will give you our drafts." Attached to the rear of the train was a wheelbarrow, with a barrel on it, marked "Gin," followed by the devil, in great glee, with his thumb at his nose. In the train were the advocates of the bill, flying a flag bearing these words: "Gopher train; excursion train; members of extra session of legislature, free. We develop the resources of the country." Over this was a smaller flag, with the words: "The \$5,000,000 Loan Bill."

In another part of the picture is a rostrum, from which a gopher is addressing the people with the legend: "I am right; Gorman is wrong." In the right hand corner of the cartoon is a round ball, with a gopher in it, coming rapidly down, with the legend: "*A Ball come* from Winona." This was a pun on the name of Mr. St. A. D. Balcombe from Winona, who was a strong advocate of the measure. Under the whole group was a dark pit, with the words, "A mine of corruption."

The bill was passed, and the state was saddled with a debt of \$5,000,000, under which it staggered for over twenty years, and we never even got a gopher train out of it.

This cartoon, coming just at the time the name of the state was under consideration, fastened upon it the nickname of "Gopher," which it has ever since retained. The name is not at all inappropriate, as the animal has always abounded in the state. In a work on the mammals of Minnesota, by C. L. Herrick, 1892, he gives the scientific name of our most common species of gopher, "*Spermophilus Tridecemlineatus*," or thirteen-striped gopher, and says: "The species ranges from the Saskatchewan to Texas, and from Ohio to Utah. Minnesota is the peculiar home of the typical form, and thus deserves the name of the 'Gopher State.'"

Although the name originated in ridicule and contempt, it has not in any way handicapped the commonwealth, partly because very few people know its origin, but for the greater reason, that it would take much more than a name to check its predestined progress.

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STATE PARKS.

ITASCA STATE PARK.

In a previous part of this work, under the head of "Lumber," I have referred to the fact that a great national park and forest reserve is in contemplation by the United States at the headwaters of the Mississippi, and made reference to the state park already established at that point. I will now relate what has been done by the state in this regard. In 1875 an official survey of the land in and about Lake Itasca was made by the surveyor general of the United States for Minnesota, which brought these lands under the operation of the United States laws, and part of them were entered. A portion of them went to the Northern Pacific Railroad Company under its land grant. The swamp and school lands went to the state, and much to private individuals under the various methods of making title to government lands.

On the 20th of April, 1891, the legislature passed an act entitled, "An act to establish and create a public park, to be known and designated as the Itasca State Park, and authorizing the condemnation of lands for park purposes." This act sets apart for park purposes 19,702 acres of land, and dedicates them to the perpetual use of the people. It places the same under the care and supervision of the state auditor, as land commissioner. It prohibits the destruction of trees, or hunting within its limits. It provides for a commission to obtain title to such of the lands as belong to private individuals, either by purchase or condemnation.

On the third day of August, 1892, the United States granted to the state all the unappropriated lands within the limits of the park, upon this condition:

"Provided, the land hereby granted shall revert to the United States, together with all the improvements thereon, if at any time it shall cease to be exclusively used for a public state park, or if the state shall not pass a law or laws to protect the timber thereon."

The state, at the session of the legislature in 1893, accepted the grant, but as yet has made no provision for the extinguishment of the title of private

owners, of which there are 8,823 acres. This divided ownership of the lands within the limits of the park endangers the whole region by lumbering operations, and consequent forest fires after the timber is cut. Fires are not to be feared in natural forests until they are cut over. The acquisition of title to all these lands by the state should not be delayed any longer than is necessary to perfect it, no matter at what cost. The state has already erected a house on the bank of Itasca lake, and has a resident commissioner in charge of the park.

The effect of the law prohibiting hunting in the park has already greatly increased the numbers of animals and fowls that find in it a safe refuge.

The extent of the park is seven miles long by five miles wide, and is covered with a dense forest of pine, oak, maple, basswood, aspen, balsam fir, cedar and spruce, which is nearly in a state of nature. It is much to be hoped that in the near future this park will be enlarged to many times its present size by additional grants.

INTERSTATE PARK—THE DALLES OF THE ST. CROIX.

One of the most, if not the most, beautiful and picturesque points in the Northwest is the Dalles of the St. Croix river. Here the state has acquired the title to about 150 acres of land on the Minnesota side of the river, and dedicated it for park purposes. This was done under the authority of chapter 169 of the Laws of 1895. The point on the Minnesota side is called Taylor's Falls, and on the Wisconsin side St. Croix Falls. Between these two towns the St. Croix river rushes rapidly, forming a cataract of great beauty. The bluffs are precipitate and rocky, forming a narrow gorge through which the river plunges. The name of the river is French, "Sainte Croix," meaning "The holy cross," and the name of this particular point, the "Dalles," was given on account of the curious formation of the rocky banks, which assume wonderful shapes. One, looking down stream, presents a perfect likeness of a man, and is called "The Old Man of the Dalles." Another curious rock formation is called the "Devil's Chair." There are many others equally interesting. It is generally supposed that the word "Dalles" has the same meaning as the English word "Dell" or "Dale" signifying a narrow secluded vale or valley, but such is not the case as applied to this peculiar locality. The word "Dalles" is French, and means a slab, a flag or a

flagstone, and is appropriate to the peculiar character of the general rock formation of the river banks at this point and vicinity.

The State of Minnesota has already done a good deal of work towards making it attractive, and it has become quite a resort for pleasure seekers in the summer time. Wisconsin has acquired title to a larger tract on the east side of the river than is embraced in the Minnesota park on the west side, but as yet has not done much in the way of improvement. The two tracts are united by a graceful bridge which spans the river between them. The Minnesota park is under the charge of a state custodian, who cares for and protects it from despoilment.

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POLITICS.

In writing the history of a state, no matter how short or limited such history may be, its politics seem to be an essential element of presentation, and, on this assumption alone, I will say a very few words concerning that subject. I do not believe that the question of which political party has been dominant in the state has exerted any considerable influence on its material prosperity. The great "First Cause" of its creation was so generous in its award of substantial blessings that it placed the state beyond the ability of man or his politics to seriously injure or impede its advance towards material success in any of the channels that promote greatness. Soil, climate, minerals, facilities for commerce and transportation, consisting of great rivers, lakes and harbors,—all these combine to defy the destructive tendencies so often exerted by the ignorance and passions of man. It has resisted every folly of its people, and they have been many; every onslaught of its savage inhabitants, and they have been more formidable than those experienced by any other state; and even the cataclysms with which it has occasionally been visited arising from natural causes. The fact is, Minnesota is so rock-rooted in all the elements of material greatness that it must advance, regardless of all known obstructions.

When the territory was organized in 1849, Gen. Zachary Taylor, a Whig, was the president of the United States, and he appointed Alexander Ramsey, also a Whig, as governor, to set its political machinery in motion. He remained in office until the national administration changed in 1853, and Franklin Pierce, a Democrat, was chosen president. He appointed Gen. Willis A. Gorman, a Democrat, as governor to succeed Governor Ramsey. On the 4th of March, 1857, James Buchanan, a Democrat, succeeded President Pierce, and appointed Samuel Medary, a Democrat, as governor of Minnesota. He held this position until the state was admitted into the Union, in May, 1858, when Henry H. Sibley, a Democrat, was elected governor for the term of two years, and served it out.

On the admission of the state into the Union, two Democratic United States senators were elected, Henry M. Rice and Gen. James Shields. General

Shields served from May 12, 1858, to March 3, 1859, and Mr. Rice from May 12, 1858, to March 3, 1863, he having drawn the long term. The state also elected three members to the United States house of representatives, all Democrats, James M. Cavanaugh, W. W. Phelps and George L. Becker, but it was determined that we were only entitled to two, and Mr. Phelps and Mr. Cavanaugh were admitted to seats. With this state and federal representation we entered upon our political career. At the next election for governor, in the fall of 1859, Alexander Ramsey, Republican, was chosen, and there has never been a governor of the state of any but Republican politics since, until John Lind was elected in the fall of 1898. Mr. Lind was chosen as a Democrat, with the aid of other political organizations, which united with the Democracy. Mr. Lind now fills the office of governor. It will be seen that for thirty-nine years the state has been wholly in the hands of the Republicans. During the interval between the administration of Governor Sibley and Governor Lind the state has had twelve governors, all Republican.

In its federal representation, however, the Democrats have fared a trifle better. The growth of population has increased our membership in the federal house of representatives to seven, and occasionally a Democrat, or member of some other party, has succeeded in breaking into congress. From the first district W. H. Harries, a Democrat, was elected in 1890. From the Third district Eugene M. Wilson, Democrat, was elected in 1868; Henry Poeler, Democrat, in 1878; John L. McDonald, Democrat, in 1886; and O. M. Hall, Democrat, in 1890, and again in 1892. From the Fourth district Edmund Rice, Democrat, was elected in 1886, and James N. Castle, Democrat, in 1890. From the Sixth district M. R. Baldwin, Democrat, was elected in 1892. From the Fifth district Kittle Halverson, Alliance, was elected in 1890. From the Seventh district Haldor E. Boen, People's Party, was elected in 1892.

Since Henry M. Rice and James Shields, all the United States Senators have been Republican. They were Morton S. Wilkinson, Alexander Ramsey, Daniel S. Norton, William Windom, O. P. Stearns, S. J. R. McMillin, A. J. Edgerton, D. M. Sabin, C. K. Davis, W. D. Washburn and Knute Nelson. Some of these have served two terms, and some very short terms, to fill vacancies.

Of course, the state had its compliment of other officers, but as their duties are more of a clerical and business character than political, it is unnecessary to particularize them.

It is a subject of congratulation to all citizens of Minnesota that, out of all the state officers that have come and gone in the forty years of its life, there has been but one impeachment, which was of a state treasurer, Mr. William Seeger, who was elected in 1871. Although he was convicted, I have always believed, and do now, that he was personally innocent, and suffered for the sins of others.

The State of Minnesota has always, since the adjustment of its old railroad bond debt, held a conservative position in the Union,—financially, socially, patriotically and commercially. Its credit is the best, its prospects the brightest, and it makes very little difference which political party dominates its future so long as it is free from the taint of anarchy and is guided by the principles of honor and justice. The only thing to be feared is that some political party may gain control of the government of the nation, and either degrade its currency, involve it in disastrous complications and wars with other nations, or commit some similar folly which may reflectively or secondarily act injuriously on Minnesota as a member of the national family of states. Otherwise Minnesota can defy the vagaries of politics and politicians. She has very little to fear from this remote apprehension, because the American people, as they ever have been, will no doubt continue to be, on second thought, true to the teachings and traditions of the founders of the republic.

Minnesota, for so young a state, has been quite liberally remembered in the way of diplomatic appointments. Gen. C. C. Andrews represented the United States as minister to Sweden and Norway, and the Hon. Samuel R. Thayer and Hon. Stanford Newell at The Hague, the latter of whom now fills the position. Mr. Newell was also a member of the World's Peace Commission recently held at The Hague. Lewis Baker represented the United States as minister to Nicaragua, Costa Rica and San Salvador.

The state has also been honored by the appointment of the following named gentlemen from among its citizens as consuls general to various countries: Gen. C. C. Andrews to Rio de Janeiro, Brazil; Hon. Hans Mattson to

Calcutta, India; Dr. J. A. Leonard to Calcutta, and also to Shanghai, China; and Hon. John Goodenow to Shanghai, China.

We have had a full complement of consuls to all parts of the world, the particulars of which are unnecessary in this connection.

The state has also had three cabinet officers. On Dec. 10, 1879, Alexander Ramsey was appointed secretary of war by President Hayes, and again on Dec. 20, 1880, he was made secretary of the navy. The latter office he held only about ten days, until it was filled by a permanent appointee.

William Windom was appointed secretary of the treasury by President Garfield, and again to the same position by President Harrison. He died in the office.

Gen. William G. Le Duc was appointed commissioner of agriculture by President Hayes, which was a *quasi* cabinet position, and was afterwards made a full and regular one. The general was afterwards made a member of the National Agricultural Society of France, of which Washington, Jefferson and Marshall were members.

Senator Cushman K. Davis, who was chairman of the committee on foreign relations of the senate, was appointed by President McKinley one of the commissioners on the part of the United States to negotiate the treaty of peace with Spain after the recent Spanish war.

Gov. William R. Merriam was appointed by President McKinley as director of the census of 1900, and is now busily engaged in the performance of the arduous duties of that office. They are not diplomatic, but exceedingly important.

President Cleveland appointed John W. Riddle as secretary of legation to the embassy at Constantinople, where he has remained to the present time.

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Necessity has compelled me, in the preparation of this history, to be brief, not only in the subjects treated of, but also in the manner of such treatment. Details have usually been avoided, and comprehensive generalities indulged in. Those who read it may find many things wanting, and in order that they may have an opportunity to supply my deficiencies without too much research and labor, I have prepared a list of all the works which have ever been written on Minnesota, or any particular subject pertaining thereto, and append them hereto for convenience of reference. Any and all of them can be found in the library of the Minnesota Historical Society in the state capitol.

So much of what I have said consists of personal experiences and observations that it more resembles a narrative than a history, but I think I can safely vouch for the accuracy and truthfulness of all I have thus related.

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HUNTING WOLVES IN BED.

Forty-six years ago, almost immediately after my arrival in St. Paul, I accepted an offer to explore the valley of the Minnesota river and its tributaries, with reference to finding out the character of its soil, timber, steamboat landings and other natural features, bearing upon the founding of a city. My attention was particularly directed to the point where St. Peter now stands, which had then acquired the name of Rock Bend, from a turn in the river in front of the prairie, with a rocky wall which presented a fine landing for steamboats. Of course, the valley was not a *terra incognita* when I entered it, but settlement was very sparse, and very little was known about it. Town-site speculation was rife, and any place that looked as if it would ever be settled was being pounced upon for a future city. There was not a railroad west of Chicago, and every town location was, of course, governed by the rivers. As strange as it may seem to the residents of the present day, the Minnesota was then a navigable stream, capable of carrying large side wheel steamers several hundred miles above its mouth, and afterwards bore an immense commerce. As soon as the ice broke up in the spring, the river would rise and overflow its banks clear to the bluffs on each side, making a stream of from five to six miles wide, and deep enough to float boats anywhere within its limits.

A man by the name of William B. Dodd, better known as Captain Dodd in those days, had selected a claim at Rock Bend, covering the landing, and had laid out a road from the Mississippi to this point. He wanted to interest capitalists to start a town on his claim, and had succeeded in gaining the attention of Willis A. Gorman, then governor of the territory, and several other gentlemen, but none of them had ever been up the valley, and reliable information was difficult to obtain. It was true that Tom Holmes had laid out Shakopee, and Henry Jackson and P. K. Johnson, with a syndicate behind them, had selected Mankato, and I think there was a settler or two at Le Sueur, but the whole valley may be said to have been at that time in the possession of Indians, Indian traders and missionaries.

The St. Paul gentlemen who had been approached by Captain Dodd engaged me to go up the valley of the Minnesota river, and follow out all its tributaries, with the idea of reporting upon its general characteristics and prospects, with reference to the founding of a city at Rock Bend. I was delighted to do anything, or go anywhere, that promised work or adventure. It was to me what the Klondike has been to thousands recently. They furnished me with a good team, and away I went. It was in the winter, but I succeeded in reaching Traverse des Sioux, where I found a collection of Indian trading houses, where flourished Louis Roberts, Major Forbes, Nathan Myrick, Madison Sweetzer and others, who drove a trade with the Sioux. There was also at this point a missionary station, with a schoolhouse, a church, and a substantial dwelling house, occupied by the Rev. Moses N. Adams, who had been a missionary among the Sioux, having been transferred from the station at Lac qui Parle, where he had lived for many years, to this point. But the best find that I made was a young Scotchman by the name of Stuart B. Garvie, who had a shanty on the prairie about midway between Traverse des Sioux and my objective point, Rock Bend. I think that Garvie went up there from St. Anthony, under some kind of a promise from Judge Chatfield, that if ever the courts were organized in that region he would be made clerk. Garvie was delighted to discover me, and I being in search of information, we soon fraternized, and he agreed to go with me on my tour of exploration. We went up the Blue Earth, the Le Sueur, the Watonwan, and, in fact, visited all the country that was necessary to convince me that it was, by and large, a splendid agricultural region, and I decided so to report to my principals.

When I was about to leave for down the river, Garvie insisted that I should return and take up my abode at Traverse des Sioux. The proposition seemed too absurd to me to be seriously entertained, and I said: "I am destitute of funds, and how can a lawyer subsist where there are no people? How can I get a living?" This dilemma, which seemed to me to be insuperable, was easily answered by my new found friend. "Why," he said, "That is the easiest part of it. We can hunt a living, and I have a shack and a bed." The proposition was catching, having a spice of adventure in it, and I promised to consider it.

After making my report, in which I recommended Rock Bend as a promising place for a great city, I told the parties who proposed to purchase

Captain Dodd's claim that I would confirm my faith in the success of the enterprise by returning and living at the point. I did so, and found myself farther west than any lawyer in the United States east of the Rocky Mountains, unless he was in the panhandle of Texas. And now comes the singular way in which I made my first fee, if I may call it by that name. It was my first financial raise, no matter what you call it.

Garvie and I had gotten quietly settled in our shanty on the prairie, when one excessively cold night an Indian boy, about thirteen years of age, saw our light, and came to the door, giving us to understand that his people were encamped about four or five miles up the river, and that he was afraid to go any further lest he should freeze to death. He was mounted on a pony, had a pack of furs with him, and asked us to take him in for the night. We of course did so, and made him as comfortable as we could by giving him a buffalo robe on the floor. But we had no shelter for his pony, and all we could do was to hitch him on the lee side of the shanty, and strap a blanket on him. When morning came he was frozen to death. We got the poor little boy safely off on the way to his people's camp, and decided to utilize the carcass of the pony for a wolf bait.

In order to present an intelligent idea of the situation, I will say that the river made an immense detour in front of the future town, having a large extent of bottom land, covered with a dense chaparral, which was the home of thousands of wolves, and as soon as night came they would start out in droves in search of prey.

We hauled the dead pony out to the back of the shanty, and left it about two rods distant from the window. The moment night set in the wolves in packs would attack the carcass. At first we would step outside and fire into them with buck shot from double-barrelled shotguns, but we found they were so wary that the mere movement of opening the door to get out would frighten them, and we had very limited success for the first few nights. Another difficulty we encountered was shooting in the dark. If you have never tried it, and ever do, you will find it exceedingly difficult to get any kind of an aim, and you have to fire promiscuously at the sound rather than the object.

We remedied this trouble, however, by taking out a light of glass from the back window, and building a rest that bore directly on the carcass, so that

we could poke our guns through the opening, settle them on the rest, and blaze away into the gloom. We brought our bed up to the window, so that we could shoot without getting out of it, while snugly wrapped up in our blankets. After this our luck improved, and after each discharge we would rush out, armed with a tomahawk, dispatch the wounded wolves, and collect the dead ones, until we had slaughtered forty-two of them. We skinned them, and sold the pelts to the traders for seventy-five cents a piece, which money was the first of our earnings.

It was not long before we ceased to depend on wolf hunting for a living, as immigration soon poured in, and money became plenty. I remember soon after of having seventeen hundred dollars in gold buried in an oyster can under the shanty.

I lived on this prairie for eleven years, and never was happier at any period of my life, and feel assured that I can safely say that no other man ever enjoyed the luxury of hunting wolves in bed.

The pleasure of narrating such adventures for the present generation is, in this instance, marred by the reflection that both Captain Dodd and my old friend Garvie were killed by the Indians in 1862, the former while gallantly fighting at the battle of New Ulm, and the latter at the Yellow Medicine Agency, on the first day of the outbreak.



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THE POISONED WHISKY.

I was told by a gentleman at my club the other day that he had read in some magazine that the British army had blown open the tomb of the Mahdi in upper Africa, and had mutilated the body, cutting off the head and sending it to England in a kerosene can. I could hardly believe the story, but he vouched for having read it in a reputable publication, and being a strong hater of the English, affirmed his unqualified faith in the statement. Notwithstanding his position, it seemed to me incredible that such an act of barbarism could be perpetrated by the disciplined soldiery of a civilized nation in the nineteenth century. The conversation so impressed me that I could not drive it out of my mind, and I kept revolving it and making comparisons with events in my own experience, until I concluded that it is more than probable that it took place as related, and have since learned that it actually occurred.

I have seen a good deal of ferocity and savagism, and it was not at all confined to people acknowledged to be barbarians. I remember an instance where I came very near being a party to a scheme, the brutality of which would have made the mutilation of the dead Mahdi commendable in comparison; but fortunately my better nature and second thought overcame my passions, and I was spared the perpetration of the awful crime, the remembrance of which, had it been committed, would undoubtedly have haunted me through life.

Many of the older settlers of Minnesota will remember the horrors of the Indian massacre and war of 1862, when the Sioux attacked our exposed frontiers, and in a day and a half massacred quite a thousand people. They spared neither age nor sex. It was like all such savage outbreaks,—a war against the race and the blood. These atrocities extended over a large and sparsely inhabited area of country, and were usually perpetrated at the houses of the settlers by the slaughter of the entire family, sometimes varied by the seizure of the women, and carrying them off into captivity, which in most instances was worse than death. Every character of mutilation and outrage that could be suggested by the inflamed passions of a savage were

resorted to, and so horrible were they that it would shock and disgust the reader should I attempt to describe them. This condition of things was no surprise to me, because it was to be expected from savages; but the more we saw and heard of it, the more exasperated and angered we became, and the more we vowed vengeance should the opportunity come.

I resided on the frontier at the time the outbreak occurred, and murders were committed within eight miles of my home before I heard of it, which was on the morning of the second day. I, of course, immediately, after disposing of my impedimenta in the shape of women and children, took the field against the enemy, and by nine o'clock in the evening of the same day that I heard of the trouble I found myself at the town of New Ulm, a German settlement on the frontier, the extreme outpost of civilization, in command of over one hundred men, armed and ready for battle. We had raised and equipped the company and travelled thirty-two miles since the morning.

When we entered the town it was being attacked by a squad of Indians, about one hundred strong, who had already burned a number of houses and were firing upon the inhabitants, having already killed several. We soon dislodged the enemy, put out the fires, and settled down to await events. This was on Tuesday, the 19th of August. We strengthened the barricades about the town, and did all we could to prepare for a second attack, which we knew would certainly come, and from the combined forces of the enemy, and which did come on the following Saturday. While waiting, numerous squads of whites from the surrounding country reenforced us, and it soon became apparent that someone must be put in command of the whole force, to prevent disorders on the part of the men, as whisky was abundant and free. The honor of the command fell upon me by election of the officers of the various companies, and in the choice of a rank for myself my modesty restrained me to that of colonel. I have often thought since that I lost the opportunity of my life, as I might just as easily have assumed the title of major general.

Every day we sent out scouting expeditions, and brought in refugees, men, women and children, who were in hiding or wounded, and in the most pitiable condition. From these we learned of many additional atrocities, which kept our passions and desire for revenge at fever heat. On Saturday,

the 23d, the Indians who had been all the week besieging Fort Ridgely, abandoned that quest, and came down upon us in full force. The attack commenced about half-past nine o'clock on Saturday morning, and the fight raged hotly and viciously for about thirty hours without cessation. I lost in the first hour and a half ten killed and fifty wounded, out of a command of not more than 250 guns. On the afternoon of the next day the Indians gradually disappeared toward the north, and gave us a breathing spell, and then a relief company arrived and the fighting ceased.

On Monday ammunition and provisions were getting short, and fearing a renewal of the attack, I decided to evacuate the town, and go down the Minnesota river to Mankato, a distance of about thirty miles over an open prairie. We had nearly fifteen hundred women and children to take care of, and about eighty wounded men. The caravan consisted of 153 wagons, drawn by horses and oxen; the troops being on foot, and so disposed as to make a good defense if attacked.

Everything being ready for a start, some one suggested to me to set a trap for the Indians, when they should enter the town after our departure, as we all supposed they would, there being an immense amount of loot left behind,—stores full of goods of all kinds, and many other things of value to the savage.

I had, the day before, put a stop to some of the younger men scalping the eight or ten dead Indians who had been dragged into the town from where they had been killed, regarding it as barbarous. The boys would take off a small piece of scalp, and with its long black hair, tie it into their button-holes, as a souvenir to take home with them.

What do you think was the nature of the trap that was proposed to catch the Indians? It makes my blood run cold to think of it, and so disgraceful and diabolical was it that, in all I have said and written about this war in the last thirty-six years, I have never had courage to mention it. Yet as awful as it was, so incensed was I at all the devilish cruelty that had been perpetrated on our people that I at first consented to it, and we went so far as actually to set the trap.

It was proposed to expose a barrel of whisky in a conspicuous place, and put enough strychnine in it to destroy the whole Sioux nation, and then

label it "poison" in all the languages spoken in our polyglot country, so that should the first comers be whites they would avoid it, but if Indians, we might have the satisfaction of exterminating them. We actually went so far as to place the barrel where it would attract anyone who should be looking about the main street, which was all that was left of the town, and labelled it in French, English, German, Italian, Swedish and Norwegian, and then put into it eight or ten bottles of strychnine, prepared for destroying wolves, and were about leaving when the thought flashed through my mind: "Suppose a relief squad should be sent to us, and should think the whole matter a joke to cheat them out of a drink, and should sample it and die, as they certainly would, we never could forgive ourselves, and would be really their murderers." My knowledge of the fact that a soldier who had made a long march on a hot day would take big chances for a drink, heightened my apprehension on this view of the subject, and the more I thought the matter over, the more devilish it appeared to me, even if we caught only Indians. I actually felt as though I would be ashamed to meet the spirit of even a savage enemy whom I had disposed of in such a cowardly manner, should we finally be consigned to the same happy hunting grounds, so I took an axe and knocked the head of the barrel in, and let the contents into the street. While I deeply regretted the loss of so much good whisky, I have never thought of the occurrence since without inwardly rejoicing that my better nature and judgment prevented me from committing such an offense against all the laws of honor, humanity and civilization. It turned out that the first arrival was a squad sent by General Sibley to our relief, and from what I know of some of the men composing it, I am quite certain that the warning would have been disregarded. The circumstance, however, proves how deeply the savage instinct is imbedded in human nature, whatever the color of the skin. "Give us strength to resist temptation," has been my prayer ever since.



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FUN IN A BLIZZARD.

The winter of 1856, in Minnesota, was characterized by the usual amount of cold weather, snow and storms, and people operating on the frontier were compelled to exercise great care and caution to prevent disasters. All old timers who have had occasion to live beyond the settlements and travel long distances in an open prairie country well know that the danger of being overtaken by storms is one of the most terrible that one can be exposed to. Most of the casualties, however, that result from being caught in these storms may be attributed to want of experience, and consequent lack of preparation to meet and contend with them. I have employed many men of all nationalities in teaming long distances on the prairie frontier in the winter season, and while the American is always reliable and dexterous in emergencies, I have found the French Canadian always the best equipped for winter prairie work, in his knowledge in this line that can only be gained by experience. His ancestors served the early fur companies from Montreal to McKenzie's river, from Hudson's bay to the Pacific, and knew how to take care of themselves with the unerring instinct of the cariboo and the moose, and the generation of them that I came in contact with had inherited all these characteristics.

I have known a brigade of teams, manned by Germans, Englishmen and Irishmen (the Scandinavians had then just begun to make their appearance in the Northwest) to be caught in a winter storm, and result in the amputation of fingers, toes, feet and hands from freezing, but I cannot remember ever losing a Canadian Frenchman. I recall one instance, where a train was overtaken by a severe storm just about evening, where no timber was in sight. The men built barricades with their sleds and loads, and took refuge to the leeward of them, where they passed quite a comfortable night for themselves and their teams. With the coming of the morning light they discovered a timber island not very far off, and started for it with their horses, to make fires, feed the teams, and get breakfast. The storm had abated, and the sun shone brilliantly. One young American lad shouldered a sack of oats, and not realizing that it was very cold, did not put on his mittens, but seized the neck of the sack with his bare hand. When he arrived

at the timber all his fingers were frozen, and had to be amputated. It was merely one of the cases of serious injury I have known arising from ignorance.

No one who has not encountered a blizzard on the open prairie can form an adequate idea of the almost hopelessness of the situation. The air becomes filled with driving, whirling snow to such an extent that it is with difficulty you can see your horses, and the effect is the same as absolute darkness in destroying all conception of direction. You may think you are going straight forward when in fact you are moving in a small circle; the only safety is to stop and battle it out.

I remember a case which happened in this region before it became Minnesota which fully proves the dangers of a blizzard to a traveler on the open prairie. Martin McLeod and Pierre Bottineau, together with an Englishman and a Pole, started from Fort Garry for the headwaters of the Minnesota river. They were well equipped in all respects, having a good dog train, and, in Bottineau, one of the most experienced guides in the Northwest. While the party was in sight of timber it was suddenly enveloped in a blizzard, and, of course, wanted to reach the timber for safety. Here a controversy arose as to the direction to be taken to find it, the Englishman and the Pole insisting on one line, and McLeod and Bottineau on another. They separated. McLeod took the dogs, and he and they soon fell over a precipice and were covered up in a deep snow drift, where they remained quite comfortably through the night. Bottineau through his instincts reached the timber, and was safe, where he was joined the next morning by McLeod. The Englishman was afterwards discovered so badly frozen that he died, while the Pole was lost. The only trace of him that was ever discovered was his pistols, which were found on the prairie the next spring, the wolves having undoubtedly disposed of his remains.

The remedy for these dangers is to avoid them by a close scrutiny of the weather, and by never venturing on a big prairie if you can by any means avoid it, and always being abundantly supplied with food for yourself and animals, whether horses or dogs, besides fuel, matches, blankets, robes, and all the paraphernalia of a snow camp, should you have to make one. No people are more careful in these particulars than the Indians themselves, from whom the French voyageurs undoubtedly learned their lessons.

To give an idea of how treacherous the weather may be, and of what dangers frontier people are subjected to, I will relate an adventure in which I participated when living in the Indian country, which, however, turned out pleasantly. I had been at my Redwood agency for several days, and it became important that I should visit my upper agency, situated on the Yellow Medicine river, about thirty miles distant, up the Minnesota river. After crossing the Redwood river, the road led over a thirty-mile prairie, without a shrub on it as big as a walking stick. The day was bright and beautiful, and the ride promised to be a pleasant one, so I invited my surgeon, Dr. Daniels, and his wife to accompany me. They gladly accepted, and Mrs. Daniels took her baby along. (By the way, this baby is now the elder sister of the wife of one of our most distinguished attorneys, Mr. John V. I. Dodd.) Mr. Andrew Myrick, a trader at the agency, learning that we were going, decided to accompany us, and got up his team for the purpose, taking some young friends with him, and off we went.

I had early taken the precaution to construct a sleigh especially adapted to winter travel in this exposed region. It had recesses where were stowed away provisions, fuel, tools, and many things to meet possible emergencies. The cushions were made of twelve pairs of four-point Mackinaw blankets, and the side rails were capable of carrying two carcasses of venison or mutton, so I felt quite capable of conquering a blizzard.

I may say here that I had a surgeon at each agency, who were brothers, Dr. Asa W. Daniels at the lower agency and Dr. Jared Daniels at the upper, and this excursion presented a pleasant opportunity for the families to meet. The upper agency was in charge of my chief farmer, a Scotch gentleman by the name of Robertson. He was a mystery which I never unravelled,—a handsome, aristocratic, highly educated man about seventy years of age, with the manners of a Chesterfield. He had been in the Indian country for many years, had married a squaw, and raised a numerous family of children, and had been in the employment of the government ever since the making of the treaties. I always thought he once was a man of fortune, who had dissipated it in some way, after travelling the world over, and had sought oblivion in the wilds of America.

There was a large comfortable log house at the Yellow Medicine agency, occupied by Robertson, which answered for all his purposes, both business

and domestic, and furnished a home and office for me when I happened to be there; and on one occasion, during the Ink-pa-du-ta excitement, I found it made a very efficient fort for defense against the Indians.

Our trip was uneventful, and we arrived in the evening. That night a blizzard sprang up that exceeded in severity anything of the kind in my experience, and I have had nearly half a century of Minnesota winters. It raged and rampaged. It piled the snow on the prairie in drifts of ten and twenty feet in height. It filled the river bottoms to the height of about three feet on the level. It lasted about ten days, during which time, we of course, did not dream of getting out, but amused ourselves as best we could. It was what the French called a *poudre de riz*, where there is more snow in the air than on the ground. Although I have been entertained in many parts of the world, and by many various kinds of people, I can say that I never enjoyed a few weeks more satisfactorily than those we spent under compulsion at the Yellow Medicine river on that occasion.

Personal association with Mr. Robertson was not only a delight, but an education. He had been everywhere, and knew everything. He was charming in conversation and magnificent in hospitality, and the unique nature of his entertainment under his savage environments lent an additional charm to the situation. He soon became aware that we needed something exciting to sustain us in our enforced imprisonment, and he produced fiddlers and half-breed women for dancing. He gave us every day a dinner party composed of viands unknown outside of the frontier of North America. One day we would have the tail of the beaver, always regarded as a great delicacy on the border; the next, the paws of the bear soused, which, when served on a white dish, very much resembled the foot of a negro, but were good; then, again, roasted muskrat, which in the winter is as delicate as a young chicken; then fricasseed skunk, which, in season, is free from all offensive odor, and extremely delicate,—all served with *le riz sauvage*. In fact, he exhausted the resources of the country to make us happy.

But Robertson's menu was the least part of it. Every evening he would assemble us, and read Shakespeare and the poetry of Burns to us. I never understood or enjoyed Burns until I heard it read and expounded by Robertson.

The time passed in this pleasant fashion until we commenced to think we were "snowed in" for the winter, and I began to devise ways and means for getting out. I had to get out; but how, was the question. To cross the prairie was not to be thought of; we could not get an Indian to venture over it on snowshoes, let alone driving over it. Nothing had been heard of us below, and, as we learned afterwards, the St. Paul papers had published an account of our all being frozen to death, with full details of Andrew Myrick being found dead in his sleigh, with the lines in his hands and his horses standing stiff before him.

I decided that an expedition might work its way through on the river bottoms, and we could follow in its trail. So I sent out a party with several heavy sleds, loaded with hay, and each drawn by four or five yoke of oxen to beat a track. They returned after several days' absence, and reported that the thing was impossible, and they could not get through. I then called for volunteers, and the French Canadians came to the front. I allowed them to organize their own expedition. They took their fiddles with them, and the agreement was, that if we didn't hear from them in five days, we were to consider that they were through, and we could follow. The days passed one after the other, and at the expiration of the time, we all started, and laboriously followed the trail they had beaten. We noticed their camps from day to day, and saw that they had not been distressed, and found them, at the end of the journey, as jolly as such people always are, whether in sunshine or storm.

It is much more agreeable to write about blizzards than to encounter them.

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LAW AND LATIN.

In the beginning of the settlement of the Minnesota valley, in the early fifties, a man named Tom Cowan located at Traverse des Sioux. His name will be at once recognized by all the old settlers. He was a Scotchman, and had been in business in Baltimore. Financial difficulties had driven him to the West, to begin life anew and grow up with the country. He was a very well read and companionable man, and exceedingly bright by nature, and at once became very popular with the people. His first venture was in the fur trade, but not knowing anything about it, his success was not brilliant. I remember that he once paid an immense price for a very large black bearskin, thinking he had struck a bonanza. He kept it on exhibition, until one day John S. Prince, who was an experienced fur buyer, dropped in, and after listening to Cowan's eulogy on his bear skin, quietly remarked: "He bear; not worth a d—n," which decision induced Tom to abandon the fur trade.

There being no lawyer but one at Traverse des Sioux, and I having been elected to the supreme bench, Mr. Cowan decided to study law, and open an office for the practice of that profession. He accordingly proposed that he should study with me, which idea I strongly encouraged, and after about six weeks of diligent reading, principally devoted to the statutes, I admitted him to the bar, and he fearlessly announced himself as an attorney and counselor at law. In this venture he was phenomenally successful. He was a fine speaker, made an excellent argument on facts, and soon stood high in the profession. He took a leading part in politics, was made register of deeds of his county, went to the legislature, and was nominated for lieutenant governor of the state after its admission into the Union; but, of course, in all his practice he was never quite certain about the law of his cases. This deficiency was made up by dash and brilliancy, and he got along swimmingly.

One day he came to my office and said: "Judgey, I am going to try a suit at Le Sueur to-morrow that involves \$2,500. It is the biggest suit we have ever had in the valley, and I think it ought to have some Latin in it, and I want

you to furnish me with that ingredient." I said: "Tom, what is it all about? I must know what kind of a suit it is before I can supply the Latin appropriately, and especially as I am not very much up in Latin myself."

He said the suit was on an insurance policy; that he was defending on the ground of misrepresentations made by the insured on the making of the policy, and he must have some Latin to illustrate and strengthen his point.

I mulled over the proposition, looked up some books on maxims, and finally gave him this, "*Non haec in federe veni*," which I translated to mean, "I did not enter into this contract." He was delighted, and said there ought to be no doubt of success with the aid of this formidable weapon, and made me promise to ride down with him to hear him get it off. So the next day we started, and in crossing the Le Sueur prairie, Cowan was hailed by a man who said he was under arrest for having kicked a man out of his house for insulting his family, and he wanted Tom to defend him. The justice's court was about a mile from the road, in a carpenter shop, the proprietor of which was the justice. Tom told him to demand a jury, and he would stop on his way back and help him out.

When we arrived at Le Sueur we found that the case could not be heard that day, and, starting homeward, about four o'clock we reached the carpenter shop. There we found the jury awaiting us. We hitched the team, and I spread myself comfortably on a pile of shavings to witness the legal encounter. The complaining party proved his case. Cowan put his client on the witness stand, and showed the provocation. Then he addressed the jury. His defense was, want of criminal intent. He dwelt eloquently on the point that the gist of the offense was the intent with which the act was committed, and when it appeared that the act was justified, there could be no crime. Then, casting a quizzical glance at me, he struck a tragic attitude, and thundered out: "Gentlemen of the jury, it is indelibly recorded in all the works of Roman jurisprudence, '*Non haec in federe veni*,' which means there can be no crime without criminal intent." The effect was electrical; the jury acquitted the prisoner, and we drove home fully convinced that the law was not an exact science. With what effect Tom utilized his Latin in the insurance suit I have forgotten, or was never advised.

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INDIAN STRATEGY.

In the summer of 1856 I had the celebrated battery commanded by Major T. W. Sherman of the United States Army (better known as the Buena Vista Battery, from the good work it did in the Mexican war) on duty in the Indian country, on account of a great excitement which prevailed among the Indians. The officers of the battery were Major Sherman, First Lieutenant Ayer, and Second Lieutenant Du Barry. Its force of men was about sixty, including noncommissioned officers. I think it had four guns, but of this I am not certain.

One day, after skirmishing about over considerable country, we made a camp on the Yellow Medicine river, near a fine spring, and everything seemed comfortable. The formation of the camp was a square, with the guns and tents inside, and a sort of a picket line on all sides about a hundred yards from the center, on which the sentinels marched day and night. I tented with the major, and seeing that the Indians were allowed to come inside of the picket lines with their guns in their hands, I took the liberty of saying to him that I did not consider such a policy safe, because the Indians could, at a concerted signal, each pick out his man and shoot him down, and then where would the battery be? But the major's answer was, "Oh, we must not show any timidity." So I said no more, but it was just such misplaced confidence that afterwards cost General Canby his life among the Modocs, when he was shot down by Captain Jack. Things went on quietly, until one day a young soldier went down to the spring with his bucket and dipper for water, and an Indian who desired to make a name for himself among his fellows followed him stealthily, and when he was in a stooping posture, filling his bucket, came up behind him, and plunged a long knife into his neck, intending, of course, to kill him; but as luck would have it, the knife struck his collarbone and doubled up, so the Indian could not withdraw it. The shock nearly prostrated the soldier, but he succeeded in reaching camp. The major immediately demanded the surrender of the guilty party, and he was given up by the Indians. I noticed one thing, however; no more Indians were allowed inside the lines with their guns in their hands.

When the prisoner was brought into camp a guard tent was established, and he was confined in it, with ten men to stand guard over him. These men were each armed with the minie rifle which was first introduced into the army, and which was quite an effective weapon.

While all this was going on, we were holding pow-pows every day with the Indians, endeavoring to straighten out and clear up all the vexed questions between us. The manner of holding a council was to select a place on the prairie, plant an American flag in the center, and all hands squat down in a circle around it. Then the speechifying would commence, and last for hours without any satisfactory results. Anyone who has had much experience in Indian councils is aware of the hopelessness of arriving at a termination of the discussion. It very much resembles Turkish diplomacy. But the weather was pleasant, and everybody was patient.

The Indians, however, were concocting plans all this time to effect the escape of the prisoner in the guardhouse. So one day they suggested a certain place for the holding of the council, giving some plausible reason for the change of location, and when the time arrived, everybody assembled, and the ring was formed. Those present consisted of all the traders, Superintendent Cullen, Major Sherman, Lieutenant Ayer,—in fact, all the white men at the agency,—and about one hundred Indians, everyone of whom had a gun in his hands. I had warned the major frequently not to allow an Indian to come into council with a gun, but he deemed it better not to show any timidity, and they were not prohibited. The council on this occasion was held about four hundred yards from the battery camp, and on lower ground, but with no obstruction between them. The scheme of the savages was to spring to their feet on a concerted signal and begin firing their guns all around the council circle, so as to create a great excitement and bring everyone to his feet, and just at this moment the prisoner in the guardhouse was to make a run in the direction of the council, keeping exactly between the guard and the whites in the council ring, believing that the soldiers would not fire for fear of killing their own people. When the time arrived every Indian in the ring jumped to his feet and fired in the air, creating a tremendous fusilade, and as had been expected, the most frightful panic followed, and everyone thinking that a general massacre of the whites had begun, they scattered in all directions. Instantly the prisoner ran for the crowd, and an Indian can sprint like a deer. Contrary to expectations, every

one of the ten guards opened fire on him, and seven of them hit him, but curiously not one of the wounds stopped his progress, and he got away; but the bullets went over and among the whites, one ricocheting through the coat of Major Cullen. The prisoner never was caught, but I heard a great deal about him afterwards. His exploit of stabbing the soldier and his almost miraculous escape made him one of the most celebrated medicine men of his band, and he continued to work wonders thenceforth.

After the return of the battery I was informed by my close friends among the Indians that they had sat on the hills overlooking the camp and concocted all kinds of schemes to take it, the principal one of which was to fill bladders with water, and pour them over the touch-holes of the guns, and, as they supposed, render them useless, and then open fire on the men. Fortunately nothing of the kind was tried, but I was convinced that no one can be too cautious when in the country of a savage enemy. A good lesson can be learned from this narrative by the people now occupying the country of the Filipinos.

One pleasing circumstance resulted from the presence of this battery in the Indian country. About thirty years after the occurrences I have been narrating I had occasion to transact some business with the adjutant general of our state at his office in the capitol, and after completing it I was about to retire, when the general said to me: "Judge, you don't seem to remember me." I replied: "General, did I ever have the pleasure of your acquaintance?" "Not exactly," he said, "but don't you remember the time when you had the old Sherman Battery in the field, with its tall first sergeant?" I said: "I recall the event quite clearly, but not the sergeant." He said: "One day, after a long, hot march, I was laying out the camp, and you were sitting on your horse observing the operation, when you noticed me and called me to you, and pulling a flask from your pocket or holster, you asked me to take a drink. That is a long time ago, but I remember it as the best drink I ever had, and I always associate you pleasantly with it." The tall sergeant had matured into a most dignified and charming gentleman, with whom I have ever since enjoyed the most agreeable relations.

The moral of this story is, that when you are in the country of hostile savages, never accept any confidences or take any chances, and when you

have more drinks than you can conveniently absorb, divide with your neighbor.



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THE FIRST STATE ELECTION RETURNS FROM PEMBINA.

The State of Wisconsin was admitted into the Union in the year 1848, with the St. Croix river as its western boundary. This arrangement left St. Paul, St. Anthony, Stillwater, Marine, Taylor's Falls and other settlements, which had sprung up in Wisconsin west of the St. Croix, without any government. The inhabitants of these communities immediately sought ways and means to extricate themselves from the dilemma in which they were placed. There were a great many men among them of marked ability and influence—Henry M. Rice, Henry H. Sibley, Morton S. Wilkinson, Henry L. Moss, John McKusick, Joseph R. Brown, Martin McLeod, Wm. R. Marshall and others. Differences of opinion existed as to whether the remnant of Wisconsin on the west side of the St. Croix still remained the Territory of Wisconsin or whether it was a kind of "no man's land," without a government of any kind. Governor Dodge of the territory had been elected to the senate of the United States for the new state. The delegate to congress had resigned, and the government of the territory had been cast upon the secretary, Mr. John Catlin, who became governor ex-officio on the vacancy happening in the office of governor. He lived in Madison, in the new state, and would have to move over the line into the deserted section if he proposed to exercise the functions of his office. A correspondence was opened with him, and he was invited to come to Stillwater, and proclaim the existence of the territory by calling an election for a delegate to congress from Wisconsin Territory. He accepted the call, moved to Stillwater, and in the month of September, 1848, issued his proclamation. An election was held in November following, and Henry H. Sibley was chosen delegate from Wisconsin Territory to the congress of the United States.

Sibley procured the passage of an act, on March 3, 1849, organizing the Territory of Minnesota, and we have had regular elections ever since.

There is a little unwritten history connected with the transaction above related. The principal citizens west of the St. Croix fixed things up among the settlements in a manner entirely satisfactory to themselves. They

divided the prospective spoils about as follows: Sibley lived at Mendota, and that place was to have the delegate to congress, St. Paul was to have the capital, Stillwater the penitentiary, and St. Anthony the university, which comprised all there was to divide. The program was faithfully carried out, and has been maintained ever since, although various attempts have been made to violate the treaty by the removal of the capital from St. Paul; but I am glad to be able to say, in behalf of honesty and fair dealing, none of them have been successful.

The existence of this unwritten treaty has been denied, but there are men yet living in the state who took part in it, and have publicly affirmed its authenticity. Judge Douglas of Illinois, when chairman of the senate committee on territories, insisted on placing the capital at Mendota, with the building on the top of Pilot Knob, and had it not been for the stern integrity of Sibley, he would have succeeded, to the everlasting inconvenience and discomfort of our people.

There were really no politics worthy of the name during the years of the territory. All the principal offices were filled by appointment by the general government, and the rest of them determined by personal rivalries. The main business of the territory was the fur trade, carried on by warring companies, whose chief factors sought office more for the sake of its influence on their business than for the principles they represented.

I remember one year the legislature, in a spasm of virtue, passed a prohibitory liquor law, which the supreme court, under the influence of a counter spasm, immediately set aside as unconstitutional. Outside of the cities, where the missionaries exerted a strong influence, the contention was usually whisky or no whisky; in fact, there was very little else to fight about.

The first government was appointed by the Whigs (the Republican party being yet unborn), and as Governor Ramsey was from Pennsylvania, we had a great influx of immigration from that state. The second governor (Gorman) was appointed by the Democrats, and came from Indiana, and the people of that state being much more migratory than the Pennsylvanians, we were flooded with Hoosiers. These various influences caused differences of opinion and interests sufficient to keep the political pot

boiling quite lively, but on lines that were necessarily personal and temporary in their bearing. We soon, however, approached the more important subject of statehood, and, strange as it may seem to the present generation, the question of slavery was a strong factor. The Republican party was born about 1854, and as its principal creed was opposition to the extension of slavery, its followers naturally forced the subject into the politics of the day. I can, however, positively affirm that no one of any political faith had the slightest idea of introducing slavery into Minnesota. A constitution for the proposed state was framed in 1857, and in the fall of that year the election for the officers of the first state government was held, and, of course, great interest was manifested as to the result. The general election was fixed by law for November in all of the counties of the territory except one. The county of Pembina was so distant from the capital that it was found to be difficult to get the returns in so as to be counted with those of the rest of the state. The only transportation between the two places was by Red River carts, drawn by oxen in the summer, and by dog trains in the winter; the distance to be travelled was about four hundred miles, and the time necessary to compass it nearly or quite a month. The legislature had, in 1853, in order to remedy this difficulty, and because the population was on its annual buffalo hunt in November, passed an act fixing the time for holding elections in the county of Pembina on the second Tuesday in September in each year, thus giving ample opportunity to get the returns to the authorities in St. Paul in time to be counted with those from the other districts. The result of this was that no one outside of Pembina ever knew how many votes had been polled in that district until long after the rest of the territory had been heard from, and it became a common saying among the Whigs that the Pembina returns were held back until it became known how many votes were necessary to carry the election for the Democrats, and that they were fixed accordingly, which the Democrats denounced as a Whig lie.

About all that was known of Pembina was that it was inhabited by a savage looking race of Chippewa half-breeds, and that Joe Rolette lived there, and Norman W. Kittson went there occasionally. It carried on an immense trade in furs with St. Paul, by means of brigades of Red River carts each summer and by dog trains in the winter, and the more you saw of these people the more you were impressed with their savage appearance and bearing.

The first state election, curious as it may appear, was held in 1857, before the state was admitted into the Union, which latter event was postponed until May 11, 1858, and when the votes from all the counties except Pembina had been returned to the proper officer the result, as far as could be ascertained before the official count was made, was somewhat in doubt, which circumstance naturally excited great interest in the Pembina election, as it was well known that all the votes from that district would be Democratic, so the great question was, "How many?"

While the country was holding its breath in suspense and expectancy, a man in the Indian trade, named Madison Sweetzer, came to me about two o'clock one night, or rather morning, and told me that Nat. Tyson, who was a merchant in St. Paul and an enthusiastic Republican, had just started for the north with a fast team and an outfit that looked as if he contemplated a long journey, and his belief was that he intended to capture Joe Rolette and the Pembina returns. I thought such might be the case, and we immediately began to devise ways and means to circumvent him. We hastened to the house of Henry M. Rice, who knew every trader and half-breed between here and Pembina, and laid our suspicions before him. He diagnosed the case in an instant, and sent us to Norman W. Kittson, who lived in a stone house well up on Jackson street, with instructions to him to send a mounted courier after Tyson, who was to pass him on the road, and either find Rolette or Major Clitheral, who was an Alabama man and one of the United States land officers in the neighborhood of Crow Wing (and, of course, a reliable Democrat), and to deliver a letter to the one first found, putting him on guard against the supposed enemy. I prepared the letter, and Kittson in a few moments had summoned a reliable Chippewa half-breed, mounted him on a fine horse, fully explained his mission, and impressed upon him that he was to reach Clitheral or Rolette ahead of Tyson, if he had to kill a dozen horses in so doing. There is nothing a fine, active young half-breed enjoys so much as an adventure of this kind; a ride of four hundred miles had no terrors for him, and to serve his employer, no matter what the duty or the danger, was his delight. When he was ready to start, Kittson gave him a send-off in about the following words: "*Va, va, vite, et ne t'arrette pas, même pour sauver la vie*" ("Go; go quick; and don't stop even to save your life"), and giving his horse a vigorous slap, he was off like the wind.

The result was that he passed Tyson before he had gone twenty miles, found Clitheral a day and a half before Tyson reached Crow Wing, if he ever did get there, delivered his letter, and the major immediately started to find Rolette, which he succeeded in doing, took the returns and put them in a belt around his person, and having relieved Joe of all his responsibility, left him to his own devices, which meant painting all the towns red that he visited on his way. We well knew that Joe could no more resist the temptations of civilization than an old sailor returning from a long voyage, and what we apprehended was that he might, while in a too-convivial mood, either lose the returns, or have them stolen from him.

The tone of the letter was so urgent that the major did not know but that half the Republicans in St. Paul might be lying in wait to capture him, so he did not enter the town directly, but went to Fort Snelling, and left the returns with an officer of the army, and then proceeded to St. Paul. When we explained to him that no one but Rice, Kittson, Sweetzer and myself knew anything about the matter, he was relieved, but still cautious. He waited for a few days, and then proposed to a lady to take a ride with him to Fort Snelling. When they started home, he gave her a bundle and asked her to care for it while he drove, which she unsuspectingly did, and that is the way the Pembina returns of Minnesota's first state election reached the capital. It is needless to say how many votes they represented, but only to announce that the election went Democratic.

Whether Tyson had any idea of doing what we suspected him of, I never discovered, but if that was his purpose, he had a long ride for nothing, and as our scheme terminated so successfully, I am willing to acquit him of the charge.

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A FRONTIER STORY WHICH CONTAINS A ROBBERY, TWO DESERTIONS, A CAPTURE AND A SUICIDE.

In 1856 I was United States Indian agent for the Sioux. My agencies were at Redwood, about thirteen miles above Fort Ridgely, and at Yellow Medicine, on a river of that name, emptying into the Minnesota about fifty miles above the fort. Under the treaties with these Indians the government paid them large sums of money and great quantities of goods, semi-annually, at the agencies. Up to a short time before the event which I am about to relate these payments were made by the agent, but, for some reason best known to the government, the making of the payment was turned over to the superintendent of Indian affairs having charge of the tribes. The manner of making these payments before the change was this: I would receive from the superintendent, at St. Paul, the money, in silver and gold (this being long before the days of greenbacks), amounting to a full wagon load, and take it up to the agencies, while the goods would be delivered by the contractors in steamboats, a census of the Indians would be taken, and the money and goods equally divided among them.

After this duty was withdrawn from the agents and imposed upon the superintendents, of course all responsibility for the money and goods was shifted from the former and laid upon the latter, which was to me a great relief, as I had transported many wagon loads of specie from St. Paul to the agencies without guard, and at great personal and financial risk. A payment was due early in July, 1857, and the superintendent had brought the money as far as Fort Ridgely. Arriving at that point, news came of much excitement among the Indians at the agencies, which was not at all unusual, as thousands of savage fellows used to come in from the Missouri river country, and make trouble for our tribes about payment time, and the superintendent decided it was prudent to leave the money at Fort Ridgely until matters quieted down. There was no vault or other safe place in which to deposit the money at the fort, so it was placed in a room occupied by the quartermaster's clerk, a Frenchman, an enlisted man, and he, with another

soldier, a German, who was the post baker, were put in charge of it. This Frenchman had been selected from the ranks of Captain Sully's company and made quartermaster's clerk on account of his superior education, his excellent penmanship and his good character. I always have thought he was some unfortunate young gentleman, serving under an assumed name. The money was all in stout wooden mint boxes, holding each \$1,000 in silver, and in gold about \$25,000 or more, there being usually one or two boxes of gold. The boxes were spread on the floor of the room, and the men slept on them.

The constitutional convention to frame the organic law for the proposed State of Minnesota had been called to convene in St. Paul, on the thirteenth day of July, 1857, and the people of the Minnesota valley had done me the honor to elect me a member of it. I had delayed starting for St. Paul until a day or two before the meeting of the convention, and having heard rumors that there would be trouble in organizing it, I felt very anxious to be there on the opening day. The only mode of transportation, except the river, in those days, was the little canvas-covered stages of Messrs. M. O. Walker & Co., which would hold four inside comfortably, and six on a pinch. When the down stage reached Traverse des Sioux, on the morning of the 11th of July, it was full; that is, there were five inside, three on the back seat, and two on the front, and one man on the seat with the driver. I insisted strenuously on going, and said I would ride in the boot rather than not go at all, my insistence, of course, having reference to my desire to be at the opening of the convention. I was admitted, and took my place on the front seat, with my back to the driver, and my knees interlocked with those of the passenger on the back seat who faced me. At this time I had heard nothing of what had happened at the fort. The fact was that the two men who had been placed in charge of the money had opened one of the boxes of gold, taken out a bag containing \$5,000 in quarter eagles, and sealed it up again. When the superintendent sent down for his money, and it was loaded into the wagon, the two soldiers immediately deserted, which, of course, excited the suspicions of the officers. A courier was at once dispatched to the agency to see if the money was all right, and the theft was soon discovered. The superintendent, who was then Major Cullen, had handbills struck off, giving the description of the deserters, and offering \$600 for their capture and the return of the money. Couriers were dispatched in all directions to

effect their arrest, and one of the handbills reached Henderson, which was the county seat of Sibley county, some twenty miles down the river from the point at which I took the stage. A deputy sheriff of that county had started out to hunt the thieves and secure the reward, carrying one of the handbills with him, and had proceeded up the river as far as Le Sueur, about half way between Traverse des Sioux and Henderson.

It is well to state here that the stages carried the mails, and always stopped at the post towns long enough to deliver the incoming and receive the outgoing mails, which afforded time for a bit of gossip, a drink, and a stretch of the legs. There were two postoffices in Le Sueur, in upper town and lower town, about a mile and a half apart. As soon as the stage stopped at upper town, the deputy sheriff handed me the handbill through the window, announcing the theft and describing the thieves. I read it right in the face of my vis-a-vis, and after congratulating myself that I had no responsibility for the lost money, I remarked to the sheriff: "Of course, you don't expect to find these fellows on the main thoroughfare. They are probably now going down the Missouri in a canoe." Nothing more occurred until we arrived at the lower town postoffice, where we again stopped to change the mails.

Let me here state that the man in front of me was the Frenchman, and the man on the front seat with the driver was the German, the deserting thieves. The Frenchman was slight of build, but the German was a powerful fellow, and had in his hand a double-barrelled shotgun. I, of course, had no idea of their identity at this time; but they, and especially the Frenchman, knew me perfectly well, having frequently seen me about the garrison. They had construed my anxiety to go on the stage into the belief that I knew them, and was after them, and had made my remark to the sheriff as a mere blind connected with some other scheme for their capture. It must have been a trying ordeal for the man in front of me, who was evidently watching my every move, and feeling the weight of his guilt, supposed I knew all about it.

While we were waiting the change of mail at Lower Le Sueur, the deputy sheriff asked me to get out of the stage, and said to me: "Major [I was called major in those days], had we not better take another look at those fellows in the stage? They are going out of the country when everybody is coming in.

It looks to me suspicious." I agreed with him, and took another look. I at once discovered that they were both dressed from head to foot in new slop-shop clothes, indicating the necessity for an entire change of costume, and I concluded from this clue there were sufficient grounds to suspect them. So the deputy sheriff said: "You hold the stage ten or fifteen minutes, and I'll go to Henderson, and take out a warrant, and arrest them on the arrival of the stage; so that, if we are mistaken, no particular harm will be done." He started on. I got my hand-bag out of the boot, and buckled on my six-shooter, all of which was seen by the thieves, who must have fully understood the program; at least, such must have been the case with the Frenchman, as subsequent events led me to doubt whether the German was a participant in the theft, or more than a mere deserter. I had a sense of uneasiness about the double-barrelled shotgun carried by the German, but I thought I could handle the other man. We started, and, much to my relief, when we reached the ferry over the river, the German fired one barrel of his gun at a pigeon, and snapped several caps on the other, which refused to go off. As we approached Henderson, quite a crowd had gathered at the hotel to see the arrest, and just as the stage swung up to the sidewalk, the Frenchman took out of his pocket a small penknife, the largest blade of which could not have been over four inches long. He opened it so quietly that it did not excite my apprehensions in the least, although I had my right hand on my six-shooter, intending to draw and cover him the moment the stage stopped. He made a desperate lunge at his breast with the knife, and handing me a carpetbag which lay on his lap, he said, "The money is all in this bag, sir," just as if we had been talking the whole matter over. I, fearing that he might strike at me with the knife, drew my revolver and struck him sharply over the knuckles, making the knife fly out of the window, and seizing him by the throat with my left hand, I covered him with my pistol. The stage stopped. Retaining my hold on him, and still covering him with my pistol, we got out of the stage, on the sidewalk. He wavered for a second, and fell dead. He had put the knife an inch into his heart. I found in a belt on his body, and in the bag \$5,320 in gold, which I deposited in the United States land office, at Henderson, subject to the order of Major Cullen, who got it all in good time. The Frenchman had in his pocket some letters from a lady in Strasburg, written in French, conveying some very tender sentiments. I never thought he was a bad man, but had yielded, as many do, to a strong temptation, and had decided to die rather than be

captured. It was not more than twenty minutes before we were on our way to St. Paul. As no evidence connected the German with the theft, he was sent back simply as a deserter.

A curious question arose as to the reward. Major Cullen insisted on giving it to me. I knew very well that, had it not been for the superior detective sagacity of the deputy, the thieves would never have been caught, so I refused it, as I would have done under any circumstances. Then the sheriff claimed it, and finally the major left its disposition to me, and I divided it between the sheriff and the deputy, partly because I thought it just, and partly to keep the peace in the sheriff's official family. Where the extra \$320 came from, or where it went, I never knew nor cared.



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THE PONY EXPRESS.

As western settlement progressed after the purchase of the Louisiana territory from France in 1803, it gradually extended up the west side of the Mississippi, until the State of Missouri was admitted into the Union, in 1820, which was followed by the States of Iowa and Minnesota, along the line of the Mississippi, and Kansas and Nebraska, on the Missouri. The Mexican War occurred in 1846, and as one of its fruits California was ceded to the United States, and was admitted to the Union in 1850. The territory which now composes the States of Washington, Oregon and Idaho was finally determined to belong to our country by the treaty with Great Britain, which was signed July 17, 1846, fixing the boundary line between us and the British possessions at the forty-ninth parallel of north latitude. These extreme western acquisitions gave us an immense coast line on the Pacific Ocean, leaving a stretch of country between our Pacific and central possessions, on the Missouri, of considerably over two thousand miles in extent, which was uninhabited by whites, and composed the hunting grounds of many savage tribes of Indians and the pasture ranges of countless herds of buffalo. This vast area of country was practically unknown and unexplored, although it had been crossed by the expeditions of Lewis and Clark, in 1805-1806, John Jacob Astor in 1811, Captain Bonneville in 1832, Marcus Whitman in 1836, and John C. Fremont in 1843, to which sources of information may be added the prejudiced reports of the Hudson Bay Company.

When California was ceded to us by Mexico, very little was thought of it as an acquisition to our possessions. It was looked upon as a country out of which a small trade in hides and tallow might grow, but nothing more. I have heard it denounced on the floor of the house of representatives, in Washington, by some of the wisest statesmen of the day, as a bear garden, unfit for the use of civilized man; but prophets usually make bad work of matters about which they know absolutely nothing, which was the case with California in 1848. However, adventurous spirits soon found their way there, as they have always done in Western America, and in 1848 or 1849 gold was found accidentally by Captain Sutter, in digging a mill-race on his

ranch, which discovery at once settled the status and fortunes of California. The news soon reached the States, and spread like a prairie fire on a windy day. All the subsequent gold excitements of Frazier river, down to and including the Klondike, have been insignificant in comparison. I was in New York at the time, and used to sit on the East river wharves, and see the ships sailing away for distant California with an insatiable boyish longing to join in the procession.

There was no way of reaching the promised land except by a voyage around Cape Horn or an overland trip from western Missouri across the great American desert, the Rocky and Sierra Nevada ranges of mountains, either of which routes necessitated a weary and dangerous trip of nine months' duration. The usual plan adopted in the East was to form a company of about one hundred or more men, calculate the probable expense to each, and divide it, purchase an old whaling ship, fit her up with bunks and cooking appliances, and get an outfit and sail. Of course, there was nothing involved in the enterprise but the departure, the voyage and the arrival at San Francisco. No steamer had ever crossed the ocean at this time, and all navigation was done in sailing ships. So great was the rush that a scarcity of ships was soon felt. I remember distinctly on one occasion, when an old played-out vessel, purchased by a party which proposed to take out a printing press and start the first newspaper, was seized by the maritime authorities and condemned as unseaworthy just as she was leaving port. The next morning she was gone, and made one of the quickest and most successful voyages of the emigration. It is a curious fact that, out of all the ships that enlisted in this hazardous enterprise, not one was lost or seriously damaged.

The overland route involved more dangers and hardships than the one by sea. Many people died on the way from exhaustion and disease, and many were killed by the Indians, but the emigration never ceased, or even lessened, from these reasons. I have followed the trails made by these emigrants in the Sierra Nevadas, and it seemed almost impossible that animals could have climbed the precipitous mountain slopes they encountered. These hardships, however, did not go unrewarded, because to enjoy the distinction of being a "Forty-niner" was ever afterwards a badge of nobility on the Pacific Coast.

It was not long, under this vast influx of immigration, before California became a well settled state, and its business relations with the rest of the country, or as it was then called, "The States," became very extensive and important, and the difficulty of intercommunication was seriously felt. There were no telegraphs and no railroads, and no way for business men to correspond with each other except across a continent on wheels or around a continent by sea. What was to be done? It did not take the genius of American enterprise long to solve the problem. The overland immigration and its incidents had developed a class of men skilled in horsemanship, Indian fighting, and all the accomplishments that attend the latter, such as courage, wary intelligence, and a peculiar sagacity in trailing and scouting, only learned by intercourse with wild animals and wild men. Such men, for instance, as Col. Wm. Cody, now celebrated as "Buffalo Bill," and Robert Haslam, distinguished as "Pony Bob," are its best representatives. This class of men much resembled the rough riders of to-day, and could be relied upon for any enterprise that involved adventure, courage and endurance. At the same time, the country was not lacking in a higher degree of intellect which could conceive a project that would call into play the utmost ability of this class of men.

California had been, and I think was, in 1860, represented in the senate of the United States by Senator Guin, who was associated with Alexander Majors and Daniel E. Phelps in transportation matters. They conceived the project of reducing the time between the Pacific Coast and the States by the establishment of an express, from St. Joseph, on the Missouri river, to Sacramento in California, a distance of about two thousand miles, which was to carry special business mails, together with light and valuable express matter, by means of ponies, ridden by young men rapidly for short distances, between the two points. Of course, this scheme involved an immense expenditure for stations all along the route, horses and men to ride them, and all other elements that would necessarily enter into the scheme. The matter was discussed fully at both ends of the route, and found many advocates and much opposition. The most experienced plainsmen and mountaineers pronounced it impracticable, on account of the dangers to be met with, and the opinion was expressed that no package risked on this line would ever reach its destination, and that all the riders would be murdered before a test could be made. Sense and experience seemed to uphold these

views. It must be remembered that the whole distance was a wilderness of desert and mountain ranges, little known, and infested with the most savage Indian tribes on the continent, the relations of which with the whites were either unsettled or hostile. But, nothing daunted, the projectors decided to carry out their design, win or lose. They purchased six hundred Texas bronchos, built all the necessary stations, employed all the men required to operate and defend them, and secured seventy-five riders from the adventurous men found on the borders. The wages paid the riders were from \$125 to \$150 a month, with rations, and singular as it may seem to people of to-day, these positions were much sought for. Danger among this class of men has an irresistible fascination, and writing about it recalls an incident which verifies the assertion fully. When I lived in Carson City, Nev., the office of sheriff of Ormsby county, in which Carson was situated, was the most coveted position in the gift of the people, and it was well known that there never was an incumbent of it who had not died in his boots.

The whole arrangement was perfected with western rapidity, and the first pony started from St. Joseph in Missouri on the third day of April, 1860. On the same day and hour the western pony started from Sacramento in California. The distance between the stations was about forty miles, and was ridden in the shortest time possible. Two minutes were allowed for refreshments and change of horses. Each rider carried about ten pounds, and the freight charged for the full distance was five dollars an ounce. The line was maintained successfully for about two years, without any interruption more serious than the occasional killing of a rider by the Indians, when, in June, 1862, the first transcontinental telegraph went into operation, and the pony express, being no longer profitable, yielded, as many other things have since, to the all-conquering invader, electricity.

The first pony carried from the president of the United States a congratulatory message to the governor of California. The best time ever made between the two extreme points was when the last message of President Buchanan reached Sacramento in eight and one-half days from Washington. It seems almost incredible that such time could have been made with animals, when we reflect that the first expedition sent out by Mr. Astor, was eleven months in crossing the continent.

The pony express was a success financially to its projectors, and satisfied the hungering of the people for news from points so distant from each other, and immensely facilitated the transaction of business; but, in my opinion, it was most important in demonstrating that the western American never shrinks from encountering and overcoming obstacles that to most people would seem insurmountable.

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KISSING DAY.

The Sioux Indian is an exceptionally fine specimen of physical manhood. His whole method of life tends to this result. He lives in the open air. He may be said to be born with arms in his hands. From the moment he is old enough to draw a bowstring, he commences warfare on birds and small animals. As he advances to manhood, he becomes familiar with the use of firearms, and extends his warfare to the buffalo and the larger animals. He rides on horseback from infancy, and excels as a daring horseman. He goes on the warpath when half-grown, and learns strategy from the wolf and the panther. He is a meat eater, which diet conduces to the growth of a lean, muscular, athletic frame, and a bold and highly spirited temperament. He is taught to spurn labor of any kind as unmanly, and only fit for women. His life occupation is, in the language of the old school histories and geographies, "hunting, fishing and war," in each and all of which accomplishments he becomes surpassingly expert.

I attribute the superiority of the Sioux over many other tribes to their meat diet and their method of transportation—the horse. This peculiarity has been noticed by travellers and historians for many years. There is an old and true adage which says, "We are what we eat." Washington Irving, in his story of "Astoria," says in regard to this subject:

"The effect of different modes of life upon the human frame and human character is strikingly instanced in the contrast between the hunting Indians of the prairies and the piscatory Indians of the sea coast. The former, continually on horseback, scouring the plains, gaining their food by hardy exercise, and subsisting chiefly on flesh, are generally sinewy, tall, meagre, but well formed and of bold and fierce deportment. The latter, lounging about the river banks, or squatting or curved up in their canoes, are generally low in stature, ill-shaped, with crooked legs, thick ankles, and broad flat feet. They are inferior also in muscular power and activity, and in game qualities and appearance, to their hard-riding brethren of the prairies."

The general habits of the Sioux warrior tend to make him lordly, proud, and somewhat taciturn and morose, although he is not without a strong sense of humor. He is a good husband and indulgent father, but not at all demonstrative in his affections. Very little billing and cooing is noticeable among the nearest relations, and none between lovers. A kiss is regarded more as a ceremony than an endearment.

In the natural and savage state of these people, they counted time by moons and seasons, having no division of years, and, of course, knew nothing of our red letter days of Christmas or New Year's,—but after the advent of the Christian missionaries among them, they were taught to understand the meaning of New Year's day, and to recognize its arrival, and to distinguish it they called it "Kissing Day," everybody being expected to bestow a kiss upon his or her friends in honor of the day.

In 1857 I lived among the Sioux, having them in charge as their agent, appointed by the United States government, and when New Year's day came around, I found myself at the Yellow Medicine Agency, but was ignorant of their peculiar ceremonies for the occasion. I proposed to make the best of my isolation from my kind, and spend the day as pleasantly as circumstances would permit. While debating the subject of what to do, I was informed of the way the Indians celebrated the event, and told that I would probably be called upon by a numerous delegation of squaws, and that it would be expected that I should receive them by the bestowal of some sort of present. Not wishing to be ungallant, and desiring to gain information of the customs and manners of my savage wards, I ordered my baker to prepare several barrels of ginger bread, and purchased many yards of gaily colored calico, which I had cut into proper pieces for women's dresses, and with this outfit, prepared to meet the enemy.

At this point I will say a word about the Sioux girl and woman. As a general thing, the very young girl is by nature pretty and attractive. I have seen many at the age of thirteen and fourteen who had graceful figures, good carriage, and very beautiful faces; but they marry very young, and as soon as married become pack-horses for their husbands, carrying loads on their backs, by means of a head strap across the forehead, that it takes two men to lift from the ground, and very often when thus loaded babies, puppies, and many other things, will be put on top of the pack. They will trudge fifteen

or twenty miles a day with this burden, bending forward, and staggering under its weight. The result is to spoil the figure and gait, and deprive them of every semblance of beauty. The awkward walk produced by this hard labor we used to call "The Dakota shamble." Under this treatment they soon look old, and become wrinkled, and are called "Wakonkas," which might be translated to mean old witches.

With this visitation in prospect, I awaited quietly their coming. About ten in the morning they began to assemble about the agency in groups of all sizes and ages. I could hear a great deal of giggling among the girls, and scolding by the elder women. They were apparently selecting someone to break the ice by making the first assault. Presently a venerable dame opened the door, and sidled in like a crab. She approached me and kissed me on both cheeks, and received her presents. Then they followed in a line, old and young, pretty and ugly, each giving me a hearty kiss, which, in some cases, I returned with interest. The ceremony continued with great hilarity and much frolicksome tittering and fun, until forty-eight squaws had kissed and been kissed by me. They all carried off their presents and seemed very happy. Whether it was all caused by the presents or not, I am unable to say, but I was not the grizzled old fellow then that I have since become. I have celebrated a good many New Year's days, both before and since, but none have left a more agreeable impression than the one I have described. I have never known the exact figures of Hobson's Kansas experience, nor can I make a just comparison between the Sioux and the Kansas article, but from the general reputation of that state, I would recommend the caress of the untutored aborigines.

If Hobson ever reads this story he will have to admit that there were others.

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A POLITICAL RUSE.

All people who keep the run of politics will remember that the Republican party, now called the "Grand Old Party" (I suppose on account of its extreme youth), had its birth in the year 1854, after the death of the Whig party, and succeeded to the position in American politics formerly occupied by the Whigs, with a strong tinge of abolition added. It was, of course, largely recruited from the Whigs, but had quite formidable acquisitions from the Free-soil Democrats. It sprang into prominence and power with phenomenal rapidity, coming very near to electing a president in 1856, and succeeding in 1860. Minnesota resisted the attractions of the new party, and remained Democratic until 1857, when the first state election occurred, and the whole Democratic state ticket was elected. Since then the Democrats have never succeeded in our state, unless the election of Governor Lind in 1898 may be called a Democratic victory.

It was very natural that the politicians who had joined the new party should be exceedingly zealous and enthusiastic for its success. Such is usually the case, and verifies the old proverb, that "A converted Turk makes the best Christian." This phase of political tendencies was fully illustrated by the conduct of my old friend, Mr. James W. Lynd of Henderson, more familiarly known by us as "Jim Lynd," which occurred at the election of 1856, and forms the text for the present story.

In the early days of the territory much had been said, and generally believed, about frauds being perpetrated by the Democrats in the elections on the frontier. For instance, it was asserted that, at Pembina and the Indian agencies, one pair of pantaloons would suffice to civilize several hundred Indians, as, by putting them on, and thus adopting the customs and habits of civilization, they would be entitled to vote. There never was much truth about these rumors, and being on the border, and having charge of an Indian agency, where hundreds of men were employed, I knew a good deal about how these matters were conducted, and I can conscientiously say that there never was much truth in them. The nearest approach to a violation of the election laws that I ever discovered was at Pembina, and that was free from

any intention of fraud. It would come about in this way: Election day would arrive, the polls would open, and everybody who was at home would vote. It would then occur to some one that Baptiste La Cour or Alexis La Tour had not voted, and the question would be asked, why? It would be discovered that they were out on a buffalo hunt, and the judges would say, "We all know how they would vote if they were here," and they would be put down as voting the Democratic ticket. Of course, this would be a violation of the election laws, but who can say that it was not the expression of an honest intention by a simple people. While I cannot approve such methods in an election where the law and the necessities of civilization require the voter to be present, I cannot avoid the wish that we were all honest enough to make such a course possible as the one adopted by these simple border people.

The Republicans being the "outs" and the Democrats being the "ins," of course all the frauds were charged to the latter, and every movement of either party was watched with zealous scrutiny. The law governing the qualification of voters provided that soldiers enlisted in other states or territories, coming into Minnesota under military orders, did not gain a residence, and citizens of Minnesota enlisting in the army did not lose their residence or right to vote as long as they remained in the territory. It so happened, in 1856 or 1857, that there were at Fort Ridgely a number of recruits who had enlisted in the territory, and had not lost their right to vote; but there was no precinct or place to vote where they could exercise their privilege. Knowing that they were Democrats, we had a polling place established at the "Lone Cottonwood Tree," a point about three miles above Fort Ridgely, for the purpose of saving these votes.

Of course, it soon became known throughout the valley, and my friend Jim Lynd, who resided at Henderson, about fifty miles down the river, conceived the idea that it was the intention to vote the whole garrison for the Democrats, and he determined to checkmate it by challenging every soldier who cast his vote, laboring, as he did, under the erroneous impression that an enlistment in the army disqualified the soldiers as voters. So when the election day arrived, Jim, who had walked all the way from Henderson, was on the ground early, fully determined to exclude all soldiers from voting.

It so happened that I was at my Indian agency, at Redwood, and on the morning of the election was to start for St. Paul. The agency was about ten miles up the river from the "Lone Tree," and, starting early in the morning, brought me to the voting place about the time the polls were opened. I knew everybody in the valley and everybody knew me, and we never passed each other on the road without a stop and a chat. When I arrived at the polls all hands came out to greet me, and after the usual inquiries as to how the election was progressing, the judges told me that Lynd had challenged the first soldier who offered his vote, and they, being in doubt as to the law, had agreed to leave it to me. I gave my version of it, but Lynd still disputed it, and insisted that an enlistment in the army disqualified the man as a voter. Being unable to convince him, I, with a significant wink to the judges, suggested that he should get into my wagon and go down to the post (where I knew the sutler had a copy of the statutes), and we could readily settle the controversy. He consented willingly to this proposition, and we started for the post. When we arrived, I gave my team to the quartermaster's sergeant, and we looked up the law in the sutler's store. I then began a game of billiards with some of the officers, and accepted an invitation to lunch. As noon approached, Lynd began to show signs of impatience, and he asked me when I proposed to take him back to the polls. I quietly informed him that my route lay in the opposite direction, and that I would not go back at all. Instantly it flashed upon him that I had taken him away from the polls for a purpose, and he fled like a scared deer over the road we had just travelled, leaving me to pursue my journey alone in the other direction. I afterwards learned that in the interval between Lynd's departure and return, all the soldiers had voted the Democratic ticket without challenge or obstruction. Whether my friend Lynd walked back to Henderson or not, I never certainly ascertained. I was sufficiently satisfied with the success of my ruse not to desire to inflict any discomfort on my dear enemy.

This was the only political trick I remember of having perpetrated on the enemy during my long participation in active politics, and I don't believe any of my readers will regard it as transgressing the proverb that "all is fair in love or war."

My friend Lynd was, like most of the characters in my frontier experience, killed by the Indians in the outbreak of 1862.

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THE HARDSHIPS OF EARLY LAW PRACTICE.

Prior to 1855 the public lands of Minnesota were unsurveyed, and no title could be acquired to them. About that time, however, four United States land districts were established, with a land office in each of them. The districts were straight tracts of country extending from the Mississippi due west to the Missouri, the exterior lines of which were parallel to each other. The offices were at Brownsville, Winona, Red Wing and Minneapolis. I was then living in Traverse des Sioux, which place, together with Mankato, fell within the Winona district, so that any land business we had in our region of the country compelled a trip to Winona, a distance of nearly three hundred miles by water, or one hundred and fifty by land. After the closing of the rivers by winter there was no other way of getting there except to journey across the country.

At the time I refer to there was little or no settlement between Traverse des Sioux and Winona, and no roads. I remember that there were one or two settlers on the Straight river, where now stands Owatonna, and about the same number on the Zumbro, where now is Rochester, and one house at a point called Utica, about fifty miles west of Winona, and a small settlement at Stockton, on a trout stream which flows through the bluffs a few miles west of Winona. The latter place, being on the Mississippi and easy of access, was quite a flourishing town.

That fall I had been elected to the upper house of the territorial legislature, called the council, and the news reached us that there would be a contested seat in the council from some district in the southern part of the territory, but we had no particulars as to the locality or the person, and gave the matter very little attention.

A controversy had arisen between parties at Mankato as to the right to enter a quarter section of land which was part of the town site, and ultimately became a very valuable part of the city. I represented one side of the fight, but cannot recall the name of my adversary. It was customary in those days

to lump matters by making up a party of those who had claims to prove up before the land office, and act as witnesses for each other. On the occasion of this Mankato contest we formed two parties, one from Mankato and one from Traverse, and started with two teams, on wheels, there being no snow, and the first day we reached a point in the woods, somewhere near the present town of Elysian, and there camped. When morning opened on us we found the ground covered with from twelve to fifteen inches of snow, which made it impossible to proceed further with our wagons. We did not hesitate, but accepted the only alternative that presented itself, and decided to foot it to Winona. We travelled light in those days, carrying only some blankets and a change of clothes. We *cached* our wagons in the timber, packed our animals with our impedimenta, and started. Such a tramp would seem appalling at the present time, but we were all accustomed to hardships, and were equipped with good Red River winter moccasins, two or three stout flannel shirts, and thought very little of the undertaking. We drove the horses ahead of us to aid in making a trail, and made pretty good progress. I think it took us about five days to accomplish the journey, which we did without suffering, or even being seriously incommoded, as we found shelter at the Straight river, the Zumbro, Utica, and Stockton.

An amusing and interesting incident happened the night we arrived at Utica which, as I have said, consisted of one small log house. Our march that day had been a long and tiresome one, and I felt as if a good drink of whisky would be very supporting and acceptable, our supplies in that line having become exhausted by reason of the unexpected length of time consumed in our journey; but the prospect of getting one was anything but promising. While revolving the subject in my mind, and having all my faculties concentrated on the much desired end, I, by some accident, learned that the proprietor of the shanty was a doctor. At this discovery my hopes went up several degrees, and I determined to test his medicine chest. Putting on a look of utter exhaustion, with both my hands on my abdomen, and assuming the most plaintive voice I could muster, I said: "Doctor, I have made a long march to-day, and feel utterly broken up; have you not some spirits in your medicine chest that you could prescribe for me? I am sure it would be a great relief." He looked me over with suspicion, and said: "No, I am an herb doctor." I felt that my fate was sealed for the night, and prepared to seek my couch on the softest plank I could find, between the two men

who looked the warmest of the party. While thus preparing my *toilette de nuit*, in a state of mind bordering on desperation, I heard the jingling of sleigh-bells, and a team dash up to the door, from which debarked two men, each comfortably full, followed by hand-bags, blankets and a two-gallon demijohn. They said they had driven from Winona that day, and would stay all night. They ordered supper, and while it was in course of preparation, indulged in a good deal of banter back and forth. Of course, I had formed the determination of becoming acquainted with the contents of that demijohn in some way, by fair means or foul, and became deeply interested in their conversation, looking for a favorable chance to carry my point. I noticed that one of them was very boastful about what he was going to do when the legislature met, and the other saying to him that "he would not be there three days before they would kick him out and send him home." At these words, it flashed across my mind that this must be the man whose seat was contested, and, waiting for a proper opportunity, when his friend was loudest in his assertions that he would not remain long in the legislature, I put in my oar, and said: "Maybe I will have something to say about that." In an instant the legislator gave me a most scrutinizing look, and said: "Are you in the legislature?" I said "Yes." "In which house?" he inquired. "In the council," I answered. I saw the man was bright and intelligent, and it was a study to watch the workings of his mind while debating to himself how I would be affected by his condition, whether favorably or otherwise. Having weighed the matter carefully, he showed his experience and good judgment of character by saying: "My friend, won't you take a drink?" From what I have said, it is unnecessary to record my answer. We spent the greater part of the night in pleasant social intercourse, drawing inspiration from the depths of the demijohn, which had seemed so far removed from my grasp but a short time before.

The man was the famous Bill Lowry, from the Rochester district. This incident made us sworn friends for life, and singular as it may seem, when the legislature convened, I found myself chairman of the committee on contested elections in the council. It is unnecessary to go into the details of the contest. Suffice it to say that the contestant had a very weak case, and Lowry performed all he had boasted that he would do on that eventful night in Utica.

We were engaged in trying our suit at Winona for several days. Captain Upman was the register of the land office, and presided at the trial. The captain was a jolly old German from Milwaukee, and a fairly good drinker. There was a building in the town which had been a church, but by the intervention of the evil one, had been turned into a saloon, and was popularly known as "The Church." This was the captain's favorite resort when thirsty, which physical condition occurred quite frequently, and he would always say on such occasions: "The bells are ringing; come, boys, we must go to church. It is unlawful to try cases on Sunday."

What influences dominated, I don't pretend to say, but I won for my client three forties of the quarter section in dispute. We returned home the way we went down,—on foot,—with the exception that at Stockton we constructed a small sleigh, sufficient to carry our baggage, which much relieved the animals. My client offered me one of the forty-acre tracts for my fee, but I declined, and accepted a twenty dollar gold piece for my services. The land which I refused became worth a quarter of a million of dollars a few years afterwards, but I had a good deal of fun out of the adventure, and never regretted the outcome.

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TEMPERANCE AT TRAVERSE.

The first members of the judiciary of the Territory of Minnesota were Aaron Goodrich, chief justice; Bradley B. Meeker and David Cooper, associates, who were appointed in 1849. They were Whigs, and held their positions until a change of administration gave the Democrats the power, when William H. Welch became chief justice, with Andrew G. Chatfield and Moses Sherburne as associates. The last named judges were in office when I arrived in the territory, in 1853. Judge Chatfield presided mostly over the courts held on the west side of the Mississippi. I made my residence at Traverse des Sioux, in Nicollet county, which was within the territory purchased from the Sioux Indians by the treaty of 1851, proclaimed in 1853. The fifth article of this treaty kept in force, within the territory ceded, all the laws of the United States prohibiting the introduction and sale of spirituous liquors in the Indian country, commonly known as the trade and intercourse laws. Of course, this inhibition was intended to prevent liquor getting to the Indians, but as the country began to be inhabited by whites, many of the new comers regarded it as infringing upon their rights and privileges, and serious questions arose as to whether the treaty-making power had any jurisdiction of such questions after the country was opened to white settlement. The courts, however, held the exclusion valid, and indictments were occasionally found against the violators of these laws. Traverse des Sioux was a missionary center, and the feeling against the liquor traffic was very strong, but, as it always has been, and probably always will be, men were found ready to invade the sacred precincts for the expected profits, and a saloon or two were established in defiance of law and public sentiment.

The judges were empowered to appoint the terms of court where and when there was any probable necessity for them, and the sheriff would summon a grand or petit jury as the business seemed to require. The United States marshal was Colonel Irwin, and the United States district attorney was Colonel Dustin, both of whom lived in St. Paul, and, as a general thing, there were no county attorneys in the different counties. When a term of court was to be held in my county, or any of the adjacent ones, the marshal

would send me a deputation to represent him, and a bag of gold to pay the jurors and witnesses; the United States attorney would empower me to appear for him, and on the opening of the court, the judge would enter an order appointing me prosecuting attorney for the county so the judge and I would constitute the entire force, federal and territorial, judicial and administrative. If I procured an indictment against a party at one term, in my capacity of prosecutor, and the regular attorney should appear at the next term, it was more than likely that I would be retained to defend; which would look a little irregular at the present time, but as there was no other attorney but me, as a usual thing, no questions were asked.

At a very early day, a party not having the fear of the law or public opinion before him opened a saloon at Traverse des Sioux, much to the dismay and indignation of the religious element of the community, and went to selling whisky to the other element. The next grand jury indicted him, but, before a court convened that could try him, a squad composed of the temperance people headed by the sheriff, attacked his place, and demolished his contraband stores. Being determined to test the question of his rights, he sued the attacking party, and I was retained to defend them. I devised the plea that the country was full of savage Indians, whose passions became inflamed by whisky, which made them dangerous to the lives of the whites, and that saloons were consequently a nuisance which anyone had a right to abate. The case was tried before Judge Chatfield, and my clients were vindicated. Of course, the suit created a great sensation, not only on account of the feeling engendered, but because of the novel questions involved, and in due course of time the temperance ladies of the county sent to New York and purchased a handsome combination gold pen and pencil, with a jewelled head, and had it inscribed, "Charles E. Flandrau: Defender of the Right." They also procured a handsome family Bible for the sheriff. When all was ready, they held a public meeting, and made the presentations, which were accompanied by the usual speeches. These ceremonies occurred in the latter part of the year 1854, or early in 1855, and in the meantime a small newspaper, called the *St. Peter Courier*, had been established to boom the city, which contained an elaborate account of the proceedings, together with all the speeches, and diligently circulated them throughout the East, where they were caught up by Horace Greely, in his *Tribune*, and many

other papers, and repeated under the head of "Moral Suasion in Minnesota," and came back to us enlarged and improved.

Should I end the story here, it would leave me in the possession and enjoyment of virtues which I cannot conscientiously claim as my own, and would deprive the tale of its best and only amusing point; so as a faithful narrator, I feel in duty bound to tell the other side of it.

In due course of events the trial of the indictment against the saloonkeeper came on to be heard, and I was acting as prosecuting attorney. Of course, I had to prove that the prisoner had introduced liquor into the Indian country, and, to do so, I called a French half-breed who I knew frequented the place, and after the preliminary questions, this examination followed:

"Q. Joe, were you ever in this saloon?

"A. Yes, many a time.

"Q. Did you ever buy and drink any liquor in there?

"A. Yes, many a time.

"Q. Did you see anyone else buy and drink liquor in there?

"A. Yes, many a time.

"Q. Who was it?

"A. I have seen you do it lots of times."

Of course, the laugh was heavily against me, but I sat, as stoical as an Indian, and quietly asked him: "Anyone else, Joe?"

I have forgotten whether the suit terminated in conviction or acquittal, but I never think of it without a good laugh at the way the witness turned the tables on me, and am also reminded of what my old friend, Van Lowry, from the Winnebago country, once said of me: "That Flandrau is one of the most singular men I ever knew. He invariably makes a temperance speech over his whisky."

The gold pen with the jewelled head reposes among my frontier treasures, carefully wrapped up in several editorials cut from eastern papers, extolling my virtues as an apostle of temperance.

Moral: Don't believe everything you read in the papers.

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WIN-NE-MUC-CA'S GOLD MINE.

Every one who has lived in a mining country in its early periods, before its resources had been prospected and pretty well defined, will recall the fact that stories and rumors of a mysterious mine of great richness, which exists somewhere, are always in circulation. The discoverer of this mine is either dead, without having revealed its exact location, or it is known only to the Indians, who are compelled to secrecy by awful oaths, or fear of death from their chief or members of their band. At any rate, there is always a profound mystery connected with the hidden treasure, that envelops it with a tinge of romance and a spice of danger to those who seek to break the spell and lift the veil. There is also just enough known about it, which has leaked out through some obscure channel, to lend some slight probability to the story, and many have been the attempts to discover the bonanza by credulous and adventurous miners, but ever without success.

When I was living in Nevada, in 1864, I became closely associated with an old Mormon by the name of Rose. He had been a settler in the Washoe valley long before the discovery of the rich silver mines at Virginia City, known as the Comstock lode, and necessarily at a time when no one inhabited the country but Mormons and Indians. The principal tribe of Indians were the Piutes, whose head chief was Win-ne-muc-ca. These Indians inhabited the country around Pyramid lake, about a hundred miles to the northeast of Carson City, where I resided. Rose was known to have been an intimate friend of Win-ne-muc-ca in times past, and to have performed some important service for him, which had placed the chief under lasting obligations to him, and rumor said that in compensation he had disclosed to Rose the whereabouts of the most valuable gold mine on all the Pacific Coast, and that Rose was the only white man who knew anything about it. The truth of these rumors was fortified by the existence of three old and abandoned arrastras and a twenty-five foot overshot waterwheel, which had evidently been erected to drive the arrastras, that stood on one of the back streets of Carson City, and were known to have been constructed by Rose, and as there was no stream in the neighborhood to propel the arrastras, it was generally believed that, when Rose built these

works, he had a mine, the ore of which was so rich that he could bring it on pack animals, crush it with these machines, and divert a stream to propel them. As quite a large sum had been expended on these works, it was evident that they were intended to carry out some such purpose, which had been interrupted for sufficient reasons. At any rate, I caught the mine fever, and after many conferences with Rose, I and my associates, William S. Chapman and Judge Atwater, got far enough into his confidence to obtain an admission from him that he knew the exact location of the mysterious mine, the secret of which he had learned from Win-ne-muc-ca, and dare not disclose without the consent of that chieftain, but he assured us that it was fabulously rich. It was then learned that the mine was within the limits of the Piute reservation, and even if we had the consent of the Indians to work it, we would not be allowed to do so by the United States government. Here were presented two formidable obstacles, but we were so well satisfied that we had a fortune within call that we determined to remove them both.

Our first operations were upon Win-ne-muc-ca, whom we proposed to conquer by presents and flattery, and succeeded to the extent of eliciting from him a promise that, if we could obtain permission from the United States government to enter upon the reservation and work the mine, he would disclose its whereabouts. All I can say about this branch of the case is, that with a great deal of delicate and masterly diplomacy, in which the interests of the Indians formed the principal argument used, we secured the desired permission, and prepared for an expedition to the mine.

It is as well here to say, for the benefit of the uninitiated, that all such operations are conducted with the greatest secrecy and mystery, because should it be discovered that any such enterprise was on foot its projectors would be watched day and night, and followed to their destination by half the community.

The government sent out a representative to see that the interests of the Indians were properly protected, and we got ready to start. The agent of the government was also charged to look up and report upon the progress of a mill for the Piutes, for which large appropriations had been made, and which was supposed to be situated on the rapids of the Truckee river, which is the outlet of Lake Tahoe, and runs about northeast in the direction of the Piute reservation, along the course to be followed by us. I mention this fact

only in order to bring into the story the terse and witty report of the agent, said to have been made about his discoveries regarding the mill. He said: "He found a dam by a mill site, but he didn't find any mill by a damn sight."

Our outfit consisted of a light farm wagon with a four mule team, which we procured from two Mormon brothers, who lived in the Washoe valley, and were skilled guides all over Nevada, both of whom we took along as guides, cooks, and to drive and care for the team. Rose took along a pony, which we led, and the government agent, old Rose and myself formed the passenger list. We were supplied with eatables and drinkables for a long campaign, but as it rains but once a year in that country, we never encumbered ourselves on a march with tents, except in the rainy season. In fact, the ground between the sage bushes and grease-wood trees is so dry and clean that you don't need even blankets or robes to sleep on, but they are usually carried.

Our course lay down the valley of the Truckee river to its big bend, where Rose was to leave us and go to Pyramid lake for Win-ne-muc-ca. We accomplished this part of the journey, a distance of about one hundred miles, in three days, without any special incident, except on one occasion, when we were rounding a projecting point in the river, on a ledge of rocks, some driftwood got entangled with the legs of our leading mules, and came very near dumping us all into the boiling and rushing current, which would inevitably have drowned the whole party; but we reached our destination safely. At the big bend, which is now one of the principal stations on the Central Pacific Railroad, we found a spacious piece of bottom land, well supplied with grass for our animals, and a clump of six tall stately cottonwood trees, presenting an inviting place to camp, which we accepted as our resting place.

The next morning Rose mounted his pony and started for the lake, saying he would return in a couple of days with the chief, who would guide us to the mine—and fortune. The government agent was an old friend of mine, a California forty-niner, and a most companionable fellow. The Mormons were excellent cooks, and most efficient camp men. We had abundant camp supplies, supplemented with fine fish brought to us by the Indians, so we settled down for a delightful rest. Every night the men would make a cheerful crackling fire of dry driftwood from the river, hobble the mules,

and fall asleep for the night, leaving us to enjoy the soft summer air and brilliant moonlight, while discussing our future plans when possessed of the boundless wealth that only awaited the coming of Rose and the chief. Before retiring for the night, which only meant lying down on a blanket, we usually reclined each against a tree, with a demijohn between us, and by the time sleep overcame us the fortunes of Cr[oe]sus, Astor and Vanderbilt combined were mere trifles compared with our anticipated wealth, for were we not to be soon endowed with the magic touch of Midas!

We revelled in our repose, seasoned with the exaltation of hope and the demijohn, until about four days had glided away, when even such delights began to pall, and became a little monotonous, and still no Rose and no Win-ne-muc-ca. The fifth, and even the sixth day passed, and yet they came not, and we were driven to the conclusion that either Rose had been victimized by the Piutes, or we had been victimized by Rose. So nothing was left for us but to pull up stakes and wend our weary way back to Carson. Here we found Rose, with the excuse that Win-ne-muc-ca had told him that he dared not give up the secret of the mine for fear his band would kill both Rose and himself, and that he had not dared to return to the camp for fear the Indians would follow him and destroy us all. And so ended our venture.

We came out of the enterprise wiser and poorer men, to the amount of about one thousand dollars. As we had left town at midnight, and returned at the same quiet hour, we were able to keep our adventure to ourselves, and escape the ridicule of more experienced miners, many of whom, however, had passed through similar experiences under varying circumstances.

I have never been able fully to satisfy myself whether Rose acted in good faith or not, but as he had no hope of gain outside of the mine I am inclined to believe his story.

My next mining experience resulted much the same way. Rich finds were reported in the Walker river country, and a small syndicate of us outfitted a party of old and experienced miners to visit the locality and see what they could pick up. They started in the usual mysterious manner, at the dead of night, and in about two weeks returned, and brought to my office a gunny bag full of ore, which they left, and we appointed a meeting the next night

at one o'clock, when the town was supposed to be asleep, to examine the bag and pass upon the contents. One of the prospectors tapped the sack affectionately, and, winking at me in the most significant manner, said: "Judge, we've got the world by the tail. It's all pure silver, and there are a million tons of it lying on the top of the ground." Of course, my curiosity and expectations were aroused to the highest pitch, and I awaited the appointed hour with impatience. Before the party arrived, all the windows were darkened with sheets and blankets, refreshments were prepared, and they dropped in one at a time to avoid notice. The bag was opened and its contents displayed upon the table. It was a pure white and brilliant metal, about the weight of silver, and with the assistance of the refreshments we had convinced ourselves before daylight that it was all pure silver.

I took a chunk of it about the size of an orange, and, with one of the miners, went down to the Mexican mill, to have it assayed. The assayer took it, looked it over, and asked if we wanted it assayed for iron. My companion immediately answered, "I'll bet you a thousand dollars there's no iron in it." The assayer replied: "We don't bet on such things, but I will soon tell you all about it," and, after putting it to the test, he reported: "Magnetic iron, ninety-five per cent; no trace of gold or silver."

We let the world's tail go, put our own between our legs, and went home, two of the worst disappointed men in all Nevada, and that was the last of my mining efforts.

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A UNIQUE POLITICAL CAREER.

Gen. James Shields had a most extraordinary career. I remember no man in the history of our country who equals him in the diversity and extent of his public services and office-holding. He was a general in the Mexican War, and for a long time enjoyed the unique reputation of being the only man who was ever shot through the lungs and survived. This, however, was not true. Many others, no doubt, underwent the same experience, and I remember a young Chippewa Indian who, while on a war party into the Sioux country, was wounded in exactly the same manner, and lived to a good old age as a very robust savage.

When the general returned from the Mexican War to Illinois, he was exceedingly popular. He was made commissioner of the general land office of the United States and judge of the supreme court of the State of Illinois, and was subsequently elected to the senate of the United States; but when he was about to take his seat he ran up against the snag that is found in section 3 of article I of the constitution of the United States, which provides that a senator must have been a citizen of the United States for nine years before election, and it appeared that the general fell short of the requisite period. The consequence was that he was rejected, and he had to return to his state. But the citizens of Illinois wanted him to represent them in the senate, and as soon as he attained the proper citizenship they returned him, and he was admitted and served his full term. The general found out that his chances for reelection were not flattering, and as Minnesota was about applying for admission as a state in the Union, he decided to emigrate to that territory. What his motives were I, of course, cannot say, but as I was watching closely political events, I concluded that he had in view an election to the senate from the new State of Minnesota, and I kept my eye on his movements.

It was soon announced that the general had located the land warrant awarded to him for his services in the Mexican War, on a quarter section of land in the neighborhood of Faribault, in Rice county, in this territory, and that he intended to settle upon it. There was a little buncombe added to this

announcement, to the effect that this was the first case in the history of America where a general officer had settled in person upon the land donated to him as a reward for the services he had rendered and the blood he had shed for his adopted country. We always called the general's home "The blood-bought farm."

There was an election in our territory in 1856 or 1857, I forget which, for delegate to Congress. Henry M. Rice had received the nomination of the regular Democratic convention for the position, and General Gorman (then territorial governor), Henry H. Sibley and many other leading Democrats had deliberately bolted the judgment of the convention, and nominated David Olmsted for delegate. The fight was on hot. I, of course, was for Rice, the regular nominee. I then lived well up in the Minnesota valley, at Traverse des Sioux, and we were becoming a power in the territory in a political sense, and I looked forward to the arrival of such a prominent Democrat as General Shields in our midst as an event of major political importance. He soon landed at Hastings, on the Mississippi, with a complete outfit for a permanent settlement. A good story is told of his advent at Hastings. In those days of steamboating, all the belongings of an immigrant would be landed on the levee and his freight bill would be presented to him by what we called the mud clerk, and he would take an account of his stock and pay the freight. Legend reports that the general had five barrels of whisky among his paraphernalia, and when the first one was rolled ashore he seated himself upon it to watch the debarkation, and when the bill was presented he refused to pay it because he could see only four barrels, and demanded the fifth. The clerks got on to the joke, and pretended to search for the missing barrel until the last whistle blew, when they suggested to the general that he was occupying the disturbing element. Whether the contents of the barrel ever caused any other misunderstandings history fails to record.

As soon as the general was comfortably settled on the blood-bought farm I dispatched a courier across the country to him, informing him of the political situation, and imploring him to come out for the regular Democratic ticket; but he replied in a very diplomatic way that he was too new a comer to take any active part in the election, and declined. Tom Cowan, George Magruder and I, a trio which composed the leadership of the Democracy of the Minnesota valley, decided that the general should

never go to the senate if we could prevent it, and it so happened that when the first legislature of the state assembled Tom Cowan was in the senate, but all our efforts to beat him failed, and Henry M. Rice and the general were elected to the United States Senate. It was hard to beat a man in those days who was a Democrat, an Irishman and a wounded soldier.

The only unlucky thing that the general ever encountered was the fact that he drew the short term when the lots were cast for the positions the new senators were to assume.

The general served out his term in the senate just about the time the Civil War broke out, and he tendered his services to the country, and became a general of volunteers. He was wounded in some battle, and I remember reading a general order announcing that he had sufficiently recovered to ride at the head of his brigade in a buggy. I took advantage of this singular position for a military commander, and impressed into the service of the state a splendid \$2,000 team of trotters belonging to Harry Lamberton, with his buggy, and himself as driver, and rode comfortably in it until the end of the Indian war, at the head of my brigade.

The general was not long in discovering that the political wind had taken a Republican direction in Minnesota, which boded him no good. So he pulled up stakes and emigrated to Texas. There he felt the public pulse, and not finding any immediate indications that he would be chosen senator, and not having any pressing business in any other line, he emigrated to California. There he found a more favorable outlook, and almost as soon as he gained a residence in the state he was nominated for the United States Senate by the Democrats, and came within one or two votes of an election.

The general had always been a bachelor before going to California, but he surrendered to the charms of a lady of that state, and married. Not being willing to remain until the next senatorial election, he migrated to the State of Missouri, where he was very soon elected to congress by a substantial majority of about 3,000; but, it being in the reconstruction period, and he being a Democrat, the state board found no difficulty in counting him out, after which event very little was heard of the general for some years, when he appeared on the lecture platform, discoursing on Mexico. This venture

was not much of a success, and the general was reputed to be quite broken up financially.

His next appearance was at Washington as a candidate for doorkeeper of the senate, which office, I believe, is one of both dignity and profit; but he did not succeed in getting it, and returned to Missouri, broken in fortune and spirit. It was just at this critical period in his career that his luck returned, and he became famous in a direction that no other man in the United States has ever reached. A vacancy occurred in the office of United States senator from Missouri, either by death or some other reason, and the governor bestowed the position upon the general, thus making him a member of the body of which he had so recently sought to become the doorkeeper, and conferring upon him the peculiar and conspicuous distinction of being the only man in the republic who ever represented three states in the senate of the United States.

The general died some years ago, and the state of his original adoption, Illinois, conferred the additional immortal honor upon his memory by placing his full-length statue in bronze in the old house of representatives at the capitol in Washington, which has become the American Pantheon, in which each state is permitted to commemorate in this way two of its most honored sons.

Truly a most extraordinary and enviable career.

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LA CROSSE.

There is nothing remarkable in the fact that places should be named for something that has happened in or about their locality, and nothing is more natural than that places on the upper Mississippi river should be named after Indians and Indian occurrences. For instance, we have Prairie du Chien, which is the French for the Dog prairie. In early days an Indian chief, who sailed under the dignified name of "The Dog," had his headquarters at this prairie, and thus the name. It will be observed that it has maintained its name in full, "Prairie du Chien," and was, in days past, a military post, called Fort Crawford, and is now quite an important town in Wisconsin.

A little way up the river, and we have "Prairie La Crosse," but the first part of the name is generally dropped now, and it is known as La Crosse simply. No old settler, however, who dates back of the fifties, ever calls it anything but "Prairie La Crosse." This place got its name from the fact that the Indians selected it as a favorite point at which to play their game, known to them as "Ta-kap-si-ka-pi," but called by the French, "La Crosse." Anyone who has been there, and is familiar with the prairie on which the city of La Crosse is built, will recognize at once its superior advantages for a game of ball of any kind. It is long, wide and level. This game has always been a great favorite with the Sioux Indians. It originated with them, and became what might be called their national game. From its spirited character, it was very much liked by the Canadian-French, and they adopted it to such an extent that it is called their national game, but under an entirely different name. They called it "La Crosse," and are still devoted to it. In fact, it is played very generally throughout the northern half of North America. In playing the game, the Indians used a stick made of ash about the length of a walking cane with a circular bend at the end most distant from the hand, in which curve was a network of buckskin strings, forming a pocket, about four inches in diameter and two inches deep. With this stick, which is called a "Ta-ki-cap-si-cha," the ball is manipulated. The ball is of wood, round, and about the size of a hen's egg, and in the game must never be touched by the hand. The Canadians have changed the form of stick used by them, by

making it longer, and forming the end that takes the ball something like half of a tennis racquette.

The site of La Crosse was in early years the favorite ball ground of the Indians, and from this circumstance acquired its present name. The game is too well known to need a description. Suffice it to say that the main object is to get the ball to certain goals by two contending parties struggling in different directions. In its main features it resembles hockey, polo, football, and similar games; but with the Indians differs in point of the numbers who play, the whites being limited to eleven or twelve on a side, while with the Indians a whole band may play on each side.

When the Sioux were moved west of the Mississippi they selected the beautiful prairie on which now stands St. Peter, in this state, as one of their most favored ball grounds, and many a time I have enjoyed witnessing the game at that locality, and a most brilliant and exciting scene it presented. The Sioux, like most savages, are great gamblers, and the first thing in the game is to put up the stakes, which is done in this way: A committee is appointed by each contesting party as stakeholders. They assemble at a designated point on the prairie, and await results. Presently up will come an Indian, and put up a pony. He will soon be followed by a competitor, who will cover his pony with another, decided to be of the same value. Then up will come another, and put up a rifle, or a feather head-dress or a knife, all which will be matched from the other side, until all the bets are made. If the players are numerous, the stakes will accumulate until almost everything known as property in Indian life will be ventured. It sometimes takes several days to arrange these preliminaries. A pleasant afternoon is selected, and the contestants appear. They are usually very nearly naked, having on only moccasins, a breech-clout and a head-dress; the two latter articles, being susceptible of ornamentation, are usually adorned with eagle feathers, foxtails, or a string of sleigh-bells about the player's waist. The men are painted in the most grotesque and fantastic manner. It is not unusual to see some of them painted blue or yellow all over their persons, and before the paint has dried it is streaked with their fingers in zig-zag fashion from head to foot, sometimes up and down and sometimes zebra fashion. A yellow face with the imprint of a black or blue open hand diagonally upon it is much affected; in fact, the greater the ingenuity displayed in savage design

and glaring colors, the more satisfied the subject seems to be with himself and the more admired by others.

When the players are all lined up they present a striking appearance. About six on each side take the center from which the ball is to be started, and the rest scatter themselves over the prairie for half a mile in each direction, to speed the ball, should it come their way.

All ready: one, two, three, and up goes the ball into the air, and as it falls, up goes each Ta-ki-cap-si-cha in an endeavor to catch it, and so skillful are the men that it is very often caught in the little pocket while in the air, which is a great advantage, as the party catching it has the right if he can to throw it in the direction of his friends, and, with a free chance, it is like throwing a ball out of a sling. I have seen one sent nearly a quarter of a mile. If the game opens in this way, there is, of course, a great rush by the partisans to capture the ball and keep it moving one way or the other; but if at the first toss up it falls to the ground, there is a tussle of all the middle men to see which one shall get it with his stick that puts civilized football in the shade. Shins are whacked, men are tripped and piled onto each other in the utmost confusion, until some lucky fellow extricates the ball from the mass, and sends it flying towards a group of his friends. The Sioux are splendid runners, and sometimes when twenty or thirty of them will be in full chase of the ball, a leading man will tumble, and the whole line will pile over him; but no matter how rough or boisterous the sport may be, I have never known a quarrel to grow out of it. There must be rules to this effect governing the game, such as they have in a Japanese wrestling match, where the parties, before tackling each other, sprinkle salt between them, which is a pledge that even a broken neck will not interrupt friendship. I think I have seen more feats of wonderful skill in running, jumping and catching in a game of this kind than in any play of a similar nature I have ever witnessed.

No one who has seen the Indians play a good game of Ta-kap-si-ka-pi has ever forgotten it. Major Eastman of the old army, who was quite an artist, attempted to depict the scene on canvas, and while he made an excellent picture which would please the eye of anyone who had not seen the real thing, he found it impossible to convey an adequate idea of its best points.

The picture, I think, is now either in the rooms of the Wisconsin Historical Society, or in the Cochran gallery of Washington.

One of the noticeable results of a game of this kind, played on a virgin prairie, was the great number of huge snakes the players would kill. I have seen as many as would load a wagon piled up after a game, some of them ten or twelve feet long. They were called in those days bull snakes, and were considered of the constrictor species, but not venomous.

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MAKING A POSTOFFICE.

I had settled on the frontier, where Traverse des Sioux and Mankato were the extreme border towns in southwestern Minnesota. About the year 1854 or 1855 a German settlement was commenced at New Ulm. It originated in Cincinnati, with an association which sent out parties to find a site for a town, and they selected the present site of New Ulm. The lands had not been surveyed by the general government, but our delegate in congress, Henry M. Rice, had anticipated that by obtaining the passage of the law allowing settlement and preëmption on unsurveyed lands. Under the law a town site could only embrace 320 acres, but the projectors of New Ulm laid out an immense tract, comprising thousands of acres. Many of the settlers had not taken any steps toward becoming American citizens, which was a necessary preliminary to preëmption, and everything among them was held in a kind of common interest, the Cincinnati society furnishing the funds.

It was not long before they discovered that they needed legal advice in their venture, and called on me to regulate their matters for them. I was deputy clerk of the court, and always carried the seal and naturalization papers with me, so that I could take the declaration of intention of anyone who desired to become an American citizen anywhere I happened to find him, on the prairie or elsewhere. In this way I qualified many of the Germans for preëmption, and took them by the steamboat load down to Winona to enter their lands. I would be furnished with a large bag of gold to pay for the lands, and sometimes, with the special conveniences furnished by the land office, I would work off forty or fifty preëmptions in a day. I became such a necessary factor in the building of the town that, if any difficulty occurred, even in the running of a mill which they erected and ran by the accumulated water of many large springs, I was immediately sent for to remedy the evil.

The nearest postoffice was at Fort Ridgely, about sixteen miles away, and it soon became apparent that one ought to be established in the town. I was, of course, sent for to see if it could be accomplished. It was a very easy thing to do with the very efficient and influential delegate we had in congress, Hon. Henry M. Rice. Having agreed upon a Mr. Anton Kouse as

postmaster, I at once wrote to Mr. Rice to give the new settlement a postoffice. It was not long before I received an answer, which contained the postmaster's commission, his bond for execution, a key for the mail bags, and all the requisites for a going postoffice.

The New Ulm people were a very social lot, and my visits to the town always included a good deal of fun, so I concluded to make a special event of the establishment of the new postoffice, and, as the weather was fine, I invited half a dozen friends to accompany me in a drive to New Ulm, to participate in the opening ceremonies.

One of the earliest settlers in the town was Francis Baasen, who became Minnesota's first secretary of state, and was a gallant officer in the First Minnesota Regiment, so celebrated in the War of the Rebellion, and has recently been appointed by Governor Lind as assistant adjutant general of the state. He had a claim about two miles below the town, just where the ferry crossed the Minnesota river, at Red Stone, and had erected a log shanty there, in which he lived. Of course, we always called on Baasen on our way up, and also on our way back, when we visited New Ulm. Baasen was a charming gentleman, and while his shack was destitute of any of the luxuries or elegancies of life, there was a door, or hatchway, in the middle of the floor, which led to a kind of cellar, the contents of which supplied all the deficiencies of the house, and, flavored with the generous hospitality of the proprietor, made everybody happy.

On this occasion we stopped to take Baasen into the party, and while discussing the great event which brought us up, I decided to add some new features to the inauguration of the new postmaster. Baasen had been appointed a notary public, and was provided with large business-like envelopes and formidable red seals, so I wrote a letter to Mr. Kouse in about the following language:

EXECUTIVE MANSION, WASHINGTON, D. C.

"July 20, 1855.

*"Hon. Anton Kouse, Postmaster at New Ulm, Territory of
Minnesota,*

"SIR: We have been informed that a flourishing settlement has been founded on the waters of the upper Minnesota river, in Minnesota Territory, which has been named New Ulm, and that the inhabitants are sufficiently numerous and intelligent to need a postoffice. It has also been represented to us that you are a good and true Democrat, and the choice of the people for the office of postmaster. It is therefore our duty and pleasure to appoint you to that office. It is our desire that you locate the office in a part of the town which will accommodate its inhabitants, and see to it that they always vote the Democratic ticket at all elections. I am,

"Yours very truly,
(Seal) "FRANKLIN PIERCE,
"President of the United States of America."

I inclosed this letter in one of Baasen's large envelopes, and we all drove up to the house of Mr. Kouse, and called him out. I stood up in the wagon, and made him a speech, informing him of the creation of the office, and that I had his bond and commission and a letter to him from the president of the United States, which I was instructed to deliver to him in person, and I added that it was customary on such important occasions for the newly appointed postmaster to propose the health of the postmaster general.

Kouse rushed into his house, and appeared with a brown jug and a tin cup, from which we all drank a bumper to the health and prosperity of the postmaster general, the town of New Ulm, and its postmaster. I then handed him his credentials, including the letter from the president, and the postoffice at New Ulm was a reality.

I have never learned whether my friend Kouse caught on to the joke, or whether he has cherished the executive letter as an heirloom for his posterity.

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THE COURAGE OF CONVICTION.

In 1864-65 I was living in Carson City, in the State of Nevada, where, from the abnormal condition of the inhabitants, it was nothing remarkable that some event should happen almost daily that otherwise would have been startling. Many such events did take place, but, from their frequency, were soon forgotten. There was one, however, that impressed itself upon my memory because of the cool daring that characterized it, and it must be understood that bravery was not an uncommon trait in the inhabitants of Carson. Men carried their lives in their hands, and quite frequently lost them.

In order to appreciate the situation fully, you must know that the population of Carson City was composed of about the roughest and most disorderly agglomeration of the refuse of California that was ever assembled at any one time or place,—gamblers, murderers, road agents, and all sorts of unclassified toughs. They were about evenly divided between the North and the South,—the only politics being pronounced Unionism on one side and outspoken rebellion on the other; but, as any discussion between representatives of such views during the hottest period of the war was generally concluded with six-shooters, all parties kept pretty quiet on the subject, and politics was about the least exciting cause of murder, there being others sufficiently numerous to give us a "man for breakfast" nearly every morning.

Like all Pacific Coast mining towns, Carson had an immense saloon, with all the sporting attachments, such as billiards, roulette, faro, poker, etc., and at all times of the day and night it was frequented by hundreds of men, who amused themselves talking, drinking, gambling and reading their letters, as most of them received their correspondence at these headquarters. It was called the "Magnolia," and was kept by Pete Hopkins, who, I believe, still flourishes in San Francisco.

The telegraph had reached us in 1862, and we kept pretty well posted on what was going on in the States. On the 14th of April, 1865, it was flashed

over the wires that President Lincoln had been assassinated, and the excitement was intense. Men studiously avoided the subject, for fear of being misunderstood and being drawn into deadly conflict. The news was not credited at first, but soon became confirmed, and generally accepted as true. The Union men determined that some public demonstration should be made to recognize the event. A meeting was held, and a committee appointed to formulate a program. It was decided to put the town in mourning, have a procession and mock funeral, an oration and appropriate resolutions,—all of which was the correct thing. An evening or two before the ceremony was to take place the committee came down to the Magnolia, to announce publicly what it had decided upon. The chairman mounted the bar and made his proclamation, adding that anyone who failed to hang out some emblem of mourning on his house or place of business might expect to be roughly handled.

The room was crowded, and with the most inflammable material. Had a bomb been exploded on one of the billiard tables the effect would not have stirred the rebels to greater depths. Among them was an old Virginian, whom we will call Captain Jones. He almost immediately accepted the challenge, and speaking up loudly, he said: "I am damned glad Lincoln was killed, and if any man attempts to put mourning on my house, or interfere with me for not doing so, there will be a good many more killed."

Everybody knew that the old man meant just what he said, and was always equipped to make good his promises. The effect was remarkable. Instead of precipitating a fight, it seemed to paralyze the crowd, and nothing came of it that night; the captain was wise enough quietly to disappear.

Captain Jones had a small brick building on the main street of the town, a block or two from the Magnolia, where he had his office, and lived in a back room.

At the proper time the procession formed on the plaza. Bands of music were interspersed through the line. The orator and distinguished citizens were in carriages, every vehicle in town being brought into requisition. There was a large cavalcade of horsemen. I rode in a handsome buggy, with the principal gambler of the town, and many hundred footmen followed, the Chinamen bringing up the rear. It was a beautiful day, the sun shining brightly. The

procession moved off majestically down a back street, off the main thoroughfare, and then turned into the principal street. Every house on the line of march displayed signs of mourning on both sides of the street. Soon appeared in the distance Captain Jones, sitting just outside the line of the sidewalk, in the street, exactly in front of his house. His head was bare, and his long white hair glistened in the sunshine. He sat in an arm-chair, with an immense double-barrelled shotgun poised quietly across his knees. He was carelessly reading a newspaper, and not a semblance of mourning was to be seen anywhere on his premises. As the head of the procession reached him hundreds of hands involuntarily sought their revolvers, and every man held his breath; even the music ceased, and the expectation was intense. There were many in the line who would have shot him if they had dared, but they knew he had hosts of friends in the line who would have resented it instantly, and to the death, and they also knew the captain's eye was coursing down the line and the first shot would be answered by the contents of both barrels of his big gun. So no one fired; no one spoke; hardly anyone looked. The captain never moved a muscle, and the column passed.

I remember once of reading an incident in connection with the French army. While marching in Africa it encountered a splendid African lion, lying in the road, who did not seem disposed to give the right of way. The army halted. The circumstance was reported to the commanding officer and instructions asked whether they should kill the royal beast or march round him. The orders were to march round him. I have never thought of the incident here related without recalling the cool bravery of the king of beasts; but I always award the superiority to my friend, Captain Jones.

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HOW THE CAPITAL WAS SAVED.

The ancestors of Joe Rolette, the leading character in the story which I am about to relate, emigrated at a very early day from Normandy, in France, to Canada. It is believed that the celebrated Montcalm was one of this party. Many of these emigrants became disheartened by the hardships they encountered, and returned to France; but not so the Rolettes. Jean Joseph Rolette, the father of our Joseph, was born in Quebec, on Sept. 24, 1781. He was originally designed for the priesthood, but fortunately for that holy order his inclinations led him in another direction, and he became an Indian trader. His first venture in business was at Montreal, next at Windsor opposite Detroit, finally winding up at Prairie du Chien, about the year 1801 or 1802.

In the war of 1812, with Great Britain, the Americans captured Prairie du Chien in 1814, and built a stockade there, which was called Fort Shelby. The British, under Colonel McKay, besieged it, Rolette having some rank in the attacking party. He was offered a captaincy in the British army for his good behavior in this affair, but declined it. He continued his Indian trade successfully up to 1820, when John Jacob Astor offered him a leading position in the American Fur Company, which he accepted, and held until 1836, when he was succeeded by Hercules L. Dousman. He died at Prairie du Chien, Dec. 1, 1842, leaving a widow and two children, a son and daughter. His daughter married Captain Hood of the United States army, and was a very superior woman. His son was the hero of this story. Rolette senior was called by the Indians, "Sheyo" ("The Prairie Chicken"), from the rapidity with which he travelled. Joe was called "Sheyo chehint Ku" ("The Prairie Chicken's Son").

Joe Rolette was born on Oct. 23, 1820, at Prairie du Chien. He received a commercial education in New York, but having inherited the free and easy, half-savage characteristics of his father, he soon gravitated to the border, and settled at Pembina, on the Red River of the North, near the dividing line between the United States and Canada. At this point an extensive trade in furs had sprung up, in opposition to the Hudson Bay people, who had

monopolized the trade for British interests for many long years. The catch of furs was brought down to the Mississippi every year by brigades of carts, constructed entirely of wood and rawhide, which were drawn by a single horse or ox, and carried a load of from 800 to 1,000 pounds. These vehicles were admirably adapted to the country, which was in a perfectly natural state, without roads of any kind, except the trail worn by the carts. They could easily pass over a slough that would obstruct any other forms of wheeled carriage, and one man could drive four or five of them, each being hitched behind the other. They were readily constructed on the border, by the unskilled half-breeds, where iron was unobtainable. This trade, with an occasional arrival of dog trains in the winter, was the only connecting link between far away Pembina and St. Paul.

When the Territory of Minnesota was organized, in 1849, St. Paul was designated as the capital, and a plain but suitable building was erected by the United States for the purpose of the local government, and when finished the territorial legislature convened there annually.

Joe Rolette, being the leading citizen of Pembina, and naturally desirous of spending his winters at the capital, had himself elected to the legislature, first to the house of representatives in 1853, and again in 1854 and 1855. In 1856 and 1857 he was returned to the council, which was the upper house, corresponding to the senate as the legislature is now composed. This body consisted of fifteen members. The sessions were limited by the organic act to sixty days.

That the capital should be located and remain at St. Paul had been determined by the leading citizens of this region, as far as they could decide this question, before the organization of the territory, but there were from the beginning manifestations of a desire to remove it exhibited in several localities. Wm. R. Marshall resided at St. Anthony, and at the first session in 1849 worked hard to have it removed to that point, but failed, and no serious attempt was again made until 1857, when, on February 6th, a bill was introduced by a councillor from St. Cloud, to remove it to St. Peter, a town on the Minnesota river, which had grown into considerable importance. General Gorman was the governor, and largely interested in St. Peter. He gave the scheme the weight of his influence. Winona, through its councillor, St. A. D. Balcombe, was a warm advocate of the change, and

enough influence was secured to carry the bill in both houses. It, however, only passed the council by one majority, eight voting in its favor, and seven against it.

It was at this point in the fight that Rolette proved himself a bold and successful strategist. He was a friend of St. Paul, and was determined that the plan should not succeed if it was possible for him to prevent it. He never calculated chances or hesitated at responsibilities, but would undertake any desperate measure to carry a point with the same unreflecting dash and heedlessness of danger that he would plunge his horse into a herd of buffalo, shooting right and left, trusting to luck to extricate him. It happened that Joe was chairman of the committee on enrolled bills of the council, and all bills had to pass through his hands for enrollment and comparison. On the 27th of February the removal bill reached him, and he instantly decided that the legislature should never see it again, so he put it in his pocket and disappeared. He had, however, foresight enough carefully to deposit the bill in the vault of Truman M. Smith's bank, in the Fuller House, on the corner of Seventh and Jackson streets, before his vanishment.

On the 28th Joe did not appear in his seat, and no one seemed to know anything of his whereabouts. As his absence was prolonged, some of the advocates of the removal became uneasy, and sent to the enrollment committee for the bill, but none of them knew anything about it. At this point Mr. Balcombe offered a resolution, calling on Rolette to report the bill forthwith, and on his failure to do so, that the next member of the committee, Mr. Wales, procure another enrolled copy and report it. He then moved the previous question on his resolution. At this point, Mr. Setzer, a friend of St. Paul, moved a call of the council, and Mr. Rolette, being reported absent, the sergeant-at-arms was sent out to find him, and bring him in.

To comprehend the full bearings of the situation, it should be known that, under the rules, no business could be transacted while the council was under a call, and that it required a two-thirds vote to dispense with the call. As I have said before, the bill was passed in the council by a vote of eight for and seven against, which was the full vote of the body; but in the absence of Rolette there were only fourteen present. Luckily for St. Paul, it takes as many to make two-thirds of fourteen as it does to make two-thirds of

fifteen, and the friends of the bill could only muster nine on the motion to dispense with the call. Mr. John B. Brisbin was president of the council, and a strong friend of St. Paul, so no relaxation of the rules could be hoped for from him. In this dilemma, the friends of removal were forced to desperate extremes, and Mr. Balcombe actually made an extended argument to prove to the chair that nine was two-thirds of fourteen. Both gentlemen were graduates of Yale, and, on the completion of his argument, Mr. Brisbin said, "Balcombe, we never figured that way at Yale; the motion is lost," and the council found itself at a deadlock, with the call pending, and no hope of transacting any business, unless some member of the five yielded. They were all steadfast, however, and there was nothing to do but to receive the daily report of the sergeant-at-arms that Mr. Rolette could not be found. Sometimes he would report a rumor that Rolette had been seen at some town up the river, making for Pembina with a dog train, at the rate of fifteen miles an hour; again, that he had been assassinated,—in fact, everything but the truth, which was that he was luxuriously quartered in the upper story of the Fuller House, having the jolliest time of his life, surrounded by friends, male and female, and supplied with the best the town afforded, including buckets of champagne.

The 5th of March was the last day of the session, and the council camped in its chamber, theoretically handcuffed and hobbled, until midnight of that day, when President Brisbin took the chair, and pronounced the council adjourned *sine die*.

The sergeant-at-arms was John Lamb, well known to all old settlers. He was a resident of St. Paul, and true to her interests, as his conduct proved. I don't suppose any man ever spent five days and nights trying harder how not to find his man than he did on this occasion. Whether his fidelity was ever rewarded I am unable to say.

During the deadlock the friends of removal got a copy of the bill through, but neither the speaker of the house nor the president of the council would sign it. The governor, however, did approve it, but the first time it was tested in court it was pronounced invalid, and set aside. Other attempts at capital removal were made, but none of them proved successful.

Rolette and I were close friends. We had served together in the council at its preceding session, and afterwards in the constitutional convention, and always roomed together when in St. Paul. I lived at Traverse des Sioux, which is next door to St. Peter, at the time of this attempt to remove the capital there, but vigorously opposed the measure. Rolette's life was threatened by the friends of removal, and many is the night I have played the part of bodyguard to him, armed to the teeth; but fortunately he was not assailed.

As I rather admired the plucky manner in which my friend had stood by St. Paul in this, the hour of her danger, I conceived the idea of preserving the event to history by presenting his portrait to the Historical Society of the state, which I did, in April, 1890, and also hung one in the Minnesota Club. It is a capital likeness, representing him, full life size, in the wild and picturesque costume of the border. A brass tablet on the frame is inscribed with the following legend: "The Hon. Joe Rolette, who saved the capital to St. Paul, by running away with the bill removing it to St. Peter, in 1857."

Joe died at Pembina, and is buried in the graveyard of the old Catholic church of Belencourt, under a cross of oak, which once bore the words:

"Here reposes Joseph Rolette.

"Born Oct. 23, 1820.

"Died May 16, 1871."

The simple chronicle is long since effaced.

"*Requiescat in pace!*" is the wish and hope of his historian and friend.



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AN EDITOR INCOG.

In the years 1864 and 1865 I lived in Carson City, the capital of Nevada, which recently became famous as the place where the great prize fight between Bob Fitzsimmons and Gentleman Jim Corbett occurred. The racecourse which became the arena on that occasion was during all the time of my residence there used by me daily as a gymnasium for exercise. I had very little to do with the actual politics of the country, because I was, and had always been, a Democrat of the most uncompromising character, and the party divisions out in that country were between the Republicans and men from the Southern States, who were generally outspoken rebels; and as it was in the midst of the Civil War, the feeling was intense between them. I was a warm supporter of the war for the Union, and found myself in the position of a man without a party. The situation did not incommode me, however, as I was fully occupied outside the realm of politics.

There were two daily newspapers published in the town,—one Republican, which was called the *Carson Daily Appeal*, and the other Democratic, called the *Evening Post*. There were no associated press dispatches, although the telegraph had reached the Pacific Coast and the San Francisco papers had the benefit of that great purveyor of news.

The proprietor of the plant of the Republican paper was an old Minnesota man, and a friend of mine, with whom I frequently came in contact, both in a business and social way. Under this condition of things, you may imagine my surprise and consternation when I tell you that one day he rushed into my office in a great state of excitement, and told me that his editor had left him and gone to San Francisco, and that he could not keep his paper going unless I would run it until he could arrange for another editor, adding that a failure to publish it for a single day would ruin him. At first I looked upon the proposition as utterly out of the question, and said: "How can I edit a Republican newspaper, when I am at swords' points with everything they believe and advocate?" It was with him, however, "a groundhog case," as we used to call such imperative occasions. He *had* to get him, as he was out of meat. He was persistent in his demands, and as the negotiations

progressed, I began to look upon the matter as a good joke, and finally promised that I would undertake to keep the paper going if he would swear that he would never disclose my identity, which condition he promised faithfully to observe.

It was a matter that admitted of no delay. I had to prepare a column and a half of editorial that night for the next morning's issue. What I wrote about, I don't pretend to remember, but it was well received, and its Republican orthodoxy was never questioned, and I repeated the dose daily for some time with the same success, growing more and more violent in my attacks on the Democracy in each successive issue. Carson was a small town, and, as the old editor was missed by his friends, public curiosity increased as to who had succeeded him, and I enrolled myself among the guessers, and improved every occasion to criticise publicly the editorials. It soon became very tiresome and difficult to maintain my ground, with politics as the sole text for my editorials, and as news was very scarce, I sought relief in any channel that opened a way. A great race took place in San Francisco between Charley Brian's ever victorious horse, Lodi, and a colt of the celebrated stallion Lexington, named Norfolk, for which Joe Winters of Carson had paid fifteen thousand and *one* dollars to the owner of Lexington,—Lord Bob Alexander of Kentucky,—especially to make the race with Lodi. The \$15,001 was exacted by the owner of Lexington, because he had been laughed at for paying \$15,000 for Lexington when he was old and blind, and had said he would sell his colts for more than he had paid for their sire. This race, of course, created an immense excitement. At least twenty thousand people went to see it, and everybody on the Pacific Coast from the forty-ninth parallel to the Mexican line had a bet on the result. Lodi was beaten, and as Nevada was the victor, and I knew all about Lexington, I wrote several essays on race horses in general and Norfolk in particular.

The office of sheriff of our county was a very hazardous one, every incumbent of it prior to the then holder having "died with his boots on." Tim Smith, who filled the office when I was there, and had shown desperate courage on several occasions in the performance of his duties, had gained my admiration and friendship, and afforded me a good text, and I wrote him up.

There was an ex-governor of California residing in Carson with whom I became intimate, and on one occasion I wrote him up; and last, but not least, I made the acquaintance of a beautiful and accomplished lady living in the town, and as such a person was a phenomenon in that rude land, I was inspired to write her up, and did so in the following poem:

"This descriptive epigram is dedicated to the most beautiful woman in Carson City, by the editor:

"Gorgeous tresses, exquisitely arrayed;
Noble brow where intellect's displayed;
Liquid eyes that penetrate the heart;
Teeth of pearl, whose brilliancy impart
To the whole expression of the face
A ray of love, a fascinating sense of grace.
A bust—but here presumptuous mortal stay:
Let artist gods this beauteous bust portray;
Splendor, royalty, magnificence combined,
A Venus in Diana's arms entwined.
The tiny hand, so soft, so pure, so white,
Robs its emerald gem of half its light.
The secret charms beneath her robe-folds hidden,
Like heavens' joys to mortal eyes forbidden,
Are dimly outlined to our rapturous gaze,
Like veiled statues through a marble haze.
Her fairy foot, as in the graceful waltz it glides,
Our admiration equally divides.
And proves, that of her many charms of form and voice,
If one you had to choose, you could not make the choice.
Their perfect harmony is like the arch's span;
Displace one stone, you destroy the noble plan."

My political attacks did not seem to make much impression on my Democratic contemporary, and he paid very little attention to what I said, feeling, no doubt, indifferent in the overwhelming majority of the Republican party, but when I branched out in the line I have indicated, he opened on me savagely in several editorials. He said the *Appeal* had discovered a soft-soap mine, and had used it lavishly to lather governors,

sheriffs, ladies, and a great many other people, for the purpose of gaining their support and patronage, all of which afforded me a fine opportunity of getting back at him in a humorous, and at the same time effective manner, so I shot at him in verse, which I will repeat; but to a full understanding of it, I will explain that all mining claims are measured by the number of feet the claimant owns on the ledge, and the word "feet" became synonymous with the mine itself. This was my answer:

"SOAP."

"Great renovator of the human race!
Great cleanser of the human face!
Thy potent art removes each stain
From dirtiest mortal on this sphere mundane.
'Tis sad to think thy mystic spell
Can't penetrate within the shell,
And to a soiled, perverted heart
Cleanliness and purity impart.
Thy subtle essence, heretofore confined
In bars of Windsor toilet cakes refined;
In Colgate's honey for the barber's brush,
And shapeless masses much resembling slush,
Has now, according to our evening sheet,
Been found in ledges, known as "*feet*."
To use the language of the *Post*, in fine,
The great *Appeal* has found a mine;
And having now much soap to spare,
Soaps governors—sheriffs—ladies fair.
How sad it is, with all this soap,
To know there's not the slightest hope
If all the Chinamen in town
Should wash it up and wash it down,
And scrub 'till it gave up the ghost,
Of making clean the *Evening Post*."

The effect of my shot was equal to a thirteen-inch shell in the camp of the enemy. The whole community laughed, and the *Post* left me studiously alone until the new editor came and relieved me. I had lots of fun out of the experiment, besides getting the magnificent compensation of twenty dollars a week for my services. I also had the gratification of knowing that the exciting question of "Who edits the *Appeal*?" remained unanswered until I answered it myself.

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THE INK-PA-DU-TA WAR.

All old settlers will remember what in the history of Minnesota is known as "The Ink-pa-du-ta War." It occurred in 1857, and, briefly described, was something like the following: Near the northwest corner of the State of Iowa, in the county of Dickinson, and near the southwest corner of the State of Minnesota, in the county of Jackson, there are two large and very beautiful lakes, called Spirit lake and Lake Okoboji. The country about these lakes is surpassingly beautiful and fruitful, and naturally attracted settlers in a very early day. In 1855 and 1857 a few families settled on a small river which heads in Minnesota and flows southward into Iowa, called in English Rock river, and in Sioux In-yan-yan-ke. In 1856 Hon. William Freeborn of Red Wing, Minn., started a settlement at Spirit lake, and near the same time another location was made about ten or fifteen miles north of Spirit lake, and called Springfield.

There was a small band of Indians, numbering ten or fifteen lodges, under the chieftainship of Ink-pa-du-ta, or the "Scarlet Point," which had for long years frequented the region of the Vermillion river, and although Sioux, they had become separated from the bands that made treaties with the United States in 1851, and were regarded as outlaws and vagabonds. This band had planted in the neighborhood of Spirit lake prior to 1857, and ranged the country from there to the Missouri.

Early in March, 1857, these Indians were hunting in the neighborhood of Rock river settlement, and got into a row with the white people from some trivial cause, and the treatment they received greatly angered them. They proceeded north and massacred all the people at the Spirit lake and Okoboji settlements, except four women, whom they captured and carried off with them. They then attacked the settlers at Springfield, and killed most of them. The result of the massacre was forty-two white people killed and four white women taken as captives.

I was then United States agent for the Sioux, and the news of the trouble reached me at my agency, on the Minnesota river, early in March, 1857, by

two young men, who had escaped, and had travelled all the way on foot through the deep snow, a distance of nearly one hundred miles. Although the air was always full of rumors of Indian troubles in those days, I was convinced that the news brought by these boys was true, so I made a requisition on Colonel Alexander of the Tenth United States Infantry, stationed at Fort Ridgely, for troops, and he sent me Company "A," commanded by Captain Barnard E. Bee and Lieutenant Murray. I supplied guides and interpreters from my Indians, and after a most laborious and painful roundabout march of many days, we reached the scene of the troubles, only to find, as I fully expected, the Indians gone. The dead were buried, and the troops, after remaining for some time, returned to the fort.

Now comes the most interesting part of the incident. The captured women were Mrs. Noble, Mrs. Thatcher, Mrs. Marble and Miss Gardner. The legislature of the territory was in session, and the news of the event soon reached St. Paul, and, as might be expected, created great excitement, and, of course, the principal interest centered in the rescue of the prisoners. All the legislature could do was to appropriate money to defray the expenses of the undertaking, and as nobody knew what to do or how to do it, they appropriated \$10,000 and wisely left the whole matter to Governor Medary, who was then the governor of the territory, with full power to do what he thought best about it. He, being a practical man, and having no idea at all of how to proceed in the matter, very sensibly turned the whole business over to me, with *carte blanche* to do whatever I thought best.

An accident controlled the situation, and shaped future events. Two of my Indians, who had been hunting on the Big Sioux river, heard that Ink-pa-du-ta was encamped at Skunk lake, about seventy-five miles west of Spirit lake, and had some white captives in his camp; so they went to see him, and succeeded in purchasing Mrs. Marble, for whom they paid horses and rifles, and whatever they had, and brought her into the Yellow Medicine agency and delivered her to me. I paid them \$500 each for their services, and immediately sent out another expedition to try to rescue the other captives. I say I paid these two Indians \$500 each. The fact is, I could raise but \$500 in money on the reservation, which I gave them, and resorted to a financial scheme to get the rest, which has since become quite the fashion when people or communities are short. I issued a territorial bond, and as it is the

first government bond that ever was issued in all the country that lies between the Mississippi to the Rocky Mountains, I give it in full.

"I, Stephen R. Riggs, missionary among the Sioux Indians, and I, Charles E. Flandrau, United States Indian agent for the Sioux, being satisfied that Mak-pi-ya-ka-ho-ton and Si-ha-ho-ta, two Sioux Indians, have performed a valuable service to the Territory of Minnesota and humanity, by rescuing from captivity Mrs. Margaret Ann Marble, and delivering her to the Sioux agent, and being further satisfied that the rescue of the two remaining white women who are now in captivity among Ink-pa-du-ta's band of Indians depends much upon the liberality shown towards the said Indians who have recovered Mrs. Marble, and having full confidence in the humanity and liberality of the Territory of Minnesota, through its government and citizens, have this day paid to the two said above named Indians, the sum of five hundred dollars in money, and do hereby pledge to said two Indians that the further sum of five hundred dollars will be paid to them by the Territory of Minnesota or its citizens within three months from the date hereof.

"Dated May 22nd, 1857, at Pa-Ku-ta Zi-zi, M. T.

"STEPHEN R. RIGGS,
Missionary A. B. C. F. M.

"CHAS. E. FLANDRAU,
"U. S. Indian Agent for Sioux."

This bond differed materially from some that were issued by Minnesota afterwards, in being paid promptly at maturity.

My expedition brought in Miss Gardner, but Mrs. Noble and Mrs. Thatcher were killed before relief reached them.

All this occurred before I heard of the action of the legislature, and was done wholly on my individual responsibility. I, however, reimbursed myself for the outlay from the state funds, and covered the balance of the appropriation into the treasury.

Very shortly after the rescue of Miss Gardner, while at the Redwood agency, I received a note from Sam Brown, a trader at Yellow Medicine, by an Indian courier, which informed me that Ink-pa-du-ta and several of his band were at the Yellow Medicine river. I at once determined to kill or capture them, and sent word back that I would be on hand with a proper force on the morning of the second day, and that he must send an Indian who knew where to find them, who would meet me at midnight on the top of a butte half way between the Redwood and Yellow Medicine rivers, and guide me in.

I then made a requisition for troops on the commander of the post at Ridgely, who sent me a lieutenant and fifteen men. It chanced to be Lieutenant Murray, who had accompanied the expedition to Spirit lake. While waiting for the soldiers, I raised a volunteer force of about twenty men, among whom was a son of the celebrated electrician, Professor Morse, and some other young gentlemen who were visiting the agency, all of whom insisted on going for the fun of the thing. The balance consisted of employes, most of whom were half-breeds. The soldiers arrived about five o'clock in the afternoon, and I put them in wagons. I mounted my squad on good horses, and every man was furnished with a double-barrelled shotgun and a revolver. We started about dark, and at midnight arrived at the butte. I galloped to the top of it, and found sitting there in the most composed manner possible smoking his pipe, An-pe-tu-toka-sha, or John Otherday, who had been deputed by Brown to guide us in. He said he knew where we could find the enemy, and indicated six lodges standing together about four miles above the Yellow Medicine Agency, on the open prairie. He left the road, and guided us through the open country to a point on the river about a mile below the lodges, they being on the other side of the river. We arrived at about four o'clock in the morning, just as the light of day was breaking. It was an engrossing study to observe how skillfully he kept us concealed from view of the enemy, by keeping rolls of the prairie between us. All his movements were like those of a wary animal, stealthy and noiseless. The fact is, the education of a savage is learned from the wild animals on which he lives, and that is what makes him such a good hunter and fighter.

The river, with a narrow stretch of bottom land and a bluff of about thirty feet in height, lay between us and the plateau on which was the camp where Ink-pa-du-ta was supposed to be. Here we formed our plan of attack. As

soon as we crossed and attained the high prairie, and located the enemy, we were to divide our force into two squads, one of which was to be the soldiers and the other the mounted men. The soldiers were to double-quick up the edge of the bluff, to intercept a retreat into the river bottom, while the mounted men took the open prairie to cut off escape in the other direction. Lieutenant Murray was to lead the soldiers and I the horsemen. I said to Otherday and my interpreter: "How are we to know the guilty parties?" The answer was: "Whoever runs from the camp you may be sure of."

The scene presented when we reached the high land was beautiful, inspiring, and frightfully alarming. As far as the eye could reach there was an unbroken camp of savages, not less than eight or ten thousand of them, representing all the Indians of my upper bands, and those from the Missouri who always visited us at payment time. I knew many of them were relatives of Ink-pa-du-ta and his people, and most of them his friends, but there was no time for balancing chances, and, at the word, away we went for the enemy's camp, which was the farthest up the river of them all. The night had been very hot, and, as is the custom, the tepees had been rolled up at the bottom, to allow a free circulation of air, which, of course, allowed the inmates an open view of the prairie. When my squad got within about two or three hundred yards of the lodges a young Indian, holding the hand of a squaw and carrying a double-barrelled shotgun, sprang out, and made for the river bluff as fast as his legs would carry him. All the soldiers fired at him, but he did not seem to be hit, and disappeared among the chaparral in the bottom. We surrounded him. He fired four shots, and each time I looked to see a man fall, but only one shot was effective, and that struck the cartridge box of a young soldier, turning it completely inside out, but without injuring the wearer. Whenever he shot, we poured a volley into the place indicated by the smoke, and succeeded in killing him. We took his squaw and put her into one of the wagons, more for the purpose of identifying the man than anything else, and started down the river towards the agency. We had to pass through the heart of all these camps, and the squaw yelled as only a scared squaw can. The savages swarmed about our party by the hundreds and thousands, threatening vengeance, and flourishing their guns in a blood-curdling manner. A shot from one of them, or from one of us, would have sent us all into heaven in less than a moment.

The shot was not fired, and we succeeded in reaching the agency in safety. I have always attributed our escape to the moral force of the government that was behind us.

At the agency there were great log buildings, in which we fortified ourselves. I sent a courier to Fort Ridgely for reinforcements. The commanding-officer sent us the old Sherman Buena Vista Battery, which assisted us in letting go and getting out.

The Indian we killed turned out to be the eldest son of Ink-pa-du-ta, who was one of the head devils in the Spirit lake massacre. He had ventured in to see his sweetheart, and was the only one of the gang that was present when we made our attack.

The question has often been asked, why the government allowed the massacre to go unpunished. Colonel Alexander of the Tenth and I had a plan by which we would have destroyed Ink-pa-du-ta and his band without a doubt, but just at the moment of putting it into execution an order came for all the companies of the Tenth at Ridgely to leave at once for Fort Bridger, in Utah, to join the expedition under General Albert Sydney Johnson, against the Mormons, and that was the end of it.

Our raid was about as foolhardy and reckless a one as ever was undertaken, and our escape can only be credited to providence or good luck.

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MUSCULAR LEGISLATION.

My attention was once arrested by a short editorial, under the caption of "Gold Lace Lawmaking," which recalled an amusing incident in my experience that occurred in 1856. The editorial said: "When the lawmakers of the province of Manitoba met at Winnipeg, the occasion was something to impress the voter. The Royal Canadian Dragoons paraded, and the Thirteenth field battery roared a salute. Mark the contrast. On one side of the line, ceremony, gold lace and honor. On the other, nothing but a few clean collars and a camp-fire of the bobby."

It is not my intention to discuss the question of which is the better method, but to relate an incident which will cast some light on the views people of the two sections take of legislative etiquette and ceremony, and the slight effect such ideas have on the practical subject of legislation and the conduct of the legislators.

In the year 1856 I was elected by the people of the Minnesota valley to the territorial council, which corresponds to the state senate under our present political organization. At the same election a neighbor of mine, George McLeod, was elected to the house of representatives from the same district. George was a Scotch Canadian, who had passed his life in that part of Canada where French is the dominant language, and it had become his most familiar tongue. He was a giant in build, being much over six feet in height, and correspondingly powerful. He was red headed, and although well educated, preferred his fists to any other weapons in argument, and generally carried his points. He was fond of good horses, boasted of his skill as a hunter, and possessed all the requisites of a successful frontiersman. He added to these accomplishments an extensive knowledge of Scotch poetry and a varied repertoire of choice songs, which he sang on all appropriate occasions. On the whole, George might be classified as an all around good fellow. Another attribute which I must not forget to mention was, that he was the brother of one of our most distinguished first settlers, Martin McLeod, who was a member of the first territorial council, which convened in 1849, and also the brother of Rev. Norman McLeod, a plucky

Presbyterian preacher, who settled in Salt Lake City in the fifties, and preached the Gentile religion when Mormonism was at its height and its disciples were in the habit of killing people who differed from them.

After the excitement of the election was over, George naturally began to reflect upon his exalted position, and, of course, all his conclusions were reached from a Canadian point of view. Feeling a little doubt on some questions, he decided to consult me, supposing I was more familiar with the American way of doing things than he possibly could be; so one day he came to see me on the all-engrossing subject. We found each other in the regulation costume of the country, which consisted of blue flannel shirts, cheap slop-shop trowsers, Red River moccasins, and the whole finished off with a scarlet Hudson's Bay or a variegated Pembina sash, all of which was picturesque, but carried with it no semblance of pretentious aristocracy. I welcomed George with great cordiality, and he at once opened his budget. He said: "Flaundreau," giving my name the full French pronunciation, "when we get down to parliament, we will have to set up a coach." My surprise may be well imagined, when I tell you a journey of a hundred miles on foot was to either of us no unusual event, and that neither McLeod nor I had been the owner of a boot or a shoe for several years. I, however, restrained my astonishment, and asked: "What makes you think so?" His reply was, that it was entirely inadmissible for a member of parliament to walk from his hotel to the parliament house or to ride in a public conveyance. The question of British or Canadian etiquette flashed upon me, and explained McLeod's meaning; but it required an immense effort on my part to control my laughter, when I had fully taken in the ludicrous features of the proposition. I would no more have given way to my inclinations, however, than I would have yielded to the same desire when some ridiculous event happens at an official Indian council. The picture of a coach with liveried coachman and footman driving up to the door of the old American House in St. Paul, and two half-savage looking men, shod in moccasins, climbing into it, to be transported three or four blocks to the old capitol, with a gaping crowd of half-breeds and ruffianly spectators looking on in amazement, passed before my mind, and made me wonder what would be the result of such a phenomenal spectacle; but I simply said: "We had better wait until we get there, and see what the other fellows do; but

there is one thing I can promise you, and that is, that our district shall not fall behind any of the rest of them if it takes a coach and six to hold it up."

When we arrived at the parliament, of course McLeod's ideas of etiquette and good form met with a rude check, and that was the last I ever heard of the subject.

But it was not the last I heard of my colleague. His convivial and belligerent characteristics led him into all sorts of scrapes. He was, however, usually quite competent to take care of himself, and we each followed our own trails without interference, until some political question of more than ordinary interest came up in the house, and an evening session was agreed upon for its discussion. McLeod was to speak on the subject, and he spent nearly all day in preparation, which consisted in dropping in at old Caulder's, a brother Scotchman, about every hour and taking a drink, so when the time arrived he was loaded to the guards with inspiration.

In the old capitol the halls of legislation were on the second floor, the house on one side and the council on the other, with an open hall between them and a stairway leading up from below. The height between the floors was about sixteen feet. It had been arranged that a keg of whisky should be put into the council chamber, to be presided over by the sergeant-at-arms of the council, who was an enormous man, larger even than McLeod.

The hour arrived, a large party attended the debate, among whom were Joe Rolette and I, many ladies also gracing the occasion. McLeod spoke, and after he had finished, he sauntered over to the council chamber to refresh himself. While the custodian of the keg was getting him a drink, McLeod asked if he had heard his speech, and how he liked it. The sergeant ventured a not very flattering criticism on some remark he had made, when George slapped him viciously across the face with a pair of buckskin gauntlets he held in his hand. He had hardly struck the blow, when the sergeant seized him, and rushed him across the hall to the railing around the staircase, reaching which, over McLeod went backwards to the bottom, sixteen feet below, with a crash that could be heard all over the building. In a moment or two, my friend, Joe Rolette, came running breathlessly to me, and gasped out, "Hiawatha, Hiawatha" [the name he always called me], "McLeod is dead." I sprang to my feet, and rushed down stairs, where I found McLeod

laid out on a lounge in the office of the secretary of the territory, with Doctor Le Boutillier, a French member from St. Anthony, endeavoring to pacify him. The conversation ran as follows:

Doctor: "Georges, mon ami; ne bouge pas, tu a le bras cassé."

McLeod: "Fiche-Moi la paix, on peut courber le bras à un Ecossais; on ne peut pas le lui casser."

Which translated would read:

"George, my friend, be quiet, your arm is broken."

"Stand aside, you may bend a Scotchman's arms, but you can't break them."

Poor McLeod's right arm was broken badly, which laid him up until the end of the session.

A short time after the legislature had dissolved George was standing in a saloon on Third street, with his right arm in a sling, and a glass of whisky in his left hand, which he was about to drink, when who should walk in but the big sergeant. Without a word George discharged the contents of his glass into the face of the sergeant, and prepared for battle, crippled as he was; but the interruption of friends and the chivalry of the sergeant prevented an encounter, and so ended the legislative career of the gentleman from Canada. Whether it would have terminated otherwise had we set up our coach and livery and changed our moccasins for patent leather boots I leave to the decision of the reader.

He went with General Sibley's command to the Missouri, where I believe he remained.

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THE VIRGIN FEAST.

In all ages, and among all people who had progressed beyond absolute individualism and gained any kind of government or community interests, there must have been some kind of law to settle disputes and controversies, whether of a public or private nature, and I remember once, in the very early days of Minnesota, of witnessing a test which bore a close resemblance to a trial by jury, and involved an important question of individual character which would have been classified under our jurisprudence as an action of slander. It occurred among the Sioux Indians, and presented many features of much interest that made an impression on me which I have never forgotten. The whole proceeding was absolutely natural and aboriginal in its character and conduct, and free from the technicalities which sometimes obstruct the progress of the administration of justice in modern times.

It is well known that the value of the testimony of a witness depends very much upon his demeanor and manner of delivering it in court, and that the judge usually tells the jury that they must take these matters into consideration in giving it its true weight; but in the case I am about to relate there was nothing but the appearance and manner of the witnesses testifying upon which to base a judgment of their truth or falsity, and it was this novel feature that lent additional and peculiar interest to the controversy.

The Sioux Indians have a rude kind of jurisprudence which gets at the truth by a sort of natural intuition, and the case I witnessed convinced me that justice had been reached with more certainty than in nine out of ten of our jury trials. We have all heard of trial by battle, under the old English law, and the trial of witches by water, where, if they sank and drowned they were innocent, and if they floated they were guilty and were hanged. But this trial was based on public sentiment or the ability of bystanders to detect guilt or innocence from the appearance and conduct of the litigants during the trial, which, although a crude method, is, in my judgment, much safer than some of those practised by our ancestors at no very remote date.

The trial I refer to is called the "Virgin Feast." It is brought about in this way: Some gossip or scandal is started in a band about one of the young women. It reaches the ears of her mother. In order to test its truth or falsity, the mother commands her daughter to give a "Virgin Feast." The accused cooks some rice, and invites all the maidens of the band to come and partake. They appear, each with a red spot painted on each cheek, as an emblem of virginity. They seat themselves in a semi-circle on the prairie, and the hostess supplies each of them with a bowl of rice which is set before her. A boulder, painted red, is placed in front of them, about ten feet distant, and a large knife is thrust into the ground in front of, and close up to, the stone. All the young men attend as spectators. This ceremony is, on the part of the accused and any girl who takes a place in the ring, a challenge to the world, that, if any one has aught to say against her, he has the privilege of saying it. If nothing is said, and the feast is eaten uninterrupted, the maiden who gave the feast is vindicated, and the gossip disbelieved; but if the challenge is taken up by any young buck, he steps forward and seizes the girl he accuses by the hand, pulls her out of the ring, and makes his charges. She has the right of swearing on the stone and knife to her innocence, which goes a great way in her vindication, but is not conclusive. If she swears, and he persists, an altercation ensues, and public sentiment is formed on view of the contestants' actions.

I remember once, at one of these trials, of seeing a young fellow of about twenty-five, step forward and rudely grasp the hand of a girl of about sixteen, jerk her to her feet, and make some scandalous charge against her. The look she gave him was so full of righteous indignation, scorn and offended virtue that no one could see it without being at once enlisted in her favor. She glared on him for a moment, with a look that only outraged innocence can assume, when shouts went up from the crowd, "Swear! Swear!" She approached the stone with the bearing of a princess, and placed her hand upon it with an air that could not be mistaken; then throwing a look of triumph at the spectators, she strode back to face her accuser with the confidence that bespeaks innocence. The fellow began to weaken, and in less than a moment was in full flight with a howling mob after him, hurling sticks and stones at him with no gentle intent. He disappeared, and the girl took her place in the ring as fully vindicated as if the lord chief justice of England had decided her case. I recollect very

distinctly that my convictions of her innocence induced by the general features of the trial and conduct of the litigants were as strong as any member of the court.

It probably would not do to depend upon such evidence in the more complicated affairs of civilized life, and with a people educated in dissimulation and the control of the emotions, but with a simple and natural people I don't believe many mistakes were made in arriving at just judgments.

"Innocence unmoved

At a false accusation doth the more
Confirm itself; and guilt is best discover'd
By its own fears."

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THE ABORIGINAL WAR CORRESPONDENT.

From the earliest days of recorded history man has regarded his prowess in war as the most valuable of his exploits, and success in war has generally been measured by the number of slain on the battle-field. I don't know how the facts were arrived at in ancient times, and whether or not they had war correspondents who followed the armies and reported their doings I can't say, but as the art of printing was unknown, and the means of communication were very limited, it seems doubtful if the results were arrived at in that way. From what I know of human nature and character, I am convinced that, if the reports were made through the commanders in the field, the lists of the enemy slain may fairly be discounted about seventy-five per cent. Have we not had reports of the most exaggerated character as to the number of prisoners captured and enemies killed so recently as our Civil War? And have we ever read of a battle with the Indians or other uncivilized people where, after giving our own losses, we have not met with the old stereotyped report, "that the loss of the enemy was far greater, but as they always remove their dead and wounded, it is impossible to ascertain the exact number?" The wars now raging in the Philippines and Samoa form no exception to this familiar report. So far as our fights with the American Indians are concerned, I feel quite confident that, where we have killed one Indian, we have lost ten whites, take it through from the Atlantic to the Pacific; but you can't figure out any such results from the reports which have made up history. The temptation to exaggerate for the purpose of hero-making and future political preferment is too great to be resisted, and the consequence is that truth suffers amazingly. Perhaps it is better for mankind that the slaughter should be on paper, rather than in fact.

Modern warfare has introduced the new element of the war correspondent. He is generally either a creature of the commander, or desirous of flattering him for personal advantage or some other consideration, and he piles on the praises of the side he represents, diminishes the credit due the enemy, and resolves every doubt against him.

Now the Indian has a way of arriving at the truth of such matters which is infinitely more satisfactory than that of his white brother. He knows just as well as any one what boasters all men are on matters relating to their own exploits, and especially those relating to war, and in order that there shall be no humbug about such matters, he will give no credence to any statement that is not accompanied by the most irrefragable proof. When a warrior comes home and says, "I killed six enemies on my last raid," he is confronted with the demand to produce his evidence, and the only evidence admissible is the scalps of the dead enemies. Should he make such an assertion without the proof, he would be laughed out of the camp as a silly boaster.

Most people think the practice of scalping an enemy, generally indulged in by the Sioux, is a wanton desire cruelly to mutilate the foe. Such is not the case at all; he is prompted solely by the desire of procuring proof of his success, and he will take more chances to get a scalp than he would for any other object in life. Among the Sioux, and I believe most of the tribes of North America, for every enemy killed a warrior is entitled to wear a head-dress with an eagle feather in it, which to him fills the same place in his character and reputation as the Victoria cross or the medal of the legion of honor, or any other of the numerous decorations bestowed upon white men for deeds of bravery and honor; and to gain this distinction he is moved by the same impulse that actuated Hobson in sinking the Merrimac in the harbor of Santiago, or the actors in the thousand and one daring deeds in which men in all ages have freely risked their lives.

Scalping is an art, and the manner in which it is done, depends wholly upon the circumstances of the occasion. A complete and perfect scalp embraces the whole hair of the head, with a margin of skin all round it about two and a half inches in width, including both ears with all their ornaments. This can only be obtained when the victor has abundant time to operate leisurely. When he is beset by the enemy, all he can do, as a general thing, is to seize the hair with the left hand and hold up the scalp with it and then give a quick cut with his knife, and get as big a piece as he can. By this hurried process he rarely gets a piece larger than a small saucer, and generally not bigger than a silver dollar; but no matter how small it may be, it entitles him to his feather. Among the Sioux the killing of a full grown grizzly bear is

equivalent to the killing of an enemy, and entitles the victor to the same decoration. I have known Indians who wore as many as sixteen feathers.

It is not alone the importance that these decorations give the wearer which enters into their value. When he returns from the war path, bearing scalps, he is received by all his band with demonstrations of the greatest pride and honor. If you can imagine Dewey landing at New York from the Philippines, you can form some idea of the honors that would be heaped upon a victorious savage. If the weather is pleasant, he strips to the waist, and paints his body jet black. He places on the top of his head a round ball of pure white swan's down, about the size of a large orange, and takes in his hand a staff, about five feet long, with a buckskin fringe tacked on to the upper three feet of it. On the end of each shred of the fringe is a piece of a deer's hoof, forming a rattle, by striking together when shaken up and down. When arrayed in this manner he marches up and down the village, recounting in a sort of a chant the entire history of the events of the raid on the enemy, going into the most minute details, and indulging in much imagination and superstition. He tells what he dreamed, what animals he saw, and how all these things influenced his conduct. He continues this ceremony for days and days, and is the admiration of all his people. I have seen four or five of them together promenading in this way, and have taken an interpreter and marched with them by the hour listening to their stories.

When this part of the performance is over, the scalps are tanned by the women, as they would tan a buffalo-skin, the inside painted red, and the whole stretched on a circular hoop, about the size of a barrel hoop, to which is attached a straight handle, about four feet long, so that it can be carried in the air above the heads of the people. It is also decorated with all the trinkets found on the person of the slain.

Then begins the dancing. When night comes the men arrange themselves in two lines, about fifteen feet apart, facing each other, all provided with tom-toms, and musical instruments of all kinds known to the savage. When everything is ready, they sing a kind of a weird chant, keeping time with the instruments and their feet. Then the squaws, with the scalps held aloft, dance in between the lines of men from opposite directions, until they meet, when they chassé to the right and left, then dance back and forward again, every once in a while emitting a sharp little screech which I have never

known to be successfully imitated. During the dance, the men join in a kind of shuffle from right to left, and back again, keeping the music going all the time. The whole performance is one of the most savage and weird ceremonies I have ever witnessed. It is kept up for weeks.

It was a frequent amusement for half a dozen of us to throw blankets over our heads, and join in the dance for half an hour or so. I have been lulled to sleep many times by this wild music, heard from a distance of half a mile, on a still night.

It was supposed that when the scalp was taken while the leaves were on the trees, it was danced over until they fell, and then buried, and when taken in winter it was buried when the leaves came in the spring, but I never was quite sure about this. I wanted one very much once, and a party of us went in the night just back of St. Peter, where we supposed they had been buried, and dug for them, and to our horror struck the toes of a dead Indian. That cured my desire in this direction.

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BRED IN THE BONE.

In the early days of what is now Minnesota there were two families of missionaries living among the Sioux of the Mississippi, who, like many of their profession, devoted their whole lives to spreading the gospel of Christ among the savages. They were those of Dr. Williamson and the Rev. Stephen R. Riggs, both of whom had lived with these Indians long before I came among them. When I first became connected with these Indians I found the missionaries comfortably installed at the Yellow Medicine agency, with quite a village around them. They had dwelling houses, and a commodious schoolhouse, where they took Indian children at a very early age, with a view of civilizing and Christianizing them. They had also a very pretty church, with a steeple on it, and a bell in the steeple, and all the other buildings necessary for the complete and efficient operation of their laudable undertaking. They were full of zeal and enthusiasm in the cause, and had progressed to a point where it looked to an outsider as if success was only a question of a short time, if it was not already an accomplished fact. The Bible had been translated into the Sioux language, and they had hymn books and catechisms in the same language. They had learned to speak Sioux thoroughly, and could preach and sing in that language. Many is the time I have attended church at the little meeting house, and heard the simple old Presbyterian hymns sung to the tunes that have resounded for generations through the meeting houses of New England. It was a most solemn and impressive spectacle, in the heart of the Indian country, to see a Christian church filled with devout worshippers all in the costume of savagery, and to listen to the oft-told story of the Saviour who died that man might live. Such a scene carries with it a much more convincing proof of the universality of the Christian religion than a church full of fashionably dressed people in a great city. It suggests its limitless application to all the human race, even if dwelling in the remotest part of the earth.

The experience of these good missionaries had taught them that civilization was the most potent auxiliary to religion, and, for the success of either, the other was a necessary aid and adjunct when dealing with these primitive people. So they set themselves to work to devise plans to instill into the

Indians the elemental principles of government based on law. They organized a little state or community among them, through which they endeavored to prove to them the advantages of civilized rule through the agency of officers of their own choice and laws of their own making. They called their state "The Hazelwood Republic," which embraced all the missionary establishment, and all the Indians they could induce to unite in the enterprise. They drew a written constitution, the provisions of which were to govern and direct the conduct of the members and the workings of the community. Of course, the fundamental principles upon which the whole fabric rested were similar to those taught by the ten commandments. The Indians, with the advice of the missionaries, elected a president for the young republic, and the choice fell upon a wise and upright man, about fifty years of age, whose name was Ma-za-cu-ta-ma-mi, or "The man who shoots metal as he walks," and to give the matter a more pronounced ecclesiastical aspect, they added a scriptural name by way of a prefix to the names of all the officers. For instance, they called the president, Paul Ma-za-cu-ta-ma-mi, and one of the deacons, Simon Ana-wang-ma-ni, which means "The man who can keep up with any moving object;" or, as things turned out in the end, it could well have been translated into the "Fast Man."

The first act necessary for initiation as a citizen of the republic was cutting off the long hair universally worn by the Sioux, and if any act could be taken as indicative of sincerity, this one seemed to be conclusive. It is quite as much of a sacrifice for an Indian to cut off his hair as it would be for a young lady in society possessed of a splendid suit of hair to cut it off short and appear at a grand ball with her head thus denuded.

The next step was to wear a hat, and exchange the breech-clout for pantaloons, and the blanket for a shirt or coat. Notwithstanding this terrible ordeal of naturalization, the population of the republic increased, and the church was well attended. The praying and singing was participated in quite generally by the members, and the future republic looked promising. One of the most exemplary citizens and devout worshippers was deacon Simon Ana-wang-ma-ni. He led in prayer, and labored heart and soul for the good of the republic and the church. He was the last man that anyone would have expected to fall from grace, and no one ever thought of such a thing; but, strange as it may appear, he one day sought an interview with the missionaries, and announced the astounding fact that an Indian who had

killed his cousin some eight years before had returned from the Missouri river country, and he thought it was his duty to kill him in retaliation. The astonishment of the missionaries may be well imagined. They cited to him the commandment, "Thou shalt not kill," and dwelt upon the awful sinfulness of such an act, and he would say, "I know what the Bible says, and I believe in Sundays, but he killed my cousin." Then they would attack him on the laws of the republic of which he was a high official, and dwell upon the dreadful example such an act would set before the brethren of the church, and he would reply, "Oh, yes; I know all that; but he killed my cousin." Then, in despair, they would tell him that he was no longer an Indian; that he had become a white man, and the laws of the white man forbid such revenge. "I know all that," he would say, "but he killed my cousin." As a final resort, the faithful and believing missionaries concluded to call in the aid of heaven to assist them, and they prayed with Simon for hours, days and nights, in all of which he joined with fervor and unction; but he could not divest himself of the all-pervading idea that his cousin had been killed, and the sacred duty had devolved upon him to avenge his death. This belief had been born in him, and no religion of the white man could eradicate it. True to the creed of his ancestors, he got a double-barrelled shotgun and went out and killed his enemy.

Of course, this murder opened up a new feud, arraying relative against relative, and destroyed Simon's influence as a deacon in the church and an officer of the republic to such a degree as almost to destroy all the good that both had accomplished. I mention this incident to show what uncertain ground the missionaries find to sow the seeds of Christianity in when working among savages.

Notwithstanding such discouragements as the above, I believe much good was done through the efforts of the missionaries. In times of great trouble and excitement I always found the best friends of the whites among the Indians who had felt the enlightening influences of the missionaries, not excepting Simon, who with Paul, John Otherday, and many others, performed heroic services for the whites when friends were most needed; but I have never been able to settle the question in my mind as to whether any of them ever grasped the principles of the Christian religion.

In 1862 the Sioux openly rebelled against the whites, and it was solely through the good offices of Otherday and Paul that these missionaries escaped massacre. All their buildings and their labor of long years were destroyed, and they were driven out of the country. Most people would have thought that they would have had enough of such a life. I know I thought so, but not so with these devoted people. Shortly after the suppression of the outbreak I met Dr. Williamson, and asked him what were his future intentions. Without the least hesitation he answered that he would look up the remnant of his tribe, and continue his work.

All the heroes are not found in the ranks of the fighters.

NOTE.—The reader of both the history and the frontier stories will notice that many of the facts stated in the history are repeated in the stories. I decided to insert both because the different way in which they are related led me to believe that the elimination of either would detract from the interest of the work.

THE AUTHOR.

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AN ACCOMPLISHED RASCAL.

In the late fifties a young man of very attractive manners and extraordinary accomplishments appeared in St. Peter. His name was La Croix, or at least he said it was, and no questions were asked. We had not at that time acquired the habit of asking newcomers what names they went by in the States, as was the usual practice in the early settlement of Texas and California. We were an unsuspicious people, and accepted those who settled among us for what they said they were and appeared to be.

It was soon discovered that La Croix spoke French fluently; nearly all our first settlers were French. He said he learned it while living in New Orleans. He soon developed a large acquaintance with military matters, and we made him captain of our militia company (now the national guard), and he drilled us up to a high state of discipline and skill in company tactics and movements. I had the honor of being second lieutenant of the company. This art, he said, he acquired as sergeant of a company in the crack New York Seventh.

He was a graceful and adroit fencer, and could explain the difference between the French system and the American plan as taught at West Point. I learned both from him. His conversational powers and the extent of his general knowledge surpassed anything that ever graced the border. In a word, he possessed all the qualities, including personal beauty, that were necessary to make him a general favorite with both men and women. He did not fail to improve all his advantages.

He soon became the trusted bookkeeper for one of our business concerns, courted and married a lovely young girl from a neighboring town, and settled down to a life of domestic felicity, esteemed by all, questioned by none.

Shortly after his marriage the Civil War began, and in due course of time a baby was born to his house. Shortly after the latter event he announced that news had arrived that certain stock of the Chemical Bank, in New York, which he had inherited from his father, who had died in New Orleans, was

in danger of confiscation by the federal government as rebel property, and he was obliged to go East and take care of it. He made the most elaborate preparations for the comfort of his wife and child during his absence, and departed. We gave him a splendid send-off, and several of us, I among the rest, entrusted him with commissions to perform for us in New York, and for a long time that was the last we heard of La Croix.

Of course, there were many who said, "I told you so," but they had not done anything of the kind; we were all taken in without exception. His wife was the last to lose confidence in his return. I followed up every clue she could give me, but without results. He had disappeared as completely as if the ground had opened and swallowed him up, and we forgot him.

The war was fought out, and peace returned. A Connecticut regiment, commanded by Colonel Brevet Brigadier General Thompson (I will call him that for certain reasons) was mustered out in one of the chief cities of that state, and nothing was too good for its gallant commander. He was sought after socially, and by the business community, and soon became as popular as La Croix had been in St. Peter. He married one of the most beautiful and aristocratic young ladies of the state, and was appointed to the position of general inspector of agencies of one of the great insurance companies of Connecticut, and he decided to improve the opportunity of his first tour as a pleasant way of passing his honeymoon. So he started west with his confiding wife.

I forgot to mention that, when La Croix reached St. Paul, after leaving St. Peter, he drew and cashed a small draft of a few hundred dollars on his employer, and appropriated the proceeds.

Thompson's luck seemed to have deserted him on his wedding trip, as, on arriving at Cleveland, Ohio, a citizen of St. Peter met and recognized him as his old friend La Croix, and not knowing he was a brigadier general slapped him familiarly on the shoulder and said: "Hello, La Croix; I am glad to see you." The general was immensely indignant, and spurned his new found friend, which angered the latter exceedingly, and he at once telegraphed to St. Peter, and received a reply to have the party arrested and held, which he did. The general wired to his principals, setting forth his difficulty, saying it was all a case of mistaken identity. They instructed their agent in Cleveland

to go General Thompson's bail for any amount required, which was done, and he at once started for home to procure evidence, leaving his wife to await his return, and that was the last seen of General Thompson for many years. I believe, however, he was once recognized in Vienna.

Time passed; the West grew and expanded; many new states were added to the Union; many immigrants were attracted to its fertile fields and booming cities, very few of their number hailing from either Minnesota or Connecticut. Among them, however, was a gentleman of most attractive mien. He went into the real estate business, and greatly prospered. His varied accomplishments soon made him the most popular man in his state. He united with the political party which held the power. He married an attractive young woman, and settled down to a quiet and respectable domesticity. In the course of events a United States senator was to be elected, and what was more natural than that this intelligent, respectable and popular citizen should be considered a worthy candidate. The legislature convened, his prospects of election were more than promising, and he would undoubtedly have been chosen had not some meddlesome fellow recognized him as the long lost La Croix. Of course, he disappeared, and this time, permanently.

The moral of this story is, that it is better, as a general thing, to find out what name people went by in the States before you either marry them or elect them to the United States senate.

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AN ADVOCATE'S OPINION OF HIS OWN ELOQUENCE IS NOT ALWAYS RELIABLE.

In the early days of the territory a large part of the legal business arose out of misunderstandings about claim lines and the attempts of settlers to jump the claims of other people. These suits usually took the shape of trespass and forcible entry and detainer. In some instances they ripened into assaults and batteries, and were generally tried before justices of the peace. Nearly all the people were French, and that language was quite as usually spoken as English. The town of Mendota was almost exclusively French and half-breed Sioux, the latter speaking French if they deviated from their native tongue. One of our earliest lawyers was Jacob J. Noah, from New York. He was the son of a very celebrated journalist of that city, and was a very cultured and accomplished gentleman. He spoke French like a native, which, no doubt, had a good deal to do with his living at Mendota. That town boasted of a justice of the peace, who occupied an exalted position in the estimation of the French inhabitants, on account of his learning and established character for justice and fair dealing. He was a handsome old gentleman, with white hair and beard and impressive judicial manner. About the year 1855, among the new arrivals in the legal fraternity, was Mr. John B. Brisbin, also from New York. He was a graduate of Yale, and acquainted with some of the leading lawyers in St. Paul, so his advent was announced with a good many flourishes, and he soon took a leading stand in the profession. Mr. Brisbin was a cultured and eloquent lawyer, and no one knew it better than himself. He settled in St. Paul. Soon after his arrival a controversy arose between a couple of settlers in Dakota county about their claim boundaries, and a suit was brought before the French justice at Mendota. Major Noah represented the plaintiff and the defendant employed Mr. Brisbin. It being Brisbin's first appearance in court, he made extraordinary preparations, intending to create a favorable impression. He discovered some fault in the law of the plaintiff's case, and when the parties met in court, he demurred to the plaintiff's complaint, and made an exhaustive argument in support of his position. He was fortified with numerous citations from English and New York cases, all of which he read

to the court. When he would become particularly impressive, the court would evince signs of deep interest, which convinced the speaker that he was carrying everything before him. When he finished his argument, he looked at his adversary with a confident and somewhat exultant expression, as if to say, "Answer that if you can."

The major opened his case to the court in French, and had hardly begun before Mr. Brisbin interposed an objection, that he did not understand French, and that legal proceedings in this country had to be conducted in English. The major answered by saying: "I am only interpreting to the court what you have been saying." Mr. Brisbin indignantly replied: "I don't want any interpretation of my argument; I made myself perfectly clear in what I said." "Oh, yes," said the major, "you made a very clear and strong argument; but his honor, the judge, does not understand a single word of English," which was literally true. Tradition adds that when the court adjourned, the judge was heard to ask the major: "Est ce qu'il y a une femme dans cette cause la?" Whether the court decided the case on the theory of there being a woman in it or not, history has failed to record.

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A MOMENTOUS MEETING.

The people of St. Paul have often been proud of a remark which was made by Hon. Wm. H. Seward, in a speech delivered by him in 1860, at the old capitol on Wabasha street, where he said he believed that the center of power on the North American continent would be very near the spot where he stood. Everybody, while they liked the prediction, looked upon it as a pleasant way the speaker had of giving his hosts and St. Paul a little "taffy," and nothing more. Such, however, was not the case, and Mr. Seward, when he uttered the prophecy, was thoroughly impressed with the truth of what he said, as I will prove further on.

This speech was delivered on the 18th of September, 1860. If I remember correctly, Mr. Seward was on an electioneering tour in support of Lincoln's candidacy for the presidency, and that Hon. James W. Ney of New York, afterwards governor of Nevada, was of the party; but I am not very sure of these facts, and they are not at all material to the point I am about to make. Mr. Seward stayed at the Merchant's Hotel, at the foot of Jackson street, kept by our well known host, Colonel Allen, while he remained in St. Paul.

Many of the older settlers will remember James W. Taylor of St. Paul, who, for many years, represented the United States as consul at Winnipeg. Mr. Taylor was the most popular man in that city. He was not only esteemed for his superior ability as an official, but was beloved by all classes of the people for his gentle and genial manners. He was a great friend of Bishop Anderson of Rupert's Land, who, for twenty years, had performed the duties of missionary bishop of that far away country. He had travelled the McKenzie river to its mouth in the Arctic ocean. He had been all over Alaska, up and down the Yukon, and, in fact, knew more about the vast country that lies north and northwest of the United States than any living man at the date we are speaking of. It so happened that the bishop and Consul Taylor were on a visit to St. Paul at the time of the arrival of Mr. Seward, and were also guests at the Merchant's Hotel. They, of course, called on the distinguished American, Mr. Seward, who became deeply interested in the conversation of the bishop about his travels through this

vast upper region, and was so impressed with the immensity and future possibilities of the country that he forgot all about his appointment to speak at the capitol, and kept his audience waiting for nearly an hour before he could tear himself away from the fascination of the bishop's conversation.

The topic Mr. Seward had selected for his speech was one in which he was profoundly interested. It was, "The Duty, Responsibility, and Future Power of the Northwest," which was a magnificent subject for discussion by such a thoughtful statesman. Before meeting Bishop Anderson, Mr. Seward had conceived certain theories on the question, as the quotation which I shall make from his speech clearly establishes, and that these preconceived ideas had been, by his intercourse with the bishop, radically changed, if not thoroughly overthrown, seems equally clear. It must be remembered that, in 1860, very little was known about Alaska and the British possessions in the far northern regions, and it is quite possible that even a man of Mr. Seward's learning may not have included them in his calculations for the future. Of course, what he said about his preconceived conclusions, and the subsequent changes made in them, involved the fact of the absorption into the United States of the whole continent, which in all probability will happen at some future time.

When Mr. Seward arrived at the capitol, he was introduced by John W. North, and, among other things, said:

"In other days, studying what might perhaps have seemed to others a visionary subject, I have cast about for the future—the ultimate central power of the North American people. I have looked at Quebec and New Orleans, at Washington and at San Francisco, at Cincinnati and St. Louis, and it has been the result of my last conjecture that the seat of power of North America would yet be found in the Valley of Mexico,—that the glories of the Aztec capital would be renewed, and that city would become ultimately the capital of the United States of America. But I have corrected that view, and I now believe that the last seat of power on this great continent will be found somewhere within a radius of not very far from the very spot where I now stand, at the head of navigation on the Mississippi river and on the great Mediterranean lakes."

When and where had this correction been made? Doubtless an hour before, at the Merchant's Hotel, through the influence of the interview with Bishop Anderson. While at the capitol they visited the rooms of the Historical Society, where the bishop made a short address to Mr. Seward, to which Mr. Seward responded. Now, all this might have happened, and been of no particular interest to the world, except as a pleasant episode between two distinguished men. But in this instance it turned out to be of vital importance to three of the greatest nations of the world. Mr. Seward was so deeply impressed with the St. Paul incident that, immediately after his return to Washington, he opened negotiations with the Russian government for the purchase of Alaska, and persistently carried them on, until he succeeded in acquiring that vast empire for a mere bagatelle of seven or eight millions of dollars. This remarkable prevision of Mr. Seward has stamped its effect on our present and future destiny and relations with England, Canada, Russia and perhaps all the nations of the Orient. Had not Mr. Seward visited St. Paul on that exact day, would this great change have been made in the map of North America? It certainly would not after the discovery of gold in Alaska. So I claim that Minnesota played an all-important role in the purchase of Alaska.

Having spoken of my dear old friend, James W. Taylor, I cannot omit to mention a most touching tribute paid to his memory by the people of Winnipeg. The municipality has placed upon the walls of its city hall a fine portrait of the faithful consul, under which hangs a basket for the reception of flowers. Every spring each farmer entering the city plucks a wild flower, and puts it in the basket. The great love of a people could not be expressed in a more beautiful and pathetic manner, and no man was more worthy of it than Consul Taylor.

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A PRIMITIVE JUSTICE.

The lands west of the Mississippi river, in Minnesota, were the property of the Sioux Indians until treaties were made with them in 1851, by which they ceded them to the United States, but these treaties were not fully ratified until 1853, on account of amendments which deferred final action. But immigration was pouring into the territory, and it naturally found a lodgment on the west side of the river, from the Iowa line up to Fort Snelling, and gradually extended up the Minnesota river to Mankato. Of course, all the settlers on the Indian lands were trespassers, and as the lands were unsurveyed, no claim rights could be acquired, but the settlers did the best they could to mark their claims, and gain what right they could by possession. The usual and best way of marking claim lines, was by running a plow furrow around the land. When the prairie was once broken, the line was indelible, because an entirely new growth would spring up in the furrow that never could be eradicated.

In 1854 a law of congress was passed, by which settlers in Minnesota were given rights in unsurveyed lands, their claims to be adjusted to the surveyed lines, when they were run, "as near as may be."

Of course, this condition of things gave rise to many disputes about claim lines and rights, and as there were no legal tribunals to appeal to, we organized claim associations to protect our rights. In my part of the territory we had an association that covered what is now Blue Earth, Nicollet and Le Sueur counties, and most of the actual settlers were members, and all were pledged to support each other against any one attempting to jump the claim of any member. Protection, of course, meant driving out the intruder and restoring the rightful owner to his possession. The means of reaching the object were not defined, but were understood to be adequate to the necessities of the occasion.

I had made a claim on the second plateau, back of what afterwards became the town site of St. Peter, and Gibson Patch, the sheriff of Nicollet county, had settled on the adjoining quarter section. These claims covered the

ground where the Scandinavian college now stands, called, I think, "Gustavus Adolphus."

I was the president of the Nicollet county branch of the claim association.

About 1855 the government survey lines were extended over our lands, and we had to adjust our lines to those of the official surveys as best we could. It so happened that the established lines left the shanty of my neighbor, the sheriff, outside of the quarter section he had always claimed, and before he discovered this fact, a man designing to take advantage of the sheriff's peculiar situation, and intending to jump his claim, erected a shanty on his land and moved his family into it. It was soon discovered, and Patch notified the claim association, which immediately assembled and decided that the jumper must be ejected and banished from the county. It was winter time. A committee of one hundred and fifty was delegated to perform the work at a certain day and hour. The jumper heard of it, and in the morning of the day fixed, he prudently fled down the river. Being president of the association, it devolved upon me to lead the party. We arrived at the house, and finding no opposition, we politely informed the family of our mission, and offered them comfortable transportation to any point they would name for themselves and their portable belongings, which they accepted. We then burned the house, and appointed two committees of ten each to chase the jumper down each side of the river, with full discretion to punish him as they saw fit. They pursued him for about forty miles, and it was fortunate for the fugitive that they did not overtake him, because had they caught him after two p. m., I think they would have been in a condition of mind that would have resulted in his summary execution.

Of course, we thought no more about it, as matters of that kind were of frequent occurrence; but that was not the last of it. It turned out that the jumper was a Mason of high degree, and when he got to St. Paul he made a most pitiable complaint, charging me with destroying his home, and with attempting to murder him. I was a small Mason, and was cited before the lodge to defend myself. I simply denied the jurisdiction, and did not appear. I was tried, and triumphantly acquitted.

On another occasion a claim was jumped in Le Sueur, just between upper and lower town, and the jumper had a great many friends who rallied to his

defense. The associations of all three counties were called out, and when we appeared at Le Sueur, we found about seventy-five Irishmen, all well armed, camped on the contested claim ready to defend it to the death. We camped at a short distance, and negotiations were opened between the hostile armies, which finally resulted in some sort of a compromise, satisfactory to the contesting parties, one of whom (the original claimant) was K. K. Peck, who was left in possession of the disputed territory. Mr. Peck laid his claim out into lots, and gave each one of the members of the association that had come to his rescue a deed for a lot, which we called a "land warrant," on account of services in the Peck war; but before we could realize on our warrants, the government surveys located a school section on the battle-field, and destroyed all our hopes.

*** END OF THE PROJECT GUTENBERG EBOOK THE HISTORY OF
MINNESOTA AND TALES OF THE FRONTIER ***

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